

Article V Use Regulations

CHAPTER 911 Primary Uses

§ 911.01. General.

- A. Use Type. Each of the use types listed in Use Table are defined in Chapter 926.
- B. Uses Permitted By-Right. Uses identified in a district column with a "P" are uses permitted By-Right and shall be allowed in the respective district, subject to compliance with all other applicable regulations of this Code.
- C. Uses Requiring Review by the Zoning Administrator. Uses identified in a district column with an "A" are Administrator Exceptions and shall be allowed the respective district only if reviewed and approved in accordance with the Zoning Administrator Exception review procedures of Section 922.08.
- D. Uses Requiring Review by the Zoning Board of Adjustment. Uses identified in a district column with an "S" are Special Exceptions and shall be allowed in the respective district only if reviewed and approved by the Zoning Board of Adjustment in accordance with the Special Exception review procedures of Section 922.07.
- E. Conditional Uses Requiring Review by the City Council. Uses identified in a district column with a "C" are Conditional Uses and shall be allowed in the respective district only if reviewed and approved in accordance with the Conditional Use review procedures of Section 922.06.
- F. Not Permitted. Uses that are not associated with a letter in a district column shall be considered prohibited uses and shall not be allowed in the respective district unless otherwise expressly permitted by other regulations of this Code.
- G. Standards. The "Standards" column of the Use Table contains a reference to specific standards that apply to listed uses in one (1) or more of the districts in which such use is allowed. Complete text of the Use Standards can be found in Section 911.04, which immediately follows the Use Table.

§ 911.02. Use Table. [Ord. 19-1999, eff. 7-8-1999; Ord. 20-1999, eff. 7-8-1999; Ord. 24-2000, eff. 8-21-2000; Ord. 28-2000, eff. 11-17-2000; Ord. 29-2000, eff. 11-22-2000; Ord. 23-2001, § 1, eff. 11-30-2001; Ord. 25-2001, §§ 1P—1X, eff. 11-30-2001; Ord. 21-2002, §§ 4—6, eff. 6-18-2002; Ord. 33-2002, § 1, eff. 11-12-2002; Ord. 35-2002, § 1C, eff. 12-3-2002; Ord. 34-2003, § 1, eff. 11-25-2003; Ord. 37-2003, § 1, eff. 12-31-2003; Ord. 23-2004, §§ 1A, 1B, eff. 12-20-2004; Ord. No. 7-2005, § 1, eff. 3-22-2005; Ord. 32-2005, § 1A, eff. 11-23-2005; Ord. 39-2005, § 1, eff. 12-30-2005; Ord. 42-2005, §§ 14—18, eff. 12-30-2005; Ord. No. 2-2007, § 1(A), (B), eff. 2-20-2007; Ord. 13-2007, §§ 1A, 1B, eff. 8-3-2007; Ord. No. 11-2009, § 1, eff. 6-18-2009; Ord. No. 32-2009, § 1, eff. 12-11-2009; Ord. No. 1-2011, § 1, eff. 2-14-2011; Ord. No. 8-2013, §§ 1A, 1B, eff. 1-31-2013; Ord. No. 25-2015, § 1, eff. 7-9-2015; Ord. No. 33-2016, § 1, eff. 12-13-2016; Ord. No. 4-2018, § 1, eff. 3-6-2018; Ord. No. 31-2018, § 9, eff. 8-6-2018;

Ord. No. 58-2021, § 1, eff. 12-27-2021; Ord. No. 17-2022, § 3, eff. 6-30-2022; Ord. No. 1-2023, § 11, 3-1-2023; Ord. No. 4-2024, § 1, eff. 2-27-2024; Ord. No. 8-2024, § 1, eff. 5-8-2024; Ord. No. 13-2024, § 8, eff. 5-14-2024; Ord. No. 23-2025, eff. 9-4-2025; Ord. No. 34-2025, eff. 11-19-2025; Ord. No. 4-2026, eff. 2-27-2026; Ord. No. 18-2026, § 1, eff. 6-11-2026]

Pittsburgh Urban Zoning Code Use Table

Key:

P = Permitted By Right
 A = Administrator Exception
 S = Special Exception
 C = Conditional Use

Use Classification	Base Zoning Districts*																									
	* As Base Zoning District Regulations, all uses may be subject to additional regulations imposed by applicable Overlay Zoning Districts.																									
	Residential				Mixed Use								Special			DT		RIV				Standard				
	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UNC	HC	GI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT	RM	MU	NS	GI	IMU	See § 911.04.x
RESIDENTIAL USES																										
Single-Unit Detached Residential means the use of a zoning lot for one detached housing unit.	P	P	P	P	P	P	P	P	P							P	P	A	P							§ 911.04A.69
Single-Unit Attached Residential means the use of a zoning lot for one dwelling unit that is attached to one or more dwelling units by a party wall or separate abutting wall and that is located on its own separate lot.	P/S	P	P	P	P	P	P	P	P	P				P		P		S			P	P				§ 911.04A.69; § 911.04A.69A
Two-Unit Residential means the use of a zoning lot for two dwelling units that are contained within a single building.)				P	P	P	P	P	P	P				P		P				P		P	P		P	
Three-Unit Residential means the use of a zoning lot for three dwelling units that are contained within a single building.					P	P	P	P	P	P				P		P				P		P	P		P	
Multi-Unit Residential means the use of a zoning lot for four or more dwelling units that are contained within a single building.					P	P	P	P	P	P			S	P	A	P			A	P		P	P	P	P	§ 911.04A.85
Assisted Living means a facility for the accommodation of convalescents or chronically ill persons, in which such nursing care and medical services are prescribed or are performed under the general direction of persons licensed to provide such care or services in accordance with Commonwealth laws.																										
Assisted Living Class A means an Assisted Living use with less than 9 patient beds.				S	S	S	A	A	A	P	P		P	A	A	A			A	P		A	A	P	P	§ 911.04A.66
Assisted Living Class B means an Assisted Living use with 9 to 17 patient beds.					S	S	S	S	P	P		P	S	S	S			S	P		S	S	P	P	§ 911.04A.66	
Assisted Living Class C means an Assisted Living use with 18 or more patient beds.					C	S	S	S	S			S	S	S	S			S	P			S	P	S	§ 911.04A.66	
Community Home is a group of more than eight unrelated disabled persons living together as a single housekeeping unit with shared common facilities. If required, staff persons may reside on the premises. A Community Home may not be a Multi-Suite Residential use or an Assisted Living use as defined in § 911.02. For the purposes of this definition, "disabled" means "handicapped" as defined according to the Fair Housing Act Amendments of 1988, 42 U.S.C.S. 3602(h), and any amendments thereto. This use does not include Custodial Care Facilities. This use includes halfway houses where persons are aided in readjusting to society following a period of hospitalization or institutionalized treatment for a medical, psychiatric, developmental, emotional, or other disability or handicap. This does not include halfway houses for people leaving a correctional facility.	S	S	S	S	S	S	S	S	S	S	S		S	S	S	S		S	S	S		S	S	S	S	§ 911.04A.84
Dormitory means the use of a zoning lot for occupancy by groups of people who are not defined as a family and who are registered students at a college, university or other institution of higher learning, on a weekly basis or longer, and is managed by the institution at which the students are registered.																		S	S							§ 911.04A.23

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	Residential					Mixed Use										Special			DT		RIV					Standard	
	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UN	CH	CI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT		RM	MU	NS	GI	IMU	See § 911.04.x
Fraternity/Sorority means the use of a zoning lot for occupancy by groups of people who are not defined as a family and who are registered students at a college, university or other institution of higher learning, and who are members of a fraternal or other organization which take sits membership from the student population of the institution at which the students are registered, on a weekly basis or longer.																			S								§ 911.04A.23
Housing for the Elderly (Limited) means a Housing for the Elderly use with less than 30 units.	S	S	S	S	S	A	A	A	A	A			A	P	A	A			A	A		S	A	A		A	§ 911.04A.35
Housing for the Elderly (General) means a Housing for the Elderly use with 30 or more units.				S	S	A	S	S	S	S			S	S	S	S			A			S	S	S		S	§ 911.04A.35
Interim Housing means facilities, in one or more structures, that provide housing for homeless or those facing homelessness, excluding the definition of Custodial Care Facility and Personal Care Residence. Shelter and support are provided for individuals to facilitate transition to more permanent housing. The Approving Body may provide a waiver of underlying zoning district standards to allow for flexibility so long as the use standards of Section 911.04.A.101 are met.							S	S	S	S			S	S	S	S			S	S			S	S		S	
Multi-Suite Residential (Limited) means a Multi-Suite Residential use with less than 8 sleeping rooms.					C		A	P	P				P	P	A	P			S	P		A	P	P		P	§ 911.04A.41
Multi-Suite Residential (General) means a Multi-Suite Residential use with 8 or more sleeping rooms.						S	A	A					A	P	A	P			S	P		S	A	P		A	§ 911.04A.41
Personal Care Residence (Large) is a personal care residence that is limited to no more than nineteen (19) persons including clients, operator (any person responsible for the day-today operation and supervision of the home) and family of the operator. An operator may also be the householder. Clients shall be limited to no more than seventeen (17) Persons.			S	S	S	S	S	S	S	S	S	S	S	S	S	S			A	S		S	S	S		S	§ 911.04A.95A
Personal Care Residence (Small) is a personal care residence that is limited to no more than ten (10) persons and no fewer than three (3) persons including clients, operator (any person responsible for the day-to-day operation and supervision of the home) and family of the operator. An operator may also be the householder. Clients shall be limited to no more than eight (8) persons.	A	A	A	A	A	A	A	A	A	A	A		A	A	A	A		A	A	A		A	A	A		A	§ 911.04A.95B
NON-RESIDENTIAL USES																											
Adult Entertainment means Adult Bookstore, Adult Cabaret, Adult Mini-Theater, Adult Theater, Massage Establishment, Model Studio, or Sexual Encounter or Meditation Center. See Chapter 926 for definitions.												S	C							C					S		§ 911.04A.1
Agriculture (General) means the growing of crops and raising of livestock and domestic small farm animals for domestic and commercial uses. The minimum lot size required is two (2) acres.	P	P	P	P	P				P		P	P	P					P	P			P			P		§ 911.04A.2(a)
Agriculture (Limited) With Beekeeping means the growing of crops and raising honey bees for domestic and commercial uses.	P	P	P	P	P	P			P		P	P	P					P	P			P	P		P	P	§ 911.04A.2(b)
Agriculture (Limited) means the growing of crops for commercial use. No minimum lot size is required.	P	P	P	P	P	P	P	P			P	P	P					P	P			P	P		P	P	§ 911.04A.2(c)
Amusement Arcade means any establishment displaying seven or more amusement devices including but not limited to pool tables, foosball tables, air hockey, "pong" games, mechanical rides for children, electronic games, and shooting gallery types games. See Chapter 926 for additional definitions.										S	S		S	P	P	P				A	A		S	A		S	§ 911.04A.3

	Base Zoning Districts*																										
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	Residential					Mixed Use										Special			DT		RIV						
Use Classification	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UNC	HC	GI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT		RM	MU	NS	GI	IMU	Standard See § 911.04.x
Animal Care (Limited) means a use providing small animal (household pets) boarding or veterinary services with no outside runs, not including lab animals.						P	P	P	P	P			P	P		P			A	A			P	P		P	§ 911.04A.4
Animal Care (General) means a use providing animal care, veterinary services or boarding.											P	P	P										P			P	
Art or Music Studio means an art studio, music studio or photographer's studio.						P	P	P	P	P			P	P	P	P			P	P			P	P		P	
Public Assembly (Limited) means a Public Assembly use with a capacity of less than 500 persons.									S	S	S		S	S	S		C		S	P			S	P		S	§ 911.04A.5
Public Assembly (General) means a Public Assembly use with a capacity of 500 or more persons.										C			C				C		S	P			S	P		S	§ 911.04A.6
Bank or Financial Institution (Limited) means a Bank or Financial Institution use with a gross floor area or less than 3,500 square feet.							P	P	P	P			P	P	P	P			A	P			P	P		P	§ 911.04A.96
Bank or Financial Institution (General) means a Bank or Financial Institution use with a gross floor area of 3,500 square feet or more.							P	P	P	P			P	P	P				A	P			P	P		P	§ 911.04A.96
Basic Industry means an establishment engaged in the basic processing and manufacturing of materials or products predominantly from extracted or raw materials.												P	S												P	S	
Bed and Breakfast (Limited) means a Bed and Breakfast use containing one to three guest rooms.	S	S	S	S	S	P	P	P	P	P			P	P	P	P			A	P		S	P	P		P	§ 911.04A.7; § 911.04A.8
Bed and Breakfast (General) means a Bed and Breakfast use containing four to ten guest rooms.			C	C	C	P	P	P	P	P			P	P	P	P			S	P		S	P	P		P	§ 911.04A.7; § 911.04A.9
Car Wash means an establishment primarily engaged in cleaning or detailing motor vehicles, whether self-service, automatic or by hand.									A	A	P	P	A	A											P	A	§ 911.04A.10
Cemetery means land used or intended to be used for the burial of the dead and dedicated to cemetery purposes, including columbariums, crematories, mausoleums, and mortuaries, when operated in conjunction with and within the boundary of such cemetery.																	A										§ 911.04A.11
Check Cashing means an establishment engaged in some or all of a variety of financial services including cashing of checks, warrants, drafts, money orders or other commercial paper securing the same purpose; deferred deposit of personal checks whereby the check casher refrains from depositing a personal check written by a customer until a specific date; money transfers, payday advances; issuance of money orders; distribution of governmental checks and food stamps; payment of utility bills; issuance of bus passes and tokens; sale of phone cards and similar uses. This use shall not include a state or federally chartered bank, savings association, credit union, industrial loan association, or rental-purchase company and shall not include a retail seller engaged primarily in the business of selling consumer goods, including consumables, to retail buyers that cashes checks or issues money orders for a minimum flat fee not exceeding two dollars (\$2.00) as a service to its customers incidental to the main use of the establishment.									S		S	S	S														§ 911.04A.93
Child Care means an establishment that provides care, protection and supervision for children on a regular basis away from their primary residence for less than 24 hours per day. The term does not include the following: public or private elementary or secondary schools or facilities operated in conjunction with an employment use, shopping center or other principal activity, where children are cared for while parents or custodians are occupied on the premises or in the immediate vicinity.																											
Child Care (Limited) means a Child Care center that provides care, protection and supervision for 4 to 6 children at any one time, including those under the supervision or custody of the child care provider and those under the supervision or custody of employees.	P	P	P	P	P	P	P	P	P	P	P	A	A	P	P	P		P	P	P		P	P	P		P	§ 911.04A.12

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Use Classification	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UNC	HC	GI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT			RM	MU	NS	GI	IMU	Standard See § 911.04.x	
Child Care (General) means a Child Care center that provides care, protection and supervision for 7 or more children at any one time, including those under the supervision or custody of the child care provider and those under the supervision or custody of employees.	S	S	S	S	P	P	P	P	P	P	P	A	A	P	P	P		S	A	P			P	P	P		P	§ 911.04A.12	
Club: Social, Fraternal, Athletic, Business or Professional																													
Club (Limited) means a club that does not provide, sell or allow the consumption of intoxicating beverages on the premises and is not more than 2400 square feet in net floor area.										P	P	P	P	P	P	P					P				P	P		P	
Club (General) other than the limited type described above.								S	S	S	P	P	P	S	S					P				P	P		P	§ 911.04A.88	
College or University Campus means a college, community college, or other post secondary educational complex, or any elements thereof not in an EMI District, which shall include one (1) or more of the following uses: teaching and research facilities; educational classroom space; public assembly; child care facilities, student center; food service facilities; laundry services; library; administrative offices; parking lots and structures; and recreation facilities.						C			C		C		C														C	§ 911.04A.90	
Communication Tower means a structure on which radio frequency transmitting and/or receiving antennae are located or which serves as such an antenna itself, including accessory buildings and equipment. Radio frequency is that portion of the electromagnetic spectrum that contains AM, FM, two-way radio, cellular telephone, television and microwave transmissions.																													
Communication Tower, Class A means a Communication Tower that is not more than 80 feet in height.	S	S	S	S	S	S	S	S	A	S	S	A	A	S	S	S	S	S	S	S			S	S	S	S	S	§ 911.04A.13	
Communication Tower, Class B means a Communication Tower which is between 81 and 180 feet in height.	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S			S	S	S	S	S	§ 911.04A.13	
Communication Tower, Class C means a Communication Tower which is more than 180 feet in height.	C	C	C	C	C	C	C	C	C	C	C	C	C	C	>	C	C	C	C	C			C	C	C	C	C	§ 911.04A.13	
Community Center means a facility used for social or recreational programs generally open to the public and intended to accommodate and serve significant segments of the community.																													
Community Center (Limited) means a Community Center which primarily serves the community in which it exists, and with a gross floor area of less than 5,000 square feet and for which fewer than 10 off-street parking spaces are provided.	C	S	S	S	S	A	P	P	P	P		A	P	P	A	P		A	P			S	P	P		A	§ 911.04A.14		
Community Center (General) means a Community Center with a gross floor area of 5,000 square feet or more, or one for which 10 or more off-street parking spaces are provided.						S	P	P	P	P		A	P	P	A	S		A	P				P	P		A	§ 911.04A.14		
Construction Contractor means an establishment primarily engaged in construction, building maintenance and building repair activities, including heating and electrical businesses, building maintenance and building movers.																													
Construction Contractor (Limited) means a Construction Contractor with a gross floor area of less than 3,500 square feet.								A	A	A	P	P	P											A		P	A	§ 911.04A.15	
Construction Contractor (General) means a Construction Contractor with a gross floor area of 3,500 square feet or more.												P	P	P												P			

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	Residential				Mixed Use										Special			DT		RIV					Standard			
	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UN	CH	CI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT		RM	MU	NS	GI	IMU	See § 911.04.x	
Controlled Substance Dispensation Facility means a public or private facility that sells, dispenses, distributes or otherwise provides any controlled substance, as defined in the Controlled Substances Act, 21 U.S.C. § 802 et seq., as the same may be amended from time to time, including, but not limited to, methadone, to any person known or believed by such facility or to any employee, agent or individual otherwise connected to such facility, to be physically or psychologically dependent on the use of controlled substances, for the detoxification treatment or maintenance treatment of such dependency, unless said controlled substance is sold, dispensed, distributed or otherwise provided for the cure or treatment of an illness, malady or disease other than controlled substance dependency.						C	C	C	C	C	C	C	C	C	C		C	C	C	C			C	C	C	C	§ 911.04A.98	
Correctional Facility is a publicly or privately operated facility housing persons awaiting trial or persons serving a sentence after being found guilty of a criminal offense.																												
Correctional Facility (Limited) means a Correctional Facility with less than 50 beds.										C	C	C	C	C						C					C	C	C	§ 911.04A.16
Correctional Facility (General) means a Correctional Facility with 50 or more beds.												C							C						C			§ 911.04A.17
Cultural Service means a museum or similar use engaged in the collection, display or preservation of objects of community or cultural interest in one or more of the arts or science.																												
Cultural Service (Limited) means a Cultural Service with a gross floor area of less than 5,000 square feet.	S	S	S	S	S	A	P	P	P	P	P	P	P	P	P	P	A		A	P		S	P	P		P	§ 911.04A.18	
Cultural Service (General) means a Cultural Service with a gross floor area of 5,000 square feet or more.							S	S	P	P	P	P	P	P	P		A		A	P			P	P		P	§ 911.04A.19	
Custodial Care Facility is facility providing custodial care and treatment in a protective environment for persons residing or attending by court placement, post-correctional facilities, juvenile detention facilities, temporary detention facilities, and halfway houses. This includes halfway houses and similar facilities for people on probation or parole and halfway houses for people leaving a correctional facility or placed there as a form of alternative sentencing.				C	C	C	C	C	C	C	C	C	C	C		C			C	C		C	C	C		C	§ 911.04A.94	
Educational Classroom Space means classroom space associated with a college, community college, university, or other institution of higher learning.																												
Educational Classroom Space (Limited) means an Educational Classroom Space use with a gross floor area of less than 20,000 square feet.							S	S	S	P		P	S	S				A	P			S	P		P	§ 911.04A.20		
Educational Classroom Space (General) means an Educational Classroom Space use with a gross floor area of 20,000 square feet or more.										S	P		P	S	S			A	P						P	§ 911.04A.21		
Excavation/Grading/Fill, Major means any operation, other than in connection with the construction of a foundation for a structure, involving: 1: Strip of other mining of coal or other minerals, excavating of sand or rock and the crushing of rock, sanitary and other fills, recovery of metal or other natural resources and similar operations; or 2. A volume of earth movement exceeding 16,000 cubic yards; or	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C		C	C	C	C	C	§ 911.04A.22	
Firearms Business Establishment means any business establishment, duly licensed by the appropriate agencies of the United States of America and the Commonwealth of Pennsylvania, that engages in the sale of firearms ("firearms" as defined by § 607.01 of the City Code), either by wholesale or retail, mail order or any other manner.							S	S	S	S	S								S					S	S	§ 911.04A.92		
Forestry Activities: The management, cultivation, maintenance, and harvesting of timber from a site of one-quarter acre (10,890 square feet; approximately 104.35 feet by one hundred 104.35 feet) or more, or a linear extent in any direction exceeding 200 feet. Does not include the production or processing of lumber or similar activities whether grown on site or off site.	S	S	S	S	S	S	S	S	S	S	S	S					S	S	S	S							§ 911.04A.22A	

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Use Classification	R1D	R1A	R2	R3	RM	ND	LN	CN	DI	UN	CH	GI	UI	UC-MU	UC-E	R-MU	P	H	EM	IGT		RM	MU	NS	GI	IMU	Standard See § 911.04.x	
Freight Terminal means a facility designed for the moving and storage of goods, including railroad and trucking terminals and railroad repair shops.											S	P	S												P	S	§ 911.04A.24	
Funeral Home means an establishment engaged in undertaking services such as preparing the human deceased for burial, and arranging and managing funerals, including mortuaries and crematoria.								S	S	S	A	P	P	A					S				S		P	P	§ 911.04A.25	
Gaming Enterprise means an establishment where the playing of those games of chance or mixed chance and skill allowed under the Commonwealth of Pennsylvania law are conducted. A Gaming Enterprise use shall not include a facility where resort accommodations are offered to transient guests in conjunction with the operation of games of chance or a facility where live horse or dog race meetings are conducted with pari-mutual wagering																			P					P				
Golf Course means an are of land laid out for private or public golf recreation services and support facilities excluding driving ranges.																	A										§ 911.04A.26	
Grocery Store means a retail store, the primary function of which is the sale of staple good and other basic life necessities.																												
Grocery Store (Limited) means a Grocery Store use with a gross floor area of less than 3,000 square feet.							A	A	A	P	P	P	P	P	P				A	P			P	P		P	§ 911.04A.82	
Grocery Store (General) means a Grocery Store use with a gross floor area of 3,000 square feet or more.							S	S	A	P	A	A	P	P				S	P				P	P		P	§ 911.04A.83	
Hazardous Operations means activities principally involved in activities and processes that present hazards to human life and health. Typical uses include arsenals, atomic reactors, explosives and fireworks manufacture, hazardous waste disposal and storage, medical waste disposal and storage. And radioactive waste handling facilities.												C													C		§ 911.04A.27	
Helicopter Landing Area means a dust controlled area of land, structural surface or water used or intended to be used for the landing, taking off or surface maneuvering of helicopter, autogyro or other vertical take off craft with engines operating.																												
Helipad means Helicopter Landing Area including one or more appurtenant aircraft parking spaces.								C		C	C	C							C	C					C		C	§ 911.04A.28; § 911.04A.29
Heliport means a Helicopter Landing Area including any combination of the following: 1. Refueling facilities; 2. Maintenance or repair facilities; 3. Terminal building or enclosed waiting area; 4. Aircraft or aircraft parts sales area; 5. Emergency service facilities; and/or 6. Aircraft parking												C							C						C		§ 911.04A.28; § 911.04A.29	
Helistop means a Helicopter Landing Area limited to arrivals or departures only, with no parking or storage of aircraft. Aircraft with							S		S	S	S								C	S					S	S	§ 911.04A.28; § 911.04A.31; § 911.04A.32	
Hospital means an institution that: 1. Offers services beyond those required for room, board, personal services and general nursing care; and 2. Offers facilities and beds for use beyond 24 hours by individuals requiring diagnosis, treatment, or care for illness, injury, deformity, infirmity, abnormality, disease, or pregnancy; and 3. Regularly makes available clinical laboratory services, diagnostic x-ray services, and treatment facilities for surgery or obstetrical treatment of similar extent. Hospitals may include offices for medical and dental personnel, central facilities such as pharmacies, medical laboratories and other related uses.					C		C		C	C		C							A	P				S	S	§ 911.04A.89		

	Base Zoning Districts*																										
	* As Base Zoning District Regulations, all uses may be subject to additional regulations imposed by applicable Overlay Zoning Districts.																										
	Residential				Mixed Use								Special		DT		RIV										
Use Classification	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UN	CH	CI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT	RM	MU	NS	GI	IMU	Standard See § 911.04.x	
Hotel/Motel means an establishment used, maintained or advertised as a place where sleeping accommodations are supplied for short-term rent to tenants, in which rooms are furnished for accommodation of such guests and which exclude individual kitchen facilities.									A	A	A	P		P	P	P	P		A	P			A	P		P	§ 911.04A.33
Hotel/Motel (Limited) means a Hotel/Motel use with less than 40 guest rooms.									S	S	S	P		P	P	P	A		A	P			S	P		P	§ 911.04A.34
Hotel/Motel (General) means a Hotel/Motel use with 40 or more guest rooms.)													C											C			§ 911.04A.36
Incinerator, Solid Waste means a facility, alone or in conjunction with a landfill or other facility, used or intended to be used for burning solid waste or trash.																											
Laboratory/Research Services means an establishment engaged in conducting basic, applied, industrial or scie when limited to the minimum scale necessary for full investigation of the merits of a product, but excluding pro production operations. The term also includes medical laboratories where prosthetic devices or medical testing or medical profession.																											
Laboratory/Research Services (Limited) means a Laboratory/Research Services use with a gross floor area of less than 10,000 square feet.									P	P	P	P	P	P	P	P			A	P			P	P	P	P	§ 911.04A.37
Laboratory/Research Services (General) means a Laboratory/Research Services use with a gross floor area of 10,000 square feet or more.										A	A	P	P	P	P	P			A	P			P	P	P	P	§ 911.04A.37
Laundry Services means an establishment that is primarily engaged in dry cleaning and laundry services, including pressing, repair, and dry cleaning, other than personal services directly to a consumer.									S	S	S	P	P	A	S				S				S	S	P	S	§ 911.04A.67
Library means a facility housing a collection of books, magazines or other material which is loaned to the general public without charge.																											
Library (Limited) means a Library with a gross floor area of less than 5,000 square feet.	S	S	S	S	S	A	P	P	P	P			P	P	P	P			A	P		S	P	P		P	§ 911.04A.38
Library (General) means a Library with a gross floor area of 5,000 square feet or more.							P	P	P	P			P	P	P				A	P			P	P		P	§ 911.04A.38
Manufacturing and Assembly means an establishment engaged in the manufacture or products or parts, predominantly using previously prepared material, including processing, fabrication, assembly, treatments, and packaging of such products, and incidental storage, sales and distribution of such products.																											
Manufacturing and Assembly (Limited) means a Manufacturing and Assembly use with a gross floor area of less than 20,000 square feet.										A	S	P	P	P	S	S				A			S	A	P	P	§ 911.04A.39
Manufacturing and Assembly (General) means a Manufacturing and Assembly use with a gross floor area of 20,000 square feet or more.										S		S	P	A						A				A	P	P	§ 911.04A.39; § 911.04A.40
Medical Marijuana Dispensary means an establishment that is issued a permit by the Department of Health to dispense medical marijuana.							S	P	P	P	P	A	P	P	P				P	P			P	P	P	P	§ 911.04A.99
Medical Marijuana Growing and Processing means an establishment that is issued a permit by the Department of Health to grow and process medical marijuana.										P		P	P	A											P	P	§ 911.04A.100
Medical Office/Clinic means an establishment providing therapeutic, preventative, corrective, healing and health-building treatment services on an out-patient basis by physicians, dentists and other practitioners. Typical uses include medical and dental offices and clinics and out-patient medical laboratories.																											
Medical Office/Clinic (Limited) means a Medical Office/Clinic use with a gross floor area of less than 5,000 square feet.							A	P	P	P	P	P	P	P	P	P			A	P			P	P		P	§ 911.04A.81
Medical Office/Clinic (General) means a Medical Office/Clinic use with a gross floor area of 5,000 square feet or more.							S	A	A	P	P	P	P	P	P				A	P			A	P		P	§ 911.04A.81
Nursery, Retail means the use of a zoning lot for the retail sale of plants and planting materials.																											
Nursery, Retail (Limited) means a Retail Nursery with less than 10 parking spaces and with a lot area of less than half an acre.							A	A	P	P	P	P	P				A						P			P	§ 911.04A.80

Use Classification	Base Zoning Districts*																											
	* As Base Zoning District Regulations, all uses may be subject to additional regulations imposed by applicable Overlay Zoning Districts.																											
	Residential				Mixed Use								Special			DT		RIV					Standard					
	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UNC	HC	GI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT		RM	MU	NS	GI	IMU	See § 911.04.x	
Nursery, Retail (General) means a Retail Nursery with 10 or more parking spaces or with a lot area of half an acre or more.										A	P	P	A	P									P			P		
Office means an establishment providing executive, management, administrative or professional services, but not involving medical or dental services or the sale of merchandise, except as incidental to a permitted use. Typical uses include real estate, insurance, property management, investment, employment, travel, advertising, law, architecture, government, design, engineering, accounting and similar offices.																												
Office (Limited) means an Office with a gross floor area of less than 10,000 square feet.						A	P	P	P	P	P	P	P	P	P	P			A	P			P	P	P	P	§ 911.04A.42	
Office (General) means an Office with a gross floor area of 10,000 square fee or more.						S	S	A	P	P	A	P	P	P					A	P			P	P		P	§ 911.04A.43	
Outdoor Retail Sales and Service [Primary Use] means the sale of goods and services, including food items, situated outdoors on property other than public rights-of-way, not meeting the definition of an Accessory Use 926.01. Typical uses include food truck parks, farmers markets, and outdoor flea markets.						P	P	P	P	P	P	P	P	P	P				P	P			P	P	P	P	§ 911.04A.91	
Parking, Commercial means an area used or intended to be used for the off?street parking of operable motor vehicles on a temporary basis, other than as accessory parking to a principal use, and excluding parking structures.																												
Parking, Commercial (Limited) means a Commercial Parking area with less than 25 spaces.									S	A	A	P	A	P						S				S	S	A	S	§ 911.04A.44
Parking, Commercial (General) means a Commercial Parking area with 25 or more spaces.										S	S	A	P	P					S				S	S	S	S	§ 911.04A.45	
Parking Structure means a structure used or intended to be used for off-street parking of operable motor vehicles on a temporary basis, other than as accessory parking to a principal use.																												
Parking Structure (Limited) means a Parking Structure with less than 50 spaces.						S	S	S	A	A	A	A	S	P	S				S	A			S	A		A	§ 911.04A.87	
Parking Structure (General) means a Parking Structure with 50 or more spaces. [Ord. 32, 11-23-2005]						S	S	S	S	S	A	S	S	P					S	A			S	A		A	§ 911.04A.87	
Parks and Recreation means park, playground or other facility or open space area providing active or passive recreational opportunities for the general public.																												
Parks and Recreation (Limited) means a Parks and recreation use that does not have spectator seating, concession, lighted playing courts or fields or more than 19 parking spaces.	S	A	A	A	A	P	P	P	P	P	A	P	P	P	P	P	A	P	P		P	P	P	P	P		§ 911.04A.46	
Parks and Recreation (General) means a Parks and recreation use with spectator seating, concession, lighted playing courts or fields or 20 or more parking spaces.											P	A	P	P		P	P		A	P		P	P	P	P	P	§ 911.04A.46	
Pawn Shop means an establishment engaged in retail sales of new or secondhand merchandise and offering loans secured by personal property.											S	S	S												S		§ 911.04A.97	
Recreation and Entertainment, Indoor means an establishment offering recreation and entertainment to the general public within an enclosed building. Typical uses include movie theaters, bowling alleys, skating rinks, fitness centers, dance studios, court sports and swimming pools.																												
Recreation and Entertainment, Indoor (Limited) means an Indoor Recreation and Entertainment use for which fewer than 20 parking spaces are provided.									P	P	P	P		P	P	P	P	A		A	P			P	P		P	§ 911.04A.48
Recreation and Entertainment, Indoor (General) means an Indoor Recreation and Entertainment use for which 20 or more parking spaces are provided.									S	S	A	P		P	A	A		A		S	P			P	P		P	§ 911.04A.47
Recreation and Entertainment, Outdoor means an establishment offering recreation, entertainment or games of skill to the general public for a fee or charge wherein any portion of the activity takes place in the open. Typical uses include archery range, golf driving ranges and miniature golf course and other types of recreation and entertainment not otherwise defined.																												
Recreation and Entertainment, Outdoor (Limited) means an Outdoor Recreation and Entertainment use for which fewer than 25 parking spaces are provided.									S	S	S	P		P				A		A	P			S	P		P	§ 911.04A.49
Recreation and Entertainment, Outdoor (General) means an Outdoor Recreation and Entertainment use for which 25 or more parking spaces are provided.										A		P	S	P				A		S	P			S	P		P	§ 911.04A.50

Use Classification	Base Zoning Districts*																											
	* As Base Zoning District Regulations, all uses may be subject to additional regulations imposed by applicable Overlay Zoning Districts.																											
	Residential				Mixed Use										Special			DT		RIV					Standard See § 911.04.x			
R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UN	CH	GI	UI	UC- MU	UC- E	R- MU	P	H	EM	IG	T		RM	MU	NS				GI
Recycling Collection Station means freestanding containers not occupying an area of greater than 800 square feet (exclusive of area designed for vehicular access), which are designed to receive and store pre-sorted recyclable materials not intended for disposal and which are made available to the general public.								A	A	A	P	P	P	A	A	A	A		A	P			A	P	P	P	§ 911.04A.51	
Recycling Processing Center means a building or land in excess of 800 square feet devoted to the receipt, separation, storage, bailing, conversion and/or processing of recycle materials.											S	P	S												P		§ 911.04A.52	
Religious Assembly means an establishment operated by a religious organization for religious worship, religious training and related religious services.																												
Religious Assembly (Limited) means a Religious Assembly use for which fewer than 20 parking spaces are required.	S	S	S	S	S	A	P	P	P	P	S	P	P	P	P			A	P			S	P	P		P	§ 911.04A.53	
Religious Assembly (General) means a Religious Assembly use for which 20 or more parking spaces are required.	S	S	S	S	S	S	A	P	P	P	S	P	P	P	P			S	P			S	A	P		P	§ 911.04A.53	
Restaurant, Fast-Food means an establishment where the principal business is the sale of food and beverage, and where the business includes a drive-through window.																												
Restaurant, Fast-Food											A	S															§ 911.04A.55	
Restaurant means an establishment other than "Fast-Food Restaurant" where the principal business is the sale of food and beverage in a ready to consume state.																												
Restaurant (Limited) means a Restaurant with a gross floor area of less than 2,400 square feet and that does not have live entertainment or dancing.								P	P	P	P	A	P	P	P	P	C		A	P				P	P		P	§ 911.04A.56
Restaurant (General) means a Restaurant with a gross floor area of 2,400 square feet or more or one that has live entertainment or dancing								S	S	S	P		P	P	P	S	C		S	P				S	P		P	
Retail Sales and Services means an establishment engaged in the sale or rental of goods and services, excluding those uses defined more specifically in the Use Table.																												
Retail Sales and Services (Limited) means a Retail Sales and Services use with a gross floor area of less than 10,000 square feet.								P	P	P	P	A	P	P	P	P			P	P				P	P		P	§ 911.04A.58
Retail Sales and Services (General) means a Retail Sales and Services use with a gross floor area of 10,000 square feet or more.								A	A	A	P	A	P	P	P				A	P				A	P		P	§ 911.04A.59
Retail Sales and Services, Residential Convenience means a Retail Sales and Services use contained wholly within the ground-floor of a multi-unit residential building					A				P				P						A				A					§ 911.04A.60

Use Classification	Base Zoning Districts*																										
	* As Base Zoning District Regulations, all uses may be subject to additional regulations imposed by applicable Overlay Zoning Districts.																										
	Residential				Mixed Use										Special			DT		RIV					Standard		
	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UN	CH	CI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT		RM	MU	NS	GI	IMU	See § 911.04.x
Retail: Tobacco, Inhalant, and Cannabinoids means a retail establishment, not including a licensed medical marijuana dispensary, whose principal retail activity, based on product inventory, display, and marketing is the sale of any combination of the following products or categories: • 1. Any substance containing tobacco leaf, including but not limited to cigarettes, cigars, pipes, snuff, chewing tobacco, and dipping tobacco. • 2. Electronic cigarettes, vape pens, or similar inhalant devices. • 3. Smoking or inhalation accessories (e.g., pipes, rolling papers, hookahs). • 4. Hemp-derived or synthetic cannabinoids, including but not limited to Delta-8 THC, Delta-10 THC, HHC, or similar psychoactive substances not regulated as controlled substances under state or federal law. • 5. Other ingestible or inhalable supplements marketed for psychoactive or euphoric effects. • 6. The business name or trade name contains terms like “vape,” “smoke,” “CBD,” or “tobacco,” or the business license lists it as a “vape shop,” “smoke shop,” “CBD shop”, or similar.									S	S	S	S	S	S	S							S	S	S	S	§ 911.04A.103	
Safety Service means a facility designed or used for the conduct of public safety and emergency services, including fire and police protection services and emergency medical and ambulance services.	S	S	S	S	S	S	A	A	A	P	P	P	A	A	A	S		S	P		S	A	P	P	P	§ 911.04A.61	
Salvage Yard means a lot, land or structure, or part thereof, used primarily for the collecting, storage and sale of waste paper, rags, scrap metal or discard material; or for the collecting, dismantling, storage and salvaging of machinery or vehicles that are not in operating condition; or for the sale of parts thereof. Typical uses include automobile salvage yards and junk yards.												A												A		§ 911.04A.62	
School, Elementary or Secondary means the use of a site for instructional purposes on an elementary or secondary level, with a curriculum that complies with state regulations.																											
School, Elementary or Secondary (Limited) means an Elementary or Secondary School with a maximum enrollment of less than 75 students.	S	S	S	S	S	S	S	S	A	A		S	A	A	S			A	P		S	S	P		S	§ 911.04A.63	
School, Elementary or Secondary (General) means an Elementary or Secondary School with a maximum enrollment of 75 students or more.	C	C	C	C	C	C	C	S	A	A		S	A	A	C			C	P			S	A		S	§ 911.04A.64	
Service Station means an establishment primarily engaged in the retail sale of gasoline or other motor fuels, that may include accessory activities such as the sale of lubricants, automotive accessories or supplies; the lubrication or washing of motor vehicles; and the minor adjustment or repair of motor vehicles.						S	S	S	P	P	A	S						A				S	A		A	§ 911.04A.65	
Transit Facility means a facility used or intended to be used as an area for loading, unloading, and interchange transit passengers. Typical uses include bus terminals, rail stations, and passenger related mass transit facilities.	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C			S	S	S	S	§ 911.04A.70	
Utility (Limited) means services and facilities of agencies that are under public franchise or ownership to provide services that are essential to support development and that involve only minor structures, such as but not limited to poles and lines.	A	A	A	A	A	A	A	A	A	P	P	P	A	A	A	A		S	P			C	C	P	C	§ 911.04A.71	

	Base Zoning Districts*																												
	* As Base Zoning District Regulations, all uses may be subject to additional regulations imposed by applicable Overlay Zoning Districts.																												
	Residential					Mixed Use										Special			DT		RIV								
Use Classification	R1D	R1A	R2	R3	RM	ND	NC	NC	ND	NC	UI	CH	CI	GI	UI	UC- MU	UC- E	R- MU	P	H	EM	IGT		RM	MU	NS	GI	IMU	Standard See § 911.04.x
Utility (General) means generating plants; electrical switching facilities and primary substations; water and wastewater treatment plants; water tanks; and similar facilities that are under public franchise or ownership to provide the general public with electricity, gas, heat, steam, communication, water, sewage collection, rail lines or other similar service. The term "utility" shall not be construed to include corporate or general offices; gas or oil processing; manufacturing facilities; or other uses defined in this section.								C	C	C	C	P	C			C	C	C	A		C	C			C	C	P	C	§ 911.04A.72
Vehicle/Equipment Repair (Limited) means a use providing automobile and other equipment repair or maintenance services within completely enclosed buildings, but not including General Vehicle/Equipment Repair services. Typical uses include businesses engaged in the following activities: Electronic tune-ups; Brake repairs (including drum turning); Air conditioning repairs; Transmission and engine repairs; Tire repairs; Front end alignments; Battery recharging; Oil changes and lubrication; and State Inspection stations.								S	S	S	P	P	P								C	A			S	A	P	P	§ 911.04A.73
Vehicle/Equipment Repair (General) means: 1. Any vehicle/equipment service not conducted within a completely enclosed building; 2. Any establishment engaged in body work or painting of vehicles or equipment; or 3. Any establishment involved in the repair of heavy equipment, including any vehicle with more than two axles. Typical uses include paint and body shops, truck repair facilities and heavy machinery repair shops.									S	S	P	P	A								A						P	A	§ 911.04A.74
Vehicle/Equipment Sales means an establishment engaged in the retail or wholesale sale or rental, from the premises, of motorized vehicles or equipment, along with incidental service or maintenance. Typical uses include new and used automobile and truck sales, automobile rentals, boat sales, motorcycle sales, construction equipment rental yards, moving trailer rental, farm equipment sale sand rental, and machinery sales, service and rental.																													
Vehicle/Equipment Sales (Limited) means a Vehicle/Equipment Sales use with a gross floor area of less than 10,000 square feet and a site of less than one acre.								S	A	A	P	P	A														P	A	§ 911.04A.75
Vehicle/Equipment Sales (General) means a Vehicle/Equipment Sales use with a gross floor area of 10,000 square feet or more or a site of one acre or more.									S	S	A	P	A														P	S	§ 911.04A.76
Vocational School means an establishment offering regularly scheduled instruction in professional, technical, commercial or trade skills, such as, but not limited to, business, real estate, building and construction, electronics, computer programming and technology, automotive and aircraft mechanics and technology, and similar types of instruction.																													
Vocational School (Limited) means a Vocational School for which fewer than 25 parking spaces are required.								P	P	P	P	P	P	P	P	P	S				A	P			P	P	P	P	§ 911.04A.77
Vocational School (General) means a Vocational School for which 25 or more parking spaces are required.								A	S	A	P	P	P	S	P						A	P			S	P	P	P	§ 911.04A.77
Warehouse means an establishment that is engaged in the storage of materials, equipment or products that will be distributed to wholesalers or retailers.																													
Warehouse (Limited) means a Warehouse use with fewer than five loading/unloading docks or bays.								A			P	P	P								S						P	P	§ 911.04A.78
Warehouse (General) means a Warehouse use with five or more loading/unloading docks or bays.											S	P	A													P	A	§ 911.04A.78	
Warehouse, Residential Storage means an enclosed storage facility of a commercial nature containing independent, fully enclosed bays which are leased to persons exclusively for dead storage of their household goods or personal property.								S			P	P	P																

Use Classification	Base Zoning Districts*																										
	* As Base Zoning District Regulations, all uses may be subject to additional regulations imposed by applicable Overlay Zoning Districts.																										
	Residential				Mixed Use								Special			DT		RIV					Standard IMUSee § 911.04.x				
	R1D	R1A	R2	R3	RM	ND	OL	NC	NDI	UN	CH	GI	UI	UC- MU	UC- E	R- MU	P	H	EM	IG	T	RM				MU	NS
Waste Transfer Station means a supplemental transportation facility used as an adjunct to solid waste route collection vehicles, for the primary purpose of moving the solid waste from the collection vehicles to other vehicles for further transfer. This use excludes Recycling Facilities and other uses intended to remove and/or reuse material from the solid waste stream.											C													C		§ 911.04A.102	
Welding or Machine Shop means a workshop where machines, machine parts, or other metal products are fabricated. Typical uses include machine shops, welding shops and sheet metal shops.									S		S	P	A	S											P		§ 911.04A.79
New and Unlisted Uses. See § 911.03											S																See § 911.03

§ 911.03. New and Unlisted Uses.

In the event that an application is submitted for a use that is not listed in the Use Table of Section 911.02, the Zoning Administrator shall be authorized to:

- A. Determine the classification of the new or unlisted use type into an existing land use category that most closely fits the new or unlisted use based upon the definitions of this Code and upon the similarity of the new/unlisted use with an existing, defined land use category; or
- B. In the event that the Zoning Administrator determines that the new or unlisted use type cannot be classified under Section 911.02A, the Administrator shall treat such use as a Special Exception in the GI District and require review and approval by the Zoning Board of Adjustment in accordance with the Special Exception review procedures of Section 922.07.

§ 911.04. Use Standards. [Ord. 23-2001, § 2, eff. 11-30-2001; Ord. 25-2001, §§ 1Y—1NNN, eff. 11-30-2001; Ord. 21-2202, § 7, eff. 6-18-2002; Ord. 35-2002, § 1D, eff. 12-3-2002; Ord. 31-2003, §§ 1A, 1B, eff. 11-10-2003; Ord. 36-2003, § 1A, eff. 12-16-2003; Ord. 45-2003, § 10, eff. 12-31-2004; Ord. 23-2004, § 1C, eff. 12-20-2004; Ord. 32-2005, §§ 1B—1AA, eff. 11-23-2005; Ord. 38-2005, §§ 1A—1C, 1E—1G, eff. 12-30-2005; Ord. 39-2005, § 1, eff. 12-30-2005; Ord. 40-2005, § 1A, eff. 12-30-2005; Ord. 42-2005, §§ 19—24, eff. 12-30-2005; Ord. No. 2-2007, § 1(C), eff. 2-20-2007; Ord. 13-2007, §§ 1C, 1D, eff. 8-3-2007; Ord. No. 32-2009, § 2, eff. 12-11-2009; Ord. No. 1-2011, § 2, eff. 2-14-2011; Ord. No. 8-2013, §§ 1C, 1D, 1-31-2013; Ord. No. 25-2015, § 2, eff. 7-9-2015; Ord. No. 2-2018, § 27, eff. 2-15-2018; Ord. No. 4-2018, § 2, eff. 3-6-2018; Ord. No. 31-2018, § 10, eff. 8-6-2018; Ord. No. 34-2021, § 1, eff. 10-11-2021; Ord. No. 58-2021, § 2, eff. 12-27-2021; Ord. No. 17-2022, § 4, eff. 6-30-2022; Ord. No. 1-2023, § 11, eff. 3-1-2023; Ord. No. 4-2024, § 2, eff. 2-27-2024; Ord. No. 8-2024, § 2, eff. 5-8-2024; Ord. No. 13-2024, § 9, eff. 5-14-2024; Ord. No. 23-2025, eff. 9-4-2025; Ord. No. 34-2025, eff. 11-19-2025; Ord. No. 4-2026, eff. 2-27-2026; Ord. No. 18-2026, § 1, eff. 6-11-2026]

No permit shall be issued for any development or use of land unless the activity is in compliance with all applicable provisions of this Code, including the standards established in this section. For the purposes of this Chapter, the following terms, phrases, words and their derivations shall have the meaning given herein unless otherwise specifically provided in this Chapter, or Chapter 926, unless the context clearly indicates otherwise or unless such meaning would be inconsistent with the manifest intent of Council.

A. **Standards That Apply to Uses Listed in the Use Table.**

The following standards apply to uses listed in the Use Table, to the extent stated.

1. **Adult Entertainment.**

Adult Entertainment uses shall be subject to the following standards:

- (a) **Separation From Other Adult Entertainment Uses.** The building housing an Adult Entertainment use shall not be located within one thousand (1,000) feet of any of the following uses: Adult Entertainment uses, Amusement Arcade, Hotel/Motel, bar or nightclub or Gaming Enterprise. This one thousand-foot area shall be defined by a radius of one thousand (1,000) feet from the center point of the subject

building. This separation distance requirements may be waived upon a determination of the following:

- (1) That the proposed use shall not be contrary to the public interest or injurious to nearby properties, and that the spirit and intent of this Zoning Code shall be observed;
 - (2) That the establishment of an additional regulated use in the area shall not be contrary to any program of neighborhood conservation nor shall it interfere with any program of urban renewal; and
 - (3) That all applicable regulations of this Zoning Code shall be observed.
- (b) Separation From Other Uses. The building housing an Adult Entertainment use shall be located at least five hundred (500) feet from the following uses. The five hundred-foot area shall be defined by a radius of five hundred (500) feet from the property line of the subject building:
- (1) Religious Assembly;
 - (2) Library;
 - (3) Cultural Service;
 - (4) Child Care Center;
 - (5) Elementary or Secondary School;
 - (6) Community Center;
 - (7) Single-Unit Detached Residential;
 - (8) Single-Unit Attached Residential;
 - (9) Two-Unit Residential;
 - (10) Three-Unit Residential; and
 - (11) Public Assembly (General).
- (c) Prohibited Activities. An Adult Entertainment use shall not be conducted in any manner that provides the observation of any material depicting, describing or relating to "specified sexual activities" or "specified anatomical areas", from any public right-of-way. This provision shall apply to any display, decoration or show window.
- (d) Operational Standards.
- (1) Establish a minimum size space for adult cabaret performance.
 - (2) Establish a minimum size space for showing movies or videos.
 - (3) Stages are required for all live entertainment.

- (4) A floor layout of premises is required that ensures that the manager has visual control of the premises.
- (5) Operating days and hours shall be specified.
- (6) Access control measures shall be specified.
- (7) Posting and enforcement of a "no-loitering" policy is required.
- (8) All Adult Entertainment establishments shall be licensed with the Bureau of Building Inspections.

2. (a) **Agriculture (General).**

Agriculture (General) shall be subject to the following standards:

- (1) The site shall be at least two (2) acres in size;
- (2) No structure, including beehives, chicken coops, or any similar accessory structures, except a dwelling unit shall be located within fifty (50) feet of any lot line;
- (3) The sale of non-mechanical agricultural and farm products that are grown, used, produced on site, or are part of an affiliated Community Supported Agriculture program shall be permitted and shall comply with the standards of Section 912.06, Outdoor Retail Sales and Service (Accessory Use);
- (4) Killing or dressing of animals raised on the premises shall be permitted if conducted entirely within an enclosed building;
- (5) The keeping of poultry birds, livestock, and domestic small farm animals shall be permitted within a securely fenced and enclosed area. Only chickens, ducks, bees, and goats may be permitted when there is not also a residential use of the property;
- (6) All animal structures and roaming areas shall be kept sanitary and free from accumulations of animal excrement and objectionable odor;
- (7) All seed, fertilizer, and animal feed shall be stored in a secured, rodent-proof container and housed within an enclosed structure; and
- (8) All applications shall be in compliance with Environmental Overlay District regulations of Chapter 906.

(b) **Agriculture (Limited) With Beekeeping.**

Agriculture (Limited) with Beekeeping shall be subject to the following standards:

- (1) The sale of non-mechanical agricultural and farm products that are grown, used, produced on site, or are part of an affiliated Community Supported Agriculture program shall be permitted, and shall comply with the standards of Section 912.06, Outdoor Retail Sales and Service (Accessory Use);

- (2) The keeping of poultry, livestock, and domestic small farm animals is not permitted;
- (3) For property with a minimum of two thousand (2,000) square feet in size, the property owner is permitted to keep two (2) beehives. For every additional two thousand (2,000) square feet of property, the owner is permitted two (2) additional beehives;
- (4) All structures necessary for and related to the housing of honeybees shall be subject to any required setbacks of the underlying zoning district, but shall in all cases be a minimum of ten (10) feet from any property line;
- (5) A "flyway barrier" of at least six (6) feet in height shall be provided at all places on the property line that are within twenty (20) feet of the hive(s). The "flyway barrier" shall consist of a solid fence or wall, dense vegetation, or combination thereof. No flyway is required for hives that are located on porches or balconies at least ten (10) feet above grade, except where such porch or balcony is located less than five (5) feet from a property line.
- (6) Roof-mounted beehives shall be located on primary and accessory structures no lower than ten (10) feet from grade and shall not be within the required setback;
- (7) All seed, fertilizer, or similar products shall be stored in a secured, rodent-proof container and housed within an enclosed structure; and
- (8) All applications shall be subject to the Environmental Overlay District regulations of Chapter 906.

(c) Agriculture (Limited).

Agriculture (Limited) shall be subject to the following standards:

- (1) The sale of non-mechanical agricultural and farm products that are grown, used, produced on site, or are part of an affiliated Community Supported Agriculture program shall be permitted, and shall comply with the standards of Section 912.06, Outdoor Retail Sales and Service (Accessory Use);
- (2) The keeping of poultry, livestock, and domestic small farm animals is not permitted;
- (3) All seed, fertilizer, or similar products shall be stored in a secured, rodent-proof container and housed within an enclosed structure; and
- (4) All applications shall be subject to the Environmental Overlay District regulations of Chapter 906.

3. Amusement Arcade.

Amusement Arcades shall be subject to the following standards:

- (a) Location in Historic District Prohibited. The building shall not be located within a

City Council designated "Historic District" per Chapter 1007 of the Pittsburgh Code of Ordinances.

- (b) Located in Building Containing Residential Dwelling Units. When the arcade is located in a building containing residential dwelling units, the space to be occupied for arcade shall not be located directly above or beneath the residential space.
- (c) Separation from Residential Zoning Districts and Historic Districts. The arcade shall not be located within three hundred (300) feet of a LNC District, residential zoning district or City Council designated "Historic District," as measured from each pedestrian entrance or exit of the arcade to the nearest boundary of the LNC District, residential zoning district or "Historic District."
- (d) Separation From Other Uses. A lot containing an arcade shall not be located within five hundred (500) feet of a lot containing any of the following:
 - (1) Other Amusement Arcade;
 - (2) Religious Assembly;
 - (3) Elementary or Secondary School;
 - (4) Library;
 - (5) Cultural Service;
 - (6) Community Center; or
 - (7) Park or Recreation (Limited).
- (e) Impact on Surrounding Community. Before approving an arcade use, the Approving Body shall determine that the proposed use shall not create detrimental impacts on the community, taking into consideration traffic generation, the relationship of the proposed use to surrounding structures; the availability of parking; and hours of operation; and the volume of people.

4. Animal Care (Limited).

- (a) In the GT, DR and EMI Districts. Animal Care (Limited) uses in the GT, DR and EMI Districts shall be subject to the following standards:
 - (1) Animal care activities shall be completely screened from view from any off-site location; and
 - (2) The design of the structure shall include features that acoustically shield any animal noises from being heard outside the property line.
- (b) In the RIV, UC-E, UC-MU, and R-MU Districts. Animal Care (Limited) use in the RIV Districts shall be subject to the following standards:
 - (1) The design of the structure shall include features that acoustically shield any animal noises from being heard outside the property line.

5. Assembly, Public (Limited).

- (a) In NDI, UNC, UI, RIV-MU, RIV-IMU, UC-E, UC-MU, and HC districts Assembly, Public (Limited) uses shall be subject to the following standards:
1. A traffic analysis shall be submitted demonstrating that the proposed development will not create traffic congestion in the district;
 2. Parking shall be provided in a location and manner that allows for all parking required by the facility, and all traffic created by the facility, to be located outside of residential districts; and
 3. The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, noise generation, and the hours of operation.
 4. The proposed use shall be subject to the Site Plan Review Procedures of Section 922.04.
- (b) In P District. Assembly, Public (Limited) uses shall be subject to the following standards in the P District:
- (1) A traffic analysis shall be submitted demonstrating that the proposed development will not create traffic congestion in the district;
 - (2) Parking shall be provided in a location and manner that allows for all parking required by the facility, and all traffic created by the facility, to be located outside of residential districts;
 - (3) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, noise generation, and the hours of operation; and
 - (4) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.
- (c) In EMI districts Assembly, Public (General) uses shall be subject to the following standards:
- (1) The design shall include devices which prevent noise associated with the use of the facility from being heard on other properties in the vicinity;
 - (2) A traffic analysis shall be submitted demonstrating that the proposed development will not create traffic congestion in the district;
 - (3) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (4) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

6. Assembly, Public (General).

- (a) In HC and UI Districts. Assembly, Public (General) uses shall be subject to the following standards in the HC and UI Districts:
 - (1) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development. The transportation study shall illustrate that the proposed development will not create traffic congestion on the surrounding streets, and that residential streets in the vicinity shall not be used for parking for the proposed development;
 - (2) The design shall include devices which prevent noise associated with the use of the facility from being heard on other properties in the vicinity;
 - (3) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (4) A traffic analysis shall be submitted demonstrating that the proposed development will not create traffic congestion in the district;
 - (5) Parking shall be provided in a location and manner that allows for all parking to be located outside of residential districts; and
 - (6) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation.
- (b) In P District. Assembly, Public (General) uses shall be subject to the following standards in the P District:
 - (1) A traffic analysis shall be submitted demonstrating that the proposed development will not create traffic congestion in the district;
 - (2) Parking shall be provided in a location and manner that allows for all parking required by the facility, and all traffic created by the facility, to be located outside of residential districts;
 - (3) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, noise generation, and the hours of operation; and
 - (4) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.
- (c) In EMI Districts.
 - (1) (Reserved)

- (2) The design shall include devices which prevent noise associated with the use of the facility from being heard on other properties in the vicinity;
 - (3) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (4) A traffic analysis shall be submitted demonstrating that the proposed development will not create traffic congestion in the district;
 - (5) Parking shall be provided in a location and manner that allows for all parking to be located outside of residential districts;
 - (6) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation; and
 - (7) The proposed use shall be in compliance with an approved Institutional Master Plan;
 - (8) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (d) In RIV Districts.
- (1) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development. The transportation study shall illustrate that the proposed development will not create traffic congestion on the surrounding streets, and that residential streets in the vicinity shall not be used for parking for the proposed development;
 - (2) The design shall include devices which prevent noise associated with the use of the facility from being heard on other properties in the vicinity;
 - (3) Parking shall be provided in a location and manner that allows for all parking to be located outside of residential districts; and
 - (4) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation.

7. **Bed and Breakfast.**

Bed and Breakfast uses shall be subject to the following standards:

- (a) The Bed and Breakfast use shall have a manager available on the premises on a twenty-four-hour-day basis while guests are on the premises;
- (b) Food and beverage service shall be limited to breakfast for registered, paying overnight guests except in the case of limited social and business functions held on

premises;

- (c) Guests shall be limited to a maximum length of stay of fifteen (15) consecutive days in any thirty-day period;
- (d) Wherein limited retail sales limited to incidental, occupant convenience items, and marketing and promotional items of our city are allowed to be sold to guests and visitors on the premises provided that there is no indication of items for sale by way of exterior signs or window displays;
- (e) Wherein limited social and business functions may occur provided that:
 - (1) The hours are limited to no later than 6:00 p.m. daily for bed and breakfasts (Limited); and no later than 11:00 p.m. Monday through Saturday, and 6:00 p.m. on Sunday for bed and breakfasts (General). No bed and breakfast shall host more than two (2) scheduled social or business functions per week.
 - (2) Valet parking shall be provided having a minimum of one (1) parking stall for every four (4) occupants permitted under the occupancy placard issued by the Bureau of Building Inspection.
 - (3) Strict compliance with the local noise ordinance is maintained.
 - (4) Occupancy shall not exceed the number of persons listed on the occupancy placard by the Bureau of Building Inspection.
- (f) Any structure in which a Bed and Breakfast use is to be located shall not be enlarged to provide for more guest rooms or guest room accommodations if such an enlargement would intrude on any front, side or rear setback requirements of the zoning district in which it is located;
- (g) A license shall be obtained as provided by Chapter 701 of the Pittsburgh Code of Ordinances prior to issuance of a Certificate of Occupancy;
- (h) A daily register of guests shall be maintained and made available for inspection by any City of Pittsburgh Code Enforcement Officer; and
- (i) No more than one (1) Bed and Breakfast use shall be permitted in a building and only in a single-unit residential structure.
- (j) The Bureau of Building Inspection shall designate at least one enforcement officer to be available during evening hours on weekdays and weekends to enforce the restrictions contained in this chapter.
- (k) A Bed and Breakfast Problem Solving Task Force is hereby created comprising Public Safety, Bureau of Building Inspection, City residents living adjacent to Bed and Breakfast, and representatives of Bed and Breakfast Association to (1) receive complaints and mediate disputes and (2) initiate a report to City Council at the end of twelve (12) months with recommendations for legislative amendments if needed. This shall take effect upon the date of the Mayor's signature (March 26, 1999), and will expire one (1) year later.

8. Bed and Breakfast (Limited).

- (a) In Residential and Grandview Public Realm, RIV-RM, and EMI Districts, Bed and Breakfast (Limited) uses shall be subject to the following standards:

Bed and Breakfast (Limited) uses shall be subject to the following standards in all residential and Grandview Public Realm zoning districts:

- (1) The Bed and Breakfast use shall be limited to no more than three (3) guest rooms, to be occupied by a total of no more than five (5) guests;
 - (2) An identification sign, non-illuminated and no larger than four (4) square feet in size, shall be permitted only on the wall of the structure;
 - (3) Automobile parking space shall be provided on the basis of one (1) parking stall for the resident operator and one (1) parking stall for each guest room within the boundaries of the same zoning lot in which the Bed and Breakfast use is approved. The zoning lot shall not include any building that is intended to be razed for parking purposes or has been razed at any time during a three-year period prior to an application for occupancy as a Bed and Breakfast; and
 - (4) In R1D-VL and R1D-L Districts, a bed and breakfast use may only be located in a historically designated structure.
- (b) In the UC-E, UC-MU, and R-MU, parking shall be provided in accordance with the Parking Demand Analysis provisions of Section 914.02.B.

9. Bed and Breakfast (General).

- (a) In R2, RM, Grandview Public Realm, RIV-RM and EMI Zoning Districts, Bed and Breakfast (General) uses shall be subject to the following standards:

- (1) The Bed and Breakfast use shall be limited to no more than ten (10) guest rooms and each guest room may provide lodging for up to two (2) individuals, unless children under the age of sixteen (16) years are accompanying the guests, and in no instance shall the total number of guests in a Bed and Breakfast use exceed thirty (30);
 - (2) An identification sign, non-illuminated and no larger than four (4) square feet in size shall be permitted only on the wall of the structure; and
 - (3) Automobile parking shall be provided on the basis of and shall not exceed two (2) parking stalls for the resident operator and one (1) parking stall for each guest room within the boundaries of the same zoning lot in which the Bed and Breakfast use is approved. The zoning lot shall not include any building that is intended to be razed for parking purposes or has been razed at any time during a three-year period prior to an application for occupancy for a Bed and Breakfast use.
- (b) In the UC-E, UC-MU, and R-MU, parking shall be provided in accordance with the Parking Demand Analysis provisions of Section 914.02.B.

10. Car Wash.

- (a) In all Districts. Car Wash uses shall be subject to the following standards in all districts:
 - (1) Curb cuts shall be located a minimum of sixty (60) feet from an intersection; and
 - (2) The proposed use shall require Site Plan Review.
- (b) In the UNC District. Car Wash uses in the UNC District shall be subject to the following standards:
 - (1) All primary uses shall be completely enclosed within a structure; and
 - (2) Accessory uses, including, but not limited to, vacuum stations and window washing stations, shall be screened from the street and adjacent residential properties in accordance with the Landscaping and Screening Standards of Chapter 918.
- (c) In the UI District. Car Wash uses shall be subject to the Site Plan Review procedures of Section 922.04.
- (d) In the NDI, and RIV-IMU, and UC-MU Districts, car wash uses shall be subject to the following standards:
 - (1) Curb cuts shall be located a minimum of sixty (60) feet from an intersection;
 - (2) Curb cuts shall be minimized to the maximum extent feasible in order to achieve access to the site; and
 - (3) The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking, pedestrian safety, noise, and hours of operation.

11. Cemetery.

Sufficient on-site roadways and parking areas shall be provided within Cemeteries to accommodate peak traffic demands.

12. Child Care (Limited and General).

Child Care (Limited and General) shall be subject to the health and safety, site, and transportation standards outlined in Title 55 of the Pennsylvania Code. In addition, the following standards shall apply:

- (a) In the GI District. Child Care uses shall be subject to the following standards in the GI District:
 - (1) Child Care uses shall be located and designed so as to protect children from any external impacts of industrial operations in the vicinity;

- (2) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04;
 - (3) Parking and access shall be provided in such a way as to protect users from any external impacts of traffic in the vicinity; and
 - (4) The Approving Body shall determine that the proposed location of such use will not create detrimental impacts for children attending such facility, taking into consideration surrounding industries, hazardous conditions, traffic generation and hours of operation.
- (b) In the UI, RIV-MU and RIV-IMU Districts. Child Care uses shall be subject to the following standards in the UI, RIV-MU and RIV-IMU Districts:
- (1) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04;
 - (2) Child Care uses shall be located and designed so as to protect children from any external impacts of industrial operations in the vicinity; and
 - (3) Parking and access shall be provided in such a way as to protect users from any external impacts of traffic in the vicinity.
- (c) In EMI Districts. Child Care uses shall be subject to the following standards:
- (1) Outdoor play areas shall be sufficiently enclosed and screened from the street such that children are protected from vehicular traffic, and that neighboring properties are screened in order to maximize external impacts of the play areas;
 - (2) Parking shall be provided in location and manner that allows for all parking to be located outside of residential districts; and
 - (3) The proposed use shall be subject to the site plan review procedures of Section 922.04.

13. **Communication Towers and Antennas.**

The following standards shall apply to all Communication Tower and Antenna Primary Uses:

- (a) The following standards shall apply to all Communication Tower and Antenna uses in all zoning districts in addition to the standards required for each Class of Tower (Class A, B, and C) listed hereafter:
 - (1) In all zoning districts:
 - (i) All Tower and Antenna applications on parcels of land shall be submitted to the Zoning Administrator for the Administrator's review and comment.
 - (ii) All applications that are within a Public Right-of-Way shall be subject to

all applicable guidelines and standards as adopted by the Art Commission, and all applicable standards and processes within the City Code regarding obstructions or otherwise dealing with structures within Rights-of-Way. Administration of approvals and permits within Rights-of-Way shall be as prescribed by the Director of Mobility and Infrastructure.

- (iii) Applications shall be deemed complete only upon receipt of all requisite documents necessary for review including, but not limited to those listed in Section 911.04.A.13(a)(8), and certification that the submitted documents are adequately complete and accurate for review.
- (iv) Applications where the subject is a Primary Use will be reviewed in accordance with the process and standards herein.
- (v) Applications where the subject is an Accessory Use or Structure will be reviewed by the Administrator as an Administrator's Exception and approved or rejected in accordance with the procedure set forth in Section 922.08 and in accordance with the standards within Section 912.04.G. of the Code.
- (vi) Applications where the subject is a Primary Use, and where the proposal meets the criteria below, will be reviewed by the Zoning Administrator as an Administrator's Exception and approved or rejected in accordance with the procedure set forth in Section 922.08:
 - a. New Antenna locating and co-locating on an existing Tower or Alternative Antenna Support Structures.
 - b. New concealed, stealth or camouflaged Towers, Antenna, DAS or Alternative Antenna Support Structures which are designed to blend in with the surroundings, including but not limited to, Antennas located in a structure such as a church steeple, or bell tower but which are not noticeable to the reasonable observer, and Antennas disguised as things such as trees, flagpoles, chimneys, grain silos or anything consistent with the surroundings.
 - c. New Antenna installed on a structure other than a Tower; provided the Antenna and supporting electrical and mechanical equipment must be of a neutral color that is closely compatible with the color of the supporting structure so as to make the Antenna and related equipment as visually unobtrusive as possible. Specifically, the application will be reviewed to determine whether it is compatible with the neighborhood, the surrounding uses, and the skyline.
 - d. Amateur Radio Antennas up to eighty (80) feet, that are owned and operated, exclusively, by a federally licensed amateur radio station operator. Approval of said Amateur Radio Antennas is conditioned upon the lack of interference with immediate neighbors' quiet

enjoyment of their property.

- e. Temporary Towers and Antennas, where temporary means six (6) months or less, and said Towers and Antennas shall not exceed eighty (80) feet.
- (2) The owner shall maintain the Tower, Antenna, Communications Facility, Station and Transmission Equipment in compliance with standards contained in applicable Federal, State and Local laws and regulations.
 - (3) All Towers, except concealed, stealth or camouflaged Towers and Antenna which are designed to blend in with the surroundings, and Alternative Antenna Support Structures shall be designed for collocation, which shall mean the ability of the structure to allow for the placement of antennae for three (3) or more tenants. As a condition of issuing a permit to construct or operate a Tower in the City, the owner/operator of the Tower is required to allow collocation until said Tower has reached maximum structural and frequency capacity. Any expansion of a Tower requires the entire site and/or Communications Facility to comply with the standards and conditions set forth in this Pittsburgh Zoning Code.
 - (4) Communications Facility shall mean any accessory building, structure, equipment cabinet, Base Station, Transmission Equipment or any other equipment installed in connection with Towers and/or Antennas for the direct or indirect purpose of providing low power radio communications service and shall be:
 - (i) Constructed so as to conform with all aspects of the Pittsburgh Code, including but not limited to, requirements regarding height, setback, lighting, landscaping, screening, construction materials, etc., and
 - (ii) Fully automated and unattended on a daily basis and shall be visited only for periodic maintenance, and
 - (iii) Accessed by means of a public street or easement to a public street. The easement shall be a minimum of twenty (20) feet in width and shall be improved to a width of at least twelve (12) feet with a dust-free, all-weather surface for the entire length. The access shall be landscaped to the satisfaction of the Zoning Administrator.
 - (5) A soil report complying with the standards of Appendix I: Geotechnical Investigations, ANSI/EIA-222-E, as amended, shall be submitted to the City, sealed by a Professional Engineer, to document and verify the design specifications of the foundation for the Communications Tower and/or Antenna, and anchors for the guy wires if used.
 - (6) The Towers and Antennas erected thereon as well as free-standing Communication Antennas shall be designed to withstand wind gusts in accordance with in accordance with the current Structural Standards for Steel Antenna Towers and Antenna Supporting Structures, published by the

Electrical Industrial Association/Telecommunications Industry Association and applicable requirements of the Pennsylvania Uniform Construction Code and other applicable regulations, current BOCA Code standards and/or other applicable generally accepted industry standards, laws, ordinances and regulations.

- (7) All new Applications for Communications Towers shall be accompanied with a statement from an engineer qualified in the field of radio frequency engineering, certifying that the Communications Tower and Communications Facility are within the applicable standards adopted by the Federal Communications Commission (FCC) for safety levels with respect to human exposure to radio frequency electromagnetic fields, as the same shall exist at the time of application.
- (8) All applications shall include:
 - (i) A map illustrating the location of the site for the proposed Tower, Antenna, Station and/or Communications Facility. The site shall be physically and visually marked in the field, for immediate identification, with any combination of survey irons or flags.
 - (ii) Explanation from the Applicant as to why the site was selected. No new Tower or Antenna shall be permitted unless the Applicant submits evidence that demonstrates that no existing Tower, Antenna, Station, Communications Facility or structure can accommodate the Applicant's proposed antenna.
 - (iii) A written commitment to the Zoning Administrator from the owner/operator of the Tower that the owner/operator shall allow collocation on the Tower where structurally and economically feasible.
 - (iv) A visual analysis, which may include photo simulation or other techniques, which identifies the potential visual impacts of the proposed Tower, Antenna, Station or Communications Facility. Visual analysis of the Tower, Antenna, Station or Communications Facility shall be from at least two (2) directions.
 - (v) Radio Frequency Propagation Maps.
 - (vi) A NEPA (National Environmental Policy Act) Environmental Compliance Checklist prepared in accordance with Section 106 of NEPA; which shall be provided by the Applicant prior to the issuance of a permit.
 - (vii) A report by a certified engineer documenting the following:
 - a. Tower or Antenna height and design, including technical, engineering, collocation, economic and other pertinent factors governing selection of the proposed design. Height shall be measured to the highest point of the structure and/or the highest

point of its accessory equipment or antenna, whichever is higher. A cross section of the Tower or Antenna shall be included.

- b. Total anticipated capacity of the site, including number and types of Antennas which can be accommodated.
- c. Evidence of structural integrity of the Tower and/or the Antenna structure.
- d. Failure characteristics of the Tower and/or Antenna and demonstration that the site and setbacks are of adequate size to accommodate debris.
- e. Ice hazards and mitigation measures which have been employed, including increased setbacks and/or deicing equipment.
- f. Specific design and construction plans for the Tower, Antenna, Station or Communications Facility which include the means by which shared use requirements will be met.

(viii) Site plans.

- a. A plot plan shall be submitted with the application showing the location and dimensions of the Tower, Antenna, Station and/or Communications Facility and all improvements in the project area, including information concerning (if required) rights-of-way and easements, topography, setbacks, ingress/egress, parking, fencing, landscaping, screening, concealment, and adjacent zoning and uses. Concept plan approval by the Approving Body is required for applications requiring ZBA or City Council approval. Final Site Plan approval is required by the Zoning Administrator prior to the issuance of an Occupancy Permit. Final Site Plan approval by the Zoning Administrator is also required for administratively approved applications.
- b. As part of the plot plan review, screening, fencing, or anti-climbing security features will be required, at the discretion of the Zoning Administrator, around the base of the Tower, Antenna, Station and/or Communications Facility and any shelters as listed in the Use Standards for the specific Class of Tower.

(9) Abandoned Towers and Antennas.

- (i) The Tower, Antenna, Station and/or Communications Facility shall be utilized continuously for communication services. In the event the Tower, Antenna, Station and/or Communications Facility ceases to be used for communication services for a period of six (6) consecutive months, the Tower, Antenna, Station and/or Communications Facility shall be removed. The Applicant may be granted an extension up to six (6) months at the discretion of the Zoning Administrator.

- (ii) All abandoned Towers, Antennas, Stations and/or facilities improvements above ground and to three (3) feet below grade shall be removed within ninety (90) days of abandonment.
 - (iii) All unused building-mounted Antennas shall be removed within sixty (60) days of abandonment.
 - (iv) The Department of Permits, Licensing and Inspections, as well as the Department of Public Works and Department of Mobility and Infrastructure will monitor the Towers, Antennas, Stations and/or facilities for signs of abandonment.
- (10) Damaged/Destroyed Towers and Antennas. Any Tower, Antenna, Station and/or Communications Facility damaged/destroyed by vandalism, terrorism, faulty construction or design, wind, ice, snow, earthquake, fire, or other act of nature or God, that was completely operational/functional at the time of the damage/destruction, must be repaired/replaced within six (6) months of damage/destruction. If the Tower, Antenna, Station and/or Communications Facility is not repaired/replaced within six (6) months the requirements under "Abandoned Towers and Antennas" will apply.
- (11) Replacement Towers and Antennas.
 - (i) Any Tower or Antenna can be replaced with a similar Tower or Antenna for reasons of structural integrity, or advances that have been made in technology since the installation of the existing Tower, or for the installation of a less intrusive technology or stealth technology.
 - (ii) Replacement Towers must meet the requirements of this Section.
 - (iii) Replacement Towers must receive administrative approval and are subject to the fee schedule in this Section.
- (b) Communication Tower, Class A (zero (0) feet to eighty (80) feet). Communication Towers, Class A shall be subject to the following standards:
 - (1) In NDI, UI and GI Districts. Communication Towers, Class A shall be subject to the following standards in the NDI, UI and GI Districts:
 - (i) The structure shall comply with the setback requirements of the district. In addition, the Tower shall be set back a minimum of three hundred (300) feet from the lot line of any adjacent R-zoned lot that is occupied by one (1) or more dwelling units. Peripheral supports and guy anchors for radio or television transmission or receiving Towers may be located within required yards, provided that they shall be located entirely within the boundaries of the property on which the Tower is located and shall be located no closer than five (5) feet from any property line, and no closer than ten (10) feet from the lot line of an R-zoned lot that is occupied by one (1) or more dwelling units;

- (ii) The Tower may exceed the height limit of the zoning district in which it is located to a height of no more than eighty (80) feet provided it is demonstrated to the Administrator that such height is necessary and essential for the proper functioning of the concerned Tower, Antenna, Station and/or Communications Facility and said Tower, Antenna, Station and/or Communications Facility employs concealment, stealth technology, or is otherwise camouflaged with a design to blend in with the surroundings or otherwise be disguised consistent with the surroundings;
- (iii) The applicant shall demonstrate to satisfaction of the Zoning Administrator that such use is reasonably necessary at the proposed location for the convenience of the people at large or for the general welfare and that the proposed Tower, Antenna, Station and/or Communications Facility cannot be co-located on an existing structure. The information submitted by the applicant shall include a map of the area to be served by the Tower, Antenna, Station and/or Communications Facility and the relationship of the proposed site to other telecommunications Towers, Antennas, Stations and/or facilities;
- (iv) A fence or wall not less than six and one-half (6½) feet in height from finished grade shall be constructed around each Tower and around each guy anchor and peripheral support. The fence or wall shall comply with all provisions of this Zoning Code, including but not limited to the relevant provisions of Chapters 918 and 925 of this Zoning Code, as well as with the following standards:
 - a. Access to the Tower shall be through a locked gate in the required fence or wall;
 - b. The required fencing shall consist of a masonry wall or solid fence with trees planted along the exterior of the wall or fence, or an open fence with an evergreen screen that consists of a continuous hedge with a minimum height of five (5) feet with trees planted along the exterior of the screen. Tree plantings shall consist of three-inch minimum caliper deciduous or evergreen trees planted twenty (20) feet on center maximum. Existing vegetation shall be preserved to the maximum extent possible; and
 - c. If high voltage is necessary for the operation of the Tower and it is present in a ground grid or in the Tower, signs located every twenty (20) feet and attached to the fence or wall shall display in large bold letters the following: "HIGH VOLTAGE - DANGER";
- (v) The Tower shall not encroach into or through any established public or private airports approach path as established by the Federal Aviation Administration (FAA);
- (vi) All obsolete or unused Towers shall be removed within six (6) months of

cessation of use;

- (vii) The Tower shall comply with current Federal Communications Commission standards for non-ionizing electromagnetic radiation (NIER);
 - (viii) The Tower may be located on lots occupied by another primary use and may occupy a leased parcel on a lot meeting the minimum lot size requirement of the district in which it is located; and
 - (ix) No Antenna or Tower structure shall be illuminated, except as may be required by the Federal Aviation Administration (FAA) or the Federal Communication Commission (FCC).
- (2) In all other Districts. Communication Towers, Class A shall be subject to the following standards in all districts except NDI, UI and GI:
- (i) Communication Towers shall be located on a zoning lot complying with the yard requirements of the zoning district in which such use is located, except that the widths of certain yards shall be as follows:
 - a. The minimum setback between Communication Towers and property lines of non-residentially zoned lots shall be at a distance equal to twenty (20) percent of the height of the Tower;
 - b. Communication Towers shall be setback a minimum of fifty (50) feet from any existing or planned right-of-way; and
 - c. Communication Towers shall be set back a minimum of three hundred (300) feet from the lot line of any adjacent R-zoned lot that is occupied by one (1) or more dwelling units.
 - (ii) Peripheral and guy anchors for Communication Towers may be located within required yards, provided that they shall be located entirely within the boundaries of the property on which the Tower is located and shall be located no closer than five (5) feet from any property line, and no closer than ten (10) feet from the lot line of an R-zoned lot that is occupied by one (1) or more dwelling units.
 - (iii) The Tower may exceed the height limit of the zoning district in which it is located provided it is demonstrated to Council that such height is necessary and essential for the proper functioning of the concerned Tower, Antenna, Station and/or Communications Facility and said Tower, Antenna, Station and/or Communications Facility employs concealment, stealth technology, or is otherwise camouflaged with a design to blend in with the surroundings or otherwise be disguised consistent with the surroundings.
 - (iv) When a Communication Tower, Antenna, Station and/or Communications Facility is proposed to be located in any district, the

applicant shall demonstrate to satisfaction of Council that such use is reasonably necessary at the proposed location for the convenience of the people at large or for the general welfare and that the proposed Communication Tower, Antenna, Station and/or Communications Facility cannot be co-located on an existing structure and that a diligent effort was made to locate on an existing structure. The information submitted by the Applicant shall include a map of the area to be served by the Tower, Antenna, Station and/or Communications Facility and the relationship of the proposed site to other telecommunications Towers.

- a. When the proposed site is in any residential district, the Applicant shall demonstrate to the satisfaction of Council that the proposed Communication Tower, Antenna, Station and/or Communications Facility cannot be co-located on an existing Tower, Antenna, Station and/or Communications Facility within a nonresidential district and that a diligent effort was made to locate on an existing structure. The information submitted by the Applicant shall include a map of the area to be served by the Tower, Antenna, Station and/or Communications Facility and the relationship of the proposed site to other telecommunications Towers.
- (v) A fence or wall not less than six and one-half (6½) feet in height from finished grade shall be constructed around each Communication Tower and around each guy anchor and peripheral support. The fence or wall shall comply with all provisions of this Zoning Code, including but not limited to the relevant provisions of Chapters 918 and 925 of this Zoning Code, as well as with the following standards:
- a. Access to the Tower shall be through a locked gate in the required fence or wall;
 - b. In accordance with Chapter 918, the required fencing shall consist of a masonry wall or solid fence with trees planted along the exterior of the wall or fence, or an open fence with an evergreen screen that consists of a continuous hedge with a minimum height of five (5) feet with trees planted along the exterior of the screen. Tree plantings shall consist of three-inch minimum caliper deciduous or evergreen trees planted twenty (20) feet on center maximum. Existing vegetation shall be preserved to the maximum extent possible; and
 - c. If high voltage is necessary for the operation of the radio or television transmission or receiving Tower and it is present in a ground grid or in the Tower, signs located every twenty (20) feet and attached to the fence or wall shall display in large bold letters the following: "HIGH VOLTAGE - DANGER".
- (vi) Communication Towers shall not encroach into or through any established public or private airport approach path as established by the

Federal Aviation Administration (FAA).

- (vii) All obsolete or unused Communication Towers shall be removed within six (6) months of cessation of use.
 - (viii) Communication Towers shall comply with current Federal Communication Commission standards for non-ionizing electromagnetic radiation (NIER).
 - (ix) Communication Towers may be located on lots occupied by another primary use and may occupy a leased parcel on a lot meeting the minimum lot size requirement of the district in which it is located.
 - (x) No antenna or Tower structure shall be illuminated, except as may be required by the Federal Aviation Administration (FAA) or the Federal Communication Commission (FCC).
- (c) Communication Tower, Class B (eighty-one (81) feet to one hundred eighty (180) feet can be allowed as Special Exceptions in accordance with the Review Procedures of Section 922.07; and Class C (one hundred eighty-one (181) feet and above) can be allowed as Conditional Uses in accordance with the Review Procedures of Section 922.06: Communication Towers, Class B and Communication Towers, Class C shall be subject to the following standards in all districts:
- (1) Communication Towers shall be located on a zoning lot complying with the yard requirements of the zoning district in which such use is located, except that the widths of certain yards shall be as follows:
 - (i) The minimum setback between Communication Towers and property lines of non-residentially zoned lots shall be at a distance equal to twenty (20) percent of the height of the Tower;
 - (ii) Communication Towers shall be setback a minimum of fifty (50) feet from any existing or planned right-of-way; and
 - (iii) Communication Towers shall be set back a minimum of three hundred (300) feet from the lot line of any adjacent R-zoned lot that is occupied by one (1) or more dwelling unit.
 - (iv) Peripheral and guy anchors for Communication Towers may be located within required yards, provided that they shall be located entirely within the boundaries of the property on which the Tower is located and shall be located no closer than five (5) feet from any property line, and no closer than ten (10) feet from the lot line of an R-zoned lot that is occupied by one (1) or more dwelling units.
 - (2) Class B and C Communication Towers' height must be demonstrated to the appropriate approving body, such as the ZBA, Planning Commission or City Council that such height is necessary and essential for the proper functioning

of the concerned Tower, Antenna, Station and/or Communications Facility and said Tower, Antenna, Station and/or facility employs concealment, stealth technology, or is otherwise camouflaged with a design to blend in with the surroundings or otherwise be disguised consistent with the surroundings.

- (3) When a Class B or C Communication Tower is proposed to be located in any district, the Applicant shall demonstrate to satisfaction of the appropriate approving body, such as the ZBA, Planning Commission or City Council that such use is reasonably necessary at the proposed location for the convenience of the people at large or for the general welfare and that the proposed Communication Tower, Antenna, Station and/or Communications Facility cannot be co-located on an existing Tower, Antenna, Station and/or facility and that a diligent effort was made to locate on an existing structure. The information submitted by the Applicant shall include a map of the area to be served by the Tower, Antenna, Station and/or Communications Facility and the relationship of the proposed site to other telecommunications Towers.
 - (i) When the proposed site is in any residential district, the Applicant shall demonstrate to the satisfaction of the appropriate approving body, such as the ZBA, Planning Commission or City Council that the proposed Communication Tower, Antenna, Station and/or Communications Facility cannot be co-located on an existing Tower, Antenna, Station and/or facility within a nonresidential district and that a diligent effort was made to locate on an existing structure. The information submitted by the Applicant shall include a map of the area to be served by the Tower, Antenna, Station and/or Communications Facility and the relationship of the proposed site to other telecommunications Towers.
- (4) A fence or wall not less than six and one-half (6½) feet in height from finished grade shall be constructed around each Communication Tower and around each guy anchor and peripheral support. The fence or wall shall comply with all provisions of this Zoning Code, including but not limited to the relevant provisions of Chapters 918 and 925 of this Zoning Code, as well as with the following standards:
 - (i) Access to the Tower shall be through a locked gate in the required fence or wall;
 - (ii) The required fencing shall consist of a masonry wall or solid fence with trees planted along the exterior of the wall or fence, or an open fence with an evergreen screen that consists of a continuous hedge with a minimum height of five (5) feet with trees planted along the exterior of the screen. Tree plantings shall consist of three-inch minimum caliper deciduous or evergreen trees planted twenty (20) feet on center maximum. Existing vegetation shall be preserved to the maximum extent possible; and
 - (iii) If high voltage is necessary for the operation of the Communication Tower and it is present in a ground grid or in the Tower, signs located

every twenty (20) feet and attached to the fence or wall shall display in large bold letters the following: "HIGH VOLTAGE - DANGER".

- (5) Communication Towers shall not encroach into or through any established public or private airport approach path as established by the Federal Aviation Administration (FAA).
- (6) All obsolete or unused Communication Towers shall be removed within six (6) months of cessation of use.
- (7) Communication Towers shall comply with current Federal Communication Commission standards for non-ionizing electromagnetic radiation (NIER).
- (8) Communication Towers may be located on lots occupied by another primary use and may occupy a leased parcel on a lot meeting the minimum lot size requirement of the district in which it is located.
- (9) No Antenna or Tower structure shall be illuminated, except as may be required by the Federal Aviation Administration (FAA) or the Federal Communication Commission (FCC).

14. Community Center (Limited and General).

(a) Community Center (Limited).

- (1) In all Residential, Grandview Public Realm, and RIV-RM Districts, R-MU Community Center (Limited) uses shall be subject to the following standards:
 - (i) Potential detrimental impacts of traffic and parking shall be addressed, taking into consideration the needs of events which may occur on site;
 - (ii) All activities conducted on the premises of the Community Center shall be noncommercial and nonprofit;
 - (iii) The Approving Body shall determine that the Community Center use will not be detrimental impacts to the neighborhood, taking into consideration the physical relationship of the proposed use to the surrounding structures, the probable hours of operation, social activities to be conducted and the number of people using the premises at any one (1) time; and
 - (iv) The Residential Compatibility Standards of Chapter 916 shall apply.
- (2) In NDO District. Community Center (Limited) uses shall be subject to the following standards:
 - (i) Potential detrimental impacts of traffic and parking shall be addressed, taking into consideration the needs of events which may occur on site;
 - (ii) All activities conducted on the premises of the Community Center shall be noncommercial and nonprofit; and

- (iii) The Residential Compatibility Standards of Chapter 916 shall apply.
- (3) In all UI and EMI Districts. Community Center (Limited and General uses shall be subject to the following standards:
 - (i) The proposed use shall be subject to the Site Plan Review Procedures of Section 922.04; and
 - (ii) Parking and access shall be provided in such a way as to protect users from any external impacts of traffic in the vicinity.
- (b) Community Center (General).
 - (1) In NDO Districts. Community Center (General) uses shall be subject to the following standards:
 - (i) Potential detrimental impacts of traffic and parking shall be addressed, taking into consideration the needs of events which may occur on site;
 - (ii) All activities conducted on the premises of the Community Center shall be noncommercial and nonprofit;
 - (iii) The Approving Body shall determine that the Community Center use will not be detrimental impacts to the neighborhood, taking into consideration the physical relationship of the proposed use to the surrounding structures, the probable hours of operation, social activities to be conducted and the number of people using the premises at any one (1) time; and
 - (iv) The Residential Compatibility Standards of Chapter 916 shall apply.
 - (2) In P and Grandview Public Realm Districts. Community Center (General) uses in the P and Grandview Public Realm Districts shall be subject to the following standards:
 - (i) Potential detrimental impacts of traffic and parking shall be addressed, taking into account the needs of events which may occur on site;
 - (ii) All activities conducted on the premises of the Community Center shall be noncommercial and nonprofit;
 - (iii) The Approving Body shall determine that the Community Center use will not create detrimental impacts to the neighborhood, taking into consideration the physical relationship of the proposed use to the surrounding structures, the probable hours of operation, social activities to be conducted, and the number of people using the premises at any one (1) time; and
 - (iv) The Residential Compatibility Standards of Chapter 916 shall apply.
 - (3) In EMI Districts. Community Center (General) uses shall be subject to the following standards:

- (i) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04;
 - (ii) Parking shall be provided in a location and manner that allows for all parking to be located outside of residential areas.
- (4) In RIV Districts and R-MU. Community Center (General) uses shall be subject to the following standards:
- (i) Potential detrimental impacts of traffic and parking shall be addressed, taking into consideration the needs of events which may occur on site; and
 - (ii) The Approving Body shall determine that the Community Center use will not create detrimental impacts to the neighborhood, taking into consideration the physical relationship of the proposed use to the surrounding structures, the probable hours of operation, social activities to be conducted and the number of people using the premises at any one (1) time.

15. Construction Contractor (Limited).

- (a) In LNC, NDI, UNC, and RIV Districts. Construction Contractor (Limited) uses shall be subject to the following standards in the LNC, NDI, UNC, and RIV Districts:
- (1) All storage of materials and vehicles shall be within a completely enclosed structure; and
 - (2) Sufficient space shall be provided to park and store all construction vehicles off the public rights-of-way.

16. Correctional Facility (Limited).

Correctional Facility (Limited) uses shall be subject to the following standards:

- (a) The facility shall be designed to address the safety of those within and outside of the facility;
- (b) Walls, fences, and other physical barriers shall be designed to be compatible with the architecture of the facility, and shall not include barbed wire, razor wire or other similar devices;
- (c) The facility shall be located within convenient walking distance of public transportation service;
- (d) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation and the physical relationship of the proposed use and structure to surrounding uses and structures; and
- (e) The Approving Body shall request a report and recommendation from the Planning

Director on the planning aspects of the proposed use and structures.

17. Correctional Facility (General).

Correctional Facilities (General) shall be subject to the following standards:

- (a) The facility shall be designed to address the safety of those within and outside of the facility;
- (b) Walls, fences, and other physical barriers shall be designed to be compatible with the architecture of the facility, and shall not include barbed wire, razor wire or other similar devices;
- (c) The facility shall be located within convenient walking distance of public transportation service;
- (d) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation and the physical relationship of the proposed use and structure to surrounding uses and structures; and
- (e) The Approving Body shall request a report and recommendation from the Planning Director on the planning aspects of the proposed use and structures.

18. Cultural Service (Limited).

- (a) In Residential and RIV-RM Districts. Cultural Service (Limited) uses shall be subject to the following standards in residential districts:
 - (1) Parking demand shall be addressed in a manner which does not interfere with parking spaces required for surrounding residential uses;
 - (2) All activities conducted on the premises of the Cultural Service shall be noncommercial and nonprofit;
 - (3) The Approving Body shall determine that the such use will not create detrimental impacts on the neighborhood, taking into consideration the physical relationship of the proposed use to the surrounding structures, the probable hours of operation, social activities to be conducted and the number of people using the premises at any one (1) time; and
 - (4) The Residential Compatibility Standards of Chapter 916 shall apply.
- (b) In the P District. Cultural Service (Limited) uses shall be subject to the following standards in the P District:
 - (1) Potential detrimental impacts of traffic and parking shall be addressed, taking into consideration the needs of events which may occur on site;
 - (2) All activities conducted on the premises of the Cultural Service shall be noncommercial and nonprofit; and

- (3) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.
- (c) In NDO Districts. Cultural Service (Limited) uses shall be subject to the following standards:
 - (1) Parking demand shall be addressed in a manner which does not interfere with parking spaces required for surrounding residential uses; and
 - (2) All activities conducted on the premises of the cultural service shall be noncommercial and nonprofit; and
 - (3) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.
- (d) In EMI Districts.
 - (1) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (2) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

19. Cultural Service (General).

- (a) In NDI and LNC Districts. Cultural Service (General) uses shall be subject to the following standards in the NDI and LNC Districts:
 - (1) Cultural Service (General) uses shall be controlled in such a manner as to offer reasonable protection to the neighborhood against possible detrimental impacts, taking into consideration the physical relationship to surrounding properties, the hours of operation and access to the site;
 - (2) The design of the structure shall follow the development standards for commercial uses in the LNC and NDI Districts; and
 - (3) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets.
- (b) In the P District. Cultural Service (General) uses shall be subject to the following standards in the P District:
 - (1) Potential detrimental impacts of traffic and parking shall be addressed, taking into consideration the needs of events which may occur on site;
 - (2) All activities conducted on the premises of the Cultural Service shall be noncommercial and nonprofit; and
 - (3) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.

- (c) In the GI District. Cultural Service (General) uses shall be subject to the following standards in the GI District:
 - (1) Parking facilities shall be designed and located to avoid disruption of industrial facilities in the area;
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby streets;
 - (3) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development. The transportation study shall illustrate that the proposed development will not create traffic congestion on the surrounding streets;
 - (4) Parking and access shall be provided in such a way as to protect users from any external impacts of industry in the vicinity; and
 - (5) The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding district, taking into consideration potential traffic generation, pedestrian access, and hours of operation.
- (d) In EMI Districts. Cultural Service (General) uses shall be subject to the following standards:
 - (1) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the emission of noise or glaring light, and proposed accessory uses, such as meeting facilities;
 - (2) The proposed use shall be in compliance with an approved Institutional Master Plan;
 - (3) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

20. Educational Classroom Space (Limited).

- (a) In non-EMI Districts. Educational Classroom Space (Limited) shall be subject to the following standards:
 - (1) The design of the structure shall follow the district's development standards for commercial uses;
 - (2) The height and bulk of the proposed structure shall be designated as to minimize blocking of views from adjacent residential properties;
 - (3) Access to the facility shall be addressed in a manner which emphasizes the use of public transit to the facility, and clearly meets the peak demands of the facility in a manner which does not require the use of parking spaces on

residential streets; and

- (4) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the probable hours of operation, the impacts of parking in surrounding residential uses, and the size and bulk of the building;
 - (5) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.
- (b) In EMI districts. Educational Classroom Space (Limited) shall be subject to the following standards:
- (1) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (2) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

21. Educational Classroom Space (General).

- (a) In UNC Districts. Educational Classroom Space (General) shall be subject to the following standards:
- (1) The design of the structure shall follow the district's development standards for commercial uses;
 - (2) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (3) Access to the facility shall be addressed in a manner which emphasizes the use of public transit to the facility, and clearly meets the peak demands of the facility in a manner which does not require the use of parking spaces on residential streets; and
 - (4) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the probable hours of operation, the impacts of parking in surrounding residential uses, and the size and bulk of the building;
- (b) In EMI Districts. Educational Classroom Space (Limited) shall be subject to the following standards:
- (1) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (2) The proposed use shall be subject to the Project Development Plan procedures

of Section 922.10.

- (c) In RIV Districts. Educational Classroom Space (General) shall be subject to the following standards:
 - (1) Access to the facility shall be addressed in a manner which emphasizes the use of public transit to the facility, and clearly meets the peak demands of the facility in a manner which does not require the use of parking spaces on residential streets; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the probable hours of operation, the impacts of parking in surrounding residential uses, and the size and bulk of the building.
- (d) In the UC-E and UC-MU, Educational Classroom Space (Limited and General) shall be subject to the following standards:
 - (1) Access to the facility shall be addressed in a manner which emphasizes the use of public transit to the facility, and clearly meets the peak demands of the facility in a manner which does not require the use of parking spaces on residential streets; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the probable hours of operation, the impacts of parking in surrounding residential uses, and the size and bulk of the building.
 - (3) Educational Classroom Space shall be permitted only in mixed use structures where there is at least one (1) additional primary use. The two (2) or more primary uses may be under common ownership or control, but it is not required. The Educational Classroom Space shall be less than fifty (50) percent of the Gross Floor Area in the mixed-use structure in the UC-MU. The Educational Classroom Space shall be less than eighty (80) percent of the Gross Floor Area in the mixed-use structure in the UC-E. For purposes of this calculation, shared spaces between the primary uses shall be excluded from the calculation of Gross Floor Area.

22. Excavation/Grading/Fill, Major.

Excavation, Grading or Fill, Major operations and any temporary or permanent construction or facilities associated with such operation shall be subject to the following standards:

- (a) The proposed operation shall meet all requirements of the Land Operations Ordinance and Title 13: Stormwater Management, as applicable;

- (b) The operation shall be controlled in such a manner as to offer reasonable protection to the neighborhood against possible detrimental impacts, taking into consideration the physical relationship to surrounding properties and access to the site;
- (c) Residential streets shall not be used for routing of vehicles serving the excavation or fill, unless there is no other physical option; and
- (d) A plan shall be prepared and submitted to the Planning Director addressing the number of vehicles that will access the site and the routes the vehicles will travel. The plan and proposed use of any street for incidental trucking operations shall have the approval of the Department of Public Works and the Department of Mobility and Infrastructure.

22A. Forestry Uses Shall be Subject to the Following Standards:

- (a) Site Plan (Logging Plan) Review will be required as per Section 922.04.
 - (1) Such a plan must be drawn to scale and in addition to information required in Section 922.09 of the Zoning Code depict: the location of trees to be cut and residual stands; the location of all skid roads, skid trails and log landings; the location of any streams or wetlands; the location of curb cuts; the location of public or private easements; the location of any residential structure within fifty (50) feet of the property line.
 - (2) Forestry activities shall be at least fifty (50) feet from property lines.
 - (3) Forestry activities shall be at least one hundred (100) feet from a residential structure.
 - (4) Debris shall not be stored within the previously specified setbacks.
 - (5) Log Landings, skid roads and skid trails as specific forestry activities shall observe previously specified setbacks.
 - (6) Access to haul roads shall be via an approved curb cut.
 - (7) Forestry activities shall not occur between 10:00 p.m. and 7:00 a.m. and may have further restrictions placed on hours of operation as determined by the Zoning Administrator.
 - (8) Prior to approval, the Zoning Administrator will require the approval of all haul roads by the Department of Mobility and Infrastructure.
 - (9) Timber harvesting shall not occur on slopes greater than forty (40) percent.
 - (10) No more than fifty (50) percent of the trees shall be removed on slopes greater than twenty-five (25) percent.
 - (11) No more than fifty (50) percent of the trees shall be removed within fifty (50) feet of any stream or wetland.
 - (12) Compliance with Environmental Overlay Districts (906) requirements must

be assured.

- (13) An approved revegetation plan depicting the planting of specific species by area is required; no invasive species may be employed in that planting plan.
- (14) Proof of liability insurance naming the property owner and the City of Pittsburgh as insured or additional insureds with combined coverage of no less than one million dollars (\$1,000,000.00).
- (15) Compliance with all applicable City of Pittsburgh, Allegheny County, Commonwealth of Pennsylvania and Federal laws.

23. Fraternity/Sorority and Dormitory.

- (a) Fraternity/Sorority. Fraternity/Sorority uses shall be subject to the following standards:
 - (1) The building shall be used solely for undergraduate or graduate students of an educational institution;
 - (2) The building shall be located with the EMI District of the institution at which the students are enrolled;
 - (3) An Operation and Management Plan for the proposed Fraternity/Sorority use shall be submitted as part of the occupancy permit application and shall describe programs of operation and management including but not limited to:
 - (i) Uses and activities that will occur in conjunction with the Fraternity/Sorority use;
 - (ii) Hours of operation of non-residential services;
 - (iii) Noise control; and
 - (iv) Traffic generation.
 - (4) The Approving Body shall determine that the such use will not create detrimental impacts on the surrounding properties, taking into consideration the Operation and Management Plan, probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the probable hours of operation, the impacts of parking in surrounding residential uses, and the size and bulk of the building;
 - (5) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (6) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (b) Dormitory. Dormitory uses shall be subject to the following standards:
 - (1) The building shall be used solely for undergraduate or graduate students of an

educational institution;

- (2) The building shall be located within the same district of the institution at which the students are enrolled;
- (3) An Operation and Management Plan for the proposed Dormitory use shall be submitted as part of the occupancy permit application and shall describe programs of operation and management including but not limited to:
 - (i) Use and activity that will occur in conjunction with the Dormitory use;
 - (ii) Hours of operation of non-residential services;
 - (iii) Noise control; and
 - (iv) Traffic generation.
- (4) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the Operation and Management Plan, probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the probable hours of operation, the impacts of parking in surrounding residential uses, and the size and bulk of the building;
- (5) The proposed use shall be in compliance with an approved Institutional Master Plan; and
- (6) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

24. Freight Terminal.

- (a) In HC and RIV Districts. Freight Terminals shall be subject to the following standards in the HC District:
 - (1) Every portion of the property used for Freight Terminal purposes shall be located not closer than two hundred (200) feet to any property in a R or H District, and one hundred (100) feet from any property in a NDI, UNC or LNC District;
 - (2) Access for motor-freight vehicles shall be by way of streets of adequate width as determined by the Approving Body;
 - (3) The site shall be fully enclosed with a barrier adequate to insure that no portion of a vehicle shall extend beyond the lot line;
 - (4) In addition to adequate area within the site for docking, manipulation and maneuver of motor-freight vehicles, a reservoir of parking area for motor-freight vehicles waiting to be loaded or unloaded, shall be provided at the rate of one (1) parking space sufficient to park a motor freight vehicle for every four (4) loading or unloading docks;

- (5) The site shall be designed in such a manner as to permit forward movement of all vehicles both upon entering and upon leaving the site; and
- (6) The number, location and width of entrances to and exits from the site shall be determined by the Approving Body after recommendations thereon by the Department of Public Works and Bureau of Traffic Engineering and/or Department of Mobility and Infrastructure.

25. Funeral Home.

Funeral Home uses shall be subject to the following standards:

- (a) There shall be no crematory or receiving vault on the premises, and no preparation room or display of merchandise visible from outside the main or accessory building;
- (b) No loading or unloading shall be permitted on public right-of-way; and
- (c) No parking or standing of motor vehicles accessory to the Funeral Home shall occur on adjoining streets other than passenger automobiles when funeral processions are being organized.

26. Golf Course.

Golf Course uses shall be subject to the following standards:

- (a) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required; and
- (b) The Approving Body shall determine that the design and location of the parking facility is screened from surrounding residential properties and has created the minimum possible disruption to the landscape.

27. Hazardous Operations.

Hazardous Operations shall be subject to the following standards:

- (a) Hazardous Operations shall not be permitted within three hundred (300) feet of any districts other than GI or RIV-GI;
- (b) Hazardous Operations shall not be permitted within a distance determined by the Fire Department, as necessary to secure special protection to such public facilities as bridges, tunnels, highway interchanges, power stations, communication centers and the like; and
- (c) Suitable measures shall be taken for the disposal of waste without adversely affecting adjacent areas.

28. Helicopter Landing Facilities.

The following regulations shall govern and control the erection, installation and

enlargement of all helicopter facilities, including Heliports, Helipads and Helistops.

- (a) A helicopter landing area shall not be approved if its associated approach/departure flight path extends over an Elementary or Secondary School which has a minimum of fifty (50) students attending on a regular basis, school stadium, school playground, or school sports field. The Zoning Board of Adjustment or City Council may allow the approach/departure flight path associated with a medical use helicopter landing area to fly over a school if that portion of the flight path is at least nine hundred (900) feet from the landing area and it can be demonstrated there is no feasible alternative flight path.
- (b) A helicopter landing area shall be located at least one hundred eighty (180) feet from a school stadium, playground, school athletic field or public right-of-way adjacent to and within one-quarter ($\frac{1}{4}$) mile of such school facilities. The Zoning Board of Adjustment may allow a medical landing area to be closer if it can be demonstrated that sufficient barriers exist, between the landing area and the pertinent above features, which would assure there would be no fire danger, associated with three hundred fifty (350) gallons of jet fuel burning on the landing area, to any person located on the pertinent above features.
- (c) A helicopter landing area shall be located at least four hundred (400) feet from an Elementary or Secondary School building which has a minimum regular attendance of fifty (50) or more students.
- (d) A helicopter landing area with more than three (3) flights per month occurring between 10:00 p.m. and 7:00 a.m. shall be located at least four hundred (400) feet from residential uses in residential, RP, AP, SP, and LNC Districts.
- (e) A helicopter landing area with three (3) or fewer flights per month occurring between 10:00 p.m. and 7:00 a.m. shall be located at least three hundred (300) feet from residential uses in residential, RP, AP, SP, and LNC Districts.
- (f) A helicopter landing area shall not be permitted on rooftops in the GT and RIV-NS Districts.
- (g) A helicopter landing area shall be spaced at least two thousand (2,000) feet from any other helicopter landing area. This spacing requirement may be reduced to one thousand five hundred (1,500) feet if it is demonstrated that all associated approach/departure flight paths are at least one thousand five hundred (1,500) feet from one (1) another and there is a compelling need for that landing area that cannot otherwise be met.
- (h) A helicopter landing area shall be setback at least fifty (50) feet from property lines.
- (i) A helicopter landing area shall be licensed by State or Federal licensing agencies such as the Pennsylvania Department of Transportation's Bureau of Aviation (PennDOT-BOA) and/or Federal Aviation Administration prior to becoming operational, and shall continue to be in compliance with such licensing regulations.

- (j) A helicopter landing area shall have primary and secondary approach/departure paths approved by the Federal Aviation Administration or PennDOT BOA when required. Such flight paths shall reflect cognizance of zoning district height limitations, air rights and topographic features.
- (k) Any significant change, subsequent to zoning approval, in aircraft related technology employed at the facility or related to the craft using the facility shall be approved by the pertinent State, Federal and local zoning and public safety approval authorities. Such changes include but are not limited to the provision of instrument flight capabilities, change in type of fuel used, use of vertical takeoff/landing craft other than helicopters, use of helicopters larger than for which the pad was designed applying PennDOT and FAA design criteria, or use of helicopters which produce an increase of three (3) db in noise levels, measured at a four hundred-foot distance, over the craft previously used at the site.
- (l) A helicopter landing area shall maintain a log of all arrivals and departures indicating time of arrival, time of departure, operator and owner. A helicopter medical private use landing area shall maintain a log of all arrivals and departures indicating time of arrival, time of departure, operator, owner and purpose of trip. This log shall be submitted quarterly in April, June, October and January to the Zoning Administrator.
- (m) A helicopter landing area shall meet any other conditions required by the pertinent approval authorities such as the Zoning Board of Adjustment, City Planning Commission and City Council, and compliance with the City Building Code, relating to hours of operation; number of helicopters based, type of operations, surface transportation, parking, site circulation, screening or other aspects of the site development or use.
- (n) Applicants for a helicopter landing area shall submit a site plan as depicted by and with the seal of a registered engineer or architect or surveyor depicting pertinent setback and spacing requirements and all associated approach/departure flight paths. The applicant shall also submit evidence that the Allegheny County Aviation Department (ACAD) has been notified of the landing area proposal and has been invited to comment directly to the Zoning Administrator within a thirty-day period commencing on ACAD's receipt of notification.

29. **Helipads.**

Helipads shall comply with the following requirements:

- (a) Helipads shall comply with the Helicopter Landing Facility requirements of Section 911.04.A.28;
- (b) An environmental report addressing the pertinent sixteen (16) specific environmental categories (out of twenty (20) categories) outlined by the Federal Aviation Administration in Order 5050.4A. Airport Environmental Handbook (as may be amended), shall be submitted by the applicant to the City Planning Commission so that the environmental effects of the proposed heliport along with

the proposed use, purpose and need of the heliport can serve as the basis for the Planning Commission's recommendation to City Council concerning approval of the proposed heliport. In evaluating the impact of the environmental categories, the reviewing authority shall adopt and use for helicopter landing areas the regulations and descriptions of the specific impact categories contained in the Federal Aviation Administration Order 5050.4A. Airport Environmental Handbook as may be amended. The sixteen (16) categories are:

- (1) Noise in terms of Ldn via analysis utilizing the FAA helicopter noise model;
- (2) Compatible land use within four hundred (400) feet of the heliport and under approach/departure paths and associated transition zones;
- (3) Social impacts;
- (4) Induced socioeconomic impacts;
- (5) Air quality;
- (6) Water quality;
- (7) Department of Transportation Section 4(f) lands involving public parks and recreation areas;
- (8) Historical, architectural, archaeological and cultural resources;
- (9) Biotic communities, wildlife refuges or Greenways;
- (10) Flora and fauna;
- (11) Wetlands;
- (12) Floodplains;
- (13) Energy supply and natural resources;
- (14) Light emissions;
- (15) Solid waste impacts; and
- (16) Construction impacts.

30. **Heliports.**

Heliports shall be subject to the following standards in the GI, RIV-GI, and MP Districts:

- (a) Heliports shall comply with the Helicopter Landing Facility requirements of Section 911.04.A.28;
- (b) An environmental report addressing the pertinent sixteen (16) specific environmental categories (out of twenty (20) categories) outlined by the Federal Aviation Administration in Order 5050.4A. Airport Environmental Handbook (as

may be amended), shall be submitted by the applicant to the City Planning Commission so that the environmental effects of the proposed heliport along with the proposed use, purpose and need of the heliport can serve as the basis for the Planning Commission's recommendation to City Council concerning approval of the proposed heliport. In evaluating the impact of the environmental categories, the reviewing authority shall adopt and use for helicopter landing areas the regulations and descriptions of the specific impact categories contained in the Federal Aviation Administration Order 5050.4A. Airport Environmental Handbook as may be amended. The sixteen (16) categories are:

- (1) Noise in terms of Ldn via analysis utilizing the FAA helicopter noise model;
- (2) Compatible land use within four hundred (400) feet of the heliport and under approach/departure paths and associated transition zones;
- (3) Social impacts;
- (4) Induced socioeconomic impacts;
- (5) Air quality;
- (6) Water quality;
- (7) Department of Transportation Section 4(f) lands involving public parks and recreation areas;
- (8) Historical, architectural, archaeological and cultural resources;
- (9) Biotic communities, wildlife refuges or Greenways;
- (10) Flora and fauna;
- (11) Wetlands;
- (12) Floodplains;
- (13) Energy supply and natural resources;
- (14) Light emissions;
- (15) Solid waste impacts; and
- (16) Construction impacts.

The report shall also address the heliport's effect on ground transportation, parking, steep slopes, stormwater management, utilities and zoning compliance. In addition to identifying project effects the report shall identify potential mitigation measures for any significant effect and shall address project alternatives (no project, another site or another scale). The environmental report submission is in addition to site plan requirements and other pertinent information requested by the Zoning Administrator.

31. **Helistops.**

Helistops shall be subject to the following standards:

- (a) Helistops shall comply with the Helicopter Landing Facility requirements of Section 911.04.A.28;
- (b) Applicants shall submit a noise analysis demonstrating the noise impact in terms of Ldn. If this analysis demonstrates a +3 dBLdn increase due to the helistop and this increase results in noise levels exceeding seventy-five (75) dBLdn at residential uses in residential zoning districts, the application shall be denied.
- (c) An environmental report addressing the pertinent sixteen (16) specific environmental categories (out of twenty (20) categories) outlined by the Federal Aviation Administration in Order 5050.4A. Airport Environmental Handbook (as may be amended), shall be submitted by the applicant to the City Planning Commission so that the environmental effects of the proposed heliport along with the proposed use, purpose and need of the heliport can serve as the basis for the Planning Commission's recommendation to City Council concerning approval of the proposed heliport. In evaluating the impact of the environmental categories, the reviewing authority shall adopt and use for helicopter landing areas the regulations and descriptions of the specific impact categories contained in the Federal Aviation Administration Order 5050.4A. Airport Environmental Handbook as may be amended. The sixteen (16) categories are:
 - (1) Noise in terms of Ldn via analysis utilizing the FAA helicopter noise model;
 - (2) Compatible land use within four hundred (400) feet of the heliport and under approach/departure paths and associated transition zones;
 - (3) Social impacts;
 - (4) Induced socioeconomic impacts;
 - (5) Air quality;
 - (6) Water quality;
 - (7) Department of Transportation Section 4(f) lands involving public parks and recreation areas;
 - (8) Historical, architectural, archaeological and cultural resources;
 - (9) Biotic communities, wildlife refuges or Greenways;
 - (10) Flora and fauna;
 - (11) Wetlands;
 - (12) Floodplains;
 - (13) Energy supply and natural resources;
 - (14) Light emissions;

(15) Solid waste impacts; and

(16) Construction impacts.

32. Helistops in GT, CP, SP, UI, GI, RIV-IMU, RIV-NS, and EMI Districts.

The following standards shall apply to all Helistops in GT, CP, SP, UI, GI, RIV-IMU, RIV-NS, and EMI Districts:

- (a) The applicant shall submit a noise analysis demonstrating the noise impact in terms of Ldn. If this analysis demonstrates a +3 dBLdn increase due to the helistop and this increase results in noise levels exceeding seventy-five (75) dBLdn at residential uses in R, RP, AP, SP, UNC or LNC Districts, the application shall be denied.
- (b) The applicant shall submit an environmental report addressing environmental categories listed in subsection 911.04.A.30, entitled Heliports in GI and RIV-GI Districts.

33. Hotel/Motel (Limited).

- (a) In LNC, UNC and NDI Districts. Hotel/Motel (Limited) uses shall be subject to the following standards in the LNC, UNC and NDI Districts:
 - (1) The design of the structure shall follow the development standards for commercial uses in the UNC and NDI Districts; and
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets.
- (b) In EMI Districts. Hotel/Motel (Limited) uses shall be subject to the following standards:
 - (1) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation; and
 - (2) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (c) In RIV Districts and UC-E, UC-MU, and R-MU, Hotel/Motel (Limited) uses shall be subject to the following standards:
 - (1) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation; and
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets.

34. Hotel/Motel (General).

- (a) In UNC, LNC and NDI Districts. Hotel/Motel (General) uses shall be subject to the following standards:
 - (1) The design of the structure shall follow the development standards for commercial uses in the UNC Districts;
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets;
 - (3) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the emission of noise or glaring light, and proposed accessory uses such as restaurants and meeting facilities; and
 - (4) The Approving Body shall request a recommendation from the Planning Director on the Planning aspects of the proposed use and structures.
- (b) In EMI Districts. Hotel/Motel (General) uses shall be subject to the following standards:
 - (1) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (2) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation; and
 - (3) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (c) In the RIV-MU District, UC-E, UC-MU, and R-MU. Hotel/Motel (General) uses shall be subject to the following standards:
 - (1) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the emission of noise or glaring light, and proposed accessory uses such as restaurants and meeting facilities.

35. Housing for the Elderly.

- (a) In all Districts except RIV and UC-E, UC-MU, and R-MU. Housing for the Elderly (Limited and General) shall be subject to the following standards in all districts:

- (1) Certain special features shall be permitted, usually associated with group living needs for comfort, health, safety and welfare of elderly persons such as dispensaries, medical facilities, common dining facilities, group recreation facilities and similar or related facilities;
 - (2) The development should be located in an area of determined need for such housing, but should not be of such a scale as to create a demographic imbalance with the neighborhood;
 - (3) The site should be in an area of relatively flat terrain;
 - (4) The site should be reasonably accessible to food markets, drug stores, medical facilities and social services;
 - (5) The site shall have reasonable access to public transit;
 - (6) The development shall provide common dining and social rooms;
 - (7) The site shall not be immediately adjacent to noise and pollution producing activities;
 - (8) Not less than forty (40) percent of the required lot shall be in usable open space at ground level, not less than eight (8) feet in width, located, arranged and oriented to provide optimal exposure to fresh air and sunlight, and developed and maintained to suit the needs of elderly people. Equivalent open space, not on the same zoning lot but easily accessible for elderly people located on public land in public control or under contractual agreement with the applicant, may be considered as meeting this requirement; and
 - (9) The Approving Body may require additional parking beyond that required in Chapter 914, if it determines that the particular programs or residents of the facility will require such additional parking;
- (b) In Residential Districts and RIV-RM. Housing for the Elderly shall be subject to the following standards in all residential zoning districts:
- (1) The building shall be designed to be in keeping with the residential character of the surrounding area;
 - (2) The Approving Body may permit additional density beyond that permitted in the district, but not to exceed four hundred fifty (450) square feet per unit, if it finds that the additional density will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, and the design and location of parking facilities relative to surrounding properties;
- (c) In the UI District. Housing for the Elderly uses in the UI District shall be subject to the Site Plan Review procedures of Section 922.04.
- (d) In RIV-MU, RIV-NS, and RIV-IMU, and UC-E, UC-MU, and R-MU. Housing for

the Elderly (Limited and General) shall be subject to the following standards:

- (1) Certain special features shall be permitted, usually associated with group living needs for comfort, health, safety and welfare of elderly persons such as dispensaries, medical facilities, common dining facilities, group recreation facilities and similar or related facilities;
- (2) The site should be reasonably accessible to food markets, drug stores, medical facilities and social services;
- (3) The site shall have reasonable access to public transit; and
- (4) The Approving Body may require additional parking beyond that required in Chapter 914, if it determines that the particular programs or residents of the facility will require such additional parking;

36. Incinerator, Solid Waste.

Incinerator, Solid Waste uses shall be subject to the following standards:

- (a) Technical analysis shall be submitted attesting to the level of emissions of the facility; and
- (b) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable hours of operation, traffic generation, and the emission of odors, fumes, dust, noise, vibration and glaring light.

37. Laboratory, Research Services (Limited and General).

- (a) In NDI and UNC Districts. Laboratory, Research Services (General) uses shall be subject to the following standards in the NDI and UNC Districts:
 - (1) The design of the structure shall follow the development standards for commercial uses in the UNC Districts.
- (b) In EMI Districts. Laboratory, Research Services (Limited and General) uses shall be subject to the following standards:
 - (1) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (2) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation; and
 - (3) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (4) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

38. Library (Limited and General).

- (a) In R1D, R1A, R2, R3, RM, and RIV-RM Subdistricts. Library (Limited) uses shall be subject to the following standards in the R1D, R1A, R2, R3, RM, and RIV-RM Subdistricts:
 - (1) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, and hours of operation; and
 - (2) The residential Compatibility Standards of Chapter 916 shall apply.
- (b) In NDO District. Library (Limited) uses shall be subject to the following standards in the NDO District:
 - (1) The Residential Compatibility Standards of Chapter 916 shall apply; and
 - (2) The Site Plan Review Procedures of the Section 922.04 shall apply.
- (c) In EMI Districts. Library (Limited and General) uses shall be subject to the following standards:
 - (1) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the emission of noise or glaring light, and proposed accessory uses, such as meeting facilities;
 - (2) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (3) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

39. Manufacturing and Assembly (Limited and General).

- (a) In GT and DR Districts. Manufacturing and Assembly (Limited and General) uses shall be subject to the following standards in the GT and DR Districts:
 - (1) Manufacturing and Assembly uses shall be limited to the following:
 - (i) Laboratories: experimental, photo or motion picture, film or testing;
 - (ii) Manufacture of musical and small precision instruments, watches and clocks, jewelry, toys, novelties, rubber and metal hand stamps, candy and bakery products;
 - (iii) Manufacture of pottery and figurines or other similar ceramic products, using only previously pulverized clay and kilns fired only by electricity or gas; and
 - (iv) Printing, lithographing, type composition, ruling and binding

establishment.

- (2) Manufacturing and Assembly uses shall only be permitted when conducted within a completely enclosed building, and when located above the ground floor.
- (b) In NDI and UNC Districts. Manufacturing and Assembly (Limited) uses shall be subject to the following standards in the NDI and UNC Districts:
 - (1) All uses shall be conducted within a completely enclosed building and shall create no external visible sign of the operation, such as noise, smoke, vibration or other factor;
 - (2) The design of the structure shall follow the development standards for commercial uses in the UNC District; and
 - (3) In UNC Districts, the Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, hours of operation, and the emission of odors, fumes, dust, noise, vibration, and glaring light.
- (c) In the RIV-MU UC-E, UC-MU Districts. Manufacturing and Assembly (Limited) uses shall be subject to the following standards:
 - (1) All uses shall be conducted within a completely enclosed building and shall create no external visible sign of the operation, such as noise, smoke, vibration or other factor; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, hours of operation, and the emission of odors, fumes, dust, noise, vibration, and glaring light.

40. Manufacturing and Assembly (General).

- (a) In NDI, UI, RIV and HC Districts. Manufacturing and Assembly (General) uses shall be subject to the following standards in the NDI, UI, RIV and HC Districts:
 - (1) All uses shall be conducted within a completely enclosed building and shall create no external visible sign of the operation, such as noise, smoke, vibration or other factor; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, hours of operation, and the emission of odors, fumes, dust, noise, vibration, and glaring light.

41. Multi-Suite Residential.

Multi-Suite Residential (Limited and General) uses shall be subject to the following standards:

(a) Multi-Suite Residential (Limited).

(1) In the RM and Grandview Public Realm Districts.

- a. The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the hours of operation, the impacts of parking on surrounding residential uses, and the size and bulk of the building;
- b. The building shall be designed to be in keeping with the residential character of the surrounding area;
- c. Certain special features shall be permitted, usually associated with shared living arrangements, such as common dining facilities, shared laundry facilities, lounge areas and similar or related facilities;
- d. Parking will be provided at a minimum of one (1) space per two (2) sleeping rooms;
- e. The Approving Body may require additional parking beyond that required in Chapter 914, if it determines that the particular use of the facility will require such additional parking.

(2) In the LNC District. Multi-Suite Residential (Limited and General) uses shall be subject to the following standards:

- a. The proposed use shall be subject to the Site Plan Review procedures of Section 922.04;
- b. The building shall be designed to be in keeping with the character of the surrounding area;
- c. Certain special features shall be permitted, usually associated with shared living arrangements, such as common dining facilities, shared laundry facilities, lounge areas and similar or related facilities; and
- d. Parking will be provided at a minimum of one (1) space per two (2) sleeping rooms.

(3) In EMI Districts. Multi-Suite Residential (Limited) shall be subject to the following standards:

- a. The building shall be designed to be in keeping with the character of the surrounding area;
- b. Certain special features shall be permitted, usually associated with shared living arrangements, such as common dining facilities, shared laundry facilities, lounge areas and similar or related facilities;
- c. The Approving Body may require additional parking beyond that

required in Chapter 914, if it determines that the particular use of the facility will require such additional parking;

- d. The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the hours of operation, the impacts of parking on surrounding residential uses, and the size and bulk of the building;
- e. Parking will be provided at a minimum of one (1) space per two (2) sleeping rooms; and
- f. The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

(b) Multi-Suite Residential (General).

(1) In the LNC District.

- a. The building shall be designed to be in keeping with the character of the surrounding area;
- b. Certain special features shall be permitted, usually associated with shared living arrangements, such as common dining facilities, shared laundry facilities, lounge areas and similar or related facilities;
- c. Parking will be provided at a minimum of one (1) space per two (2) sleeping rooms;
- d. The Approving Body may require additional parking beyond that required in Chapter 914, if it determines that the particular use of the facility will require such additional parking;
- e. The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the hours of operation, the impacts of parking on surrounding residential uses, and the size and bulk of the building.

(2) In the UI District.

- a. The proposed use shall be subject to Site Plan Review;
- b. The building shall be designed to be in keeping with the character of the surrounding area;
- c. Certain special features shall be permitted, usually associated with shared living arrangements, such as common dining facilities, shared laundry facilities, lounge areas and similar or related facilities; and

- d. Parking will be provided at a minimum of one (1) space per two (2) sleeping rooms.

(3) In Grandview Public Realm Districts.

- a. The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the hours of operation, the impacts of parking on surrounding residential uses, and the size and bulk of the building;
- b. The building shall be designed to be in keeping with the residential character of the surrounding area;
- c. Certain special features shall be permitted, usually associated with shared living arrangements, such as common dining facilities, shared laundry facilities, lounge areas and similar or related facilities;
- d. Parking will be provided at a minimum of one (1) space per two (2) sleeping rooms;
- e. The Approving Body may require additional parking beyond that required in Chapter 914, if it determines that the particular use of the facility will require such additional parking.

(4) In EMI Districts. Multi-Suite Residential uses shall be subject to the following standards:

- a. The building shall be designed to be in keeping with the character of the surrounding area;
- b. Certain special features shall be permitted, usually associated with shared living arrangements, such as common dining facilities, shared laundry facilities, lounge areas and similar or related facilities;
- c. The Approving Body may require additional parking beyond that required in Chapter 914, if it determines that the particular use of the facility will require such additional parking;
- d. The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the hours of operation, the impacts of parking on surrounding residential uses, and the size and bulk of the building;
- e. Parking will be provided at a minimum of one (1) space per two (2) sleeping rooms; and
- f. The proposed use shall be subject to the Project Development Plan

procedures of Section 922.10.

- (5) In the UC-E, UC-MU and R-MU.
 - a. Parking shall be provided in accordance with the Parking Demand Analysis provisions of Section 914.02.B; and
 - b. The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the hours of operation, the impacts of parking on surrounding residential uses, and the size and bulk of the building.
- (6) In the UC-E District. Multi-Suite Residential uses shall meet one (1) of the following standards in the UC-E District:
 - (a) All residential shall units meet the requirements of Section 907.04.A.6 and shall otherwise follow the processes and procedures of Section 907.04.A, excluding Section 907.04.A.5 Applicability and Section 907.04.A.7 Off-Site Inclusionary Standards. One hundred (100) percent of the units shall be affordable and shall be located on site; or
 - (b) Residential housing shall be less than fifty (50) percent of the Gross Floor Area in a mixed-use structure. For purposes of this calculation, shared spaces between residential uses and commercial shall be excluded from the calculation of Gross Floor Area.

42. Office (Limited) in the NDO and EMI Districts:

- (a) In NDO District. Office (Limited) uses shall be subject to the following standards:
 - (1) The proposed use shall be subject to the Residential Compatibility Standards of Chapter 916;
 - (2) The proposed use shall be subject to the Landscaping and Screening Standards of Chapter 918;
 - (3) The design of any structure in an NDO District used for non-residential purposes that does not occupy a structure originally designed as a residence shall be of a scale and character that is consistent with the scale and character of adjacent residential neighborhoods;
 - (4) The gross floor area of any non-residential development, or any portion of any development which is non-residential in use shall not exceed eight thousand (8,000) square feet;
 - (5) Parking shall be provided in a location and manner that allows for all parking required by the facility, and all traffic created by the facility, to be located outside of residential districts; and

- (6) For Office (General) uses, the Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, noise generation, and the hours of operation.
- (b) In EMI Districts. Office (limited) uses shall be subject to the following standards:
 - (1) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (2) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

43. Office (General) in LNC, NDI, GI, NDO, RIV and EMI Districts.

- (a) In the LNC, RIV and NDI Districts Office (General) uses shall be subject to the following standards:
 - (1) The approving body shall determine that the proposed use will not create detrimental impacts on the surrounding properties and district, taking into consideration the probable traffic generation, hours of operation, noise and light.
- (b) In the GI District Office (General) uses shall be subject to the following standards:
 - (1) The use shall be allowed only in buildings that were in existence prior to the effective date specified by the provisions of Section 901.05 and only when located above the ground floor.
- (c) In the NDO District Office (General) uses shall be subject to the following standards:
 - (1) The proposed use shall be subject to the Residential Compatibility Standards of Chapter 916;
 - (2) The proposed use shall be subject to the Landscaping and Screening Standards of Chapter 918;
 - (3) The design of any structure in an NDO District used for non-residential purposes that does not occupy a structure originally designed as a residence shall be of a scale and character that is consistent with the scale and character of adjacent residential neighborhoods;
 - (4) Parking shall be provided in a location and manner that allows for all parking requirements by the facility, and all traffic created by the facility, to be located outside of residential districts; and
 - (5) For office (General) uses, the approving body shall determine that such use will not create detrimental impacts on the surrounding properties taking into consideration the probable traffic generation, parking needs, noise generation, and the hours of operation.

(d) In EMI Districts. Office (General) uses shall be subject to the following standards:

- (1) The proposed use shall be in compliance with an approved Institutional Master Plan;
- (2) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

44. Parking, Commercial (Limited).

(a) In NDI, UNC, and GI Districts:

Parking, Commercial (limited) uses shall be subject to the following standards in NDI, UNC, and GI districts:

- (1) The use shall be located to minimize disruption to pedestrian movements; and
- (2) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts.

(b) In LNC and RIV Districts:

Parking, Commercial (limited) uses shall be subject to the following standards in the LNC and RIV Districts:

- (1) The use shall be located to minimize disruption to pedestrian movements;
- (2) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts; and
- (3) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, hours of operation, noise, and light.

(c) In EMI districts. Parking, Commercial (Limited) uses shall be subject to the following standards:

- (1) The use shall be located to minimize disruption to pedestrian movements;
- (2) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts;
- (3) The proposed use shall be in compliance with an approved Institutional Master Plan; and
- (4) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

45. Parking, Commercial (General).

(a) In all non-EMI Districts. Parking, Commercial (General) uses shall be subject to the following standards:

- (1) The use shall be located to minimize disruption to pedestrian movements;
 - (2) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts; and
 - (3) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, hours of operation, noise, and light.
 - (4) The lot containing the Parking, Commercial (General) use shall not be located within one thousand (1,000) feet from a Gaming Enterprise as measured from the lot lines of the subject properties.
- (b) In EMI districts. Parking, Commercial (Limited) uses shall be subject to the following standards:
- (1) The use shall be located to minimize disruption to pedestrian movements;
 - (2) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts;
 - (3) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (4) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (c) In RIV-NS District. Parking, Commercial (Limited) uses shall be subject to the following standards:
- (1) Commercial parking lots shall be permitted only when they also serve as accessory or shared parking for on-site or adjacent uses at different peak parking demands.

46. Parks and Recreation (Limited and General).

- (a) In Residential, Grandview Public Realm and EMI Districts. Parks and Recreation (Limited and General) uses shall be subject to the following standards in residential and Grandview Public Realm districts:
- (1) Parking shall be screened from view from adjacent residential properties;
 - (2) Buildings shall be designed to be compatible with surrounding residential structures and landscape; and
 - (3) The Approving Body shall determine that the proposed use will not create detrimental impacts taking into consideration potential noise generation, traffic generation, and the physical relationship of the proposed use to surrounding structures.
- (b) In H Districts. Parks and Recreation (Limited) uses shall be subject to the following standards in H districts:

- (1) No more than twenty-five (25) percent of the lot shall be graded.
- (2) Site Plan Review shall be required in accordance with Section 922.04.
- (c) In GI Districts. Parks and Recreation (Limited and General) uses shall be subject to the following standards in the GI District:
 - (1) The proposed use shall be part of an approved plan adopted by the City of Pittsburgh.

47. Recreation and Entertainment, Indoor (General).

- (a) In UNC Districts. Recreation and Entertainment, Indoor (General) uses shall be subject to the following standards in the UNC District:
 - (1) The design of the structure shall follow the development standards for commercial uses in the UNC Districts; and
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets.
- (b) In P Districts. Recreation and Entertainment, Outdoor (General) uses shall be subject to the following standards in the P District:
 - (1) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets; and
 - (2) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.
- (c) In LNC and NDI Districts.
 - (1) The design of the structure shall follow the development standards for commercial uses in the LNC and NDI Districts; and
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets.
- (d) In GI Districts. Recreation and Entertainment, Indoor (General) uses shall be subject to the following standards in the GI District:
 - (1) Parking facilities shall be designed and located to avoid disruption of industrial facilities in the area;
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby streets;
 - (3) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development. The transportation study shall illustrate that the

proposed development will not create traffic congestion on the surrounding streets;

- (4) The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding district, taking into consideration potential traffic generation, pedestrian access, and hours of operation.
- (e) In EMI Districts. Recreational and Entertainment, Indoor (General) uses shall be subject to the following standards:
 - (1) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation;
 - (2) A traffic study, in a form approved by the Zoning Administrator, shall be submitted with the application, and shall address parking and traffic impacts of the development;
 - (3) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (4) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (5) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (f) In UC-E and UC-MU Districts. Recreation and Entertainment, Indoor (General) uses shall be subject to the following standards:
 - (1) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets; and
 - (2) The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding district, taking into consideration potential traffic generation, pedestrian access, and hours of operation.

48. Recreation and Entertainment, Indoor (Limited).

- (a) In the P District. Recreation and Entertainment, Indoor (Limited) uses shall be subject to the following standards in the P District:
 - (1) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets; and
 - (2) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.

- (b) In EMI Districts. Recreational and Entertainment, Indoor (Limited) uses shall be subject to the following standards:
 - (1) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (2) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

49. Recreation and Entertainment, Outdoor (Limited).

- (a) In LNC, NDI and UNC Districts. Recreation and Entertainment, Outdoor (Limited) uses shall be subject to the following standards in the LNC, NDI and UNC Districts:
 - (1) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required;
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets; and
 - (3) Any enclosure, such as fences and walls, shall be designed to be compatible with surrounding structures and shall not include the use of barbed or razor wire.
- (b) In P Districts. Recreation and Entertainment, Outdoor (Limited) uses shall be subject to the following standards in the P District:
 - (1) The design of the structure shall follow the development standards for commercial uses in the UNC District;
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets;
 - (3) Any enclosure, such as fences and walls, shall be designed to be compatible with surrounding structures and shall not include the use of barbed or razor wire; and
 - (4) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.
- (c) In EMI Districts. Recreational and Entertainment, Outdoor (Limited) uses shall be subject to the following standards:
 - (1) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (2) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

50. Recreation and Entertainment, Outdoor (General).

- (a) In GI District. Recreation and Entertainment, Outdoor (General) uses shall be subject to the following standards in the GI District:
 - (1) Parking facilities shall be designed and located to avoid disruption of industrial facilities in the area; and
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby streets;
 - (3) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development. The transportation study shall illustrate that the proposed development will not create traffic congestion on the surrounding streets; and
 - (4) The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding district, taking into consideration potential traffic generation, pedestrian access, and hours of operation.
- (b) In P District. Recreation and Entertainment, Outdoor (General) uses shall be subject to the following standards in the P District:
 - (1) The design of the structure shall follow the development standards for commercial uses in the UNC District;
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets;
 - (3) Any enclosure, such as fences and walls, shall be designed to be compatible with surrounding structures and shall not include the use of barbed or razor wire; and
 - (4) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.
- (c) In EMI Districts. Recreational and Entertainment, Outdoor (General) uses shall be subject to the following standards:
 - (1) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation;
 - (2) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets;
 - (3) Any enclosure, such as fences and walls, shall be designed to be compatible with surrounding structures and shall not include the use of barbed or razor

wire;

- (4) The proposed use shall be in compliance with an approved Institutional Master Plan; and
- (5) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

51. Recycling Collection Station.

Recycling Collection Stations shall be subject to the following standards:

- (a) Recycling storage containers shall be completely enclosed; and
- (b) Vehicular drop-off areas shall be located a minimum of sixty (60) feet from any intersection or driveway and shall not conflict with residential parking.

52. Recycling Processing Center.

- (a) In NDI, RIV, and HC Districts. Recycling Processing Centers shall be subject to the following standards in the NDI and HC Districts:
 - (1) The use shall be conducted within a completely enclosed building;
 - (2) Vehicular access shall not be from the primary commercial frontage if access from the rear or side is possible; and
 - (3) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation, truck routes, hours of operation, and noise generation.

53. Religious Assembly (Limited and General).

Religious Assembly (Limited and General) uses shall be subject to the following standards:

- (a) Parking demand shall be addressed so as to meet parking needs for both normal and event use, and to discourage parking on nearby residential streets;
- (b) In residential zoning districts, the Approving Body shall request a report and recommendation from the Planning Director on the planning aspects of the application; and
- (c) Where recommended by the Planning Director, the Approving Body may modify the height, yard, open space, area, and parking requirements;
- (d) The Residential Compatibility Standards of Chapter 916 shall apply; and
- (e) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, and hours of operation.

54. (Reserved)

55. Restaurant, Fast Food.

- (a) In HC and GI Districts. Restaurant, Fast Food uses shall be subject to the following standards in the GI District:
 - (1) The applicant shall provide a transportation impact study, based on an approved transportation scoping form, prepared by a qualified transportation engineer, for review and approval by the Department of Mobility and Infrastructure. The applicant shall implement any required mitigation from the detrimental impacts of the drive through use, as determined in the approved transportation impact study.
 - (2) The Zoning Board of Adjustment shall determine that such use will not create detrimental impact on surrounding properties, taking into consideration transportation-related impacts, and the physical relationship of the proposed use and structure to the surrounding businesses and uses.

56. Restaurant (Limited).

- (a) In GI District. Restaurant (Limited) uses shall be subject to the following standards in the GI District:
 - (1) Parking shall be located in such a way as to avoid conflicts with industrial operations; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking into consideration the probable traffic generation, parking needs and hours of operation.
- (b) In P District. Restaurant (Limited) uses shall be subject to the following standards in the P District:
 - (1) The use shall be located in a building existing on February 26, 1999;
 - (2) Parking for the use shall not be provided;
 - (3) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable generation of traffic and the location of the use; and
 - (4) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.
- (c) In EMI Districts. Restaurant (Limited) uses shall be subject to the following:
 - (1) Parking facilities and access shall be designed and located to clearly meet the demand of the facility in a way which does not interfere with parking spaces required for surrounding residential uses; and
 - (2) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.

57. Restaurant (General).

- (a) In LNC, NDI, UNC, RIV, UC-MU and EMI Districts. Restaurant (General) uses shall be subject to the following standards in the LNC, NDI and UNC Districts:
 - (1) Parking facilities and access shall be designed and located to clearly meet the demand of the facility in a way which does not interfere with parking spaces required for surrounding residential uses;
 - (2) Off-site impacts of the use, which are directly attributed to activities occurring on-site, shall be controlled to avoid conflicts with surrounding residential use; and
 - (3) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.
- (b) In GI District. Restaurant (General) uses shall be subject to the following standards in the GI District:
 - (1) Parking shall be located in such a way as to avoid conflicts with industrial operations; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking into consideration the probable traffic generation, parking needs and hours of operation.
- (c) In P District. Restaurant (General) uses shall be subject to the following standards in the P District:
 - (1) The use shall be located in a building existing on February 26, 1999;
 - (2) Parking for the use shall not be provided;
 - (3) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable generation of traffic and the location of the use; and
 - (4) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.

58. Retail Sales and Service (Limited).

- (a) In GI Districts. Retail Sales and Service (Limited) uses shall be subject to the following standards in GI District:
 - (1) Off-street parking, loading and hours of operation shall be conducted in a manner that does not interfere with any industrial operations in the vicinity.

59. Retail Sales and Services (General).

- (a) In GI Districts. Retail Sales and Service (General) uses shall be subject to the

following standards in GI District:

- (1) Off-street parking, loading and hours of operation shall be conducted in a manner that does not interfere with any industrial operations in the vicinity.
- (b) In UNC District. Retail Sales and Service (General) shall be subject to the following standards in the UNC District:
 - (1) Parking facilities and access shall be designed and located to clearly meet the demand of the facility in a way which does not interfere with parking spaces required for surrounding residential uses.
- (c) In LNC and NDI Districts. Retail Sales and Services (General) shall be subject to the following standards in the LNC and NDI Districts:
 - (1) Parking and access facilities shall be designed and located to clearly meet the demand of the facility in a way that does not interfere with parking spaces required for the surrounding residential uses.
- (d) In EMI Districts. Retail Sales and Services (General) shall be subject to the following standards:
 - (1) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation;
 - (2) A traffic study, in a form approved by the Zoning Administrator, shall be submitted with the application, and shall address parking and traffic impacts of the development;
 - (3) Off-street parking, loading and hours of operation shall be conducted in a manner that does not interfere with institutional operations in the vicinity;
 - (4) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.

60. Retail Sales and Service, Residential Convenience except in RIV Districts.

Retail Sales and Service, Residential Convenience uses shall be subject to the following standards:

- (a) The use shall be located on the ground-floor a building containing at least fifty (50) dwelling units;
- (b) No direct, exterior entrance to the street or sidewalk shall be permitted;
- (c) The gross floor area of all such uses within a single building shall not exceed fifty (50) percent of the gross floor area of the first level of the building; and
- (d) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.

61. Safety Service.

Safety Service uses shall be subject to the following standards:

- (a) In all Districts. Curb cuts, driveways, and other vehicular areas shall be designed and located to minimize detrimental impacts on the surrounding residential properties.
- (b) In Residential Districts. Safety Service uses shall be subject to the following standards in all residential zoning districts:
 - (1) Height, yard, and area requirements shall be those of the residential district in which the facility is located; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, truck routes, on-site storage, and noise generation.
- (c) In LNC, NDI and UNC Districts. Safety Service uses shall be subject to the following standards in the LNC, NDI and UNC Districts:
 - (1) Curb cuts and vehicular drives shall be designed according to the Parking Area Location and Design Standards of Section 914.09; and
 - (2) The design of the structure shall follow the development standards for commercial uses in the UNC District.
- (d) In NDO and P Districts.
 - (1) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, truck routes, on-site storage, and noise generation.
 - (2) A maximum of fifty (50) percent of the lot shall contain impervious surfaces.
 - (3) Parking and driveway area shall be screened from view from adjacent streets and residential uses.
- (e) In EMI Districts. Safety Service uses shall be subject to the following standards:
 - (1) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, generation of noise and the hours of operation;
 - (2) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.

62. Salvage Yard.

- (a) In GI and RIV Districts. Salvage Yard uses shall be subject to the following standards in the GI and RIV Districts:
 - (1) The proposed use shall be fully enclosed;
 - (2) The proposed use shall be subject to the Screening Standards of Section 918.03; and
 - (3) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.

63. School, Elementary or Secondary (Limited).

School, Elementary or Secondary (Limited) uses shall be subject the following standards:

- (a) In Residential and Grandview Public Realm Districts.
 - (1) The Residential Compatibility Standards of Chapter 916 shall apply;
 - (2) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development;
 - (3) Parking and access shall be provided in such a way as to protect children from any external impacts of traffic in the vicinity; and
 - (4) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking in to consideration probable traffic generation, parking needs, the size and bulk of the building, and the impacts of uses other than normal hours.
- (b) In NDO, LNC, NDI, UI, RIV, UC-E, UC-MU, R-MU and EMI Districts.
 - (1) The Approving Body shall determine that such use shall not create detrimental impacts on surrounding properties, taking into consideration probable traffic generation, parking needs, the size and bulk of the building, and the impacts of uses outside of normal hours of operation;
 - (2) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development; and
 - (3) Parking and access shall be provided in such a way as to protect children from any external impacts of traffic in the vicinity.
- (c) In UNC and HC Districts.
 - (1) Site Plan Review shall be required; and
 - (2) Parking and access shall be provided in such a way as to protect children from any external impacts of traffic in the vicinity.

64. School, Elementary or Secondary (General).

School, Elementary or Secondary (General) uses shall be subject the following standards:

(a) In Residential and Grandview Public Realm Districts.

- (1) The Residential Compatibility Standards of Chapter 916 shall apply;
- (2) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development;
- (3) Parking and access shall be provided in such a way as to protect children from any external impacts of traffic in the vicinity; and
- (4) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking in to consideration probable traffic generation, parking needs, the size and bulk of the building, and the impacts of uses other than normal hours.

(b) In NDO, LNC, RIV UC-E, UC-MU, R-MU and EMI Districts.

- (1) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking into consideration probable traffic generation, parking needs, the size and bulk of the building, and the impacts of uses outside of normal hours of operation;
- (2) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development;
- (3) Parking and access shall be provided in such a way as to protect children from any external impacts of traffic in the vicinity.

(c) In NDI and UI Districts.

- (1) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking into consideration probable traffic generation, parking needs, the size and bulk of the building, and the impacts of uses outside of normal hours of operation;
- (2) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development; and
- (3) Parking and access shall be provided in such a way as to protect students from any external impacts of traffic in the vicinity.

(d) In the UNC and HC Districts.

- (1) Site Plan Review shall be required;

- (2) Parking and access shall be provided in such a way as to protect children from any external impacts of traffic in the vicinity.

65. Service Station.

Service Station uses shall be subject to the following standards:

- (a) Gasoline pumps shall be setback at least twenty (20) feet from any right-of-way. All stands, racks and other features shall be setback at least thirty-five (35) feet from any right-of-way;
- (b) Curb cuts shall be located at least sixty (60) feet from the tangent points of the curb radius at any street intersection;
- (c) Service stations may have a sign on each pump identifying the pumps in addition to business signs located as permitted under Chapter 919;
- (d) Activities such as car washing, oil changing and greasing must be conducted within a completely enclosed building;
- (e) In the NDI, UNC, RIV, UC-MU, and LNC Districts, the Approving Body shall determine that such use will be controlled against detrimental impact to surrounding properties, taking into consideration among other things, the probable traffic generation, the physical relationship of the proposed use to the surrounding structures, the probable hours of operation, the distance from places of public assembly and the emission of fumes, odors, dust, noise, vibration or glaring light; and
- (f) Any lot containing a Service Station use shall be located at least one hundred fifty (150) feet from any residential zoning district;
- (g) In the LNC, UC-MU, and RIV-MU Districts, a maximum of two (2) curb cuts shall be provided, and shall be a minimum of sixty (60) feet apart;
- (h) In the LNC, UC-MU, NDI and UNC districts, the building shall be placed along the same frontage, with the same setbacks, as the abutting buildings, and the parking and driveway areas shall be placed at the back of the building, unless the Approving Body determines that such an arrangement will create security problems or congestion or other operational problems on the site;
- (i) In the LNC, UC-MU, NDI and UNC districts, the Approving Body shall require that the site and any structures form a compatible relationship with the surrounding sites and structures, taking into consideration the building materials, shape of the structures, size of buildings and signs, locations of the structures on the site, and the amount and location of landscaping. The Approving Body shall impose additional conditions as may be necessary for the site and structures to form a compatible relationship with the adjacent and surrounding sites and structures.

66. Assisted Living Facility.

- (a) Class A.

- (1) In all Districts. Assisted Living Facility (Class A) uses shall be subject to the following standards in all districts:
 - (i) Lot area shall be provided at the rate of five thousand (5,000) square feet plus five hundred (500) square feet for each sleeping room in excess of three (3). Every unit of two (2) beds, or fraction thereof, in a sleeping room shall be counted as a separate sleeping room. This provision may be reduced by the Board when the facility is to be located in a building that has been constructed prior to May 10, 1958;
 - (ii) Any Assisted Living Facility use shall be limited to no more than one (1) per building, shall not be located in a building that is occupied by any other residential type of use; and shall be spaced no closer than eight hundred (800) feet from any other authorized Assisted Living Facility, group residence facility or group care facility. This distance shall be measured imposing a circular area on an accurate plan by locating a point on the center of the subject building and by extending a radius of eight hundred (800) feet. Any other building occupied as an authorized Assisted Living Facility that is located totally within this circular space shall be cause for rejection of the application;
 - (iii) Supervision shall be provided in accord with the regulations of the certifying agency(ies) by at least one (1) responsible non-client adult available on the premises on a 24 hour-a-day basis while any of the clients are on the premises;
 - (iv) Sleeping rooms shall not be located in any basement or cellar and shall comply with all applicable life-safety codes;
 - (v) New buildings shall be situated within the buildable area of the lots as determined by the zoning district regulations; however, the minimum interior side yard setback in residential districts shall be not less than ten (10) feet; and
 - (vi) On-site parking facilities shall be provided at a ratio of one (1) stall for every two (2) full-time staff members and an additional stall for every three (3) non-staff residents who are eligible and are permitted by the operator to operate a motor vehicle.
- (2) In Residential and Grandview Public Realm Districts. Assisted Living Facility (Class A) uses shall be subject to the following standards in Residential and Grandview Public Realm Districts:
 - (i) The Approving Body shall determine that the proposed use shall not create detrimental impacts to the community taking into consideration the relationship of the proposed use with the surrounding structures, the arrangement, illumination and enclosure of parking facilities, the location and enclosure of trash facilities, the type of signage and that adequate provisions are made for continuing maintenance of the

buildings and grounds.

- (3) In NDO, LNC and NDI Districts. Assisted Living Facility (Class A) uses shall be subject to the following standards in NDO, LNC and NDI Districts:
 - (i) The proposed use shall be subject to the Site Plan Review procedures in accordance with the provisions of Section 922.04.
- (b) Class B. Assisted Living (Class B) uses shall be subject to the following standards:
 - (1) Lot area shall be provided at the rate of five thousand (5,000) square feet plus three hundred (300) square feet for each sleeping room in excess of three (3). Every unit of two (2) beds, or fraction thereof, in a sleeping room shall be counted as a separate sleeping room. This provision may be reduced by the Board when the facility is to be located in a building that has been constructed prior to May 10, 1958;
 - (2) Any Assisted Living Facility use shall be limited to no more than one (1) per building, shall not be located in a building that is occupied by any other residential type of use; and shall be spaced no closer than eight hundred (800) feet from any other authorized Assisted Living Facility, group residence facility or group care facility. This distance shall be measured imposing a circular area on an accurate plan by locating a point on the center of the subject building and by extending a radius of eight hundred (800) feet. Any other building occupied as an authorized Assisted Living Facility that is located totally within this circular space shall be cause for rejection the application;
 - (3) Supervision shall be provided in accord with the regulations of the certifying agency(ies) by at least one (1) responsible non-client adult available on the premises on a 24 hour-a-day basis while any of the clients are on the premises;
 - (4) Sleeping rooms shall not be located in any basement or cellar and shall comply with all applicable life-safety codes;
 - (5) New buildings shall be situated within the buildable area of the lots as determined by the zoning district regulations; however, the minimum interior side yard setback in residential districts shall be not less than ten (10) feet;
 - (6) On-site parking facilities shall be provided at a ratio of one (1) stall for every two (2) full-time staff members and an additional stall for every three (3) non-staff residents who are eligible and are permitted by the operator to operate a motor vehicle; and
 - (7) The Approving Body shall determine that the proposed use shall not create detrimental impacts to the community taking into consideration the relationship of the proposed use with the surrounding structures, the arrangement, illumination and enclosure of parking facilities, the location and enclosure of trash facilities, the type of signage and that adequate provisions are made for continuing maintenance of the buildings and grounds.

(c) Class C.

- (1) In all Districts. Assisted Living Facility (Class C) uses shall be subject to the following standards in all districts:
 - (i) Lot area shall be provided at the rate of five thousand (5,000) square feet plus three hundred (300) square feet for each sleeping room in excess of three (3). Every unit of two (2) beds, or fraction thereof, in a sleeping room shall be counted as a separate sleeping room. This provision may be reduced by the Board when the facility is to be located in a building that has been constructed prior to May 10, 1958;
 - (ii) Any Assisted Living Facility use shall be limited to no more than one (1) per building, shall not be located in a building that is occupied by any other residential type of use; and shall be spaced no closer than eight hundred (800) feet from any other authorized Assisted Living Facility, group residence facility or group care facility. This distance shall be measured imposing a circular area on an accurate plan by locating a point on the center of the subject building and by extending a radius of eight hundred (800) feet. Any other building occupied as an authorized Assisted Living Facility that is located totally within this circular space shall be cause for rejection of this application;
 - (iii) Supervision shall be provided in accord with the regulations of the certifying agency(ies) by at least one (1) responsible non-client adult available on the premises on a 24 hour-a-day basis while any of the clients are on the premises;
 - (iv) Sleeping rooms shall not be located in any basement or cellar and shall comply with all applicable life-safety codes;
 - (v) New buildings shall be situated within the buildable area of the lots as determined by the zoning district regulations; however, the minimum interior side yard setback in residential districts shall be not less than ten (10) feet; and
 - (vi) On-site parking facilities shall be provided at a ratio of one (1) stall for every two (2) full-time staff members and an additional stall for every three (3) non-staff residents who are eligible and are permitted by the operator to operate a motor vehicle.
- (2) In RM and Grandview Public Realm Districts. In addition to the standards listed above, Assisted Living Facility (Class C) uses shall be subject to the following standards in the RM and Grandview Public Realm Districts:
 - (i) The facility shall be designed to appear as a residential structure, and parking shall be located and screened so as to not be visible from adjacent properties or right-of-way;
 - (ii) The required lot area shall be determined using the lot area requirements

for residential dwelling units, allowing two (2) beds for each dwelling unit; and

- (iii) The Approving Body shall determine that the proposed use shall not create detrimental impacts to the community taking into consideration the relationship of the proposed use with the surrounding structures, the arrangement, illumination and enclosure of parking facilities, the location and enclosure of trash facilities, the type of signage and that adequate provisions are made for continuing maintenance of the buildings and grounds.
- (3) In NDO, LNC, NDI, and UNC Districts. Assisted Living Facility (Class C) uses shall be subject to the following standards in the NDO, LNC, NDI, and UNC District:
 - (i) The Approving Body shall determine that the proposed use shall not create detrimental impacts to the community taking into consideration the relationship of the proposed use with the surrounding structures, the arrangement, illumination and enclosure of parking facilities, the location and enclosure of trash facilities, the type of signage and that adequate provisions are made for continuing maintenance of the buildings and grounds.

67. Laundry Services.

Laundry Service uses shall be subject to the following standards:

- (1) All uses shall be conducted within a completely enclosed building and shall be designed to minimize external signs of the operation, such as noise, odor, smoke, vibration or other factors; and
- (2) The Approving Body shall determine that the proposed use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, loading and unloading, hours of operation, and the emission of odors, fumes, dust, noise, vibration, and glaring light;

68. (Reserved)

69. Single-Unit Detached and Attached Residential.

- (a) In H Districts. Single-Unit Detached and Attached Residential uses shall be subject to the following conditions in the H District.
 - (1) Topography. Primary structure must be located on buildable land defined as a contiguous area of the lot less than thirty (30) percent in existing slope.
 - (2) Soils. Any site proposed for development in the H District shall be investigated to determine the soil characteristics. A soils engineering report may be required at the discretion of the Zoning Administrator. Factors to be considered by the Zoning Administrator when determining whether an engineering report will be required include the following (any one (1) factor

may warrant an engineer's report):

- a. Nature, distribution, and strength of existing soils as described in the County Soils Survey;
 - b. Any development proposed on natural slopes greater than twenty (20) percent;
 - c. Areas that are landslide-prone;
 - d. Areas with soils that have a high shrink-swell potential;
- (3) Vegetation. The proposed development shall be designed to minimize the incidence of erosion. The Zoning Administrator will be reviewing the application to determine how the applicant uses the vegetation to reduce erosion. The application must show the Administrator how:
- a. Any deep-rooted woody vegetation reduces storm runoff volume over the slope;
 - b. Existing and proposed foliage reduces the velocity of raindrops by reducing their energy when they strike the ground;
 - c. Existing and proposed vegetation increases the roughness of the ground surface which slows the velocity of surface water flow; and
 - d. Existing root networks will be protected to bind the soil.
- (4) Access. For any new construction of a dwelling, or dwellings, on a lot fronting on a substandard hillside street, the Zoning Administrator will be reviewing the application to determine how the applicant accesses the street and will be making recommendations to improve any substandard conditions that will be conditions of any approval for a building and occupancy permit. The Zoning Administrator will consider the following existing conditions in the review: road width and slope, road surface condition, drainage, sight distance, availability of on-street and off-street parking, and presence of retaining walls.
- (5) Infrastructure. Public water and sewer must be available for connection at the lot line. If the lot in which the owner/applicant is requesting to build upon is determined to meet these five (5) conditions, the Zoning Administrator will then review the plot plan for compliance with the Development Standards in Sections 905.02.C, 905.02.D, and 905.02.E.
- (b) Existing vegetation shall be cleared only to the extent needed for the structure, driveway, and outdoor activities that are associated with the residential use. In no case shall more than ten (10) percent, or two thousand four hundred (2,400) square feet, whichever is larger, be cleared.
 - (c) Single Unit Attached dwellings are permitted by Special Exception in the H District provided that no more than four (4) units are constructed in any cluster.

69A. Single-Unit Attached Residential.

- (a) In Residential Single-Unit Detached Districts, Single-Unit Attached Uses shall be permitted subject to the following standards:
 - 1. For lots with Lot Widths of 35 feet or smaller, Single-Unit Attached Uses shall be permitted by right.
 - 2. For lots with Lot Widths larger than 35 feet, Single-Unit Attached Uses shall be permitted by the Special Exception Provisions of Section 922.07.

70. Transit Facility.

Transit Facility uses shall be subject to the following standards:

- (a) Parking and vehicular storage areas shall be screened according to the Landscaping and Screening Standards of Chapter 918;
- (b) Pedestrian walkways and loading areas shall be designed to be an integral part of the surrounding street system, and to minimize conflicts with vehicles; and
- (c) Site development standards, off-street parking and loading requirements and landscaping and screening standards shall be established by the Planning Commission, based on an evaluation of the specific Transit Facility proposal.

71. Utility (Limited).

- (a) In all Districts. Utility (Limited) uses shall be subject to the following standards:
 - (1) Overhead lines shall be organized, designed and located to avoid conflict with existing trees and other existing landscape features;
 - (2) Where wiring or cables are intended to serve new structures of more than ten (10) new residential units, or new structures of two (2) or more nonresidential buildings within a single development, lines and cables shall be located underground;
 - (3) Accessory structures shall not be located in the street side yard; and
 - (4) When located in an interior side yard, accessory equipment shall be completely screened from view except as needed for access, according to the Landscaping and Screening Standards of Chapter 918.

72. Utility (General).

Utility (General) uses shall be subject to the following standards:

- (a) In all districts, all facilities which can physically and technically be within an enclosed building shall be within a completely enclosed building;
- (b) In all districts other than GI or the RIV, the design of the structure shall follow the development standards for commercial uses in the UNC District;

- (c) The Approving Body shall require additional landscaping and screening of the facility if required to sufficiently screen the facility from surrounding properties; and
- (d) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to the surrounding uses and structures, the probable hours of operation, the design and location of areas for parking and maneuvering of vehicles, and the emission of odors, fumes, dust, noise, vibration, or glaring light.

73. Vehicle/Equipment Repair (Limited).

- (a) In the LNC, NDI and UNC Districts. Vehicle/Equipment Repair (Limited) uses shall be subject to the following standards in the LNC, NDI and UNC Districts:
 - (1) The use shall be located within a completely enclosed structure;
 - (2) The facility shall be designed according to the development standards for commercial uses in the district;
 - (3) The building housing such use shall be located at least thirty (30) feet from any right-of-way line and at least sixty (60) feet from any lot in a residential zoning district; and
 - (4) Access to such use shall not be provided from a primary commercial frontage where access from the rear is possible.
 - (5) In the NDI and UNC Districts, the Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking, pedestrian safety, noise and hours of operation.
- (b) In the GT, DR and EMI Districts. Vehicle/Equipment Repair (Limited) uses shall be subject to the following standards in the GT and DR Districts:
 - (1) The uses shall be only permitted as accessory uses within a larger structure;
 - (2) Vehicular access shall not be provided from the primary commercial frontage where rear vehicular access is possible; and
 - (3) All repair and service work to vehicles shall be conducted within an entirely enclosed structure, and no such work shall be conducted in a location which is visible from adjacent properties or a right-of-way.
- (c) In RIV Districts. Vehicle/Equipment Repair (Limited) uses shall be subject to the following standards:
 - (1) The uses shall be only permitted as accessory uses within a larger structure;
 - (2) All repair and service work to vehicles shall be conducted within an entirely enclosed structure, and no such work shall be conducted in a location which

is visible from adjacent properties or a right-of-way.

74. Vehicle/Equipment Repair (General).

Vehicle/Equipment Repair (General) uses shall be subject to the following standards:

- (a) The building housing such use shall be located at least thirty (30) feet from any right-of-way line and at least sixty (60) feet from any lot in a residential zoning district;
- (b) Access to such facility shall not be provided from a primary commercial frontage where access from the rear is possible; and
- (c) In the NDI and UNC Districts, the Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking, pedestrian safety, noise and hours of operation.

75. Vehicle/Equipment Sales (Limited).

- (a) In LNC, UNC, UI, RIV and NDI Districts. Vehicle/Equipment Sales (Limited) shall be subject to the following standards in the LNC, UNC, UI, RIV and NDI Districts:
 - (1) The facility shall be designed according to the development standards for commercial uses in the district; and
 - (2) Curb cuts and vehicular drives shall be designed according to the Parking Area Location and Design Standards of Section 914.09; and
 - (3) The public right-of-way shall not be used for the storage of vehicles; and
 - (4) Except as provided for in other regulations, no unregistered or uninspected motor vehicle shall be parked, kept or stored on any premises, and no vehicle shall at any time be in a state of major disassembly, disrepaired, or in the process of being stripped or dismantled; and
 - (5) The Landscaping and Screening Standards of Chapter 918 shall apply regardless of the number of parking stalls provided.
- (b) The definition of vehicle/equipment sales, Section 911.02, includes the retail, wholesale, or rental of motorized vehicle, etc.

76. Vehicle/Equipment Sales (General).

Vehicle/Equipment Sales (General) shall be subject to the following standards:

- (a) In the UNC, RIV and NDI Districts.
 - (1) The facility shall be designed according to the development standards for commercial uses in the district;
 - (2) Curb cuts and vehicular drives shall be designed according to the Parking

Area Location and Design Standards of Section 914.09;

- (3) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking into consideration probable parking needs, traffic generation, and the design and location of areas for parking and maneuvering of vehicles.
- (b) In the HC District.
 - (1) The facility shall be designed according to the development standards for commercial uses in the district;
 - (2) Curb cuts and vehicular drives shall be designed in accordance to the Parking Area Location and Design Standards of Section 914.09;
 - (3) The Landscaping and Screening Standards of Chapter 918 shall apply; and
 - (4) Site Plan Review shall be required.
- (c) In the UI District.
 - (1) The facility shall be designed according to the development standards for commercial uses in the district;
 - (2) Curb cuts and vehicular drives shall be designed in accordance to the Parking Area Location and Design Standards of Section 914.09;
 - (3) The Landscaping and Screening Standards of Chapter 918 shall apply; and
 - (4) Site Plan Review shall be required.

77. Vocational School (Limited and General).

- (a) Vocational School (Limited) uses shall be subject to the following standards:
 - (1) In EMI Districts.
 - (i) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (ii) The proposed use shall be subject to the Project Development Plan Procedures of Section 922.10.
- (b) Vocational School (General) uses shall be subject to the following standards:
 - (1) In all Districts. The facility shall be designed according to the development standards for commercial uses in the district.
 - (2) In NDI, RIV Districts, UC-E, and UC-MU.
 - (i) The approving body shall determine that such use will not create detrimental impacts on surrounding properties, taking into consideration probable traffic generation, parking needs, the size and bulk of the

building, and the impacts of uses outside of normal hours of operation; and

- (ii) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development.
- (3) In EMI Districts. Vocational School (General) uses shall be subject to the following standards:
 - (i) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (ii) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

78. Warehouse (Limited and General).

- (a) In EMI Districts. Warehouse (Limited) uses shall be subject to the following standards:
 - (1) Every portion of the property used for Warehouse (Limited) uses shall be located not closer than two hundred (200) feet from any property in a R or H district and one hundred (100) feet from any property in a NDI, UNC or LNC district;
 - (2) Any vehicular maneuvering shall be located on-site;
 - (3) Curb cuts shall be minimized to the maximum extent feasible in order to achieve access to the site;
 - (4) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the emission of noise or glaring light, and proposed accessory uses, such as meeting facilities;
 - (5) The proposed use shall be subject to the Site Plan Review Procedures of Section 922.04.
- (b) In the HC District. Warehouse (General) uses shall be subject to the following standards:
 - (1) Every portion of the property used for Warehouse (General) uses shall be located not closer than two hundred (200) feet from any property in a R or H District, and one hundred (100) feet from any property in a NDI, UNC or LNC District;
 - (2) All maneuvering of vehicle shall be on-site;
 - (3) Curb cuts shall be minimized to the maximum extent feasible in order to achieve access to the site; and

- (4) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable truck maneuvering, traffic generation, paved surfaces, glaring lights and hours of operation.
- (c) In the UI District. Warehouse (General) uses shall be subject to the following standards:
 - (1) Every portion of the property used for Warehouse (General) uses shall be located not closer than two hundred (200) feet from any property in an R or H District, and one hundred (100) feet from any property in an NDI, UNC, or LNC District;
 - (2) All maneuvering of vehicles shall be on-site;
 - (3) Curb cuts shall be minimized to the maximum extent feasible in order to achieve access to the site; and
 - (4) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.
- (d) In RIV Districts. Warehouse (Limited and General) uses shall be subject to the following standards:
 - (1) Any vehicular maneuvering shall be located on-site; and
 - (2) Curb cuts shall be minimized to the maximum extent feasible in order to achieve access to the site.

79. Welding or Machine Shop.

Welding or Machine Shop uses shall be subject to the following standards:

- (a) In the NDI and HC Districts.
 - (1) The use shall be conducted within a completely enclosed building and shall create no external visible sign of the operation, such as noise, smoke, vibration or other factor; and
 - (2) The Approving Body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, hours of operation, and the emission of odors, fumes, dust, noise, vibration, and glaring light.
- (b) In the UI District.
 - (1) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.

80. Nursery, Retail (Limited and General).

Nursery, Retail (Limited and General) uses shall be subject to the following standards:

- (a) Nursery, Retail (Limited) in P districts.
 - (1) Parking shall be provided in a location and manner that allows for all parking required by the facility, and all traffic created by the facility, to be located outside of residential districts;
 - (2) All facilities shall be designed to be compatible with the surrounding landscape, such that the minimum possible grading will be required and the minimum disturbance and removal of existing vegetation will be required.
- (b) Nursery, Retail (Limited) in NDO and LNC districts. The proposed use shall be subject to the Landscaping and Screening Standards of Chapter 918.
- (c) Nursery, Retail (General) in NDI District.
 - (1) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04;
 - (2) The proposed use shall be subject to the Landscaping and Screening Standards of Chapter 918; and
 - (3) Parking demand shall be addressed so as to meet parking needs and to discourage parking on nearby streets.
- (d) Nursery, Retail (General) in GI Districts.
 - (1) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04; and
 - (2) Parking demand shall be addressed so as to meet parking needs and to discourage parking on nearby streets.
- (e) Nursery, Retail (General) in RIV Districts.
 - (1) Parking demand shall be addressed so as to meet parking needs and to discourage parking on nearby streets.

81. Medical Office (Limited and General).

- (1) In the NDO District. Medical Office (Limited) uses shall be subject to the following standards in the NDO District:
 - (i) The proposed use shall be subject to the Residential Compatibility Standards of Chapter 916; and
 - (ii) The proposed use shall be subject to the Landscaping and Screening Standards of Chapter 918.
 - (iii) The design of any structure in an NDO District used for non-residential purposes that does not occupy a structure originally designed as a residence shall be of a scale and character that is consistent with the scale and character of adjacent residential neighborhoods;

- (iv) Parking shall be provided in a location and manner that allows for all parking required by the facility, and all traffic created by the facility, to be located outside of residential districts;
 - (v) For Medical Office (General) uses, the Approving Body shall determine that the site is sufficiently separated from property zoned Residential and that the additional size of the use will not create a detrimental impact on such properties through consideration of the additional traffic impacts caused by additional height and density, the impacts on views from such residential properties, and the impacts of the bulk of the buildings on such residential properties and noise generation and the hours of operation; and
 - (vi) A traffic study in a form approved by the Zoning Administrator shall be submitted with the application, and shall address parking and traffic impacts of the proposed development. The transportation study shall illustrate that the proposed development will not create traffic congestion on the surrounding streets, and that residential streets in the vicinity shall not be used for parking for the proposed development.
- (2) In the LNC and NDI Districts. Medical Office (Limited) uses shall be subject to the following standards in the LNC and NDI Districts:
- (i) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.
- (3) In GI Districts. Medical Office (Limited) uses shall be subject to the following standards in the GI District:
- (i) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04; and
 - (ii) The proposed use shall be located within an existing structure.
- (4) In EMI Districts. Medical Office (Limited and General) uses shall be subject to the following standards:
- (i) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (ii) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.

82. **Grocery Store (Limited).**

Grocery Store (Limited) uses shall be subject to the following standards:

- (a) In LNC, NDI, UNC and EMI Districts.
 - (1) Site Plan review shall be required;
 - (2) Parking facilities and access shall be designed and located to minimize impacts on the surrounding properties and the district as a whole.

- (b) In GI Districts. Grocery (Limited) uses shall be subject to the following standards in GI District:

- (1) Off street parking, loading and hours of operation shall be conducted in a manner that does not interfere with any industrial operations in the vicinity.

83. Grocery Store (General).

- (a) In GI Districts. Grocery Store (General) uses shall be subject to the following standards in GI District:

- (1) Off street parking, loading and hours of operation shall be conducted in a manner that does not interfere with any industrial operations in the vicinity.

- (b) In UNC, UI and EMI Districts. Grocery Store (General) shall be subject to the following standards in the UNC and UI Districts:

- (1) Parking facilities and access shall be designed and located to clearly meet the demand of the facility in a way that does not interfere with parking spaces required for surrounding residential uses; and

- (2) The proposed use shall be subject to the Site Plan Review Procedures of Section 922.04.

- (c) In LNC and NDI Districts. Grocery Store (General) shall be subject to the following standards in the LNC and NDI Districts:

- (1) Parking and access facilities shall be designed and located to clearly meet the demand of the facility in a way that does not interfere with parking spaces required for the surrounding residential uses;

- (2) The Approving Body shall determine that such use will not create detrimental impacts on surrounding residential properties, considering, among others, the following factors: the adequacy of parking and loading facilities, trash storage, traffic generation, pedestrian access, exhaust odors, vibration, dust, noise, outdoor lighting, signage, and landscape features.

- (3) The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties considering the compatibility of the proposed uses with the surrounding and adjacent uses.

84. Community Home.

Community Home uses shall be subject to following standards in all districts:

- (a) The dwelling unit shall have one (1) primary means of ingress/egress, a single outside mail box, single utility connections (except for telephone, computer and cable service), and common eating/cooking areas;

- (b) The use shall not require alteration to the exterior structure except where otherwise permitted for single family residential dwellings or where required under health/safety codes;

- (c) The number of unrelated disabled persons shall not exceed an average of one (1) per bedroom. The following persons shall not be included in determining the average number of persons per bedroom in the Community Home: persons with a permanent personal relationship choosing to share a bedroom with a disabled resident of the Community Home, parents or legal guardians of a resident of the Community Home who choose to live in said home. Further, the use shall not require substantial alterations to the interior of the structure for the purpose of creating additional bedrooms;
- (d) On-site parking spaces shall be provided at the ratio of one (1) stall for every three (3) persons on duty;
- (e) Any office located in the dwelling unit shall be limited to on-site program use only; and
- (f) The Approving Body shall determine that the establishment of the Community Home will not detrimentally impact the neighborhood by contributing to the saturation of Community Homes or social service institutions.

85. Multi-Unit Residential.

- (a) In the UI District. Multi-Unit Residential uses in the UI District shall be subject to the following standards:
 - (1) All residential units may be limited to floors above the ground floor of the building when residential uses are not desirable on the ground floor.
- (b) In the EMI District. Multi-Unit Residential uses shall be subject to the following standards in the EMI District:
 - (1) The proposed use shall be subject to the Residential Compatibility Standards of Chapter 916; and
 - (2) The Approving Body shall determine that the proposed use will not create detrimental impacts on surrounding residential properties, taking into consideration the compatibility of the proposed use with the surrounding and adjacent properties; the generation of light and noise from the proposed use; parking, loading and access.
- (c) In the UC-E District. Multi-Unit Residential uses shall meet one (1) of the following standards in the UC-E District:
 - (1) All the residential shall units meet the requirements of Section 907.04.A.6 and shall otherwise follow the processes and procedures of Section 907.04.A, excluding Section 907.04.A.5 Applicability and Section 907.04.A.7 and Off-Site Inclusionary Standards. One hundred (100) percent of the units shall be affordable and shall be located on site. Or
 - (2) Residential housing shall be less than fifty (50) percent of the Gross Floor Area in a mixed-use structure. For purposes of this calculation, shared spaces between residential uses and commercial shall be excluded from the

calculation of Gross Floor Area.

86. Warehouse, Residential Storage.

- (a) In the NDI District. Warehouse, Residential Storage uses shall be subject to the following standards in the NDI District:
 - (1) The Approving Body shall determine that the proposed use will not create detrimental impacts on surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to the surrounding uses and structures, the probable hours of operation, and the design and location of parking and loading areas;
 - (2) The proposed use shall be subject to the Landscaping and Screening Standards of Chapter 918; and
 - (3) Curb-cuts shall be minimized to the maximum extent feasible in order to achieve access to the site.

87. Parking Structure (Limited and General).

- (a) Parking Structure (Limited).
 - (1) In NDO, LNC, and NDI Districts. Parking Structure (Limited) uses shall be subject to the following standards:
 - (i) A needs assessment study shall be applied to the approving body by the applicant in order to demonstrate the necessity of the proposed use in the district;
 - (ii) The approving body shall determine that such use shall not create detrimental impacts on the surrounding properties, taking into account the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the impacts of traffic generation on surrounding residential and commercial uses, hours of operation, noise and light;
 - (iii) The use shall be located to minimize disruption to pedestrian movements;
 - (iv) The Residential Compatibility Standards of Chapter 916 shall apply;
 - (v) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts;
 - (vi) The vehicular entrance and approach to the parking structure shall be clearly delineated by markings, striping and/or signage as determined by the approving body;
 - (vii) The design shall include devices which are intended to minimize noise associated with the mechanical systems of the facility from being heard on other properties in the vicinity;

- (viii) The proposed use shall be subject to the site plan review procedures of Section 922.04;
 - (ix) The height and bulk of the proposed structure shall be designated to minimize blocking of views from adjacent residential properties; and
 - (x) A traffic analysis shall be submitted demonstrating that the proposed development will not create traffic congestion in the district.
- (2) In EMI Districts. Parking Structure (limited) uses shall be subject to the following standards:
- (i) The use shall be located to minimize disruption to pedestrian movements;
 - (ii) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts;
 - (iii) The vehicular entrance and approach to the Parking Structure shall be clearly delineated by markings, striping and/or signage as determined by the Zoning Administrator;
 - (iv) The design shall include devices which are intended to minimize noise associated with the mechanical systems of the facility from being heard on other properties in the vicinity;
 - (v) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (vi) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (vii) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (3) In GT, UC-E, UC-MU, R-MU, and RIV Districts. Parking Structure (Limited) shall be subject to the following standards:
- (i) The approving body shall determine that such use shall not create detrimental impacts on the surrounding properties, taking into account the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the impacts of traffic generation on surrounding residential and commercial uses, hours of operation, noise and light;
 - (ii) The use shall be located to minimize disruption to pedestrian movements;
 - (iii) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts; and
 - (iv) The vehicular entrance and approach to the parking structure shall be

clearly delineated by markings, striping and/or signage as determined by the approving body.

(b) Parking Structure (General).

- (1) In LNC Districts. Parking Structure (General) uses shall be subject to the following standards:
 - (i) A needs assessment study shall be supplied to approving body by the applicant in order to demonstrate the necessity of the proposed use in the district;
 - (ii) The approving body shall determine that such use shall not create detrimental impacts on the surrounding properties, taking into account the probable traffic generation, the physical relationship of the proposed use and structure to surrounding uses and structures, the impacts of traffic generation on surrounding residential and commercial uses, hours of operation, noise and light;
 - (iii) The use shall be located to minimize disruption to pedestrian movements;
 - (iv) The Residential Compatibility Standards of Chapter 916 shall apply;
 - (v) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts;
 - (vi) The vehicular entrance and approach to the parking structure shall be clearly delineated by markings, striping and/or signage as determined by the approving body;
 - (vii) The design shall include devices which are intended to minimize noise associated with the mechanical systems from being heard on other properties in the vicinity;
 - (viii) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04;
 - (ix) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties; and
 - (x) A traffic analysis shall be submitted demonstrating that the proposed development will not create traffic congestion in the district.
- (2) In EMI Districts. Parking Structure (general) uses shall be subject to the following standards:
 - (i) The use shall be located to minimize disruption to pedestrian movements;
 - (ii) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts;

- (iii) The vehicular entrance and approach to the Parking Structure shall be clearly delineated by markings, striping and/or signage as determined by the Zoning Administrator;
 - (iv) The design shall include devices which are intended to minimize noise associated with the mechanical systems of the facility from being heard on other properties in the vicinity;
 - (v) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (vi) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (vii) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (3) In the HC, GT, UC-E, UC-MU, and RIV Districts:
- Parking Structure (General) uses shall be subject to the following standards:
- (i) The use shall be located to minimize disruption to pedestrian movements;
 - (ii) Curb cuts shall be located a minimum of sixty (60) feet from an intersection and sixty (60) feet from other curb cuts;
 - (iii) The vehicular entrance and approach to the parking structure shall be clearly delineated by markings, striping and/or signage as determined by the approving body.
 - (iv) The design shall include devices which are designed to minimize noise associated with the mechanical systems of the facility from being heard on other properties in the vicinity; and
 - (v) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties.

88. Club: Social, Fraternal, Athletic, Business or Professional.

- (i) Amount of required parking stalls shall be determined by the approving body based on the nature of the operation and the availability of off-site parking facilities.
- (ii) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration the probable traffic generation, parking needs, hours and days of operation.

89. Hospital.

- (a) In EMI Districts. Hospital uses shall be subject to the following standards:
 - (1) The design shall include devices which prevent noise and emissions

associated with the use of the facility from being impacted on other properties in the vicinity;

- (2) The height and bulk of the proposed structure shall be designed as to minimize blocking of views from adjacent residential properties;
 - (3) Parking shall be provided in a location and manner that allows for all parking to be located outside of residential districts;
 - (4) The proposed use shall be in compliance with an approved Institutional Master Plan; and
 - (5) The proposed use shall be subject to the Project Development Plan procedures of Section 922.10.
- (b) In RM, LNC, UNC, HC, and UI Districts. Hospital uses shall be subject to the following standards:
- (1) The buildable area of the lot shall not be nearer than thirty (30) feet to any lot line which is not a street line;
 - (2) The permissible height regulations of the district wherein such use is located shall apply, and may be exceeded provided any portion of a structure above the permissible height shall not exceed the height of inward-sloping planes; beginning at the rear lot line other than street line at the average grade level of the ground along such rear lot line opposite the structure concerned, and having a rise of one (1) foot for each two (2) feet of horizontal dimensions; and, beginning at the respective side lot lines other than street lines at the average grade level of the ground along such lot lines opposite the structure concerned, and having a rise of one (1) foot for each two (2) feet of horizontal dimension;
 - (3) The total bulk of buildings upon the zoning lot shall not exceed the cubical contents of a prism having a base equal to the buildable area of the lot and height of eighty-five (85) feet;
 - (4) Automobile parking area may encroach on yards not abutting a street, but not closer to a lot line than fifteen (15) feet, provided it shall be visually screened from adjoining property in accordance with the screening provisions of Section 918.03.
 - (5) An Institutional Master Plan must be approved by Planning Commission prior to the review of the Conditional Use Application.

90. College or University Campus.

- (a) In LNC, UNC, HC, UI and RM Districts: College or University Campus uses shall be subject to the following standards in LNC, UNC, HC, UI and RM Districts:
- (1) The buildable area of the lot shall not be nearer than thirty (30) feet to any lot line which is not a street line;

- (2) The permissible height regulations of the district wherein such use is located shall apply, and may be exceeded provided any portion of a structure above the permissible height shall not exceed the height of inward-sloping planes; beginning at the rear lot line other than street line at the average grade level of the ground along such rear lot line opposite the structure concerned, and having a rise of one (1) foot for each two (2) feet of horizontal dimensions; and, beginning at the respective side lot lines other than street lines at the average grade level of the ground along such lot lines opposite the structure concerned, and having a rise of one (1) foot for each two (2) feet of horizontal dimension;
- (3) The total bulk of buildings upon the zoning lot shall not exceed the cubical contents of a prism having a base equal to the buildable area of the lot and a height of eighty-five (85) feet;
- (4) Automobile parking area may encroach on yards not abutting a street, but not closer to a lot line than fifteen (15) feet, provided it shall be visually screened from adjoining property in accordance with the screening provisions of Section 918.03.
- (5) An Institutional Master Plan must be approved by Planning Commission prior to the review of the Conditional Use Application.

91. Outdoor Retail Sales and Service (Primary Use).

Outdoor Retail Sales and Service (Primary Use) shall be subject to the following standards:

- (a) The applicant shall obtain a license pursuant to Chapter 719, Vendors and Peddlers, if applicable, however the license is not required prior to issuance any required zoning approval;
- (b) The applicant shall provide and have available sufficient on-site space to accommodate a standing area for customers purchasing or attempting to purchase goods and service without encroaching on the public right-of-way or adjacent property; and
- (c) The applicant shall provide sufficient trash receptacles for wrappers, containers and other disposable products associated with the sale of goods and service.

92. Firearms Business Establishment.

Firearms Business Establishment shall be subject to the following standards in the NDI, UNC, HC, GI, UI, GT, and RIV Districts:

- (a) Firearms Business Establishments shall not be located in a designated area that contains any of the following uses. The building shall not be located within a distance of five hundred (500) feet, measured along a straight line projected from each pedestrian entrance or exit of the subject occupancy to the nearest building wall or boundary line for a park or playground of any of the following:

- (1) Elementary or secondary school;
 - (2) Public playground;
 - (3) Public or non-profit operated recreation center;
 - (4) Drug or alcohol rehabilitation center;
 - (5) Church, synagogue, or temple;
 - (6) Gaming enterprise.
- (b) An adequate security system shall be provided as determined by the Board to be appropriate.

93. Check Cashing.

The following standards shall apply to all Check Cashing uses:

- (a) Check Cashing facilities shall not be open for business to customers for more than nine (9) hours within any twenty-four-hour period and shall not be open for business on Sundays;
- (b) The building housing a Check Cashing facility shall not be located within five hundred (500) feet from any residential use as measured from the center point of the subject building;
- (c) The building housing a Check Cashing facility shall not be located within one thousand (1,000) feet from another Check Cashing facility, a Pawn Shop, Gaming Enterprise or a facility containing mechanical or electronic devices, machines, tables or apparatus of any kind used for playing games of skill or amusement, as a primary or accessory use, as measured from the center point of the subject building;
- (d) A Check Cashing use shall not be conducted as a unit of another business and shall be financed and conducted as a separate business unit, however, this shall not prevent a check cashing facility from leasing part of the premises of another business for the conduct of check cashing activities on the same premises;
- (e) A Check Cashing facility may not accept money or currency for deposit or act as agent for persons, firms, partnerships, associations or corporations to hold money or currency in escrow for others for any purpose, however, a check cashing facility may act as agent for the issuer of money orders or travelers checks;
- (f) The applicant is required to be licensed as a Check Cashier with the Commonwealth of Pennsylvania Department of Banking;
- (g) Not more than one (1) place of business may be operated under the same Commonwealth of Pennsylvania Department of Banking license;
- (h) A licensee may not contract with another individual or business entity to manage the Check Cashing facility, not including persons employed to operate the facility;

- (i) Check cashing facilities shall not issue tokens to be used in lieu of money for the purchase of goods or services from any enterprise;
- (j) The use of bars, chains, or similar security devices that are visible from a public street or sidewalk shall be prohibited.

94. Custodial Care Facility.

Custodial Care Facilities shall be subject to following standards in all districts:

- (a) An Operation Management Plan for the proposed use shall be submitted as part of the application for the Occupancy Permit. The Plan shall describe programs of operation and management including: Uses and activities that will occur in conjunction with the use, hours of operation of non-residential services, noise control, traffic generation, and methods to minimize loitering in the vicinity of the facility. In addition, a Communications Plan that describes how the provider will communicate with local community, neighborhood, and business organizations, and with adjacent neighbors on a regular basis, and how any community issues or concerns will be addressed;
- (b) The dwelling unit shall have one (1) primary means of ingress/egress, a single outside mail box, single utility connections (except for telephone, computer and cable service), and common eating/cooking areas;
- (c) The use shall not require alteration to the exterior structure except where otherwise permitted for single-family residential dwellings or where required under health/safety codes;
- (d) Lot area shall be provided at the rate of five thousand (5,000) square feet plus five hundred (500) square feet for each sleeping room in excess of three (3) beds. Every unit of two (2) beds, or fraction hereof, in a sleeping room shall be counted as a separate sleeping room. The Board may reduce this provision when the use has been in existence since May 10, 1958;
- (e) Supervision shall be provided in accord with the regulations of the certifying agency(ies) by at least one (1) responsible non-client adult available on the premises on a twenty-four-hour a day basis while any of the clients are on premises;
- (f) Sleeping rooms shall not be located in any basement or cellar and shall comply with all applicable life-safety codes; and
- (g) On-site parking facilities shall be provided at the ratio of one (1) stall for every two (2) full-time staff members and an additional stall for every three (3) non-staff members who are eligible and permitted by the operator to operate a motor vehicle.

95A. Personal Care Residence (Large).

Personal Care Residence (Large) uses shall be subject to the following standards:

- (a) Lot area shall be provided at the rate of five thousand (5,000) square feet plus three

hundred (300) square feet for each sleeping room in excess of three (3). Every unit of two (2) beds, or fraction thereof, in a sleeping room shall be counted as a separate sleeping room. This provision may be reduced by the Board when the facility is to be located in a building that has been constructed prior to May 10, 1958;

- (b) Any Personal Care Residence shall be spaced no closer than eight hundred (800) feet from any other authorized Personal Care Residence or health care related facility. This distance shall be measured imposing a circular area on an accurate plan by locating a point on the center of the subject building and by extending a radius of eight hundred (800) feet. Any other building occupied as an authorized Personal Care Residence that is located totally within this circular space shall be cause for rejection the application;
- (c) Supervision shall be provided in accord with the regulations of the certifying agency(ies) and by at least one (1) responsible non-client adult available on the premises on a twenty-four-hour-a-day basis while any of the clients are on the premises. Failure to abide by the certifying body's supervision regulations may result in revocation of an Occupancy Permit;
- (d) Sleeping rooms shall not be located in any basement or cellar and shall comply with all applicable life-safety codes;
- (e) New buildings shall be situated within the buildable area of the lots as determined by the zoning district regulations; however, the minimum interior side yard setback in residential districts shall be not less than ten (10) feet;
- (f) On-site parking facilities shall be provided at a ratio of one (1) stall for every two (2) full-time staff members and an additional stall for every three (3) non-staff residents who are eligible and are permitted by the operator to operate a motor vehicle;
- (g) The Approving Body shall determine that the proposed use shall not create detrimental impacts to the community taking into consideration the relationship of the proposed use with the surrounding structures, the arrangement, illumination and enclosure of parking facilities, the location and enclosure of trash facilities, the type of signage and that adequate provisions are made for continuing maintenance of the buildings and grounds; and
- (h) Eighty (80) percent of the clients shall be sixty-two (62) or more years of age or disabled as defined by the Fair Housing Amendment Act of 1988.

95B. Personal Care Residence (Small).

Personal Care Residence (Small) uses shall be subject to the following standards:

- (a) In all Districts:

Personal Care Residences (Small) shall be subject to the following standards in all districts:

- (i) Lot area shall be provided at the rate of five thousand (5,000) square feet plus three hundred (300) square feet for each sleeping room in excess of three (3). Every unit of two (2) beds, or fraction thereof, in a sleeping room shall be counted as a separate sleeping room. The Board may reduce this provision when the facility is to be located in a building that has been constructed prior to May 10, 1958;
 - (ii) Any Personal Care Residence shall be spaced no closer than eight hundred (800) feet from any other authorized Personal Care Residence or health care related facility. This distance shall be measured imposing a circular area on an accurate plan by locating a point on the center of the subject building and by extending a radius of eight hundred (800) feet. Any other building occupied as an authorized Personal Care Residence that is located totally within this circular space shall be cause for rejection of this application;
 - (iii) Supervision shall be provided in accord with the regulations of the certifying agency(ies) and by at least one (1) responsible non-client adult available on the premises on a twenty-four-hour-a-day basis while any of the clients are on the premises. Failure to abide by the certifying body's supervision regulations may result in revocation of an Occupancy Permit;
 - (iv) Sleeping rooms shall not be located in any basement or cellar and shall comply with all applicable life-safety codes;
 - (v) New buildings shall be situated within the buildable area of the lots as determined by the zoning district regulations; however, the minimum interior side yard setback in residential districts shall be not less than ten (10) feet;
 - (vi) On-site parking facilities shall be provided at a ratio of one (1) stall for every two (2) full-time staff members and an additional stall for every three (3) non-staff residents who are eligible and are permitted by the operator to operate a motor vehicle; and
 - (vii) Eighty (80) percent of the clients shall be sixty-two (62) or more years of age or disabled as defined by the Fair Housing Amendment Act of 1988.
- (b) In RM and Grandview Public Realm Districts. In addition to the standards listed above, Personal Care Residences (Small) shall be subject to the following standards in the RM and Grandview Public Realm Districts:
- (i) The facility shall be designed to appear as a residential structure, and parking shall be located and screened so as to not be visible from adjacent properties or right-of-way;
 - (ii) The required lot area shall be determined using the lot area requirements for residential dwelling units, allowing two (2) beds for each dwelling unit;
 - (iii) The Approving Body shall determine that the proposed use shall not create detrimental impacts to the community taking into consideration the relationship of the proposed use with the surrounding structures, the

arrangement, illumination and enclosure of parking facilities, the location and enclosure of trash facilities, the type of signage and that adequate provisions are made for continuing maintenance of the buildings and grounds; and

- (iv) Eighty (80) percent of the clients shall be sixty-two (62) or more years of age or disabled as defined by the Fair Housing Amendment Act of 1988.
- (c) In NDO, LNC, NDI, and UNC Districts. Personal Care Residences (Small) shall be subject to the following standards in the NDO, LNC, NDI, and UNC District:
 - (i) The Approving Body shall determine that the proposed use shall not create detrimental impacts to the community taking into consideration the relationship of the proposed use with the surrounding structures, the arrangement, illumination and enclosure of parking facilities, the location and enclosure of trash facilities, the type of signage and that adequate provisions are made for continuing maintenance of the buildings and grounds, and
 - (ii) Eighty (80) percent of the clients shall be sixty-two (62) or more years of age or disabled as defined by the Fair Housing Amendment Act of 1988.

96. Bank or Financial Institutional (Limited and General).

- (a) In EMI Districts. Bank or Financial Institution (Limited and General) uses shall be subject to the following standards:
 - (1) Parking demand shall be addressed so as to meet parking needs and to discourage parking in residential districts;
 - (2) The proposed use shall be subject to the Site Plan Review procedures of Section 922.04.

97. Pawn Shop.

The following standards shall apply to all Pawn Shop uses:

- (a) Pawn Shop facilities shall not be open for business to customers for more than nine (9) hours within any twenty-four-hour period and shall not be open for business on Sundays;
- (b) The building housing a Pawn Shop facility shall not be located within five hundred (500) feet from any residential use as measured from the center point of the subject building;
- (c) The building housing a Pawn Shop facility shall not be located within one thousand (1,000) feet from another Pawn Shop, a Check Cashing facility, Gaming Enterprise or a facility containing mechanical or electronic devices, machines, tables or apparatus of any kind used for playing games of skill or amusement, as a primary or accessory use, as measured from the center point of the subject building;
- (d) The use of bars, chains, or similar security devices that are visible from a public street or sidewalk shall be prohibited.

98. Controlled Substance Dispensation Facility.

Controlled Substance Dispensation Facility uses shall be subject to the following standards in all Zoning Districts:

- (a) The building or structure housing or enclosing a Controlled Substance Dispensation Facility shall not be established or operated within five hundred (500) feet from any of the following structures or use types, except when such facilities are within and interior to Hospitals in the EMI District, where Controlled Substance Dispensation Facility is a permitted use:
 - (1) Residential uses;
 - (2) School, Elementary or Secondary;
 - (3) Parks and Recreation;
 - (4) Child Care;
 - (5) Dormitory;
 - (6) Religious Assembly;
 - (7) Public Destination Facility;
 - (8) College or University campus;
 - (9) Educational Classroom Space;
 - (10) Vocational School; and
 - (11) Libraries.
- (b) The approving body shall determine that such use will not create detrimental impacts on the surrounding properties, taking into consideration probable traffic generation and the physical relationship of the proposed use and structure to surrounding uses and structures, the probable hours of operation, the impacts of parking and the number of people using the premises at any one (1) time.
- (c) The facility shall include interior public lobbies or waiting areas sized to accommodate any and all individuals seeking treatment at any one (1) time.

99. Medical Marijuana Dispensary.

Medical Marijuana Dispensary uses shall be subject to the following standards:

- (a) Off-street parking, loading, and hours of operation shall be conducted in a manner that does not interfere with other uses in the vicinity.

100. Medical Marijuana Growing and Processing.

Medical Marijuana Growing and Processing uses shall be subject to the following standards:

- (a) All uses shall be conducted within a completely enclosed building and shall create no external visible sign of the operation, such as noise, smoke, vibration, or any other factor; and
- (b) Off-street parking, loading, and hours of operation shall be conducted in a manner that does not interfere with any industrial operations in the vicinity.

101. Interim Housing.

Interim Housing uses shall be subject to the following standards in all permitted Zoning Districts:

- a. The applicant shall hold a Development Activities Meeting if the proposed project meets one or more of the criteria in Section 178E.08.
- b. Applications for Interim Housing uses shall describe programs of operation and management including but not limited to:
 - i. Site layout and access;
 - ii. Location and type(s) of living arrangements;
 - iii. Bathroom and dining facilities;
 - iv. Storage areas; and
 - v. Wrap-around services.
- c. The Approving Body shall determine that the entity operating the Interim Housing use has the capability and plan to adequately address the items detailed in Section 911.04.A.101(b).
- d. The Approving Body may waive underlying zoning to allow for exceptions to underlying zoning standards provided that the use standards of this Section 911.04.A.101 are adequately addressed.
- e. Interim Housing Uses shall meet all applicable Fire, Building Code, Health Department, and Public Safety requirements.

102. Waste Transfer Station.

- 1. All waste shall be contained and managed within a completely enclosed facility.
- 2. The RIV-GI Buffer requirements of Section 905.04.J.2.d shall apply to all boundaries of the subject Zoning Lot regardless of whether the boundary is another RIV-GI district. The Approving Body may waive some or all of these requirements if it determines that screening is not necessary where abutting property is another industrial use.
- 3. Any buildings housing waste transfer stations shall be located at least five hundred (500) feet from the following uses or zoning districts, defined by a radius of 500 feet from the property lines of the proposed facility:

- a. All residential zoning districts;
 - b. Local Neighborhood Commercial (LNC);
 - c. Urban Neighborhood Commercial (UNC);
 - d. Highway Commercial (HC);
 - e. Elementary or Secondary School; or
 - f. Parks and Open Space (P).
4. A Transportation study shall be provided that shows vehicles operating in service of the use will be routed to cause the least feasible impact on surrounding residential and commercial uses.
 5. Applicant shall submit an operations plan for review and approval by relevant city agencies, that shall include but is not limited to hours of operation and vehicle routing.
 6. The use shall not be located in any Identified Floodplain Area (Section 906.02.E.2).
 7. The use shall be in compliance with all state permitting and the State Department of Environmental Protection.
 8. The Approving Body shall determine that such use will not create detrimental impacts on surrounding properties, taking into consideration the probable traffic generation, the physical relationship of the proposed use and structure to the surrounding uses and structures, the probable hours of operation, the design and location of areas for parking and maneuvering of vehicles, and the emission of odors, fumes, dust, noise, vibration, or glaring light.
103. 103. Retail: Tobacco, Inhalant, and Cannabinoids. Retail: Tobacco, Inhalant, and Cannabinoids use shall be subject to the following standards:
- (a) Shall not be located within 1,000 feet of any Elementary or Secondary School, measured from parcel line to parcel line.
 - (b) Shall not operate between the hours of 11:00 p.m. and 9:00 a.m.
 - (c) No self-service sales shall be permitted.

CHAPTER 912 Accessory Uses and Structures

§ 912.01. Accessory Uses and Structures in General. [Ord. No. 12-2010, § 1, eff. 5-13-2010]

Primary uses specified as permitted by-right, Administrator Exceptions, Special Exceptions or Conditional Uses shall be deemed to include accessory uses, activities and structures. An accessory use or structure must:

- A. Be subordinate to and serve the primary use or structure;
- B. Be subordinate in area, extent and purpose to the primary use or structure served;
- C. Contribute to the comfort, convenience or necessity of occupants of the primary use or structure served; and
- D. Be located on the same zoning lot and in the same zoning district as the primary use.

Accessory uses and activities shall be subject to the same regulations as apply to primary uses in each district, except as otherwise provided in these regulations.

§ 912.02. Residential Accessory Uses and Structures. [Ord. 21-2002, § 8, eff. 6-18-2003; Ord. 36-2005, § 1, eff. 12-14-2005; Ord. No. 12-2010, § 1, eff. 5-13-2010; Ord. No. 5-2023, § 1, 5-22-2023; Ord. No. 34-2025, eff. 11-19-2025]

The following accessory uses, activities and structures shall be permitted by-right in Residential and H Districts:

- (1) Dumpsters;
- (2) Fences, walls and retaining walls, provided that the finished side faces adjacent property;
- (3) Gardens;
- (4) Garages used exclusively for the parking of non-commercial automobiles, or for the temporary keeping of small pleasure boats with trailer mounts therefore, other wheeled vehicles designed to be drawn by passenger automobiles, normal household paraphernalia and the like;
- (5) Carports and off-street parking areas;
- (6) Gates and guard houses;
- (7) Storm shelter and fallout shelters;
- (8) Home occupations, subject to § 912.05;
- (9) Playhouses, patios, cabanas, porches, decks, gazebos and incidental household storage buildings;
- (10) Radio and television receiving antennas and support structures, including satellite dishes less than thirty-two (32) inches in diameter;

- (11) Swimming pools and other recreational and play facilities for the use of residents;
- (12) Solar energy systems;
- (13) Extensive Green Roofs as described in § 912.04.I;
- (14) Intensive Green Roofs as described in § 912.04.J;
- (15) HVAC and similar equipment;
- (16) Outdoor Retail Sales and Service accessory to Agriculture, Community Center (Limited); Parks and Recreation (Limited); Religious Assembly; School, Elementary or Secondary; and
- (17) Other necessary and customary uses determined by the Zoning Administrator to be appropriate, incidental and subordinate to the primary use on the lot.

§ 912.03. Nonresidential Accessory Uses and Structures. [Ord. 32-2002, § 1, eff. 11-12-2002; Ord. 36-2005, § 1, eff. 12-14-2005; Ord. No. 12-2010, § 1, eff. 5-13-2010; Ord. No. 5-2023, § 1, 5-22-2023; Ord. No. 34-2025, eff. 11-19-2025]

The following accessory uses, activities and structures shall be permitted by-right in nonresidential districts:

- (1) Dumpsters;
- (2) Dwelling units, other than mobile homes, for security or maintenance personnel;
- (3) Fences, walls and retaining walls, provided that the finished side faces adjacent property and/or public rights-of-way;
- (4) Gates and guard houses;
- (5) Cafeterias, dining halls and similar food services when operated primarily for the convenience of employees, residents, clients, or visitors to the primary use;
- (6) Gift shops, news stands and similar commercial activities operated primarily for the convenience of employees, residents, clients, or visitors to the primary use;
- (7) Parking garages and off-street parking areas;
- (8) Radio and television receiving antennas and support structures, including satellite dishes less than thirty-two (32) inches in diameter;
- (9) Solar energy systems;
- (10) Extensive Green Roofs as described in § 912.04.I;
- (11) Intensive Green Roofs as described in § 912.04.J;
- (12) HVAC and similar equipment;
- (13) Outdoor Retail Sales and Services; and
- (14) Other necessary and customary uses determined by the Zoning Administrator to be

appropriate, incidental and subordinate to the primary use on the lot.

§ 912.04. Accessory Use and Structure Development and Operational Standards. [Ord. 28, 12-17-2000/Amend. U-25; Ord. 38-2003, eff. 12-31-2003; Ord. 36-2005, § 1, eff. 12-14-2005; Ord. 40-2005, § 1A, eff. 12-30-2005; Ord. No. 12-2010, § 1, eff. 5-13-2010; Ord. No. 33-2016, § 2, eff. 12-13-2016; Ord. No. 57-2021, § 1, eff. 12-27-2021; Ord. No. 58-2021, § 3, eff. 12-27-2021; Ord. No. 5-2023, § 1, 5-22-2023]

The following standards shall apply to all accessory uses and structures unless otherwise specifically provided. For exceptions to these standards, see Chapter 925.

- A. Front Setback. Accessory structures shall comply with the front setback and front yard standards that apply to primary uses, except as allowed in Section 925.06.A or as an Administrator's Exception in Section 925.06.G. (See Section 925.06)
- B. Rear Setback. Accessory structures and uses shall not be required to comply with the rear setback standard that applies to principal uses, except as allowed in Section 925.06.A or as an Administrator's Exception in Section 925.06.G. Accessory structures and uses shall be set back at least five (5) feet from the rear lot line when the rear lot line is not adjacent to a way. Accessory structures and uses may be set back at least two (2) feet from the rear lot line when the rear lot line is adjacent to a way.
- C. Side Setbacks. Accessory structures and uses shall comply with the side setback standards that apply to primary uses, and shall not be permitted in the side yard under the Contextual Setback provisions of Section 925.06.C, but shall be permitted in the side yard in accordance with Section 925.06.A or with the Administrator Exception provisions of Section 925.06.G.
- D. Setbacks from Easements. No accessory structure shall be located on any platted or recorded easement, or over any known utility.
- E. Height. No accessory structure shall exceed fifteen (15) feet or one (1) story in height in a residential zoning district or twenty (20) feet in height in a nonresidential zoning district.
- F. Building Separation. Unless attached to the primary structure, accessory structures shall be located at least three (3) feet from a primary structure.
- G. Accessory Telecommunications Towers, Antennas, Stations, and Communication Facilities. In addition to the provisions and conditions in this Section, all building-mounted telecommunications Towers, Antennas, Stations and/or Communications Facilities are subject to and shall comply with all the applicable provisions and conditions in Section 911.04.A.13, Section (a) of this Zoning Code and shall be located and designed as follows:
 - 1. Roof mounted Towers, Antennas, Stations and/or Communications Facilities shall be located no closer than five (5) feet to the nearest edge of the roof;
 - 2. Wall-mounted Towers, Antennas, Stations and/or Communications Facilities are prohibited under forty (40) feet from existing grade;
 - 3. Wall-mounted Towers, Antennas, Stations and/or Communications Facilities forty (40) feet or higher above grade may be approved by and Administrator's Exception (Section

- 922.08). The Zoning Administrator's review will be limited to requiring that the Towers, Antennas, Stations and/or Communications Facilities be compatible with the architecture of the building and its surroundings, the character of the neighborhood, and sensitivity to the skyline;
4. New concealed, stealth or camouflaged Towers, Antenna, DAS or Alternative Antenna Support Structures which are designed to blend in with the surroundings, including but not limited to, Antennas located in a structure such as a church steeple, or bell tower but which are not noticeable to the reasonable observer, and Antennas disguised as things such as trees, flagpoles, chimneys, grain silos or anything consistent with the surroundings, may be exempt from setback requirements, and shall be subject to Design Review and Site Plan Review approval.
 5. (Reserved)
 6. (Reserved)
 7. The applicant shall adhere to the requirements of Section 911.04.A.13(a)(8) of this Zoning Code pertaining to application submissions and said applicant shall demonstrate to the satisfaction of the Zoning Administrator that there are valid considerations, including physical constraints or technological feasibility, for the location of additional Towers, Antennas, Stations, Communications Facilities and/or panels on existing Tower, Antenna, Station and/or Communications Facility structures. The information submitted by the applicant shall include a map of the area to be served by the proposed Towers, Antennas, Stations, Communications Facilities and/or panels, the relationship of the proposed Tower, Antenna, Station, Communications Facility and/or panel to other Towers, Antennas, Stations, Communications Facilities and/or panels, and any information required by the Zoning Administrator;
 8. All obsolete, damaged, or unused Towers, Antennas, Stations and/or Communications Facilities shall be removed within sixty (60) days of cessation of use. In the event obsolete, damaged, or unused Towers, Antennas, Stations and/or Communications Facilities are not removed within sixty (60) days of cessation of use, then Sections 911.04.A.13(a)(9)—(11) of this Zoning Code will apply, in addition to any other remedy available to the City;
 9. No Towers, Antennas, Stations and/or Communications Facilities located in an R1D, R1A, R2-L, RM, GPR, P or H Zoning District shall exceed fifteen (15) feet in height;
 10. No Towers, Antennas, Stations and/or Communications Facilities located in an NDO, LNC, NDI, UNC, HC, OPR, GI, UI, EMI, GT, or DR Zoning District shall exceed twenty (20) feet in height.
- H. Dumpsters. All dumpsters must have a minimum six-foot screen wall and landscaping must be provided. The Zoning Administrator must approve material for the wall and plantings.
- I. Extensive Green Roofs. Extensive Green Roofs are lightweight veneer systems of thin layers of drought tolerant self-seeding vegetated roof covers.
- (1) Extensive Green Roofs permitted by-right shall not have more than five (5) inches of

soil medium.

- (2) All Extensive Green Roofs shall have at least a one (1) foot perimeter of vegetation-free zone around the edges of the roof and around all roof penetrations (i.e. skylights, pipes, etc).
- J. Intensive Green Roofs. Intensive Green Roofs are heavier than Extensive Green Roofs. For the purposes of this Code the term means any Green Roof with soil mediums greater than five (5) inches.
- (1) All Intensive Green Roofs shall have at least a one (1) foot perimeter of vegetation free zone around the edges of the roof and around all roof penetrations (i.e. skylights, pipes, etc.).
- K. Fences and Walls. Fences; walls; hedges and landscaping architectural features; and similar features shall be permitted in all districts and shall be subject to the Materials and Methods and Opacity Standards in Section 918.03.B.1, and the standards below, unless otherwise stated.
- (1) In front or side yards where the fence extends closer to a street than the primary structure, only open and ornamental fences are permitted, and shall be no taller than four (4) feet in height;
 - (2) In all other instances, fences, walls, and similar features are permitted within required setbacks to a height of six (6) feet and may be opaque;
 - (3) Fences that do not comply with the height standards above may be reviewed and approved in accordance with the Administrator Exception procedures of Section 922.08 subject to the following standards:
 - a. No fence or wall shall exceed a height of one (1) foot in addition to what is permitted in the standards above; and
 - b. The exception shall not have a detrimental impact on adjacent, impacted, properties or streets.
 - (4) In the GI District opaque fences up to six (6) feet are permitted in front or side yards;
 - (5) Fences and walls in the RIV District are permitted subject to Section 905.04.H.1; and
 - (6) Barbed wire and razor edge are not permitted in any district.
- L. Parking Pads and Garages for Residential Uses with Fewer than five (5) Spaces. Parking pads and garages for residential uses that do not exceed four (4) spaces and do not comply with the setback standards for accessory uses and structures may be approved subject to the standards below.
- (1) Parking pads and garages shall be permitted in setbacks in side and rear yards;
 - (2) In exterior side yards, parking pads and garages shall not be closer to the street than the primary structure;

- (3) In front yards, parking pads and garages shall be set back five (5) feet from the front of the primary structure;
- (4) Runoff shall be contained on-site and directed away from abutting properties; and
- (5) Parking pads shall provide enough area to reasonably accommodate the parking spaces provided, using Section 914.09.H for guidance, and in no case shall be smaller than the minimum standards for compact-size parking stalls. Parking spaces must be provided on-site without encroaching on public rights-of-way or neighboring properties unless legal access has been granted through easements or similar measures.

M. Drive-Through Uses.

1. Drive-through uses shall be permitted by-right in the HC, Highway Commercial Zoning District, and subject to the following standards:
 - a. The applicant shall provide a transportation impact study, based on an approved transportation scoping form, prepared by a qualified transportation engineer, for review and approval by the Department of Mobility and Infrastructure. The applicant shall implement any required mitigation from the detrimental impacts of the drive through use, as determined in the approved transportation impact study.
2. Drive-through uses shall be permitted as a Special Exception in the GI, General Industrial Zoning District, and subject to the following standards:
 - a. The applicant shall provide a transportation impact study, based on an approved transportation scoping form, prepared by a qualified transportation engineer, for review and approval by the Department of Mobility and Infrastructure. The applicant shall implement any required mitigation from the detrimental impacts of the drive through use, as determined in the approved transportation impact study.
 - b. The Zoning Board of Adjustment shall determine that such use will not create detrimental impact on surrounding properties, taking into consideration transportation-related impacts, and the physical relationship of the proposed use and structure to the surrounding businesses and uses.

§ 912.05. Home Occupations. [Ord. No. 4-2024, § 3, eff. 2-27-2024]

- A. Purpose. The home occupation standards of this section are intended to permit the establishment of incidental and accessory home occupation uses while ensuring their compatibility with the character of residential neighborhoods. They are intended to permit residents to engage in home occupations that are compatible with residential uses and to ensure that home occupations do not adversely affect the land use character of residential areas.
- B. Standards. The following standards shall apply to Home Occupations except for accessory in-home Child Care for three (3) or few children where the home is the primary residence of the child care provider:
 1. Employees. Only individuals who are residents of the dwelling unit may be engaged in

the home occupation.

2. **Exterior Appearance.** There shall be no change in the exterior appearance of the dwelling unit that houses the home occupation, and there shall be no visible evidence of the conduct of a home occupation when viewed from the street right-of-way or from an adjacent lot. This provision shall be interpreted as specifically prohibiting signs (except those required by licensing regulations See Section 919.03.L for regulations pertaining to signs and Home Occupations), equipment storage, sales displays and vehicles with more than two (2) axles, unless completely shielded from view of adjacent property.
 3. **Traffic.** A home occupation shall not generate more than six (6) one-way vehicle trips (trip-ends) per twenty-four-hour day.
 4. **Building Additions and Entrances.** No building addition or building entrance visible from the street shall be permitted for the purpose of accommodating a home occupation.
 5. **Nuisances.** No equipment used in conjunction with a home occupation shall cause odor, vibration, noise, electrical interference or fluctuation in line voltage that is perceptible beyond the lot line of the lot upon which the home occupation is conducted. Home occupations shall comply with the Operational Performance Standards of Chapter 917.
 6. **Parking.** Any parking necessary to accommodate a home occupation shall be provided off-street. No required setback or yard area, other than in a pre-existing parking area, may be used to accommodate a home occupation's off-street parking.
- C. **Prohibited Home Occupations.** Home occupations that do not comply with all of the standards of this Code shall be prohibited. The following uses and activities shall specifically be prohibited as home occupations:
1. Auto and other vehicle repair;
 2. Any use that is only allowed in the NDI, GI or UI Districts shall not be allowed as a home occupation;
 3. Contractor's equipment or vehicle storage yards; and
 4. Firearms.
- D. **Occupancy Permits.** Occupancy permits shall be required prior to the establishment of a home occupation. An occupancy permit for a home occupation use shall be issued only to the resident of the dwelling unit that houses the home occupation. Home occupation occupancy permits shall not be transferable and shall not run with the land; they shall terminate upon sale or transfer of the property to a new owner or tenant.
- E. **Limitation on Natural Expansion.** Permits under this subsection shall not include or imply any right to expand beyond the limits provided by this Code. Applications for a home occupation permit shall include an explicit waiver by the application of any right of "natural expansion" or other right to expand beyond those limits.

§ 912.06. Outdoor Retail Sales and Service (Accessory Use). [Ord. 23-2001, § 3, eff.

11-30-2001; Ord. No. 34-2025, eff. 11-19-2025]

Outdoor retail sales and service means the sale of goods and services, including food items, situated outdoors on property other than public rights-of-way, wherein the sale of goods and services is subordinate to the use specified in the certificate of occupancy for the existing establishment or property located on the zoning lot.

A. Standards. (Accessory Use). Outdoor retail sales and service (accessory use) shall be subject to the following standards:

- (1) The applicant shall obtain a license pursuant to and follow all requirements outlined in Chapter 719, Vendors and Peddlers if applicable; and
- (2) Sufficient on-site space to accommodate a standing area for customers purchasing or attempting to purchase goods and service without encroaching on the public right-of-way or adjacent property shall be provided;
- (3) Sufficient trash receptacles for wrappers, containers and other disposable products associated with the sale of goods and service shall be provided.
- (4) Operators must meet all of the above standards, even if a Record of Zoning Approval is not required.

§ 912.07. Urban Agriculture (Accessory Use). [Ord. No. 1-2011, § 3, eff. 2-14-2011; Ord. No. 25-2015, § 3, eff. 7-9-2015]

The Urban Agriculture standards of this Section are intended to permit the growing and off-site selling of legal agricultural products on properties throughout the City of Pittsburgh, and are permitted by right for Urban Agriculture (Accessory Use) With Animals. The property owner need not apply for any type of permit if the sole intent of growing crops is for personal/non-commercial use.

A. Urban Agriculture (Accessory Use) With No Animals. Urban Agriculture (Accessory Use) applications which do not include the housing of chickens, ducks, goats or honeybees shall be subject to the following standards:

- (1) The sale of non-mechanical agricultural and farm products that are grown, used, produced on-site, or are part of an affiliated Community Supported Agriculture program shall be permitted only in non-residential districts, and shall comply with the standards of Section 912.06, Outdoor Retail Sales and Service (Accessory Use);
- (2) All seed, and fertilizer, shall be stored in a secured, rodent-proof container and housed within an enclosed structure;
- (3) All applications shall be subject to the Environmental Overlay District regulations of Chapter 906;
- (4) All applications shall include a detailed plot plan with scaled representation of all proposed structures and uses; and
- (5) Signage shall not be permitted.

B. Urban Agriculture (Accessory Use) With Animals. Urban Agriculture (Accessory Use) applications for the housing of chickens, ducks, goats, and honeybees shall be authorized as permitted by right and shall be subject to the following standards:

- (1) The sale of non-mechanical agricultural and farm products that are grown, used, produced on site, or are part of an affiliated Community Supported Agriculture program shall be permitted only in non-residential districts, and shall comply with the standards of Section 912.06, Outdoor Retail Sales and Service (Accessory Use);
- (2) All applications shall be subject to the Environmental Overlay District regulations of Chapter 906;
- (3) All applications shall include a detailed plot plan with scaled representation of all proposed structures and uses;
- (4) Signage shall not be permitted;
- (5) All seed, fertilizer, and animal feed shall be stored in a secured, rodent-proof container and housed within an enclosed structure;
- (6) All structures related to the housing of chickens or ducks shall be at least six (6) square feet in size and a minimum of two (2) square feet per additional chicken or duck. The structure shall be covered, well ventilated, dry, predator resistant, and properly maintained to prevent accumulations of animal excrement;
- (7) Roosters are not permitted;
- (8) For property with a minimum of two thousand (2,000) square feet in size, the resident is permitted five (5) chickens or ducks. For every additional one thousand (1,000) square feet of property, the resident is permitted one (1) additional chicken or duck, with no other livestock for lots under ten thousand (10,000 square feet).
- (9) For property with a minimum of two thousand (2,000) square feet in size, the resident is permitted to keep two (2) beehives. For every additional two thousand (2,000) square feet of property, the resident is permitted two (2) additional beehives;
- (10) All structures necessary for and related to the housing of honeybees shall be subject to any required setbacks of the underlying zoning district, and shall otherwise be set back at least ten (10) feet from any property line;
- (11) A "flyway barrier" of at least six (6) feet in height shall be provided at all places on the property line that are within twenty (20) feet of the hive(s). The "flyway barrier" shall consist of a solid fence or wall, dense vegetation, or combination thereof. No flyway is required for hives that are located on porches or balconies at least ten (10) feet above grade, except where such porch or balcony is located less than five (5) feet from a property line.
- (12) Roof-mounted beehives shall be located on primary and accessory structures no lower than ten (10) feet from grade and shall not be within the required setback;
- (13) For property between two thousand (2,000) square feet and ten thousand (10,000

square feet in size, the resident is permitted to keep no more and no less than two (2) dehorned, adult, female or neutered male, miniature goats (and offspring less than twelve (12) weeks old) with no other livestock;

- (14) For property with a minimum of ten thousand (10,000) square feet in size, the resident is permitted two (2) dehorned, adult female or neutered male goats. For every additional five thousand (5,000) square feet of property, the owner is permitted one (1) additional dehorned, adult, female or neutered male, goats;
- (15) All animal structures and roaming areas shall be kept sanitary and free from accumulations of animal excrement and objectionable odor;
- (16) Outdoor roaming areas for chickens, ducks or goats shall be sufficiently enclosed and screened from the street and neighboring properties to protect them from vehicular traffic, and other predators, and serve to contain the chickens or ducks on the property, and to minimize external impacts of the outdoor roaming areas;
- (17) The keeping of chickens, ducks or goats shall be permitted only where there is an occupied residence.

§ 912.08. Accessory Dwelling Unit Overlay District. [Ord. No. 32-2018, § 1, eff. 9-10-2018]

- A. Intent. It is the intent of this Section to permit the construction and operation of Accessory Dwelling Units, as defined in Section 912.08.D, in certain districts.
- B. Time Limit. An interim Accessory Dwelling Unit Overlay District shall be in effect for twenty-four (24) months from the effective date. The Accessory Dwelling Unit Overlay District may be made permanent prior to the expiration of the interim Accessory Dwelling Unit Overlay District.
- C. Adoption. Adoption of both a Preliminary and Permanent Accessory Dwelling Unit Overlay District shall be in accordance with the Zoning Map and Text Amendment Procedures of Section 922.05.
- D. Special Definitions.
 - 1. Accessory Dwelling Unit Overlay District means a district which is geographically coincidental with one (1) or more districts or portions of districts as defined on the Zoning District Map, where Accessory Dwelling Units are permitted subject to the standards of this Chapter of the Zoning Ordinance, on an interim or permanent basis.
 - 2. Accessory Dwelling Unit means a dwelling unit smaller than 800 square feet in area, which is accessory to a structure with a legally established single dwelling unit. An Accessory Dwelling Unit may be an independent dwelling unit within a primary structure, a detached structure, or a dwelling unit located within an existing accessory structure.
- E. Standards.
 - 1. The requirements of this Section shall apply to both interim and permanent Accessory Dwelling Unit Overlay Districts;

2. No Accessory Dwelling Unit may be leased for a period shorter than thirty (30) days;
3. No more than one (1) Accessory Dwelling Unit may be located on a zoning lot;
4. The owner of a property with an Accessory Dwelling Unit must reside on-site;
5. Accessory Dwelling Unit shall not exceed two (2) stories, or thirty (30) feet in height;
6. Accessory Dwelling Unit shall be exempt from the minimum lot size and minimum lot size per unit requirements of the underlying zoning district;
7. Aside from the provisions of Section 912.08.E.5 and Section 912.08.E.6, Accessory Dwelling Units shall comply with the development standards of the underlying zoning district and other applicable requirements of the Code, except for the minimum lot size per unit requirement;
8. Prior to the issuance of a Certificate of Occupancy for an Accessory Dwelling Unit, the Applicant shall record a deed restriction obliging current and future property owners to maintain compliance with Section 912.08.E and Section 912.08.E.d[4];
9. Accessory Dwelling Units shall be exempt from the on-site parking requirements of Section 914; and
10. Accessory Dwelling Units shall only be permitted as accessory to structures with no more than one (1) legally established residential dwelling unit.

CHAPTER 913
Use Exceptions and Conditions Not Listed in Use Table

§ 913.01. General.

The purpose of this chapter is to provide a complete listing and reference to all Administrator Exceptions, Special Exceptions and Conditional Uses which are not found within the Use Table of Chapter 911.

§ 913.02. Administrator Exceptions. [Ord. No. 31-2018, § 11, eff. 8-6-2018]

The following uses shall be allowed as Administrator Exceptions in accordance with the Review Procedures of Section 922.08.

- A. (Reserved)
- B. Undermined Area Overlay District.
 - 1. Single-Unit Dwellings (Section 906.05.B.2)
- C. Golden Triangle District.
 - 1. Limited Enlargement on a Lot not Complying with Urban Open Space Requirements (Section 910.01.E.1)
 - 2. Open Air Restaurant and Ice-Skating Rinks in Urban Open Space (Section 910.01.E.2)
- D. RIV North Shore District.
 - 1. Conversion of Existing Buildings to Museum Use (Section 910.02.E.1)
 - 2. Structures which Penetrate the Inclined Height Plane (Section 910.02.E.2)
- E. Parking Loading and Access Regulations.
 - 1. Review and Approval Procedure for Small Facilities (Section 914.07.D.1)
 - 2. Shared Parking (Section 914.07.G.1(a))
 - 3. Valet Parking (Section 914.07.G.1(b))
 - 4. Exceptions to Parking and Loading Area Dimensional Standards (Section 914.11.B.1)
 - 5. Exceptions to Off-Street Loading Schedule (Section 914.11.B.2)
 - 6. Shared and Off-Site Loading (Section 914.11.B.3)
 - 7. Exception to Off-Street Parking Requirements for Infill Housing (Section 914.11.B.4)
- F. Other Administrator Exceptions.
 - 1. Alternative Compliance to Landscaping and Screening Requirements (Section 918.06)
 - 2. Features Allowed Within Setbacks (Section 925.06.G)

§ 913.03. Special Exceptions. [Ord. 16-2002, § 1, eff. 6-4-2002; Ord. 44-2003, eff. 12-31-2003; Ord. No. 1-2011, § 4, eff. 2-14-2011; Ord. No. 31-2011, § 1, eff. 12-31-2011; Ord. No. 25-2015, § 4, eff. 7-9-2015; Ord. No. 58-2021, § 4, eff. 12-27-2021]

The following uses shall be allowed as Special Exceptions in accordance with the Review Procedures of Section 922.07.

A. Urban Neighborhood Commercial District.

1. Special Exception for Height (Section 904.04.C.4)

B. Public Realm District.

1. Height Exception in the Grandview Subdistrict B (Section 908.02.G.2(b))
2. Height Exception in the Grandview Subdistrict C (Section 908.02.G.3(b))
3. Special Exceptions in Grandview Public Realm District (Section 908.02.H)
4. Special Exception for Height in Oakland Subdistrict B/Craig Street (see Section 908.03.D.2(f)).
5. Special Exception for Height in Oakland Subdistrict C/Fifth/Forbes (see Section 908.03.D.3(f)).
6. Special Exception for Density (FAR) in Oakland Subdistrict C/Fifth/Forbes (see Section 908.03.D.3(g))
7. Special Exception for Height in Oakland Subdistrict D/Boulevard of the Allies (see Section 908.03.D.4.f).

C. Accessory Uses.

1. Special Exception for Employees to a Home Occupation (Section 912.05.B.1)
2. (Reserved)

D. Parking Loading and Access.

1. Review and Approval Procedure for Large Facilities (Section 914.07.D.2)
2. Off-Site Parking (Section 914.07.G.2(a))
3. Bicycle Parking (Section 914.07.G.2(b))
4. Transportation Management Plan (Section 914.07.G.2(c))
5. Transit Stops (Section 914.07.G.2(d))
6. Exception to Off-Street Parking Schedule (Section 914.11.A.1)
7. Parking Areas Accessory to Non-Conforming Uses (Section 914.11.A.2)

E. Special Exceptions.

1. Special Exception for Waiver of Residential Compatibility Standards (Section 916.09)
2. Waiver of Operational Performance Standards (Section 917.06)

F. (Reserved)

G. SP-6 Palisades Park.

- (a) Use Exceptions in SP-6 Palisades Park, Subdistrict A - Race Track (Section 909.01.K(a)(2))
- (b) Use Exceptions in SP-6 Palisades Park, Subdistrict B - Town Center (Section 909.01.K(b)(2))

H. Electronic Signs.

1. Electronic Advertising Signs (Section 919.02.C)
2. Electronic Non-Advertising Signs (Section 919.03.O)
3. Major Public Destination Facility Electronic Signs (Section 919.03.P.2(a))

§ 913.04. Conditional Uses. [Ord. No. 31-2011, § 2, eff. 12-31-2011; Ord. No. 31-2018, § 11, eff. 8-6-2018]

The following uses shall be allowed as Conditional Uses in accordance with the Review Procedures of Section 922.06.

A. Flood Plain Overlay District.

1. Uses Classified as Conditional Uses in the Underlying Zoning Districts (Section 906.02.G.2(a))
2. Development that May Endanger Human Life (Section 906.02.G.2(b))
3. Special Hazards (Section 906.02.G.2(c))

B. (Reserved)

C. Golden Triangle District.

1. Density and Intensity Transfers (Section 910.01.D.1)
2. Electronic Sign Messages (Section 910.01.D.2)

D. RIV North Shore District.

1. Density and Intensity Transfers (Section 910.02.D.1)
2. Electronic Sign Messages (Section 910.02.D.2)

E. Electronic Signs.

1. Major Public Destination Facility Large Video Displays (Section 919.03.P.2(b))

Article VI Development Standards

CHAPTER 914 Parking Loading and Access

§ 914.01. General.

A. Purpose. The purpose of these regulations is to:

1. Allow flexibility in addressing vehicle parking, loading, and access issues;
2. Present a menu of strategies to solve parking issues rather than parking space requirements;
3. Maintain and enhance a safe and efficient transportation system that is consistent with environmental goals and clean air; and
4. Ensure that off-street parking, loading, and access demands associated with new development will be met without adversely affecting other nearby land uses and surrounding neighborhoods.

B. Applicability.

1. New Development. The parking, loading and access standards of this chapter shall apply to any new building constructed and to any new use established, in accordance with the standards of this chapter.
2. Expansions and Alterations. The parking, loading and access standards of this chapter shall apply when an existing structure or use is expanded or enlarged. Additional offstreet parking and loading spaces shall be required only to serve the enlarged or expanded area, not the entire building or use.
3. Change of Occupancy. Off-street parking and loading facilities shall be provided for any change of occupancy or manner of operation that would, based on Parking Schedules A or B (Section 914.02.A and Section 914.02.B) or the Off-Street Loading Schedule of Section 914.10, result in a requirement for more parking or loading spaces than the existing or more recent use. Additional parking or loading spaces shall be required only in proportion to the extent of the change, not for the entire building or use.

C. No Reduction Below Minimums and No Increase Above Maximums. Existing parking and loading spaces shall not be reduced below the minimums required in this chapter, nor shall spaces be provided in excess of stated maximums. Any change in use that increases applicable offstreet parking or loading requirements shall be a violation of this code unless parking and loading spaces are provided in accordance with the provisions of this chapter.

D. Nonconforming Status. A use that was legally established prior to the adoption of this ordinance shall not be deemed nonconforming solely as a result of providing fewer than the minimum number or more than the maximum number of off-street parking or loading spaces established in Section 914.02.A or Section 914.02.B.

- E. Compliance with Zoning District Regulations. Unless otherwise specifically stated, off-street parking, loading and circulation areas shall comply with the property development standards of the zoning district in which they are located.

§ 914.02. Off-Street Parking Schedules. [Ord. 23-2004, § 1D, eff. 12-20-2004; Ord. 42-2005, §§ 25, 26, eff. 12-30-2005; Ord. No. 7-2010, § 1, eff. 4-1-2010; Ord. No. 33-2020, § 1, eff. 10-16-2020; Ord. No. 58-2021, § 4, eff. 12-27-2021; Ord. No. 4-2024, § 4, eff. 2-27-2024]

- A. Schedule A. Off-street parking spaces shall be provided in accordance with the minimum and maximum standards included in Parking Schedule A. In lieu of complying with the standards of Parking Schedule A, an applicant may request approval of an Alternative Access and Parking Plan, pursuant to Section 914.07. The Zoning Administrator may require an Alternative Access and Parking Plan to be submitted for uses allowed in residential district. The parking schedule in this section shall not apply to the Bicycle Parking Requirement of Section 914.05.D.

Use Type	Minimum Off-Street Automobile Spaces Required	Maximum Off-Street Automobile Spaces Allowed
Residential Uses		
Single-Unit, Detached	1 per unit	4 per unit
Single-Unit Attached	0 per unit	4 per unit
Two-Unit	1 per unit	2 per unit
Three-Unit	1 per unit	2 per unit
Multi-Unit	1 per unit	2 per unit
Group Residential	1 per 4 residents	No maximum
Housing for the Elderly	Parking Demand Analysis Required, see Section 914.02.B	
Non-Residential Uses		
Adult Entertainment	1 per 500 s.f. above first 2,400 s.f.	1 per 150 s.f.
Amusement Arcade	1 per 500 s.f. above first 2,400 s.f.	1 per 150 s.f.
Animal Care	1 per 400 s.f. above first 2,400 s.f.	
Art or Music Studio	1 per 800 s.f.	1 per 300 s.f.
Assembly, Public	Parking Demand Analysis Required, See Section 914.02.B	
Bank or Financial Institution	1 per 500 s.f. above first 2,400 s.f.	1 per 300 s.f.
Bed and Breakfast	See Bed and Breakfast Regulations, Section 911.04.A.7-9	
Basic Industry	Parking Demand Analysis Required, see Section 914.02.B	

Use Type	Minimum Off-Street Automobile Spaces Required	Maximum Off-Street Automobile Spaces Allowed
Car Wash	4 queuing spaces per bay for automatic wash; 2 queuing spaces per bay for self-service	
Cemetery	Parking Demand Analysis Required, see Section 914.02.B	
Check Cashing	1 per 500 s.f. above first 2,400 s.f.	1 per 175 s.f.
Child Care (Limited)	0	No Maximum
Child Care (General)	1 per 800 s.f.	1 per 400 s.f.
Club	One (stall) per 125 square feet above the first 2,400 square feet	
Community Center	1 per 500 s.f.	1 per 200 s.f.
Correctional Facility	Parking Demand Analysis Required, see Section 914.02.B	
Cultural Services	1 per 800 s.f.	1 per 300 s.f.
Educational Institution not otherwise listed	1 per 800 s.f.	1 per 300 s.f.
Freight Terminal	Parking Demand Analysis Required, see Section 914.02.B	
Funeral Home	4 per viewing room	
Gaming Enterprise	Parking Demand Analysis required, see 914.02.B	
Golf Course	2 spaces per hole, plus 1 space per 800 s.f. in clubhouse	4 per unit
Grocery Store, up to 10,000 s.f.	1 per 500 s.f. above first 2,400 s.f.	1 per 200 s.f.
Grocery Store, over 10,000 s.f.	1 per 150 s.f.	1 per 100 s.f.
Hazardous Operations	Parking Demand Analysis Required, see Section 914.02.B	
Heliport, Helistop, Helipad	1 per 1,000 s.f. of operational area	
Hospital	Parking Demand Analysis Required, see Section 914.02.B	
Incinerator, Solid Waste	Parking Demand Analysis Required, see Section 914.02.B	
Institutional Facility not otherwise listed	1 per 800 s.f.	1 per 300 s.f.
Laboratory/Research Service	1 per 500 s.f. above first 2,400 s.f.	1 per 200 s.f.

Use Type	Minimum Off-Street Automobile Spaces Required	Maximum Off-Street Automobile Spaces Allowed
Laundry Service	Parking Demand Analysis Required, see Section 914.02.B	
Library	1 per 600 s.f.	1 per 200 s.f.
Manufacturing and Assembly	Parking Demand Analysis Required, see Section 914.02.B	
Medical Office	1 per 400 s.f. above first 2,400 s.f.	
Office	1 per 500 s.f. above first 2,400 s.f.	
Parks and Recreation	Parking Demand Analysis Required, see Section 914.02.B	
Pawn Shop	1 per 500 s.f. above first 2,400 s.f.	1 per 175 s.f.
Post Office	Parking Demand Analysis Required, see Section 914.02.B	
Recreation/Entertainment, Outdoor	Parking Demand Analysis Required, see Section 914.02.B	
Recreation/Entertainment, Indoor	1 per 500 s.f. above first 2,400 s.f. or 1 per 5 seats, whichever is greater	
Recycling Processing Center	Parking Demand Analysis Required, see Section 914.02.B	
Religious Assembly	1 per 5 seats	
Restaurant, Fast Food	1 per 500 s.f., plus 6 queuing spaces per service window	1 per 175 s.f.
Restaurant	1 per 500 s.f. above first 2,400 s.f.	1 per 175 s.f.
Retail Sales and Services	1 per 500 s.f. above first 2,400 s.f.	1 per 175 s.f.
Safety Service	Parking Demand Analysis Required, see Section 914.02.B	
Salvage Yard	1 per 1,000 s.f. above first 2,400 s.f., plus 1 per 10,000 s.f. of lot	
School, Elementary or Secondary	Parking Demand Analysis Required, see Section 914.02.B	
Service Station	2 per service bay	
Transit Facility	Parking Demand Analysis Required, see Section 914.02.B	
Utility, Public	Parking Demand Analysis Required, see Section 914.02.B	
Vehicle/Equipment Repair	2 per service bay	
Vehicle/Equipment Sales	Parking Demand Analysis Required, see Section 914.02.B	
Vocational or Trade School	1 per 500 s.f.	

Use Type	Minimum Off-Street Automobile Spaces Required	Maximum Off-Street Automobile Spaces Allowed
Warehouse	Parking Demand Analysis Required, see Section 914.02.B	
Warehouse, Residential Storage	1 space, plus 1 per service bay	
Welding or Machine Shop	Parking Demand Analysis Required, see Section 914.02.B	

- B. **Uses Requiring Parking Demand Analysis.** Uses requiring parking demand analysis have widely varying parking demands, making it difficult to specify a single requirement. The off-street parking requirement for such uses shall be established by the Zoning Administrator based on estimates of parking demand, which may include recommendations of the Institute of Traffic Engineers (ITE), data collected from uses that are the same or comparable to the proposed use, or other relevant information. The Zoning Administrator may require that an applicant submit a parking study that provides analysis and justification for the proposed number of spaces to be provided. Parking studies shall document the source of data used to develop the recommendations. The Zoning Administrator will review the submitted study along with any other traffic engineering and planning data that are appropriate and establish the minimum and maximum off-street parking requirement (including bicycle parking) for the use proposed.
- C. **Structured Parking Required.** All principal and accessory off-street parking uses in the GT, DR, EMI and SP Districts, where more than one hundred fifty (150) number of spaces are provided, shall comply with the following requirements:
- (a) Surface parking shall be permitted for no more than one hundred fifty (150) spaces;
 - (b) All parking in excess of one hundred fifty (150) spaces shall be structured;
 - (c) In no case shall an accessory parking area or structure occupy more than half the lot area of the lot containing the principal use that the parking area or structure serves.

§ 914.03. Rules for Computing Requirements.

The following rules shall apply when computing the number of spaces required pursuant to Parking Schedule A (Section 914.02.A).

- A. **Fractions.** When calculation of the number of required offstreet parking spaces results in a fractional number, a fraction of less than one-half ($\frac{1}{2}$) shall be disregarded and a fraction of one-half ($\frac{1}{2}$) or more shall be rounded to the next highest whole number.
- B. **Multiple Uses or Activities.** When two (2) or more uses, activities, or separate establishments are located within the same development, off-street parking shall be provided for each use or separate establishment according to the Parking Schedule A (Section 914.02.A), unless a shared parking plan is approved pursuant to Section 914.07.G.1. In the event that one (1) or more uses within a multi-use development are of a size that would otherwise exempt them from compliance with off-street parking requirements, only one (1) such exemption shall be permitted to be taken for the entire development.

- C. **Calculation of Floor Area.** Unless otherwise stated, all square footage-based off-street parking standards shall be computed on the basis of gross floor area used or intended to be used for service to customers, patrons, clients or patients, or as tenants, including areas occupied by fixtures and equipment used for display or sale of merchandise. It need not include floors or parts of floors used principally for nonpublic purposes, such as the storage, incidental repair, processing or packaging of merchandise, for show windows, or for offices incidental to the management or maintenance of stores or buildings when these areas are in separate rooms from the principal use of the building. Floors or parts of floors used principally for rest rooms or for utilities or for fitting rooms, dressing rooms and alteration rooms shall also be excluded from the definition of "floor area" for the purpose of computing off-street parking requirements. These provisions notwithstanding, the "floor area" used as the basis for computing off-street parking requirements shall never be less than eighty (80) percent of the total gross floor area.
- D. **Bench Seating.** When seating consists of benches, pews or other similar seating facilities, each twenty (20) linear inches of seating space shall be counted as one (1) seat.
- E. **Employees, Students and Occupants.** For the purpose of computing parking requirements based on the number of employees, students, residents or occupants, calculations shall be based on the largest number of persons working on any single shift, the maximum enrollment or the maximum fire-rated capacity, whichever is applicable.
- F. **New and Unlisted Uses.** Upon receiving a development application for a use not specifically listed in the Parking Schedule A (Section 914.02.A), the Zoning Administrator shall apply the off-street parking standards of the listed use that is deemed most similar to the use proposed or require that a parking study be submitted pursuant to Section 914.02.B.

§ 914.04. Off-Street Parking Exemption/Reduction Areas. [Ord. No. 7-2010, § 2, eff. 4-1-2010; Ord. No. 1-2015, § 1.F., eff. 2-10-2015; Ord. No. 48-2017, § 5, 12-8-2017; Ord. No. 31-2018, § 12, eff. 8-6-2018; Ord. No. 1-2023, § 12, eff. 3-1-2023]

The minimum off-street parking requirements of Section 914.02.A shall be decreased as shown in the following table for uses located in districts designated on the Official Zoning Map as "Parking Exempt Areas." Uses located in Parking Exempt Areas shall provide no more than the otherwise required minimum parking ratio established in Section 914.02.A.

Area	Use Type	Percent Decrease
SP Districts & PUDs	Any use	Parking Demand Analysis Required, see Section 914.02.B
Downtown	Any use	100
East Liberty	Any use except residential	50
SP-11 Lower Hill Planned Development	Any use	100
North Side	Any use except residential	25

Area	Use Type	Percent Decrease
Uptown Public Realm District	Any use	100
Riverfront Zoning Districts	Any use	50
UC-MU and R-MU Zoning Districts	Any use	50
UC-E Zoning Districts	Any use	100

The parking reductions of this section shall not be applicable to the minimum Bicycle Parking requirements of Section 914.05.

§ 914.05. Bicycle Parking. [Ord. No. 7-2010, § 3, eff. 4-1-2010; Ord. No. 2-2018, § 28, eff. 2-15-2018]

To further the intent of this Chapter to allow flexibility and equity in addressing vehicle parking issues and to present a menu of parking allocation strategies, this section requires and incentivizes bicycle parking. This section seeks to facilitate the lessening of car-related congestion in the City by promoting bicycle commuting by requiring the provision of adequate and safe facilities for the storage of bicycles. Further, this section allows a reduction in required automobile parking spaces when bicycle parking is accommodated, creating a benefit for meeting the requirements of this Chapter.

A. Special Definitions.

1. **Bicycle Parking Space** means a four (4) feet by six (6) feet space provided for locking up to two (2) bicycles to a City approved Bicycle Rack or a bicycle locker that can store up to two (2) bicycles per unit.
2. **Bicycle Rack** means a stationary device with a base that can wedge anchors for surface mounting, provides steel tubing one (1) inch to four (4) inches thick, containing locking points between one (1) feet and three (3) feet off the ground and a gap near the bottom for pedal clearance, enabling one to lock a bicycle frame and one (1) of the wheels with a standard U-Lock. Such a rack must be able to accommodate at least two (2) bicycles upright by rack frame.
3. **Protected Bicycle Parking Spaces** are secure facilities which protect the entire bicycle, its components and accessories against theft and against inclement weather, including wind-driven rain. This type of facility includes, but is not limited to bicycle lockers, check-in facilities, monitored bicycle parking, restricted access parking, and personal storage.
4. **Unprotected Bicycle Parking Spaces** are Bicycle Racks which permit the locking of the bicycle frame and one (1) wheel to the rack and which support the bicycle in a stable position without damage to wheels, frame or components.
5. **Low Occupancy Facility** means a building or use with limited customer or non-employee contact and less than one (1) employee per every ten thousand (10,000) square feet of gross floor area.

B. Locations and Facilities.

1. Bicycle parking shall be provided in a well-lighted area.
2. Bicycle parking shall be at least as conveniently located as the most convenient automobile spaces, other than those spaces for persons with disabilities. Safe and convenient means of ingress and egress to bicycle parking facilities shall be provided. Safe and convenient shall include, but is not limited to stairways, elevators and escalators.
3. Bicycle Parking facilities shall not interfere with accessible paths of travel or accessible parking as required by the Americans with Disabilities Act of 1990.
4. Protected and Unprotected Bicycle Racks shall be located in highly visible areas to minimize theft and vandalism.
5. In cases of structured automobile parking, Protected Bicycle Parking Spaces shall be used.
6. Alternative Locations and facilities. In the event that compliance with Section 914.05.B or 914.05.C may not be feasible or ideal because of demonstrable hardship or due to a creative design alternative, the Zoning Administrator may approve an alternative storage location. The Zoning Administrator shall be guided by the following criteria:
 - a. Such alternative facilities shall be well-lighted and secure.
 - b. All Bicycle Parking Spaces outside of a building shall be located within a one hundred (100) foot diameter of the primary building entrance.
 - c. Bicycle Racks may be placed in the public right-of-way provided that the building owner attains an encroachment permit for the installation of racks in the public right-of-way from the Department of Mobility and Infrastructure.

C. Layout of Spaces. Bicycle Parking Spaces or alternative spaces approved by the Zoning Administrator shall be laid out according to the following:

1. All bicycle parking areas shall afford a four (4) foot wide access aisle to ensure safe access to spaces.
2. Bicycle parking and automobile parking shall be located so as to protect bicycles from damage.
3. In cases where Bicycle Parking Spaces are not visible from the primary street, signage shall be used to direct cyclists safely to bicycle parking areas.
4. All Bicycle Racks and lockers shall be securely anchored to the ground or building structure.
5. Bicycle Parking Spaces shall not interfere with pedestrian circulation and shall adhere to ADA requirements.
6. Bicycle parking shall be an integral part of the overall site layout and designed to

minimize visual clutter.

D. Bicycle Parking Requirement. Bicycle Parking Spaces shall be provided in accordance with the following tables:

1. For all Non-Residential uses except, Hotel/Motel, Commercial Parking, Parking Structure, and Low Occupancy Facilities (as defined in Section 914.05.A.5):

Gross Floor Area	Required Minimum Number of Bicycle Parking Spaces
0—6,000 s.f.	0
6,001—20,000 s.f.	1
Over 20,000 s.f.	1 per every 10,000 s.f. or fraction thereof

2. For Multi-Unit Residential:

Number of Dwelling Units	Required Minimum Number of Bicycle Parking Spaces
Less than 12	0
12 or more	1 per every 3 dwelling units or a fraction thereof

- (a) At least sixty (60) percent of all bicycle parking spaces provided must be Protected Bicycle Parking Spaces.

3. For Commercial Parking and Parking Structure uses:

Number of Automobile Spaces	Required Minimum Number of Bicycle Parking Spaces
0—4	0
4—20	1
21—40	2
Over 40	1 per every 10 spaces or a fraction thereof

4. For Low Occupancy Facilities and Hotel/Motel uses:

Number of Employees	Required Minimum Number of Bicycle Parking Spaces
0—5	0
6—20	1
21—80	2
Over 80	1 per every 20 employees or a fraction thereof

- (a) To certify a building or use as a Low Occupancy Facility, the building owner or applicant shall attach to any zoning permit application, an affidavit attesting to the

number of employees required for the use.

When calculating the minimum number of Protected and/or Unprotected parking spaces required results in a fractional number, a fraction of less than one-half ($\frac{1}{2}$) shall be disregarded and a fraction of one-half ($\frac{1}{2}$) or more shall be rounded to the next highest whole number.

E. Street Parking Reduction for Bicycle Parking.

1. A reduction in the number of off-street parking spaces required by Section 914.02.A (excluding parking spaces for persons with disabilities) shall be permitted for the provision of bicycle parking provided that:
 - (a) No fee is required for using the bicycle parking made available;
 - (b) When calculation of the maximum number of reduced parking spaces results in a fraction, the resulting number shall be rounded to the next highest integer.
2. The reduction in the number of automobile parking spaces shall be reduced by no more than one (1) space for each Bicycle Parking Space, but by no more than thirty (30) percent of the total required spaces.
3. This provision can not be applied to Single-Unit Residential, Two-Unit Residential, Three-Unit Residential, Animal Care, Car Wash, Salvage Yard, Service Station, and Vehicle/Equipment Repair uses.

For unlisted uses and uses requiring Parking Demand Analysis (Section 914.02.B), bicycle parking shall be integrated into a comprehensive, multimodal transportation plan approach. The extent of required parking and incentive reductions for any mode of travel will reflect the planned, apparent or potential system connectivity opportunities of that area in relation to the City transportation network.

§ 914.06. Parking for Persons with Disabilities. [Ord. 21-2002, §§ 9—13, eff. 6-18-2002]

A portion of the total number of required parking spaces shall be specifically designated, located and reserved for use by persons with disabilities.

A. Number of Spaces.

Parking spaces reserved for persons with disabilities shall be counted toward fulfilling overall off-street parking standards. The minimum number of spaces to be reserved for persons with disabilities shall be as follows:

Residential Uses [up to 25 Dwelling Units]	
	Minimum Reserved Spaces Required
Less than 4 Dwelling Units	0
4 to 25 Dwelling Units	1

Non-Residential Uses and Parking Spaces Provided for Dwelling Units in Excess of 25	
Parking Spaces Required	Minimum Reserved Spaces Required
1—25	1
26—50	2
51—75	3
76—100	4
101—150	5
151—200	6
201—300	7
301—400	8
401—500	9
501—1,000	2% of total spaces
Over 1,000	20, plus 1 for each 100 spaces over 1,000

One (1) in every eight (8) accessible spaces, but not less than one (1), shall be served by an access aisle eight (8) feet wide minimum and shall be designated "van accessible" as required by Americans with Disabilities Act of 1990. The vertical clearance at such spaces shall comply with Americans with Disabilities Act of 1990. All such spaces may be grouped on one (1) level of a parking structure.

- B. **Minimum Dimensions.** All parking spaces reserved for people with disabilities shall be at least nineteen (19) feet in length and at least eight (8) feet wide and shall provide minimum vertical clearance of eight (8) feet two (2) inches at the parking space and along at least one (1) vehicle access route to such spaces from site entrance(s) and exit(s). Parking access aisles shall be part of an accessible route to the building or facility entrance and shall be five (5) feet wide, except parking spaces reserved for vans, which shall be eight (8) feet wide in accordance with Section 914.06.A. Two (2) accessible parking spaces may share a common access aisle. Parked vehicle overhangs shall not reduce the clear width of an accessible route. Parking spaces and access aisles shall be level with surface slopes not exceeding 1:50 (two (2) percent) in all directions.
- C. **Location of Spaces.** Accessible parking spaces serving a particular building shall be located on the shortest accessible route of travel from adjacent parking to an accessible entrance. In parking facilities that do not serve a particular building, accessible parking shall be located on the shortest accessible route of travel to an accessible pedestrian entrance of the parking facility. In buildings with multiple accessible entrances with adjacent parking, accessible parking spaces shall be dispersed and located closest to the accessible entrances.
- D. **Signs and Markings.**

Required spaces for persons with disabilities shall be designated with signs and pavement markings identifying them as reserved for persons with disabilities. The required sign shall clearly indicate the maximum fine assessed on violators. The size of the sign shall not exceed

four (4) square feet.

Van-accessible spaces shall have an additional sign "Van-Accessible" mounted below the symbol of accessibility. Such signs shall be located so as not to be obscured by a vehicle parked in the space.

- E. **Parking for Persons with Disabilities, Passenger Loading Zones.** Passenger loading zones shall provide an access aisle at least five (5) feet wide and twenty (20) feet long adjacent and parallel to the vehicle pull-up space. If there are curbs between the access aisle and the vehicle pull-up space, then a curb ramp complying with Americans with Disabilities Act of 1990 shall be provided. Vehicle standing spaces and access aisles shall be level with surface slopes not exceeding 1:50 (two (2) percent) in all directions. Minimum vertical clearance of nine (9) feet six (6) inches shall be provided at accessible passenger loading zones and along at least one (1) vehicle access route to such areas from site entrance(s) and exit(s).

§ 914.07. Alternative Access and Parking Plans. [Ord. 28, 11-17-2000, Amend. U-25; Ord. No. 57-2021, § 2, eff. 12-27-2021]

- A. **Scope.** An Alternative Access and Parking Plan represents a proposal to meet vehicle parking and transportation access needs by means other than providing parking spaces on-site in accordance with the ratios established in Section 914.02.A.
- B. **Applicability.** Applicants who wish to provide fewer or more off-street parking spaces than allowed pursuant to the Parking Schedule A (Section 914.02.A) shall be required to secure approval of an Alternative Access and Parking Plan, in accordance with the standards of this section. The Zoning Administrator may require that an Alternative Access and Parking Plan be submitted in cases where the Zoning Administrator deems the listed standard to be inappropriate based on the unique nature of the use or in cases where the applicable standard is unclear.
- C. **Contents.** Alternative Access and Parking Plans shall be submitted in a form established by the Zoning Administrator and made available to the public. At a minimum, such plans shall detail the type of alternative proposed and the rationale for such a proposal.
- D. **Review and Approval Procedure.**
1. **Small Facilities.** If ten or fewer off-street parking spaces are required pursuant to Parking Schedule A (Section 914.02.A), the Zoning Administrator shall be authorized to approve, approve with conditions, approve in part, deny, or deny in part the Alternative Access and Parking Plan for that use. Notification shall be provided in the form of a sign posted on the site of the primary use and the proposed parking facility (if any) at least ten (10) days before the Zoning Administrator takes action on the plan.
 2. **Large Facilities.** The Zoning Board of Adjustment shall be authorized, in accordance with the Special Exception provisions of Section 922.07, to approve, approve with conditions, approve in part, deny, or deny in part Alternative Access and Parking Plans for uses that require more than ten off-street parking spaces (pursuant to Parking Schedule A [Section 914.02.A]). A public hearing shall be required. Notification shall be provided in the form of (1) a sign posted on the site of the primary use and the

proposed parking facility (if any) at least twenty-one (21) days before the hearing and (2) written notification at least fifteen (15) days prior to the hearing to all property owners and registered neighborhood associations within three hundred (300) feet of the proposed use and within three hundred (300) feet of the parking area.

- E. Recording. An attested copy of an approved Alternative Access and Parking Plan shall be submitted to County Recorder's office for recordation on forms made available in the Office of the Zoning Administrator. Proof of recordation of the agreement shall be presented to the Zoning Administrator prior to issuance of a building permit. An approved Alternative Access and Parking Plan may be amended by the Zoning Board of Adjustment pursuant to Section 914.07.
- F. Violations. Violations of an approved Alternative Access and Parking Plan shall be considered violations of this Zoning Code and subject to the enforcement and penalty provisions of Chapter 924.
- G. Eligible Alternatives. A number of specific parking and access alternatives are described in Sections 914.07.G.1 through 914.07.G.6.
 - 1. Administrator Exceptions. The Zoning Administrator shall be authorized, in accordance with the Administrator Exception provisions of Section 922.08, to consider and approve the following alternatives to providing off-street parking spaces on the site of the subject development if the applicant demonstrates to the satisfaction of the Zoning Administrator that the proposed plan will result in a better situation with respect to surrounding neighborhoods, citywide traffic circulation and urban design than would strict compliance with otherwise applicable off-street parking standards.
 - (a) Shared Parking. It is the City's policy to encourage efficient use of land and resources by allowing users to share off-street parking facilities for multiple use developments or for uses that are located near one (1) another and that have different peak parking demands or different operating hours. Shared parking shall be subject to the following standards.
 - (1) Location. Shared off-street parking spaces shall be located no further than one thousand (1,000) feet from the buildings and uses they are intended to serve. This distance limitation may be waived by the Zoning Board of Adjustment if adequate assurances are offered that van or shuttle service will be operated between the shared lot and the principal use.
 - (2) Zoning Classification. Shared parking areas shall be considered accessory uses of primary uses that the parking spaces are intended to serve. Shared parking areas shall require the same or a more intensive zoning classification than that required for the most intensive of the uses served by the shared parking area.
 - (3) Required Study and Analysis. The applicant shall submit a shared parking analysis to the Zoning Administrator which clearly demonstrates the feasibility of shared parking. The study shall be provided in a form established by the Zoning Administrator and made available to the public. It shall address,

at a minimum, the size and type of the proposed development, the composition of tenants, the anticipated rate of parking turnover and the anticipated peak parking and traffic loads for all uses that will be sharing off-street parking spaces.

- (4) Report from Planning Director. The Zoning Board of Adjustment shall request a report and recommendation from the Planning Director on the planning aspects of the proposed shared parking use.
 - (5) Shared Parking Agreement. A shared parking plan shall be enforced through written agreement among the owners of record. An attested copy of the agreement shall be submitted to County Recorder's office for recordation on forms made available in the Office of the Zoning Administrator. Proof of recordation of the agreement shall be presented to the Zoning Administrator prior to issuance of a building permit. A shared parking agreement may be revoked by the parties to the agreement only if off-street parking is provided pursuant to Section 914.02.A, or if an Alternative Access and Parking Plan is approved by the Zoning Board of Adjustment pursuant to Section 914.07.
 - (6) Revocation of Permits. Failure to comply with the shared parking provisions of this section shall constitute a violation of this code and shall specifically be cause for revocation of a building permit.
- (b) Valet Parking. The Zoning Administrator shall be authorized, in accordance with the Administrator Exception provisions of Section 922.08, to permit valet parking as a means of satisfying otherwise applicable off-street parking standards, provided that the following standards are met:
- (1) An automobile shall be retrievable from its parking space with the movement of a maximum of two (2) additional vehicles; and
 - (2) The Zoning Administrator certifies that the valet parking will not cause interference with the public use of streets or ways or imperil the public safety.
2. Special Exceptions. The Zoning Board of Adjustment shall be authorized, in accordance with the Special Exception provisions of Section 922.07, to consider and approve any alternative to providing off-street parking spaces on the site of the subject development if the applicant demonstrates to the satisfaction of the Zoning Board of Adjustment that the proposed plan will result in a better situation with respect to surrounding neighborhoods, citywide traffic circulation and urban design than would strict compliance with otherwise applicable off-street parking standards.
- (a) Off-Site Parking. The Zoning Board of Adjustment shall be authorized, in accordance with the Special Exception provisions of Section 922.07, to permit all or a portion of the required off-street parking spaces to be located on a remote and separate lot from the lot on which the primary use is located, subject to the following standards.
- (1) Location. No off-site parking space shall be located more than one thousand (1,000) feet from the primary entrance of the use served, measured along the

shortest legal, practical walking route. This distance limitation may be waived by the Zoning Board of Adjustment if adequate assurances are offered that van or shuttle service will be operated between the shared lot and the primary use.

- (2) **Zoning Classification.** Off-site parking areas shall be considered accessory uses of primary uses that the parking spaces are intended to serve. Off-site parking areas shall require the same or a less restrictive zoning classification than that required for the use served.
 - (3) **Report from Planning Director.** The Zoning Board of Adjustment shall request a report and recommendation from the Planning Director on the planning aspects of the proposed shared parking use.
 - (4) **Off-Site Parking Agreement.** In the event that an off-site parking area is not under the same ownership as the primary use served, a written agreement among the owners of record shall be required. An attested copy of the agreement between the owners of record shall be submitted to County Recorder's Office for recordation on forms made available in the office of the Zoning Administrator. Proof of recordation of the agreement shall be presented to the Zoning Administrator prior to issuance of a building permit. An off-site parking agreement may be revoked by the parties to the agreement only if off-street parking is provided on-site pursuant to Section 914.02.A or if an Alternative Access and Parking Plan is approved by the Zoning Board of Adjustment pursuant to Section 914.07.
- (b) (Reserved)
- (c) **Transportation Management Plan.** The Zoning Board of Adjustment shall be authorized, in accordance with the Special Exception provisions of Section 922.07, to permit a reduction in the number of required off-street parking spaces for developments or uses that institute and commit to maintain a transportation management program, in accordance with the standards of this section.
- (1) **Required Study.** The applicant shall submit a study to the Zoning Board of Adjustment which clearly indicates the types of transportation management activities and measures proposed. The study shall be provided in a form established by the Zoning Administrator and made available to the public.
 - (2) **Transportation Management Activities.** There shall be no limitation on the types of transportation management activities for which reductions may be granted from otherwise required off-street parking ratios. The following measures shall serve as a guide to eligible transportation management activities.
 - (i) **Posting and Distribution of Information.** The distribution and posting of information from transit agencies and other sources of alternative transportation may be cause for a reduction in otherwise applicable off-street parking requirements.

- (ii) **Transportation Coordinator.** The appointment of a Transportation Coordinator with responsibility for disseminating information on ride-sharing and other transportation options may be cause for a reduction in otherwise applicable off-street parking requirements. In addition to acting as liaisons, Transportation Coordinators must be available to attend meetings and training sessions with the City or transit providers.
 - (iii) **Off-Peak Work Hours.** Employers that institute off-peak work schedules, allowing employees to arrive at times other than the peak morning commute period, may be eligible for a reduction in otherwise applicable off-street parking requirements. The peak morning commute period is defined as 7:30 a.m. - 9:00 a.m.
 - (iv) **Preferential Parking.** The provision of specially marked spaces for each registered car pool and van pool may be cause for a reduction in otherwise applicable off-street parking requirements.
 - (v) **Financial Incentives.** The provision of cash or in-kind financial incentives for employees commuting by car pool, van pool and transit may be cause for a reduction in otherwise applicable parking requirements.
- (3) **Report from Planning Director.** The Zoning Board of Adjustment shall request a report and recommendation from the Planning Director on the planning aspects of the proposed shared parking use.
- (d) **Transit Stops.** The Zoning Board of Adjustment shall be authorized, in accordance with the Special Exception provisions of Section 922.07, to permit the incorporation of transit stops as a means of satisfying the otherwise applicable off-street parking standards, provided the following conditions are met:
- (1) The transit stop shall be designed to be a station or waiting area for transit riders, clearly identified as such, and open to the public at large;
 - (2) The transit stop shall be designed as an integral part of the development project, with direct access to the station or waiting area from the development site;
 - (3) The transit waiting area or platform shall be designed to accommodate passengers in a covered waiting area, with seating for a minimum of twenty (20) persons, shall include internal lighting, and shall include other features which encourage the use of the facility, such as temperature control within the waiting area or the inclusion of food vendors;
 - (4) The maximum reduction in the number of parking spaces shall be no more than twenty (20) percent of the total required spaces;
 - (5) The Zoning Board of Adjustment shall request a report and recommendation from the Planning Director on the planning aspects, and the potential impacts of the proposed reduction in parking through the provision of a transit facility;

- (6) The transit stop shall be maintained by the developer for the life of the development project.

§ 914.08. Queuing for Drive-Through Facilities.

In addition to meeting the off-street parking requirements of Section 914.02.A, drive-through facilities shall comply with the following standards.

- A. Queue Space Schedule. The minimum number of queue spaces required shall be as follows. Variations from these minimums may be allowed based on a parking study submitted pursuant to Section 914.07.C.

Use Type	Minimum Spaces	Measured From
Bank Teller Lane	3	Teller or Window
Automated Teller Machine	2	Teller Machine
Restaurant Drive-Through	6	Order Box
Car Wash Stall, Automatic	4	Entrance
Car Wash Stall, Self-service	2	Entrance
Gasoline Pump Island	1	End of Island

- B. Minimum Dimensions. Each queue space shall be a minimum of ten (10) feet by twenty (20) feet in size.
- C. Design. Each queue lane shall be clearly defined and designed so as not to conflict or interfere with other pedestrian or vehicular traffic using the site.

§ 914.09. Parking Area Location and Design. [Ord. 28, 11-17-2000, Amend. U-25; Ord. 21-2002, § 14, eff. 6-18-2002; Ord. No. 31-2018, § 12, eff. 8-6-2018; Ord. No. 13-2021, § 1, eff. 5-5-2021; Ord. No. 34-2021, § 1, eff. 10-11-2021]

The location, design and improvement standards of this section shall apply to all off-street parking areas containing five (5) or more parking spaces, except that Section 914.09.J shall apply to the location of parking access for Single-Unit Attached Residential Uses.

A. General Design Principles.

1. Location. Off-street parking areas shall be located so as to minimize their adverse impact on the visual environment. To the maximum extent possible, off-street parking areas shall not be visible from a public street, and in no case shall a surface parking lot in NDI, LNC or UNC zoning district be located within ten (10) feet of the street right-of-way.
2. Layout. There shall be safe, adequate, and convenient arrangement of pedestrian pathways, bikeways, roads, driveways, and off-street parking and loading spaces within off-street parking areas. Streets, pedestrian walks, parking areas, and open space shall be designed as integral parts of an overall site design which shall be properly related to existing and proposed buildings, adjacent uses, landscaped areas, and stormwater

management features.

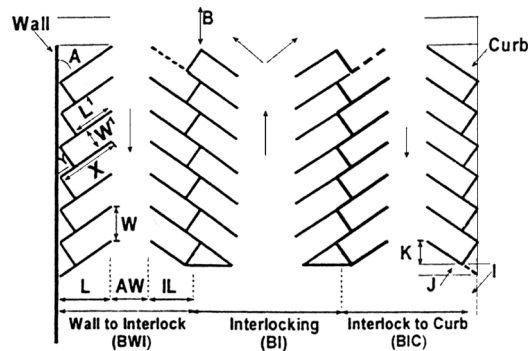
3. **Appearance.** The materials used in the design of paving, lighting fixtures, retaining walls, fences, curbs and benches shall be of good appearance, easily maintained and indicative of their function.
 4. **Maintenance.** Parking lots shall be maintained in a safe operating condition so as not to create a hazard or nuisance.
- B. **Surfacing.** Areas used for off-street parking, circulation or vehicle display shall be surfaced with asphalt, concrete, masonry, hard packed slag, or other solid paving materials with sufficient strength to support the vehicle loads imposed, provided that the Zoning Administrator shall be authorized to approve parking areas that are not hard-surfaced when four (4) or fewer parking spaces are involved. All off-street parking and other vehicle circulation areas shall be continuously maintained and designed to preclude free flow of stormwater onto adjacent lots, properties, or public streets or ways and in accordance with Title 13: Stormwater Management, as applicable.
- C. **Wheel Stops.** Wheel stops or curbing shall be installed to protect walls, poles, structures, pedestrian walkways or landscaped areas. Wheel stops should be placed within two (2) to three (3) feet from the end of parking spaces.
- D. **Landscaping and Screening.** Off-street parking, loading and vehicle display areas shall be landscaped and screened from view in accordance with the Landscaping and Screening Standards of Chapter 918.
- E. **Lighting.** Lighting shall be arranged and designed so that no source of light is directed toward any lots used or zoned for residential use. Lighting shall be designed to shield public streets and all other adjacent lands from distracting glare, or hazardous interference of any kind. Vehicular use areas shall not be lighted at any time other than the hours of operation of the use that the parking is intended to serve, except for necessary security lighting.
- F. **Parking Area Access.** Access to parking garages and parking areas containing more than five (5) spaces shall be designed to ensure that entering and exiting vehicles do not disrupt vehicle and pedestrian circulation patterns. At a minimum, all garage doors, ticket machines or entrance gates shall be located so as to allow a minimum of twenty (20) feet clearance from sidewalks and street rights-of-way. Driveways serving such parking areas shall be located at least sixty (60) feet from intersecting street rights-of-way, and joint access to abutting parcels shall be provided wherever practical.
- G. **Parking Structure Design.**
1. **Screening of Vehicles.** Parked vehicles shall be screened from view of adjacent streets and residential zoning districts to the maximum extent feasible.
 2. **Ground-Floor Uses.**
 - (a) For parking structures greater than one hundred fifty (150) feet in length that are adjacent to store-front commercial uses, active uses shall be located along a minimum of fifty (50) percent of the length of the street-side, street-level

perimeter. For the purposes of this Section, active uses shall include commercial, residential, and accessory uses and activities that typically have user-occupied areas that are expressed through building fenestration and articulation.

- (b) Within the RIV District, any ground-level structured parking that has primary frontage along the riverfront or along a street or publicly accessible pedestrian easement shall be screened architecturally or be screened according to the provisions of Section 918.03.B.
3. **Building Lines.** Parking structures shall present a horizontal rather than sloped building line on visible facades.
4. **Parking for Persons with Disabilities, Ground Floor Vehicle Entrances.** Parking structures containing more than one (1) floor shall provide a minimum of nine (9) feet six (6) inches of vertical clearance on the ground floor between all spaces and vehicle access routes to site entrance(s) and exit(s). Signage and other objects may not project into this clearance. Van accessible reserved spaces may be placed on this level in accordance with the requirements of Section 914.06.
- H. **Parking Stall Dimensional Standards.** The following minimum dimensional standards shall apply to all off-street parking areas.
1. **Standard-Size Parking Stalls.** A minimum of sixty (60) percent of required off-street parking spaces shall be standard-size spaces, designed in accordance the following minimum dimensional standards. All dimensions are measured in feet.

A = angle of parking	90°	80°	75°	70°	65°	60°	55°	50°	45°
W = width of stall parallel to aisle	8.50	8.63	8.80	9.05	9.38	9.81	10.38	11.10	12.02
W ¹ = width of stall perpendicular to stall	8.50	8.50	8.50	8.50	8.50	8.50	8.50	8.50	8.50
Y = stall length offset	0.00	1.50	2.28	3.09	3.96	4.91	5.95	7.13	8.50
X = stall line length	19.00	20.50	21.28	22.09	22.96	23.91	24.95	26.13	27.50
L = stall depth perpendicular to wall	19.00	20.19	20.55	20.76	20.81	20.70	20.44	20.02	19.45
L ¹ = stall length	19.00	19.00	19.00	19.00	19.00	19.00	19.00	19.00	19.00
AW = aisle width	24.00	21.00	19.75	18.50	17.25	16.00	14.75	13.50	12.25
IL = stall depth	19.00	19.45	19.45	19.31	19.02	18.58	18.00	17.29	16.44
BW = module, wall to wall	62.00	61.37	30.86	60.02	58.87	57.41	55.63	53.54	51.15
BWI = module, wall to interlock	62.00	60.64	59.76	58.57	57.08	55.28	53.19	50.81	48.14
BI = module, interlocking	62.00	59.90	58.66	57.12	55.28	53.16	50.75	48.07	45.13
BIC = module, interlock to curb face	59.50	58.14	57.26	56.07	54.78	52.98	50.89	48.81	46.14
I = bumper overhang	2.50	2.50	2.50	2.50	2.00	2.00	2.00	2.00	2.00
J = offset	0.00	0.26	0.59	1.06	1.68	2.45	3.41	4.58	6.01

A = angle of parking	90°	80°	75°	70°	65°	60°	55°	50°	45°
K = setback	0.00	3.30	4.92	6.50	8.03	9.50	10.09	12.21	13.44
B = cross aisle, one-way	16.00	16.00	16.00	16.00	16.00	16.00	16.00	16.00	16.00
Bl = cross aisle, two-way	24.00	24.00	24.00	24.00	24.00	24.00	24.00	24.00	24.00



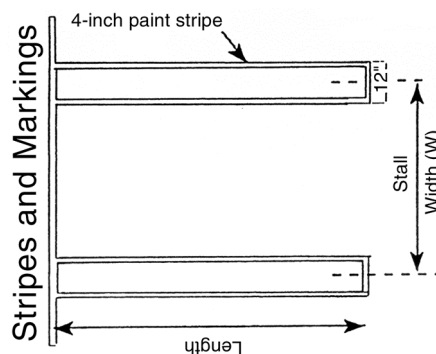
Standard Size Parking Stalls

2. Compact-Size Parking Stalls. Up to forty (40) percent of required off-street parking spaces may be compact-size spaces, which shall be designed in accordance the following minimum dimensional standards. Compact-size spaces shall be clearly identified by pavement markings. All dimensions are measured in feet.

A = angle of parking	90°	80°	75°	70°	65°	60°	55°	50°	45°
W = width of stall parallel to aisle	7.75	7.87	8.02	8.25	8.55	8.95	9.46	10.12	10.95
W¹ = width of stall perpendicular to stall	7.75	7.75	7.75	7.75	7.75	7.75	7.75	7.75	7.75
Y = stall length offset	0.00	1.37	2.08	2.82	3.61	4.47	5.43	6.50	7.75
X = stall line length	16.50	17.87	18.58	19.32	20.11	20.97	21.93	23.00	24.25
L = stall depth perpendicular to wall	16.50	17.60	17.94	18.16	18.23	18.16	17.96	17.62	17.15
L¹ = stall length	16.50	16.50	16.50	16.50	16.50	16.50	16.50	16.50	16.50
AW = aisle width	20.00	17.50	16.64	15.78	14.92	14.06	13.20	12.34	11.48
IL = stall depth	16.50	16.92	16.94	16.83	16.59	16.23	15.74	15.13	14.41
BW = module, wall to wall	53.00	52.69	52.53	52.09	51.38	50.39	49.12	47.58	45.77
BWI = module, wall to interlock	53.00	52.02	51.52	50.77	49.74	48.45	46.90	45.09	43.03

A = angle of parking	90°	80°	75°	70°	65°	60°	55°	50°	45°
BI = module, interlocking	53.00	51.34	50.52	49.44	48.10	46.51	44.68	42.60	40.29
BIC = module, interlock to curb face	50.50	49.52	49.02	48.27	47.44	46.15	44.60	43.09	41.03
I = bumper overhang	2.50	2.50	2.50	2.50	2.30	2.30	2.30	2.00	2.00
J = offset	0.00	0.24	0.54	0.96	1.53	2.24	3.11	4.18	5.48
K = setback	0.00	2.87	4.27	5.64	6.97	8.25	9.46	10.61	11.67
B = cross aisle, one-way	12.00	12.00	12.00	12.00	12.00	12.00	12.00	12.00	12.00
B1 = cross aisle, two-way	20.00	20.00	20.00	20.00	20.00	20.00	20.00	20.00	20.00

- I. **Stripes and Markings.** Parking stalls shall be delineated by double-striping, in accordance with the following general design guidelines and rules established and made available to the public by the Transportation Planner.



Stripes and Markings

- J. **Parking Access for Single-Unit Attached Residential Uses.**

1. **Single-Unit Attached Residential Uses Curb Cut Standards.**

- Garages and parking spaces must be accessed from the rear yard, if rear yard access is available. Corner lots, with or without rear access, may alternatively access garages and parking spaces from the exterior side yard.
- In cases where front-loaded garage design is the remaining option, shared driveways with one (1) curb cut are encouraged.

§ 914.10. Off-Street Loading. [Ord. No. 34-2021, § 1, eff. 10-11-2021]

The off-street loading requirement of this section shall apply to those developments of over two thousand four hundred (2,400) square feet in gross floor area.

- A. **Schedule of Off-Street Loading Requirements.** Off-street loading spaces shall be provided on the site of new or expanded uses, in accordance with the minimum standards included in the following off-street loading schedule.

Floor Area	Minimum Off-Street Loading Requirement	
	Retail Sales and Service, Freight Terminal, Warehouse, Hospital, Nursing Home, Manufacturing Uses	Multi-Unit Residential, Hotel/Motel, Office, Restaurant, Assembly, Funeral Home, Institutional Uses
2,401 to 20,000 s.f.	1	1
20,001 to 50,000 s.f.	2	1
50,001 to 80,000 s.f.	3	1
80,001 to 120,000 s.f.	4	2
120,001 to 160,000 s.f.	5	2
160,001 to 200,000 s.f.	6	2
200,001 to 250,000 s.f.	7	3
250,001 +	7 + 1 per 45,000 s.f. above 250,000	3 + 1 per 150,000 s.f. above 250,000

- B. **Rules for Computing Off-Street Loading Requirements.** The following rules shall apply when computing the number of off-street loading spaces required pursuant to the off-street loading schedule of Section 914.10.A.

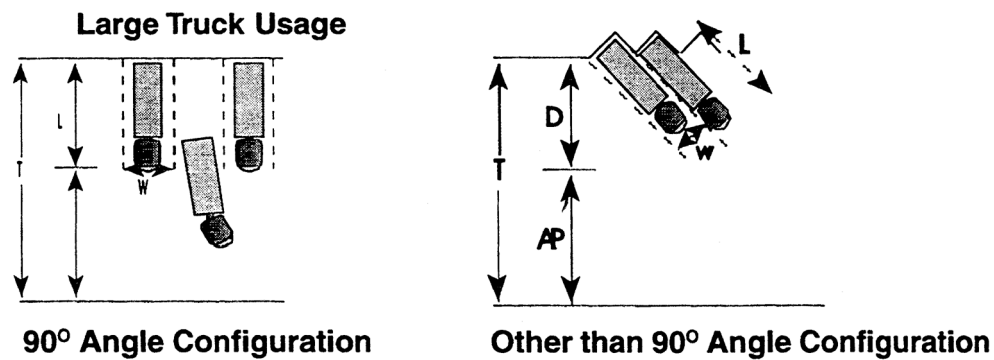
1. **Fractions.** When calculation of the number of required offstreet loading spaces results in a fractional number, a fraction of less than one-half ($\frac{1}{2}$) shall be disregarded and a fraction of one-half ($\frac{1}{2}$) or more shall be rounded to the next highest whole number.
2. **Multiple Uses.** When two (2) or more uses or separate establishments are located within the same development, off-street loading shall be provided for each use or separate establishment according to the off-street loading schedule of Section 914.10.A. In the event that one (1) or more uses within a multi-use development are of a size that would otherwise exempt them from compliance with off-street loading requirements, only one (1) such exemption shall be permitted to be taken for the development.
3. **Calculation of Floor Area.** Unless otherwise stated, all square footage-based off-street loading standards shall be computed on the basis of gross floor area within the principal building.
4. **New and Unlisted Uses.** Upon receiving a development application for a use not specifically listed in the off-street loading schedule, the Zoning Administrator shall apply the off-street loading standards of the listed use that is deemed most similar to the use proposed.

- C. **Loading Area Design and Improvement Standards.** The design and improvement standards

of this section shall apply to all off-street loading areas.

1. **Surfacing.** Areas used for off-street loading and circulation shall be surfaced with asphalt, concrete, masonry, hard packed slag, or other solid paving materials with sufficient strength to support the vehicle loads imposed. Loading areas shall be continuously maintained and designed to preclude free flow of storm water onto adjacent lots properties, or public streets or ways and in accordance with Title 13: Stormwater Management, as applicable.
2. **Landscaping and Screening.** Off-street loading areas shall be screened from view in accordance with the Landscaping and Screening Standards of Chapter 918.
3. **Lighting.** Lighting shall be arranged and designed so that no source of light is directed toward any lots used or zoned for residential use. Lighting shall be designed to shield public streets and all other adjacent lands from distracting glare, or hazardous interference of any kind. Vehicular use areas shall not be lighted at any time other than the hours of operation of the use that the loading is intended to serve, except for necessary security lighting.
4. **Loading Area Access.** Loading areas shall be located and designed to ensure that entering and exiting vehicles do not disrupt vehicle and pedestrian circulation patterns.
5. **Loading Area Dimensional Standards.**
 - (a) **Minimum Standard.** Each required off-street loading space shall be a minimum of ten (10) feet in width and twenty-five (25) feet in length, provided that a greater length shall be required whenever necessary to ensure that no vehicle using the space extends beyond a property line.
 - (b) **Large Truck Standards.** When the Zoning Administrator determines that off-street loading will involve the use of semi-tractor trailer combinations or other vehicles in excess of twenty-five (25) feet in length, the large truck (AWB-50 Design Vehicle) standards of this section shall apply.

Angle	Length (L)	Clearance (D)	Width (W)	Apron (AP)	T-Offset (T)
90°	55	55	10	77	132
			12	72	127
			14	67	122
60°	55	48	10	55	103
			12	51	99
			14	46	94
45°	55	39	10	45	84
			12	40	79
			14	37	76



Loading Area Dimensional Standards

§ 914.11. Exceptions to Off-Street Parking, Loading and Access Standards. [Ord. No. 33-2020, § 2, eff. 10-16-2020]

- A. Exceptions Authorized by the Zoning Board of Adjustment. The Zoning Board of Adjustment is authorized to grant the following as Special Exceptions, according to the Special Exception Review Procedures of Section 922.07.
1. Exceptions to Off-Street Parking Schedule. The minimum off-street parking standards of Parking Schedule A (Section 914.02.A) may be modified by the Zoning Board of Adjustment, provided that the following conditions are met:
 - (a) The Zoning Board of Adjustment determines that such modification is consistent with the purpose and intent of this Zoning Code;
 - (b) The Zoning Board of Adjustment determines that such modification is:
 - (1) Necessary to develop a site that is severely affected by topographic constraints; or
 - (2) Is of a size, shape or dimension that cannot reasonably accommodate required off-street parking in accordance with Section 914.02.A; or
 - (3) Is located in an area where adequate off-street parking otherwise exists; or
 - (4) Is located in an area where additional parking would be undesirable.
 - (c) The Zoning Board of Adjustment determines that the applicant has requested approval of an Alternative Access and Parking Plan and been denied such approval or that such a request would not have been appropriate given the nature of the exemption requested;
 - (d) The Zoning Board of Adjustment imposes such conditions and limitations with respect to the proposed use and development of the premises as in its opinion are necessary in order to minimize the need for parking facilities and to make such automobile parking facilities as are provided reasonably adequate.

2. **Parking Areas Accessory to Nonconforming Uses.** Off-street parking or loading accessory to a nonconforming use on the same lot may be authorized by the Zoning Board of Adjustment, provided all of the following conditions are met:
 - (a) The parking or loading area complies with the property development standards of the underlying zoning district;
 - (b) The parking area or loading space is not provided for the purpose now or in the future of replacing parking or loading space within a structure in order to allow extensions or enlargements of the nonconforming use;
 - (c) The Zoning Board of Adjustment determines that the requested parking space or loading space is reasonably necessary and essential for the operation of the nonconforming use;
 - (d) Reasonable safeguards are established against possible detriment to neighboring properties, including those with respect to sanitation, noise, traffic movement, general safety and amenity; and
 - (e) The accessory parking or loading space may be continued only so long as the principal nonconforming use remains.
- B. **Exceptions Authorized by the Zoning Administrator.** The following exceptions to otherwise applicable standards may be authorized by the Zoning Administrator.
 1. **Exceptions to Parking and Loading Area Dimensional Standards.** Minor reductions of standard size aisle and stall dimensions may be authorized by the Zoning Administrator, provided that the following conditions are met:
 - (a) The applicant demonstrates to the satisfaction of the Zoning Administrator that dimensional problems are unique to the dimensions of the land parcel or parcels and not due to decisions by the applicant;
 - (b) Proposed reductions shall be limited to the minimum necessary to provide the relief required;
 - (c) The applicant submits acceptable engineering and architectural drawings showing all proposed dimensions and geometry of the site and the parking and loading facilities; and
 - (d) The Zoning Administrator shall certify that the proposed reduction in standard size aisle and bay dimensions will neither create safety hazards nor cause traffic congestion. The Zoning Administrator may require the submittal of an acceptable Traffic Operations and Management Plan to assure the maintenance of public safety and minimization of traffic congestion.
 2. **Exceptions to Off-Street Loading Schedule.** The Zoning Administrator may authorize an exception to the off-street loading standards of Section 914.10.A, provided that the Zoning Administrator determines that projected vehicular service volumes do not warrant the provision of the number of off-street loading spaces otherwise required and that such volume will not cause undue interference with the public use of streets or

ways, nor imperil public safety.

3. **Shared and Off-Site Loading.** The Zoning Administrator shall be authorized to approve off-site and shared loading arrangements where deemed appropriate, provided that the following conditions are met:
 - (a) There shall be filed with the application, a plan which will clearly indicate the accessibility of the loading spaces to the structures or uses to be served;
 - (b) The Zoning Administrator determines that joint use of the common loading area is feasible and there is not likely to be conflict in the time of use of such facility; and
 - (c) An attested copy of the agreement between the owners of record shall be submitted to County Recorder's Office for recordation on forms made available in the office of the Zoning Administrator. Proof of recordation of the agreement shall be presented to the Zoning Administrator prior to issuance of a building permit. An off-site or shared loading agreement may be revoked by the parties to the agreement only if off-street loading is provided on-site pursuant to Section 914.10.A.
4. **Exception to Off-Street Parking Requirements for Infill Housing.** The Zoning Administrator may authorize an exception to the off-street parking requirements for Single-Unit Detached and Two-Unit residential uses provided that the following conditions are met:
 - (a) The lot size is less than two thousand five hundred (2,500) square feet;
 - (b) Off-street parking cannot be provided on-site without violation of the setback requirements;
 - (c) The Administrator determines that the location, configuration and design of the parking area would be undesirable for the development of the structure and the adjacent and abutting properties; and
 - (d) The Administrator determines that there is sufficient on-street parking to address the demand of the proposed use.

CHAPTER 915
Environmental Performance Standards

§ 915.01. General. [Ord. 40-2005, § 1H, eff. 12-30-2005; Ord. No. 48-2017, § 6, 12-8-2017]

- A. Purpose. The performance of the city's natural and built areas is key to the success of its communities. The provisions of this Section are intended to protect environmental areas and to support new development that will make Pittsburgh more livable and resilient.
- B. Applicability. No structure or land use shall be located, erected, constructed, reconstructed, moved, altered, demolished, converted, enlarged or designed to be so, except in conformance the provisions of this Section.

§ 915.02. Environmental Standards. [Ord. 40-2005, § 1H, eff. 12-30-2005]

A. Grading Standards.

- 1. The Grading, Cut, and Fill Standards of this Section Shall Apply to All Slopes.
 - a. To the maximum extent feasible, the grading shall preserve the natural landforms of the site;
 - b. To the maximum extent feasible, cutting, filling and severe benching or terracing of existing slopes to create additional building area or larger building sites shall be avoided;
 - c. Finished grades of fifteen (15) percent or less are strongly encouraged. Cut or filled slopes shall not exceed twenty-five (25) percent unless:
 - (1) The applicant submits a geotechnical investigation report that certifies the safety and suitability of such slopes; and
 - (2) The applicant proposes the use of walls, terraces, or other methods at intervals of not less than ten (10) feet to create planting beds that will stabilize the slope, and such measures are approved in the geotechnical investigation report as sufficient to ensure the stability of the slope and ensure that such slope shall pose no significant risk of danger to any property or public improvements located on or off the proposed development site.
 - d. The top and bottom of the cut or filled slopes shall be located no less than five (5) feet from any property line, street, building, parking area, or other developed area.
 - e. Retaining walls or gabions may be permitted to support steep slopes, but shall not exceed ten (10) feet in height.
 - f. Retaining walls shall follow the existing hillside contours if physically feasible and shall avoid visible unnatural straight slope faces. Walls shall be of a color that is compatible with natural rock outcroppings that occur on Pittsburgh hillsides.

B. Slope Revegetation Standards.

Slopes in excess of a fifteen (15) percent grade that are exposed during construction or site development shall be landscaped or revegetated in order to mitigate adverse environmental and visual effects. Fill soil on slopes must support plant growth. At a minimum, any slope in excess of fifteen (15) percent grade exposed or created during development shall be landscaped or revegetated with trees and other plant material at the following minimum planting densities per one hundred fifty (150) square feet of exposed slope area:

- One (1) canopy tree
- Two (2) evergreens
- Two (2) understory trees
- Five (5) shrubs

Gabions and low walls should be utilized to gain planting pockets on steep grades.

- C. Tree and Vegetative Surveys. The Zoning Administrator shall require a tree survey for development applications on any site greater than one-quarter (1/4) acre (ten thousand eight hundred ninety (10,890) square feet).
- D. Tree Protection and Replacement. The Zoning Administrator shall require the protection and preservation of trees with a diameter of twelve (12) inches or more, measured at a point four (4) feet above grade. If said trees are removed during site preparation or development, they shall be replaced, at a minimum, equal to the combined total diameter of removed trees. Diameter measurements shall be taken at a point four (4) feet above grade.

§ 915.03. (Reserved)¹

§ 915.04. Sustainable Development Bonuses. [Ord. No. 19-2009, § 1, eff. 7-31-2009; Ord. No. 48-2017, § 7, 12-8-2017]

- A. Purpose. Green buildings improve air and water quality, reduce solid waste, conserve natural resources, reduce operation costs, optimize life-cycle economic performance and minimize the strain on local infrastructure. Given that buildings are responsible for a large portion of the city's energy and resource use, the provisions of this Section are intended to promote sustainable developments that reduce the impact of the built environment in the City of Pittsburgh.
- B. Applicability. The following bonuses for sustainable development may be permitted in all non-residential zoning districts. These bonuses may not be applied in addition to any other height or FAR bonus or exception. These bonuses may not be applied in addition to any additional height or FAR variances or special exceptions granted by the Zoning Board of Adjustment.
- C. Special Definitions.

LEED CERTIFIED BUILDING — shall mean a building certified, under the Leadership in Energy and Environmental Design (LEED) program of the United States Green Building

1. Editor's Note: Former § 915.03, which pertained to the small project stormwater standard and derived from Ord. 48-2017, adopted 12-8-2017, was repealed by Ord. 34-2021, eff. 10-11-2021.

Council, that meets LEED standards for either New Construction and Major Renovation Projects or Core and Shell Projects.

- D. Floor Area and Height Bonuses. If floor area ratio and density bonuses are permitted pursuant to Section 915.04.E, the maximum floor area ratio and height may exceed the amounts specified for the applicable base zoning district, but shall not exceed an additional twenty (20) percent of floor area ratio and height.
- E. Review Process.
- 1) For all non-residential zoning districts, except the LNC Zoning District, the floor area and height bonus of this Section may be permitted as an Administrator's Exception.
 - 2) In the LNC Zoning District, the approval of the floor area and height bonus of this Section shall require the approval of a Project Development Plan by the Planning Commission after a public hearing.
- F. Penalty.
- (1) If a project is awarded a density bonus pursuant to this subsection, then the Developer shall provide the City with satisfactory evidence of having completed the following steps in the process toward achieving LEED certification prior to obtaining a building permit for the project:
 - Registering the project with the U.S. Green Building Council for Leadership in Energy and Environmental Design (LEED) certification under USGBC Combined Design and Construction Review
 - Hiring a LEED Accredited Professional (AP) as part of the Project team
 - Documentation that the Project Team has submitted all Design Phase credits for consideration to USGBC
 - (2) If the project does not attain LEED certification within three (3) years of receiving its initial certificate of occupancy, then the developer shall be subject to a fine equal to one (1) percent of the construction costs. If the fine is not paid within thirty (30) days of the date it is imposed, then the City shall have the authority to revoke the certificate of occupancy for the building.

§ 915.06. Sustainable Development for Publicly Financed Buildings. [Ord. No. 18-2009, § 1, eff. 7-31-2009; Ord. No. 48-2017, § 7, 12-8-2017; Ord. No. 16-2020, § 1, eff. 6-2-2020]

- A. Purpose. The City of Pittsburgh is committed to building and supporting sustainable developments, to yield cost savings to the city taxpayers through reduced operating costs, to provide healthy and productive work environments for all residents and employees, and to contribute to the city's goals of protecting, conserving, and enhancing the region's environmental resources. Additionally, the city shall help to set a community standard of sustainable building.
- B. Applicability. The following development requirements apply to any new construction or renovation project that receives Tax Increment Financing (TIF).

C. Definitions.

CONSTRUCTION COSTS — shall mean the project's total hard and soft costs.

HARD CONSTRUCTION COSTS — shall mean all costs with respect to the construction or rehabilitation of the property/project, including, without limitation, demolition, excavation, proffers, and all other required on- and off-site work, furniture, fixtures and equipment, and all general conditions and general contractor or construction management fees and profit associated with such costs, if any. Soft Costs shall not be included in Hard Costs.

LEED CERTIFIED BUILDING — shall mean a building certified, under the Leadership in Energy and Environmental Design (LEED) Program of the United States Green Building Council, that meets LEED standards for either New Construction and Major Renovation Projects or Core and Shell Projects.

SOFT CONSTRUCTION COSTS — shall mean all architectural, engineering, consulting, accounting, legal and surveying costs, appraisals and inspections (unless related to the financing of the project), costs of licenses and permits, permit expenditures, tests and inspections, cost of bond or insurance premiums, real and personal property taxes, utilities, and title insurance costs, plus any leasing or brokerage fees. Soft Costs shall also include site acquisition costs and financing costs and all development fees. Hard Costs shall not be included in Soft Costs.

D. Sustainable Development Requirements. All projects receiving Tax Increment Financing must receive a LEED Silver rating level.

E. Penalty.

(1) Prior to the sale of any bonds associated with providing Tax Increment Financing (TIF), the Developer shall provide the City with satisfactory evidence of having completed the following steps in the process toward achieving LEED Silver certification:

- Registering the project with the U.S. Green Building Council for Leadership in Energy and Environmental Design (LEED) certification under USGBC Combined Design and Construction Review
- Hiring a LEED Accredited Professional (AP) as part of the Project team
- Documentation that the Project Team has submitted all Design Phase credits for consideration to USGBC

(2) If the project does not attain LEED Silver certification within three (3) years of receiving its initial certificate of occupancy, then the developer shall be subject to a fine equal to one (1) percent of the construction costs. If the fine is not paid within thirty (30) days of the date it is imposed, then the City shall have the authority to revoke the certificate of occupancy for the building.

(3) All Penalties shall be deposited into the Green Building Trust Fund.

§ 915.07. Performance Points System. [Ord. No. 48-2017, § 7, 12-8-2017; Ord. No. 31-2018, § 13, eff. 8-6-2018; Ord. No. 34-2021, § 1, eff. 10-11-2021; Ord. No. 17-2022, § 5, eff. 6-30-2022; Ord. No. 1-2023, § 13, eff. 3-1-2023]

- A. Purpose. The City of Pittsburgh recognizes that communities that embrace innovation and livability while remaining affordable to all citizens will be more sustainable both in their demands on the environment and their ability to continue to grow and succeed over time. This set of incentives for development seeks to increase the provision of affordable housing, increase the number of green buildings constructed, and incent the retention of existing structures that represent the city's built heritage.
- B. Applicability. The following incentives are available within designated zoning districts that include the following elements:
1. Provision enabling use of this bonus system;
 2. Bonus Goals and Points section specifying the points awarded for each option; and
 3. Bonus section specifying how points earned through the incentives can be used.
- C. Definitions.
1. (Reserved)
 2. 95TH PERCENTILE RAIN EVENT — shall mean the measured precipitation depth accumulated over a 24-hour period for the period of record that ranks in the 95th percentile rainfall depth based on the range of all daily event occurrences during this period.
 3. AFFORDABLE HOUSING — shall mean housing with a gross cost, including utilities, that does not exceed thirty (30) percent of the occupant's income.
 4. AREA MEDIAN INCOME (AMI) — shall mean the average medium income of the metropolitan area (MSA) or Non-Metropolitan areas (counties) as established annually by the U.S. Department of Housing and Urban Development (HUD).
 5. BUILDING ENERGY MODEL (BEM) — shall mean the use of a physics-based software simulation of building energy use. A BEM program takes as input a description of a building form and materials, the building's use and operation including schedules for occupancy, lighting, plug-loads, and thermostat settings, and combines these inputs with information about local weather and uses physics equations to calculate thermal loads, system response to those loads, and resulting energy use, along with related metrics like occupant comfort and energy costs.
 6. DISTRIBUTED ENERGY SYSTEMS — shall mean a range of smaller-scale technologies designed to provide electricity and thermal energy closer to consumers. These approaches include fossil and renewable energy technologies, micro-grids, on-site energy storage, and combined heat and power systems. Technologies could include: existing district energy facilities combined heat and power systems, microgrids, fuel cells, and batteries.
 7. FRESH FOOD MARKET — shall mean an establishment (under Grocery Store - General) primarily engage in the sale of grocery products and that provides all of the following:

- i. At least five thousand (5,000) sq. ft. of customer-accessible floor area use for display and sales of a general line of food and nonfood grocery products such as dairy, canned and frozen foods, fresh fruits and vegetables, and fresh and prepared meats, fish, and poultry, intended for home preparation, consumption, and use;
 - ii. At least fifty (50) percent of such customer-accessible sales and display area is used for the sale of general line of food products intended for home preparation and consumption;
 - iii. At least twenty-five (25) percent of retail inventory by volume is in the form of perishable goods, which must include dairy, fresh fruits and vegetables, and frozen foods that may include fresh meats, poultry and fish; and
 - iv. At least twenty-five (25) percent of such customer-accessible sales and display area is used for the sale of fresh fruits and vegetables.
8. GREEN INFRASTRUCTURE — shall mean systems and practices that use or mimic natural processes to infiltrate, evapotranspire, or reuse stormwater on the site where it is generated.
 9. ON-SITE RENEWABLE ENERGY — shall mean renewable sources, such as wind, solar, and co-generation, that are generated on the project site, thereby relieving reliance on the grid and providing alternative sources of electricity.
 10. NATIVE PLANTS — shall mean plants indigenous to Western Pennsylvania. This includes plants that have developed or occurred naturally, excluding invasive species.
 11. NETWORKED WALKSHED — shall mean the land area within a defined walking range, traversable on established streets or pathways.
 12. RAPID SERVICES — shall mean all modes of transit which use an exclusive right-of-way or have at least seventy-five (75) percent of route miles along a fixed guideway.
 13. PREFERRED STORMWATER MANAGEMENT TECHNOLOGIES — shall mean stormwater management practices that can provide additional co-benefits, increased reliability, or better performance than other technologies. Preferred Stormwater Management Technologies must be in accordance with the City of Pittsburgh Stormwater Design Manual.
 14. LOCAL WORKFORCE GROUP — shall mean an organization that provides publicly available workforce development services, career training services, entrepreneurial services, or business incubation and startup services or a local, non-franchise business owned and operated by City of Pittsburgh resident.
 15. UNDERREPRESENTED GROUPS — shall mean existing residents of the Pittsburgh Metropolitan Statistical Area with incomes at or below eighty (80) percent AMI; or lack a four-year degree; or reside in a City of Pittsburgh neighborhood with an unemployment rate that is more than double the City of Pittsburgh average.

D. Bonus Goals and Points.

Goal		Points
1. Zero Energy or Zero Carbon Buildings		
1.a	Demonstrate compliance with International Energy Conservation Code Section C407 Total Building Performance criteria or ASHRAE Standard 90.1-2019 Appendix G Building Performance Rating Method.	1
1.b	Demonstrate compliance with International Energy Conservation Code Section C407 Total Building Performance criteria or ASHRAE Standard 90.1-2019 Appendix G Building Performance Rating Method and buildings shall be designed and constructed with no gas or fossil-fuel fired equipment as described in Zero Code 2.0.	2
1.c	Demonstrate compliance with International Energy Conservation Code Appendix CC: Zero Energy Commercial Building Provisions.	3
2. (Reserved)		
3. On-Site Energy Generation		
At least one (1) point from Zero Energy or Zero Carbon Buildings required prior to using the On-Site Energy Generation points below.		
3.a	At least 25% of energy use is generated from on-site renewable sources.	1
3.b	At least 50% of energy use is generated from on-site renewable sources; or Connecting to distributed energy systems.	2
3.c	75% or more of energy use is generated from on-site renewable sources.	3
4. Affordable Housing		
Available only to projects where at least 50% of the gross floor area is used for residential units.		
Points for options 4.c and 4.d below will only be awarded to development projects providing at least 20 housing units.		
4.a	At least 5-14.9% of units for rent are affordable housing for persons at or below 80% AMI.	1
4.b	At least 5-14.9% of units for sale are affordable housing for persons at or below 80% AMI; or	2
	At least 5-14.9% of units for rent are affordable housing for persons at or below 60% AMI; or	
	At least 15-19.9% of units for rent are affordable housing for persons at or below 80% AMI.	
4.c	At least 15-19.9% of units for sale are affordable housing for persons at or below 80% AMI; or	3

Goal		Points
	At least 15-19.9% of units for rent are affordable housing for persons at or below 60% AMI; or	
	At least 20% or more of units for rent are affordable housing for persons at or below 80% AMI.	
4.d	20% or more of units for sale are affordable housing for persons at or below 80% AMI; or	4
	20% or more of units for rent are affordable housing for persons at or below 60% AMI.	
5. Rainwater		
All vegetated Green Infrastructure must use at least 50% Native Plants.		
5.a	At least 50% of the first two (2) inches of runoff from impervious surfaces is captured and managed using Preferred Stormwater Management Technology installations; or	1
	At least 15% of the first two (2) inches of runoff from impervious surfaces is captured and reused on-site.	
5.b	At least 75% of the first two (2) inches of runoff from impervious surfaces is captured and managed using Preferred Stormwater Management Technology installations; or	2
	At least 30% of the first two (2) inches of runoff from impervious surfaces is captured and reused on-site.	
5.c	100% or more of the first two (2) inches of runoff from impervious surfaces is captured and managed using Preferred Stormwater Management Technology installations; or	3
	45% of the first two (2) inches of runoff from impervious surfaces is captured and reused on-site.	
6. Building Reuse		
6.a	Exterior design of new development is compatible with nearby structures more than fifty (50) years old including the use of similar window and door sizes and materials, cladding materials, bays, cornices, and other primary structure elements.	1
6.b	At least 75% of street facing building facades from structures more than 50 years old are restored and integrated into new development.	2
6.c	Existing building shell is restored and retained.	3
7. Riverfront Public Access Easements, Trails and Amenities		
7.a	For parcels that abut the riverfront and are not separated by a right-of-way, provision of a riverfront public access easement held by the City of Pittsburgh of at least 20 feet in width and runs the entire length of the parcel's riverfront boundary.	1

Goal		Points
7.b	For sites where no trail exists and a public easement has been made, construction of a trail that meets all City standards as well as national standards of Manual on Uniform Traffic Control Devices (MUTCD), and that connects to existing adjacent trails when feasible.	2
7.c	For sites where an existing trail is present and a public easement has been made, improvement of trail to City standards as well as national standards of Manual on Uniform Traffic Control Devices (MUTCD), and that connects to existing adjacent trails when feasible.	1
7.d	For sites where a riverfront or riverfront-adjacent trail is not feasible, development provides public access that allows for or contributes to continuous mobility parallel the riverfront.	2
7.e	Provision of public restrooms accessible from the public riverfront trail, open during expected hours of trail use.	2
7.f	Provision of public access easement and passageway built in accordance with Section 905.04.G.5(a) and (b), providing connections from public rights-of-way to the riverfront.	1
8. Neighborhood Ecology		
8.a	Ground-level surface parking area is designed so that a minimum of 50% of the total paved area is shaded by solar panels.	1
8.b	The top level of a parking structure is designed so that a minimum of 50% of the total area is shaded by solar panels.	1
9. Public Art		
<i>The percent of estimated gross construction cost applied to public art includes artist engagement; design, fabrication and placement of art; insurance; and funds dedicated for ongoing maintenance.</i>		
9.a	At least 1% of the estimated gross construction cost is applied directly to the creation and maintenance of on-site public art as defined by the URA's Public Art Resource Guide for Developers, OR made as a one-time contribution to the City's Public Art Fund for use by the City for art on publicly owned lands within the same neighborhood.	1
9.b	At least 2% of the estimated gross construction cost is applied directly to the creation and maintenance of on-site public art as defined by the URA's Public Art Resource Guide for Developers, OR made as a one-time contribution to the City's Public Art Fund for use by the City for art on publicly owned lands within the same neighborhood.	2
9.c	At least 3% of the estimated gross construction cost is applied directly to the creation and maintenance of on-site public art as defined by the URA's Public Art Resource Guide for Developers, OR made as a one-time contribution to the City's Public Art Fund for use by the City for art on publicly owned lands within the same neighborhood.	3

Goal		Points
10. Urban Fabric		
10.a	Structured parking is designed to allow for conversion to other (non-parking) uses.	2
11. Transit-Oriented Development		
11.a	Site is within ½ mile networked watershed of rapid service routes.	1
11.b	On-site transit station for rapid service routes, designed as an integral part of the development project and to meet Port Authority standards for transit stations.	3
12. Equitable Development		
12.a	Commitment to ensuring ten (10) percent of jobs in the building will be hired from Underrepresented Groups for the first ten (10) years the building is in operation and recertified by the City of Pittsburgh every two (2) years; or	1
	Contribution of a sum equal to \$3 per rentable square foot (RSF) of the project into the City's Equitable Development Trust Fund either in full or annually over a period not to exceed 10 years with a minimum of twenty-five (25) percent of the total sum due at the time the project completes construction; or	
	A signed lease agreement between the applicant and a Local Workforce Group for a period not less than five (5) years.	
12.b.	Commitment to ensuring 20 percent of jobs in the building will be hired from Underrepresented Groups for the first 10 years the building is in operation and recertified by the City of Pittsburgh every two (2) years; or	2
	Contribution of a sum equal to \$4 per rentable square foot (RSF) of the project into the City's Equitable Development Trust Fund either in full or annually over a period not to exceed 10 years with a minimum of twenty-five (25) percent of the total sum due at the time the project completes construction.	
12.c	Commitment to ensuring thirty (30) percent of jobs in the building will be hired from Underrepresented Groups for the first 10 years the building is in operation and recertified by the City of Pittsburgh every two (2) years; or	3
	Contribution of a sum equal to \$5 per rentable square foot (RSF) of the project into the City's Equitable Development Trust Fund either in full or annually over a period not to exceed ten (10) years with a minimum of twenty-five (25) percent of the total sum due at the time the project completes construction.	
13. Fresh Food Access		

Goal		Points
13.a	The building is designed and constructed, or a renovation of a building within the District, includes a Fresh Food Market as a tenant.	2

E. Compliance and Enforcement.

1. If a project is awarded a height or riparian buffer bonus pursuant to this subsection, the Developer shall provide the Department of City Planning with satisfactory evidence of having completed the procedures as developed by the Department of City Planning and the following steps in the process toward achieving the requirements of the bonus:

- a. Zero Energy or Zero Carbon Buildings:

- (1) Application and predesign phase: Submission of intent to comply with International Energy Conservation Code Section C407 Total Building Performance criteria or ASHRAE Standard 90.1-2019 Appendix G Building Performance Rating Method and how the project intends to meet this requirement.
- (2) Design completion and prior to construction: Provide design narrative and construction documents. A BEM will be required showing that the building is designed to comply with International Energy Conservation Code Section C407 Total Building Performance criteria or ASHRAE Standard 90.1-2019 Appendix G Building Performance Rating Method.
- (3) Construction completion and building occupancy: Provide final performance-based commissioning report and/or a building energy model reflecting the as-built condition showing International Energy Conservation Code Section C407 Total Building Performance criteria or ASHRAE Standard 90.1-2019 Appendix G Building Performance Rating Method.
- (4) Following first-year operations completion: Provide proof of whole building energy consumption, verified with utility invoices or digital meter data for energy consumed and produced or third party verified by Professional Engineer or equivalent.

- b. Affordable Housing:

- (1) All projects shall comply with On-Site Inclusionary Standards 907.04.A.6 (e) through (j).
- (2) Application and predesign phase: Provide a matrix that documents the unit count and includes AMI of occupants. Identify in writing all subsidies and/or financing programs the project will utilize in the provision of affordable housing. Provide letters of commitment for any subsidies and/or financing secured.
- (3) Design completion and prior to construction: Provide floor plans that identify housing unit types and location of amenities, entrances, lobbies with

American Disabilities Act (ADA) accessibility, and documenting compliance with On-Site Inclusionary Standards 907.04.A.6 (e) through (j). Provide letters of commitment for any subsidies and/or financing secured. Where letters of commitment are forthcoming, this requirement can be met by submitting the project for review by the Housing Department of the Urban Redevelopment Authority which will provide a memo to the Department of City Planning.

c. Rainwater:

- (1) Application and predesign phase: Provide a conceptual stormwater management plan in accordance with Title 13: Stormwater Management and clearly identifying how the project will satisfy the bonus.
- (2) Design completion and prior to construction: Provide a Stormwater Management Site Plan in accordance with Title 13: Stormwater Management and clearly identifying how the project will satisfy the bonus.
- (3) Construction completion and building occupancy: Provide documentation of completion of all Record Drawings, Completion Certificate, and Final Inspection requirements in accordance with Title 13: Stormwater Management.
- (4) Following first-year operations completion: Provide a performance-based report following one (1) year of operation that shows stormwater management installations are performing as specified in the project's Stormwater Management Site Plan and in accordance with Title 13: Stormwater Management requirements.

d. On-Site Public Art:

- (1) Application and predesign phase: Provide a preliminary public art plan that clearly identifies how the project will satisfy the bonus, including estimated gross construction cost, opportunities for inclusion of public art, and a plan for artist engagement.
- (2) Design completion and prior to construction: The Department of City Planning will approve final plan for public art including a final budget, design of public art element(s), and proof of establishment of fund for ongoing maintenance.
- (3) Construction completion and building occupancy: Provide Department of City Planning with verification that art was installed as designed along with breakdowns and receipts of final project costs. If art was not installed as designed, provide narrative explanation of what alterations were made and why.

e. Equitable Development:

- (1) For projects providing the percentage employment from Underrepresented

Groups, initial compliance report shall be submitted to the Department of City Planning no later than three (3) years following issuance of the Certificate of Occupancy and shall meet standards set by the Department of City Planning at the time of reporting. After that time, compliance reports must be submitted every two (2) years through the first ten (10) years the building is operational.

- (2) For projects contributing to the City's Equitable Development Trust Fund per rentable commercial square foot (RCSF), seventy-five (75) percent of the structure's Gross Floor Area must contain commercial, non-residential uses. For purposes of this calculation, shared spaces shall be excluded from Gross Floor Area.
- (3) If a building should be found at any point out of compliance with this Performance Point, the property owner shall beginning that year pay the fee per rentable commercial square foot (RCSF) option for the remainder of the ten (10) years from the date construction was completed. This bonus point shall be exempt from Section 915.07.E.2, however, the first payment shall be made to the Equitable Development Trust Fund within thirty (30) days of the documentation of non-compliance or the City shall have the authority to revoke the certificate of occupancy for the building.

f. Food Access:

- (1) A project which receives bonus points for the presence of a Fresh Food Market pursuant to subsection 13(a) shall maintain such tenant or use for a period of at least ten (10) years from the issuance of a Certificate of Occupancy. The Fresh Food Market must be located on the ground floor of the structure and accessible through a separate entrance that must be located on the primary street frontage. At the time of application, no Fresh Food Market may be in operation within a 2,640-foot radius of the proposed project, as determined by the Department of City Planning.
2. If the project does not provide satisfactory evidence of achieving the performance standards of each used bonus within three (3) years of receiving its initial certificate of occupancy, then unless otherwise noted in this section, the property owner shall be subject to a fine equal to one (1) percent of the construction costs and shall provide a plan for compliance with the bonus point. If the plan is not submitted and the fine is not paid within thirty (30) days of the date it is imposed, then the City shall have the authority to revoke the certificate of occupancy for the building. If the project is not brought into compliance within one (1) year, then the City shall have the authority to revoke the certificate of occupancy for the building.

The following Performance Points shall have the compliance path as provided, if projects do not provide satisfactory evidence of achieving the performance standards of each used bonus at time of final inspection,

Build

For 3.b, Connecting to distributed energy systems only, the property owner shall be subject to a fine of two (2) percent of construction cost. If the fine is not paid within thirty (30) days of the date it is imposed, then the City shall have the authority to revoke the certificate of occupancy for the building.

Building Reuse

For 6.b and 6c., the property owner shall be subject to a fine of two (2) percent of construction cost. If the fine is not paid within thirty (30) days of the date it is imposed, then the City shall have the authority to revoke the certificate of occupancy for the building.

Urban Fabric

For 10a., the property owner shall be subject to a fine of two (2) percent of construction cost. If the fine is not paid within thirty (30) days of the date it is imposed, then the City shall have the authority to revoke the certificate of occupancy for the building.

Transit Oriented Development

- (1) For 11.a, no fine shall be imposed, nor compliance required, under section 915.07.E.2 if rapid service routes are discontinued through no fault of the property owner.

§ 915.08. Sustainable Development for City-Owned Facilities. [Ord. No. 16-2020, § 2, eff. 6-2-2020]

- A. Purpose. The City of Pittsburgh is committed to building and supporting sustainable developments, to yield cost savings to the City taxpayers through reduced operating costs, to provide healthy and productive work environments for all residents and employees, to contribute to the City's goals of protecting, conserving, and enhancing the region's environmental resources, and to deliver on the City's public dedication to upholding the Paris Climate Accord. Additionally, the City shall help to set a community standard of sustainable building.
- B. Applicability. Unless exempted by Section 915.08.D, all construction of new buildings on City-owned property and all Major Renovations of existing buildings on City-owned property must achieve net-zero energy ready building performance.
- C. Definitions.

MAJOR RENOVATIONS — shall mean any facility project intended to physically modify an existing building in a substantial way, including, but not limited to life safety upgrades, aesthetic upgrades, asbestos abatement, structural upgrades, major equipment replacement, or interior layout changes. In cases where a determination is needed regarding whether a facility project is a Major Renovation, the Zoning Administrator, the Director of City Planning, and the Director of the Department of Permits, Licenses, and Inspections together shall make a determination regarding whether a renovation project is a substantial improvement, taking into account a written recommendation from the Director of the Department of Public Works, whether the construction cost is fifty percent or more of

the replacement value of the structure, and any other factors deemed relevant to the determination.

NET-ZERO ENERGY BUILDING — shall mean a building designed and constructed to be highly efficient and to produce enough energy through renewable resources to offset its energy consumption on an annual basis. A net-zero energy building could also be defined as a net-zero energy ready building that includes on-site or local renewable energy. An onsite solar energy requirement will not be included in Section 915.08, but buildings shall be equipped with the necessary infrastructure to accept renewable energy generation technologies.

NET-ZERO ENERGY READY BUILDING — shall mean a building designed and constructed to be highly energy efficient. These buildings will achieve building performance that complies with the "Pittsburgh Net-Zero Energy Ready Standard," which is defined by the Department of Public Works and can only be updated with approval from the Department of Planning and City Council. These buildings will be designed and constructed with the necessary infrastructure to receive a solar photovoltaic system or other carbon neutral energy generation technologies in the future. Achieving net-zero energy ready will not require any form of building certification, but it will require proof of the building's energy performance over the first twelve (12) months of operation and occupancy, adjusted for annual weather variations.

- D. Exemptions. Section 915.06.B shall be complied with fully unless one or more of the exemptions listed below applies to the project and reason for the exemption(s) is clearly documented by the City:
- (1) Where a renovation is planned for a building that will be removed from the City's portfolio because it is reaching the end of its useful life or being transferred to a new owner within five (5) years.
 - (2) Where a renovation occurs in response to an urgent life-safety matter that requires initiating immediate action within three (3) months or less, with the goal to return the building to its normal operating state.
 - (3) Temporary facilities not intended for long-term occupancy, such as construction and office trailers, as well as non-habitable structures, including but not limited to, picnic pavilions, park shelters, dugouts, and small utility structures.
 - (4) In a life-safety emergency situation, such as a natural disaster, where the Director of the Department of Permits, Licenses, and Inspections determines that compliance with this section would impact the City's ability to respond to an emergency in a timely and safe manner.
 - (5) Where a Major Renovation is determined by the Zoning Administrator, the Director of City Planning, and the Director of the Department of Permits, Licenses, and Inspections to be consistent with the purpose of this section, but where full compliance would not be possible or significantly feasible.

CHAPTER 916
Residential Compatibility Standards

§ 916.01. General. [Ord. No. 31-2018, § 14, eff. 8-6-2018]

- A. Purpose. The Residential Compatibility Standards of this chapter are intended to protect residential properties and neighborhoods from the adverse impacts sometimes associated with adjacent higher density multi-unit residential development and non-residential development and uses.
- B. Applicability.
1. Building Height and Setback Standards. The Building Height and Setback regulations of the Residential Compatibility Standards shall apply to all non-residential development in residential zoning districts, and all development in RM-M, RM-H, RM-VH and all non-residential base zoning districts when such development is located:
 - (a) Across the street from or adjacent to a property that is zoned R1D, R1A, R2, R3, or H; or
 - (b) Within one hundred (100) feet of a property zoned R1D, R1A, R2, R3, or H.
 2. Other Standards. The Screening, Site Design, Operating Hours, Noise, Lighting and Odor Regulations of the Residential Compatibility Standards shall apply to all non-residential development in residential zoning districts, and to all development in all non-residential base zoning districts when such development is located:
 - (a) Across the street from or adjacent to a property that is zoned R1D, R1A, R2, R5, RM, or H; or
 - (b) Within two hundred (200) feet of a property zoned R1D, R1A, R2, R3, RM, or H.
- C. Exemptions. Notwithstanding the applicability statement of Section 916.01.B, the following shall be exempt from the Residential Compatibility Standards to the extent indicated:
1. Residential Compatibility Standards shall not be triggered by property that is public right-of-way, railroad track, roadway, median, or utility easement in an RSD, RSA, RT, RTS, RM, or H.
 2. The following shall specifically be exempt from compliance with Residential Compatibility Standards:
 - (a) Development within the GT, Golden Triangle, Riverfront and Planned Development Districts;
 - (b) Structural alteration of an existing building when such alteration does not increase the building's square footage or height;
 - (c) A change in use that does not increase the number of off-street parking spaces required (as shown in the Schedule of Off-Street Parking Standards, Section 914.02.A.

- D. Site Plan Review. All development that is subject to Residential Compatibility Standards shall require site plan review and approval in accordance with the Site Plan Review procedures of Section 922.04.

§ 916.02. Building Height and Setback Standards. [Memo of 3-23-2017]

- A. Building Setbacks. The Building Setback regulations of the Residential Compatibility Standards shall apply to the sides of properties that are adjacent to or across the street from properties that are zoned R1D, R1A, R2, R3, or H in accordance with the following regulations.
1. Interior Sideyard Abuts Interior Sideyard of "R" Property. If the Interior Sideyard of a zoning lot of the subject property abuts the Interior Sideyard of a zoning lot zoned "R", the following setback requirements shall apply:
 - (a) Minimum Front Setback. The Front Setback of the subject property shall be the same as the required Front Setback of the abutting Residential zoning district for the first fifty (50) feet adjacent to the Residential zoning lot.
 - (b) Minimum Rear Setback. The Rear Setback of the subject property shall be the same as the required Rear Setback for the abutting Residential Zoning district or fifteen (15) feet, whichever is greater.
 - (c) Minimum Interior Sideyard Setback. The Interior Sideyard Setback of the subject property shall be a minimum of fifteen (15) feet.
 2. Interior Sideyard Abuts Rear of "R" Property. If the Interior Sideyard of a zoning lot (the subject property) abuts the Rear Yard of a zoning lot zoned "R", the following setback requirements shall apply:
 - (a) Minimum Front Setback. The Front Setback of the subject property shall be the same as the required Exterior Sideyard Setback of the abutting Residential zoning district for the first fifty (50) feet adjacent to the Residential zoning lot.
 - (b) Minimum Rear Setback. The Rear Setback of the subject property shall be a minimum of fifteen (15) feet.
 - (c) Minimum Interior Sideyard Setback. The Interior Sideyard Setback of the subject property shall be a minimum of fifteen (15) feet.
 3. Street Sideyard Across Street or Way from Front of "R" Property. If the Street Sideyard of a zoning lot of the subject property is across a street or way from the Front Yard of a zoning lot zoned "R", the following setback requirements shall apply:
 - (a) Minimum Street Sideyard Setback. The Street Sideyard Setback of the subject property shall be a minimum of fifteen (15) feet.
 4. Street Sideyard Across Street or Way from Street Sideyard of "R" Property. If the Street Sideyard of a zoning lot of the subject property is across a street or way from the Street Sideyard of a zoning lot zoned "R", the following setback requirements shall apply:

- (a) Minimum Front Setback. The Front Setback of the subject property shall be the same as the required Front Setback of the abutting Residential zoning district for the first fifty (50) feet adjacent to the Residential zoning lot.
5. Street Sideyard Across Street or Way from Rear of "R" Property. If the Street Sideyard of a zoning lot (the subject property) is across a street or way from the Rear of a zoning lot zoned "R", the following setback requirements shall apply:
- (a) Minimum Front Setback. The Front Setback of the subject property shall be the same as the required Street Sideyard Setback of the abutting Residential zoning district for the first fifty (50) feet adjacent to the Residential zoning lot.
 - (b) Minimum Street Sideyard Setback. The Street Sideyard Setback of the subject property shall be a minimum of fifteen (15) feet.
6. Rear Across Street or Way from Front of "R" Property. If the Rear of a zoning lot of the subject property is across a street or way from the Front of a zoning lot zoned "R", the following setback requirements shall apply:
- (a) Minimum Rear Setback. The Rear Setback of the subject property shall be the same as the required Front Setback of the abutting Residential zoning district or fifteen (15) feet, whichever is greater.
7. Rear Abuts Interior Sideyard of "R" Property. If the Rear of a zoning lot of the subject property abuts the Interior Sideyard of a zoning lot zoned "R", the following setback requirements shall apply:
- (a) Minimum Rear Setback. The Rear Setback of the subject property shall be a minimum of fifteen (15) feet.
 - (b) Minimum Street Sideyard Setback. The Street Sideyard Setback of the subject property shall be the same as the required Front Setback of the abutting Residential zoning district for the first fifty (50) feet adjacent to the Residential zoning lot.
8. Rear Across Street or Way from Street Sideyard of "R" Property. If the Rear of a zoning lot of the subject property is across a street or way from the Street Sideyard of a zoning lot zoned "R", the following setback requirements shall apply:
- (a) Minimum Rear Setback. The Rear Setback of the subject property shall be the same as the required Street Sideyard Setback of the abutting Residential zoning district or fifteen (15) feet, whichever is greater.
9. Rear Abuts Rear of "R" Property. If the Rear of a zoning lot of the subject property abuts the Rear of a zoning lot zoned "R", the following setback requirements shall apply:
- (a) Minimum Rear Setback. The Rear Setback of the subject property shall be the same as the required Rear Setback of the abutting Residential zoning district or fifteen (15) feet, whichever is greater.

B. Building Heights.

1. Within 50 Feet of Residential. Structures or portions of structures shall not exceed forty (40) feet or three (3) stories in height when located within fifty (50) feet of property zoned R1D, R1A, R2, R3, or H.
2. 51 to 100 Feet from Residential. Structures or portions of structures shall not exceed fifty (50) feet or four (4) stories in height when located fifty-one (51) to one hundred (100) feet from property zoned R1D, R1A, R2, R3, or H.
3. More Than 100 Feet from Residential. No compatibility-related height restrictions shall be imposed on structures located more than one hundred (100) feet from property zoned R1D, R1A, R2, R3, or H.

§ 916.03. Screening.

All properties subject to Residential Compatibility Standards shall be subject to the Screening Standards of Chapter 918.

§ 916.04. Site Design.

The following additional site design standards shall apply to development that is subject to the Residential Compatibility Standards of this Chapter. These provisions shall not apply to uses that are accessory to uses permitted By-Right in an R1D, R1A, R2, R3, RM, or H.

- A. No swimming pool, tennis court, ball field, or playground area shall be permitted within fifty (50) feet of property zoned R1D, R1A, R2, R3, RM, or H.
- B. Dumpsters and refuse receptacles shall be located a minimum of thirty (30) feet from any property zoned R1D, R1A, R2, R3, RM, or H.
- C. Parking and loading shall not be located within fifteen (15) feet of properties zoned R1D, R1A, R2, R3, RM, or H. Additional setbacks shall be required if the Zoning Administrator finds that the size and number of trucks and the hours of operation would have impact on adjacent residential properties.

§ 916.05. Operating Hours. [Ord. 36-2005, § 1, eff. 12-14-2005; Ord. No. 13-2017, § 1, 3-6-2017]

The following operating hour restrictions shall apply to all development that is subject to Residential Compatibility Standards:

- A. Collection of Garbage and Recyclables. No use subject to Residential Compatibility Standards shall be served by garbage or recyclables collection services between the hours of 10:00 p.m. and 6:00 a.m.
- B. Loading Operations. No use subject to Residential Compatibility Standards shall conduct loading or unloading operations between the hours of 10:00 p.m. and 6:00 a.m.
- C. (Reserved)

§ 916.06. Noise. [Ord. No. 13-2017, § 2, 3-6-2017]

No use that is subject to Residential Compatibility Standards shall generate noise in excess of forty-five (45) dB(A), or three (3) dB(A) above Background Sound Level, whichever is greater, between the hours of 10:00 p.m. and 6:00 a.m. or in excess of fifty-five (55) dB(A), or three (3) dB(A) above Background Sound Level, whichever is greater, at all other times, as measured at the lot line of any lot zoned R1D, R1A, R2, R3, RM, or H.

- A. Background Sound Level shall mean the measured sound level in the area, exclusive of extraneous sounds and the sound contribution of the specific source in question.
- B. Applications for generators shall include a commitment to schedule regular testing and maintenance during daytime hours in order to minimize impact on surrounding residential properties.

§ 916.07. Lighting.

All lights used by development that is subject to Residential Compatibility Standards shall be arranged and controlled so as to deflect light away from any lot that is zoned RSD, RSA, RT, RM, or H. Any light or combination of lights that casts light on a public street shall not exceed one (1) foot-candle (meter reading) as measured from the centerline of such street. Any light or combination of lights that cast light on a lot zoned R1D, R1A, R2, R3, RM, or H shall not exceed 0.4 foot-candles (meter reading), as measured no more than three (3) feet inside the lot line of a lot that is zoned R1D, R1A, R2, R3, RM, or H.

§ 916.08. Odor.

No use that is subject to Residential Compatibility Standards shall be operated in a manner that causes odors that are detectable after the air has been diluted with six (6) or more volumes of odor-free air, as measured within the lot lines of a lot that is zoned R1D, R1A, R2, R3, RM, or H.

§ 916.09. Waiver of Residential Compatibility Standards.

The Zoning Board of Adjustment may approve a Special Exception according to the provisions of Section 922.07 to waive one (1) or more of the Residential Compatibility Standards imposed by this Chapter, subject to the following standards:

- A. The Board shall determine that the waiver will not create detrimental impacts on the surrounding properties, taking into consideration the physical relationship of the proposed use and structure to surrounding residential uses and structures;
- B. The Board shall impose alternative methods which will cause the development to comply with the purpose of the Residential Compatibility Standards;
- C. Building height restrictions found in this chapter may be waived only if there is a taller intervening structure between the proposed structure and the adjacent residential zoning district, in which case the height shall be limited to the height of the intervening structure; and
- D. Setbacks for accessory uses, required by Section 912.04, shall be waived only if additional

screening is required by the Board, beyond that required by Chapter 918, such that the items are completely screened from view from abutting residential properties at grade level of the residential properties.

CHAPTER 917 Operational Performance Standards

§ 917.01. General.

- A. Purpose. The operational performance standards included in this Chapter are intended to protect the health, safety, and welfare of the citizens of Pittsburgh by regulating potential nuisance features associated with certain land uses.
- B. Applicability. The standards of this Chapter are standards of performance that apply to uses after they have been established. They are intended to provide quantifiable rules of operation that can be used to ensure that uses do not become nuisances. They are not intended to be conditions for development approval. Buildings, structures or tracts of land that are established, developed or constructed shall comply with all applicable performance standards of this Chapter, except that the following activities shall only be subject to Section 917.04, Air Quality/Emissions, and Section 917.06, Construction Operations:
 - 1. Temporary construction, excavation, and grading; and
 - 2. Demolition activities that are necessary and incidental to the development of facilities on the same lot, on another of several lots being developed at the same time, or on the public right-of-way or easement.
- C. Conflict with Other Zoning Provisions. In the case of any conflict between the performance standards of this Chapter and the other regulations of this Code, the more restrictive shall control.
- D. Conflict with Local, State or Federal Regulations. In case of conflict between the performance standards set forth in this Chapter and any rules or regulations adopted by any other governmental agencies, the more restrictive shall apply.

§ 917.02. Noise. [Ord. No. 13-2017, § 3, eff. 3-6-2017]

These standards apply to noise from any machinery or equipment that is part of or operated within any development, including continuous and intermittent noise, noise emitted by speaker boxes, pick-up and delivery trucks, and any other commercial or industrial activities that are under the control of the occupant of a building site.

- A. Method of Measurement. Noise shall be measured with a sound level meter that meets the standards of the American National Standards Institute (ANSI Section S1.4-1983 (R2006), Type 1 or Type 2.) Noise levels shall be measured using an A-Frequency weighting filter. Impact noises, produced when two (2) or more objects strike each other, shall be measured using the fast time-weighting of the sound level meter, and other noises using slow time-weighting. Impact noises shall be considered to be those noises whose peak values are more than three (3) decibels higher than the slow time-weighted noise measurements.
- B. Maximum Permitted Sound Levels. The maximum permitted sound pressure levels in decibels across lot lines and district boundaries shall be in accordance with following table. This table shall be used to determine the maximum noise level, measured in A-weighted decibels, that shall be permitted at the property line of the closest use in each of the following

categories. Background Sound Level shall mean the measured sound level in the area, exclusive of extraneous sounds and the sound contribution of the specific source in question.

Receiving Land Use (not the Zoning District)	Sound Level Limit (dBA)	
	7:00 a.m.—10:00 p.m.	10:00 p.m.—7:00 a.m.
Industrial & Manufacturing	75 or 3 above background sound level, whichever is greater.	75 or 3 above background sound level, whichever is greater.
All Other Uses	65 or 3 above background sound level, whichever is greater.	60 or 3 above background sound level, whichever is greater.

§ 917.03. Vibration.

No use shall be operated in manner that causes earthborne vibrations in excess of the displacement values set forth below, on or beyond the property line of the closest use in each of the following categories:

Receiving Land Use	Peak Particle Velocity (inches per second)	
	7:00 a.m.—10:00 p.m.	10:00 p.m.—7:00 a.m.
Residential	0.03	0.01
Public or Institutional	0.06	0.06

§ 917.04. Air Quality/Emissions.

Any land use or activity that is a source of the emission of smoke, particulate matter or other air pollutants shall comply with all applicable state and federal standards and regulations governing air quality and emissions. Any such land use or other activity shall obtain and maintain all necessary licenses and permits from the appropriate County, State, and Federal agencies.

§ 917.05. Hazardous Materials.

Any land use or activity that involves the use of toxic, hazardous, or radioactive materials shall comply with all applicable state and federal regulations governing the use, storage, transportation, emission, and disposal of such materials. Any such land use or other activity shall also obtain and maintain all necessary licenses from the appropriate State and Federal agencies, such as the United States Environmental Protection Agency.

§ 917.06. Construction Operations. [Ord. No. 13-2017, § 3, eff. 3-6-2017; Ord. No. 35-2017, § 1, 7-13-2017]

Construction operations for projects that have current and valid permits are permitted during the hours of 6:00 AM and 8:00 PM Monday through Friday and 7:00 AM and 8:00 PM on Saturdays and Sundays, and subject to the following standards:

- A. Impact construction or demolition operations such as pile drivers, jackhammers, concrete saws, etc., shall be limited to between the hours of 8:00 AM and 6:00 PM, Monday through Saturday;
- B. A Construction Management Plan may be required as a condition of zoning approval at the determination of the Zoning Administrator and shall be required for;
 - a. Any construction operation that includes a structure or multiple structures totaling more than 200,000 square feet of floor area.
 - b. Any structure or group of structures subject to Residential Compatibility Standards and that include more than 50,000 square feet of floor area; or
 - c. Any construction operation including new construction or exterior renovation on a lot size greater than 2,400 square feet where the existing or proposed building occupies 90 percent of the lot or greater.
- C. Construction efforts necessary for emergency and critical public works operations are exempted from the standards of this section;
- D. Exceptions to the construction operations standards of this section may be granted as part of a Construction Management Plan, which is subject to review and approval by the Zoning Administrator, Director of the Department of Public Works, and the Director of Permits, Licenses and Inspections, who may require conditions of approval including but not limited to noise mitigation and additional time constraints;

§ 917.07. Waiver of Operational Performance Standards. [Ord. No. 13-2017, § 3, eff. 3-6-2017²]

The Zoning Board of Adjustment may approve a Special Exception, according to the provisions of Section 922.07, to waive one (1) or more of the Operational Performance Standards imposed by this Chapter, subject to the following standards:

- A. The Board shall determine that the waiver will not create detrimental impacts on the surrounding properties, taking into consideration the physical relationship of the proposed use and structure to surrounding uses and structures, the probable hours of operation, and the emission of odors, fumes, dust, noise, vibration or glaring light;
- B. The waiver does not cause the proposed project to violate any Federal, State or other local laws which may apply; and
- C. The Board shall impose alternative methods which will cause the development to comply with the stated purpose and intent of the Operational Performance Standards.

2. Editor's Note: This ordinance provided for the renumbering of § 917.06 as § 917.07.

CHAPTER 918
Landscaping and Screening Standards

§ 918.01. General. [Ord. 42-2005, § 27, eff. 12-30-2005]

- A. Purpose. The Landscaping and Screening Standards of this chapter are intended to:
1. Encourage the planting of appropriate new vegetation and the preservation of existing vegetation to enhance the built environment and to protect and sustain the natural environment; and
 2. Reduce potential nuisances by requiring a visual screen between uses to mitigate the adverse effects of wind and air turbulence; heat and noise; motor vehicle headlight glare and other artificial light intrusion; and other adverse impacts associated with adjoining or nearby uses.
- B. Applicability. The landscaping and screening standards of this chapter shall apply to all development that is subject to the Site Plan Review provisions of Section 922.04, the Project Development Plan provisions of Section 922.10 and the Final Land Development Plan Provisions of Section 922.11.C, except that the following shall be exempt to the extent indicated.
1. Off-Street Parking Structures. Off-street parking structures shall be exempt from the off-street parking area landscaping requirements of Section 918.02.B, but shall be screened in accordance with the screening provisions of Section 918.03.
 2. Small Off-Street Parking Areas. Off-street parking areas that meet the following criteria shall be exempt from the off-street parking area landscaping requirements of Section 918.02.B and from the screening requirements of Section 918.03.
 - (a) Residential Districts. Off-street parking areas in residential zoning districts and containing four (4) or fewer spaces shall be exempt from the off-street parking area landscaping requirements of Section 918.02.B and from the screening requirements of Section 918.03.
 - (b) Nonresidential Districts. Off-street parking areas in nonresidential zoning districts and containing ten (10) or fewer spaces shall be exempt from the off-street parking area landscaping requirements of Section 918.02.B and from the screening requirements of Section 918.03.
- C. Special Definitions. The following special definitions shall apply throughout the Landscaping and Screening Regulations of this chapter.
1. Deciduous means a plant with foliage that is shed annually.
 2. Evergreen means a plant with foliage that persists and remains green year-round.
 3. Landscaped area means a portion of the site which is planted.
 4. Landscaping means any combination of living plants, such as trees, shrubs, vines, groundcover, flowers, or grass.

5. Screen means a method of reducing the impact of noise and unsightly visual intrusions with less offensive or more harmonious elements, such as plants, berms, fences, walls, or any appropriate combination.
6. Shade tree means a deciduous tree -rarely an evergreen-planted primarily for its high crown of foliage or overhead.
7. Shrub means a woody plant, smaller than a tree, consisting of several small stems from the ground or small branches near the ground; may be deciduous or evergreen.
8. Street Tree means a species of tree particularly suited to the requirements of the street environment.
9. Tree means a large woody plant having one (1) or several self supporting stems or trunks and numerous branches. May be classified as deciduous or evergreen.

§ 918.02. Landscaping Requirements. [Ord. 42-2005, §§ 28, 29, eff. 12-30-2005; Ord. No. 34-2021, § 1, eff. 10-11-2021]

- A. General Landscaping. Any portion of a developed lot or property that is not used for the location of buildings, structures, accessory uses, off-street parking, loading areas, sidewalks or similar features shall be landscaped. Landscaped areas shall be irrigated. Mulch, stone and other non-vegetative material shall not be substituted for landscaping. Paving that exceeds requirements for off-street parking areas, driveways, loading areas and sidewalks shall not be substituted for landscaping.
- B. Off-Street Parking Areas. A minimum of twenty-five (25) square feet of landscaping shall be provided for each parking space in parking lots with up to one hundred (100) parking spaces. For parking lots with more than one hundred (100) parking spaces, a minimum thirty (30) square feet of landscaping shall be provided for each parking space. Required landscaping shall take the form of planter strips, landscaped areas, or perimeter landscaping. The landscaping shall include at least one (1) tree for every five (5) parking spaces. Landscaped areas shall be dispersed throughout the parking lot. Planter strips, landscaped areas, and perimeter landscaped areas shall have a minimum width of five (5) feet.
- C. Street Trees. At least one (1) street tree shall be provided for each thirty (30) linear feet of property adjoining a public street. Street trees shall be planted between the sidewalk and street curb. If planting in that area is not possible, street trees shall be installed within twenty (20) feet of street curb. Trees planted between a sidewalk and street curb must have a minimum nonpaved planting area of thirty (30) square feet, with a minimum depth of three (3) feet. In cases where there is an existing pattern of street trees, compatible new trees shall be planted according to the existing tree spacing and pattern to the greatest extent possible. In cases where street trees are to be provided by the Department of Public Works, applicant shall provide proof of application through the Street Tree Program to the Zoning Administrator.

§ 918.03. Screening Requirements. [Ord. No. 34-2009, § 1, eff. 12-11-2009]

The following screening standards shall apply.

- A. Applicability. The following site features shall be screened on all sides except those sides that abut (not across a street) other features required to be screened. If subsections 1, 2, or 3 below face a residential zone, they must be equipped with a removable screen:
1. Refuse Receptacles and Waste Removal Areas.
 2. Open Storage and Open Structures.
 3. Loading Docks, Service Yards, and Exterior Work Areas.
 4. Off-Street Parking Areas.
- B. Standards. Required screening shall comply with the following standards. All items noted in Section 918.03.A. above shall be located such that the access location is not on the street side of any residential lot, and does not face on to the street side of any other residential lot. All items noted in Section 918.03.A.1 above are required to be screened from view from adjacent property and right of ways, with a visual barrier as defined in this section.
1. Materials and Methods. Required screening shall be provided in the form of new or existing natural plantings, walls and fences, topographic changes, buildings, horizontal separation, or a combination, according to the provisions of this chapter.
 - (a) Landscaping. Landscape screening shall be a minimum depth of five (5) feet, and plant materials shall be a minimum height of forty-two (42) inches at the time of planting. Evergreen plants or plants with dense structure year round shall be employed.
 - (b) Fences and Walls. Walls or fences shall be compatible with architectural style and building materials, shall be constructed of appropriate materials, including, but not limited to iron grating, wood, stone, or brick, and shall provide the required degree of opacity, durability and aesthetic compatibility with the surrounding context. The finished side of a fence or wall shall be placed on the outside of the fenced area. Landscaping may be combined with walls or fences to achieve the required screening. Barbed wire and razor wire are not permitted. Chain link fencing with slat inserts is permitted only in GI zoning districts. Walls greater than forty (40) feet in length shall incorporate some form of visual relief, including, but not limited to, pattern breaks, varying wall construction, vertical features such as columns, differing construction materials, or a combination of the above.
 - (c) Topographic Changes. Changes in topography, such as changes in grade or earthen berms may be used to provide required screening. The slope of the topographical change shall be of a grade that is suitable for maintenance and soil stability. All slopes are to be planted.
 - (d) Buildings. Buildings or structures on the same site may be used for screening, as long the buildings or structures are not erected for the sole purpose of screening and meet all other requirements of this Code.
 - (e) Horizontal Separation. Distance between a use or object to be screened and the adjoining property or public right-of-way, may be used in combination with

landscaping to provide required screening. The Zoning Administrator may approve a reduction in screening requirements with additional separation beyond required setbacks.

2. Height. Required screening shall be at least as tall as the object to be screened and no taller than eight and one-half (8½) feet. Parking lots shall be screened to a minimum height of forty-two (42) inches. The Zoning Administrator may approve a reduction in screening requirements with additional separation beyond required setbacks.
3. Opacity. The screen shall be designed and installed so that the object being screened is not more than twenty (20) percent visible when viewed through the screen.
4. Location of Screening. Any screening required by this section shall be located within the property lines of the lot containing the use subject to screening.

§ 918.04. Plant Material and Maintenance Standards.

The requirements of this section apply to all development subject to landscaping or screening standards.

- A. Plant Materials. The selection of plant materials shall be based upon the City of Pittsburgh's climate and soils, and the selection of native and indigenous plant materials is strongly encouraged. A list of allowable and preferred plant species shall be available in the office of the Zoning Administrator.
- B. Plant Quality. All plants shall be A-grade or No. 1 grade, with coherent root ball or wrapped roots, of normal health, height, leaf density and spread appropriate to the species.

§ 918.05. Installation Maintenance and Replacement.

- A. Installation. All landscaping shall be installed according to sound nursery practices in a manner designed to encourage vigorous growth. All landscape material, living and non-living, shall be healthy and in place prior to issuance of final Occupancy Certificate. A temporary Certificate of Occupancy may be issued prior to installation of required landscaping if written assurances and financial guarantees are submitted ensuring that planting will take place when planting season arrives.

- B. Maintenance and Replacement.

Trees, shrubs, fences, walls and other landscape features depicted on plans approved by the City shall be considered as elements of the project in the same manner as parking, building materials and other details are elements of the plan.

The land owner, or successors in interest, or agent, if any, shall be jointly and severally responsible for the following:

1. Regular maintenance of all landscaping in good condition and in a way that presents a healthy, neat, and orderly appearance. All landscaping shall be maintained free from disease, pests, weeds and litter. This maintenance shall include weeding, watering, fertilizing, pruning, mowing, edging, mulching or other maintenance, as needed and in

- accordance with acceptable horticultural practices;
2. The repair or replacement of required landscape structures (e.g., walls, fences) to a structurally sound condition;
 3. The regular maintenance, repair, or replacement, where necessary, of any landscaping required by this Chapter; and
 4. Continuous maintenance of the site.

§ 918.06. Alternative Compliance.

The Zoning Administrator may approve an Administrator's Exception, according to the provisions of Section 922.08, for Alternative Compliance to the provisions of this chapter, subject to the following standards. The Administrator shall give favorable consideration to designs that attempt to preserve and incorporate existing vegetation in excess of the minimum standards and plans that demonstrate innovative design and use of plant materials.

- A. The alternative plan shall illustrate that the intent of the provisions of this chapter can be more effectively met, in whole or in part, through the alternative means;
- B. The proposed solution shall meet or exceed otherwise applicable landscaping and screening requirements;
- C. Natural land characteristics or existing vegetation on the proposed development site would achieve the intent of this chapter;
- D. Innovative landscaping or architectural design is employed on the proposed development site to achieve a screening effect that is equivalent to the screening standards of this chapter;
- E. The required landscaping or buffering would be ineffective at maturity due to topography or the location of improvements on the site; or
- F. The proposed alternative represents a plan that is as good or better than a plan prepared in strict compliance with the other standards of this chapter.

CHAPTER 919

Signs

§ 919.01. General. [Ord. 22-2002, §§ 1A, 1C, eff. 6-25-2002; Ord. 42-2005, § 30, eff. 12-30-2005; Ord. No. 31-2011, § 3, eff. 12-31-2011; Ord. No. 1-2026, eff. 1-28-2026]

A. Purpose. The sign regulations of this chapter are intended to:

1. Encourage sound practices with respect to size, spacing, illumination, type and placement of signs for the purpose of safeguarding and enhancing properties in each of the various types of zoning districts;
2. Provide an environment that will promote the orderly growth and development of business and industry in the City;
3. Protect public investment in public structures, open spaces and thoroughfares;
4. Promote the safety and welfare of the people at-large.
5. Recognize the City's environmental attributes, systems of parks, Greenway Program, Riverfront Plan, and public open spaces and the effect that signage can have on these features and programs;
6. Recognize the City's built environment, its significant architecture and cultural resources which provide the City with a sense of its history;
7. Recognize that the unique views and vistas offered by Pittsburgh's many hills, valleys and rivers provide the City with a visual amenity which helps to attract residents, businesses and visitors to the City;
8. Preserve and perpetuate uncluttered and natural views for the enjoyment and environmental enrichment of the citizens of the community and visitors hereto;
9. Enhance the community appearance, reduce visual clutter and blight, and promote the recreational value of public travel and the economic development of the community;
10. Promote safety upon the streets and highways in the City;
11. Recognize that advertising signs are a legitimate advertising medium in the locations which neither lessen the visual attributes of the City through the placement of such signs, nor cause confusion, safety problems or lessen the ability to identify local businesses through visual clutter; and
12. Regulate advertising signs, or billboards, within the City in the interests of economic prosperity, civic pride, quality of life and general welfare of the people who reside in, are visiting, are employed in or conduct business in the City.

B. Applicability. The sign regulations of this chapter shall govern and control the erection, rehabilitation, enlargement, illumination, animation and maintenance of all signs that are visible from the public right-of-way or from property other than that on which the subject sign is located. Nothing herein contained shall be deemed a waiver of the provisions of any

other ordinance or regulation applicable to signs. No sign shall be painted on a wall or on the surface of any window or door of a building or other structure until the provisions of this Code are satisfied.

C. Special Definitions. The following special definitions shall apply throughout the sign regulations of this chapter.

1. SIGN — means any surface, fabric or device bearing lettered, trademarked, pictorial, or sculptured matter designed to convey information visually and expose to public view the identity of a business, organization, building, or commercial product, service, or activity; or any structure designed to carry the above visual information.

(a) A sign includes, but is not limited to:

- (1) Separate structure consisting of a face or faces upon which information is portrayed and its supporting elements including foundation; or
- (2) A structure or device erected in the form of a symbol or trademark; or
- (3) A structure or device designed to carry visual information, attached or fastened to another structure, such as on the wall or roof of a building; or
- (4) A surface of a structure or device upon which lettered, pictorial or other visual information is painted; or
- (5) Window signs, cloth banners, balloons, festoon lighting, pennants or other devices designed to attract attention by animation or direct or reflected lighting; or
- (6) Visual information projected onto a surface by any device; or
- (7) Search light or spotlights used to bring attention to any product, service, activity, event or location.

(b) A sign does not include:

- (1) Merchandise, pictures or models of products or services incorporated in a window display;
- (2) Holiday decorations customarily displayed in a window or on or about the premises of residential structures, or in windows of business uses, without business advertising; or
- (3) Works of art or physical constructs that do not promote product, service, or activity.

2. ADVERTISING SIGN — means a sign that directs attention to a business, commodity, service or entertainment, conducted, sold or offered:

- (a) Only elsewhere than upon the premises where the sign is displayed; or
- (b) As a minor and incidental activity upon the premises where the sign is displayed.

3. **BUSINESS SIGN** — means a sign that directs attention to a business, organization, profession or industry located upon the premises where the sign is displayed; to the type of products sold, manufactured or assembled; and/or to the service or entertainment or other activity offered on such premises; except a sign pertaining to the preceding if such activity is only minor and incidental to the principal use of the premises.
4. **IDENTIFICATION SIGN** — means a sign used to identify the name of the principal entity occupying the premises; the profession of the principal occupant; the name of the building on which the sign is displayed; the name of a public destination facility, or portion thereof, including any sponsor or memorialized names assigned thereto; or the name of the major enterprise or principal product or service on the premises.
5. **ELECTRONIC SIGN** — means any sign, video display, projected image, or similar device or portions thereof with text, images, or graphics generated by solid state electronic components. Electronic signs include, but are not limited to, signs that use light emitting diodes (LED), plasma displays, fiber optics, or other technology that results in bright, high-resolution text, images, and graphics.
6. **LARGE VIDEO DISPLAY** — means an electronic sign that features real-time, full-motion, or pictorial imagery of television quality or better.
7. **LUMINANCE** — means the photometric quantity most closely associated with the perception of brightness. Luminance is measured in candelas per square meters or "nits".
8. **MOTION** — means the depiction of movement or change of position of text, images, or graphics. Motion shall include, but not be limited to, visual effects such as dissolving and fading text and images, running sequential text, graphic bursts, lighting that resembles zooming, twinkling, or sparkling, changes in light or color, transitory bursts of light intensity, moving patterns or bands of light, expanding or contracting shapes, and similar actions.
9. **NITS** — are a unit of measure of brightness or luminance. One (1) nit is equal to one (1) candela/square meter.
10. **PUBLIC DESTINATION FACILITY, MAJOR** — means a structure providing as its primary use cultural services, public assembly, and recreation and entertainment facilities (general, indoor and outdoor and gaming enterprise) and meeting the following criteria:
 - a. A minimum annual attendance or patronage of five hundred thousand (500,000) people, or
 - b. Indoor or outdoor seating to accommodate a minimum of ten thousand (10,000) people at a single event.Hospitals, religious assembly uses, flea markets, temporary events, primary and secondary schools are not included in the definition of major public destination facility.
11. **RIVERS** — means the Allegheny, Monongahela, and Ohio Rivers within the City of

Pittsburgh.

12. **SOLID STATE ELECTRONIC COMPONENTS** — means based on or consisting chiefly or exclusively of semiconducting materials and components and related devices.
13. **SPONSOR** — means a person, entity, or organization that provides financial and other support for an event or activity taking place on the premises.
14. **TWIRL TIME** — is the time it takes for static text, images, and graphics on an electronic sign to change to a different text, images, or graphics on a subsequent sign face.
15. **NONCONFORMING SIGN** — means a sign, lawfully existing on the effective date specified by the provisions of Section 901.05 that does not completely conform to the sign regulations applicable in the district in which it is located. Nonconforming signs are regulated by Section 921.03.F.
16. **AREA OF SIGN** — means the entire area within a single continuous perimeter enclosing the extreme limits of writing, representation, emblem or any figure or similar character together with any frame or other material or color forming an integral part of the display or used to differentiate such sign from the background against which it is placed (excluding the necessary supports or uprights on which such sign is placed or apron designed to cover such uprights or work board installed to provide a safe area for servicing such sign). Where a sign has two (2) or more faces on the same side, the area of all faces shall be included in determining the area of the sign, except that when two (2) such faces are placed back-to-back and are at no point more than two (2) feet from one (1) another, the area of the sign shall be taken as the area of one (1) face if the two (2) faces are of equal area, or as the area of the larger face if the two (2) faces are of unequal area.
17. **BACK-TO-BACK SIGNS** — means a structure with two (2) parallel and directly opposite signs with their faces oriented in opposite directions and spaced no more than two (2) feet apart.
18. **DECKED SIGN** — means a structure consisting of two (2) signs, one (1) above the other, both facing the same direction.
19. **FACE OF SIGN** — means the side or sides of a sign on which the lettered, pictorial or sculptured matter designed to convey information is to be placed.
20. **GROUND SIGN** — means a free standing sign that is not attached to any building and is supported by uprights, braces or a type of object that is anchored within the ground or if located above ground.
21. **V-TYPE SIGN** — means a structure of two (2) signs arranged in the shape of the letter "V" when viewed from above and with their faces oriented in opposite directions, with the faces separated by an angle not to exceed forty-five (45) degrees.
22. **TEMPORARY EVENT SIGN** — means a sign that advertises a specific event, including but not limited to sporting events, festivals and parades, which takes place not

more than once per year.

23. (Reserved)
24. **RESIDENTIAL STRUCTURE** — means a structure used or designed to be used primarily for residential occupancy purposes and in which more than half of the floor space is used for residential occupancy purposes. A residential structure may be, but need not be, within an area zoned as a residential district. The term does not include nursing homes, hotels and motels.
25. **NEIGHBORHOOD OR DISTRICT GATEWAY SIGN** — means a sign that is intended to convey the name of the City Neighborhood or significant historical or cultural areas within a City Neighborhood.
- D. **Signs Exempt from Permit Requirements.** A Certificate of Occupancy is not required for a sign satisfying the provisions of this Code that does not exceed four (4) square feet in face area.
- E. **Prohibited Signs.** The following signs shall be prohibited in all zoning districts:
1. Any display, decoration, sign or show window that provides the observation of any material depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" from any public right-of-way or public park.
 2. Any sign that imitates or resembles any official traffic sign, signal or device.
 3. Any sign erected or maintained in such a manner as to obscure or otherwise physically interfere with an official traffic sign, signal or device or to obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic.
 4. Any sign erected, painted or maintained upon fences, trees, rocks or similar natural feature.
 5. Any sign that is structurally unsafe or in disrepair.
 6. Any roof sign or sign that extends above the roof line or parapet wall.
 7. Any building which uses trademark colors, shapes or symbols as a primary exterior architectural element.
- F. **Signs Identifying Nonconformities.** No sign shall be erected or painted identifying a nonconforming use without review by the Board of Adjustment.
- G. **Illumination.** Illumination of signs shall be permitted only in those districts specified and thence with a stationary shielded light source, with internal illumination or with neon type construction.
- H. **Liability for Damages.** The provisions of this Code or the issuance of any sign permit shall not be construed as relieving or limiting the responsibility or liability of the person erecting, owning or maintaining any sign from personal injury or property damage resulting from such sign or work relating thereto; nor shall it be construed as imposing upon the City, or its officers or employees any responsibility or liability by reason of the approval of any sign,

material or device under any of the provisions of this Code.

- I. **Maintenance.** Any sign, together with its supports, braces, guys, anchors and electrical equipment, shall be kept fully operable, in good repair and maintained in a safe manner and in a neat, clean and attractive condition; the sign face areas shall be kept neatly painted or posted.
- J. **Sign Removal.** All signs relating to a product no longer available for purchase and all signs relating to a business which is terminated or relocated shall be removed or the advertising copy shall be removed. Painted wall signs shall be painted over with a color that resembles or matches the remainder of the building. Should the owner of, or person responsible for the sign, or if the tenant terminating the business fails to remove or paint over the sign within thirty (30) days following the date of obsolescence, the owner of the premises then shall be held responsible for such removal within sixty (60) days following the date of obsolescence.
- K. **Double-Face Signs.** Where a sign is permitted by any provision of this chapter, it shall be construed to permit a double face sign. Each face of a double sign may equal the maximum size for the particular type of sign permitted in this chapter.

§ 919.02. Advertising Signs. [Ord. 23-2003, eff. 8-4-2003; Ord. No. 31-2011, § 3, eff. 12-31-2011; Ord. No. 31-2011, § 3, eff. 12-31-2011; Ord. No. 31-2018, § 15, eff. 8-6-2018]

Advertising signs shall be permitted only in the AS-O District, subject to the regulations of this section.

- A. **General Location.** Advertising signs shall be situated so as to be entirely within the boundaries of the subject zoning lot; shall not extend above the roof line or parapet wall, whichever is higher, of any building to which it may be attached; and shall not be located within the boundary lines of any railroad right-of-way or upon any zoning lot on which a railroad passenger station or other railroad building is located.
- B. **Subdistricts.** There shall be two (2) subdistricts established within the AS-O District - Subdistrict A and Subdistrict B, as indicated on the Zoning District Map. Regulations applying to these subdistricts are indicated below.

	Subdistrict A		Subdistrict B
Districts (permitted)	UI	GI	UNC
Max. Size (sq. ft.)	750	750	378
Max. Height (feet)	45	45	35

- C. **Electronic Advertising Signs.**
 - 1. **General.** Electronic advertising signs may be erected, maintained, and replaced according to the standards set forth below relating to motion, dwell time, brightness, location, and operational controls as applicable. All electronic advertising signs shall also comply with all requirements for signs set forth in Article VI, Chapter 919 of the zoning ordinance.
 - 2. **Conflicts.** The provisions of this section shall take precedence over any conflicting

provisions in Chapter 919 relating to advertising signs unless the conflicting provisions result in greater limitations on electronic advertising signs.

3. New Electronic Advertising Signs. Electronic Signs as defined in Section 919.01.C.3 shall be permitted within AS-O - Subdistrict A only, and shall be approved by the Zoning Board of Adjustment as Special Exceptions, according to the Special Exception Review Standards of Section 922.07, and subject to the following criteria:
 - (a) Motion. All motion is prohibited on an electronic advertising sign face. Electronic advertising signs shall have only static text and graphics.
 - (b) Dwell Time. The text, image, or display on an electronic advertising sign may not change more than once every thirty (30) seconds. Twirl time between subsequent text, images, or display shall not exceed twenty-five hundredths (0.25) of a second.
 - (c) Brightness. During daylight hours between sunrise and sunset, luminance shall be no greater than two thousand five hundred (2,500) nits. At all other times, luminance shall be no greater than two hundred fifty (250) nits.
 - (d) Location.
 - i. New electronic advertising signs are prohibited in City Designated Historic Districts and the RIV Zoning District.
 - ii. No electronic advertising sign shall be erected or maintained in such a manner as to obscure or otherwise physically interfere with an official traffic sign, signal or device, or to obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic.
 - (e) Controls/Testing/Annual Certification.
 - i. All electronic advertising signs shall be equipped with an automatic dimmer control or other mechanism that automatically controls the sign's brightness as provided above.
 - ii. Prior to approval of any permit to operate an electronic advertising sign, the applicant shall certify that the sign has been tested and complies with the motion, dwell time, brightness, and other requirements herein.
 - iii. The owner and/or operator of an electronic advertising sign shall submit an annual report to the City certifying that the sign complies with the motion, dwell time, brightness, and other requirements herein.
 - (f) Maintenance. Routine maintenance of electronic advertising signs is permitted including the replacement of solid state electronic components, subject to compliance with regulations set forth in Section 919.02.C relating to motion, brightness, and dwell time.
4. Existing Electronic Advertising Signs. Existing electronic advertising signs that do not meet the standards set forth above for new electronic advertising signs shall become non-conforming uses and structures subject to the provisions of Article VII, Chapter

- 921, Nonconformities. Should an existing electronic advertising sign be reconstructed then it shall be subject to review and approval as a new Electronic Advertising Sign in accordance with Section 919.02.C.
5. Conversion of Existing Non-Electronic Advertising Signs. An existing non-electronic advertising sign may be converted to an Electronic Advertising Sign if the proposed Electronic Advertising Sign meets all requirements of Section 919.02. Applications for conversion shall be subject to review and approval as new Electronic Advertising Signs in accordance with Section 919.02.C.
 6. Conversion of Existing Nonadvertising Signs. An existing Nonadvertising sign may be converted to an Electronic Advertising Sign if the proposed Electronic Advertising Sign meets all requirements of Section 919.02. Applications for conversion shall be subject to review and approval as new Electronic Advertising Signs in accordance with Section 919.02.C.
- D. Separation from Other Uses. The face of an advertising sign shall be situated so that it is not visible within a sight distance of three hundred fifty (350) feet of the following:
1. Property in a residential or EMI Zoning District;
 2. Park or recreation area of one-quarter ($\frac{1}{4}$) acre or more;
 3. Cultural service;
 4. The center line of a restricted access highway or center line of ramps thereof.
 5. The floodway of the Allegheny, Monongahela or Ohio Rivers;
 6. The entry or exit points of the Liberty Tunnels, The Fort Pitt Tunnels, The Squirrel Hill Tunnels or the Wabash Tunnels;
 7. Any bridge which crosses the Allegheny, Monongahela, or Ohio Rivers.
- E. No Painting Directly on Walls. Advertising signs shall not be painted directly on the wall of any building.
- F. Number Allowed. The number of advertising sign structures shall be limited to one (1) structure per zoning lot which shall contain no more than two (2) separate sign faces. The faces may be arranged: back-to-back, side-to-side, decked or V-type. In no case shall there be more than one (1) sign face on any wall of a building.
- G. Maximum Face Area. The square foot face area of an advertising sign shall not exceed seven hundred fifty (750) square feet in Subdistrict A and three hundred seventy-eight (378) square feet in Subdistrict B. The face shall not exceed twenty (20) feet in height or sixty (60) feet in length.
- H. Height. The height of an advertising sign shall be measured from the ground elevation nearest to the sign to the highest elevation of the sign structure, the overall height of the sign shall not exceed a height of thirty-five (35) feet in Subdistrict B and forty-five (45) feet in Subdistrict A. All signs shall be setback within the buildable area of the zoning lot in

accordance with the area requirements of the applicable zoning district.

I. Spacing. The spacing of advertising signs shall be limited as follows:

1. Along restricted access highways or interchange ramps thereof; no two (2) sign structures, including any combination of advertising signs and electronic advertising signs, shall be spaced less than one thousand five hundred (1,500) feet apart;
2. Along any other right-of-way; no two (2) sign structures, including any combination of advertising signs and electronic advertising signs, shall be spaced less than five hundred (500) feet apart;
3. The distance between sign structures shall be measured along the center line of the roadway on which the signs are located, and shall extend along the center line of any intersecting roadway. The closest point of the center line to the pertinent sign shall provide the point from which measurements along the center line are taken.

J. Illumination. The illumination of advertising signs shall be limited as follows:

1. Illumination shall be effectively shielded so as to prevent beams or rays of light from being directed at any portion of the traveled rights-of-way or which is of such intensity or brilliance as to cause glare or to impair the vision of the driver of the vehicle, or which interferes with any driver's operation of a motor vehicle;
2. Illumination shall not be permitted that interferes with the effectiveness of or obscures an official traffic sign, device or signal;

K. Location on Restricted Access Highways. Any advertising sign erected after May 10, 1958, shall be removed by the owner thereof, at the owner's expense, within one (1) year after the affected portion of any highway becomes or is designated a restricted access highway in accordance with the provisions of this Code and has been officially opened for public use, if an advertising sign is within three hundred fifty (350) feet of the center line of such highway or the interchange ramps thereof and the face of an advertising sign is visible therefrom.

L. General Prohibitions.

1. No advertising sign shall be erected or maintained in such a manner as to obscure or otherwise physically interfere with an official traffic sign, signal or device, or to obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic.
2. No advertising sign shall be erected or maintained which imitates or resembles any official traffic sign, signal or device.
3. No advertising sign shall be erected, painted or maintained upon trees, rocks, other natural features or that which is structurally unsafe or in disrepair.

M. Maintenance. Any advertising sign, together with its supports, braces, guys, anchors and electrical equipment, shall be kept fully operable, in good repair and maintained in a safe manner and in a neat, clean and attractive condition. The display surfaces of all advertising signs shall be kept neatly painted or posted.

- N. **Nonconforming Advertising Signs.** A nonconforming advertising sign may be continued only as provided in this section:
1. Normal maintenance of a nonconforming sign may occur, including any necessary repairs or alterations which do not enlarge, extend, or intensify the nonconformity;
 2. No structural alteration, enlargement, or extension shall be made of a nonconforming sign, except when the alteration is required by law or will eliminate the nonconforming condition;
 3. Shall not be moved to a different location;
 4. Poster paper and panel copy boards may be replaced. Painted bulletin boards may be repainted.
 5. If a nonconforming sign is damaged or destroyed by any means to the extent of fifty (50) percent or more of its replacement value at the time of the damage or destruction (based on prevailing costs), the sign shall be made to conform to the provisions of this section. However, if the damage or destruction is less than fifty (50) percent of the replacement value, then the sign may thereafter be restored to its original condition.
 6. An electronic advertising sign shall not replace an advertising sign, and an advertising sign shall not replace an electronic advertising sign, unless the replacement sign meets all of the requirements of Chapter 919 for a new sign.
- O. **Location in Historic Districts.** Advertising signs in City designated Historic Districts or within one hundred (100) feet of and visible from such Districts shall be approved by the Historic Review Commission prior to obtaining zoning approval.
- P. **Annual Inspection Tags.** The Bureau of Building Inspection shall annually issue inspection tags for each sign face as follows:
1. The Chief of the Bureau of Building Inspection shall issue an inspection tag for each advertising sign. The tag shall contain a number peculiar to that sign face. The Chief shall inspect each advertising sign annually and if it complies with the provisions of the Code shall issue a renewal sticker to be affixed to the inspection tag. The color of the renewal sticker shall be changed annually to simplify visual inspection. The tag and renewal sticker issued for a sign which is subsequently removed shall be returned to the Bureau of Building Inspection.
 2. The Chief of the Bureau of Building Inspection is authorized and directed to make reasonable rules and regulations for implementation and administration of an annual inspection tag and sticker system.
- Q. **Advertising Signs on Public Transit Shelters, as follows:**
- Advertising signs shall only be permitted on public transit shelters located within the public right-of-way, which comply with the provisions of Chapter 419 of Title 4, Article I of the Pittsburgh Code of Ordinances. Additionally, public information kiosks, installed by, or under the direction of, the City of Pittsburgh, with advertising signs shall also be permitted, whether on private property, public property, or in the public right-of-way. Both must meet

the following criteria:

- (a) Advertising signs shall not be located within any residential Zoning District;
- (b) Such signs shall not exceed twenty-four (24) square feet in display surface per sign;
- (c) There shall be a maximum of two (2) advertising signs or one (1) back-to-back advertising sign on each shelter or kiosk;
- (d) Sign display areas must be integral to the design of the structure and may not extend more than five (5) inches from the face of the structure; and
- (e) No advertising display shall exceed the height of the structure.

§ 919.03. Nonadvertising Signs. [Ord. 33-2001, § 1, eff. 12-31-2001; Ord. 16-2002, § 1, eff. 6-4-2002; Ord. 21-2002, §§ 17—22, eff. 6-18-2002; Ord. 22-2002, §§ 1D—1K, eff. 6-25-2002; Ord. No. 31-2011, § 3, eff. 12-31-2011; Ord. No. 2-2018, § 29, eff. 2-15-2018; Ord. No. 31-2018, § 15, eff. 8-6-2018; Ord. No. 17-2022, §§ 6, 7, eff. 6-30-2022; Ord. No. 1-2023, §§ 14, 15, eff. 3-1-2023; Ord. No. 1-2026, eff. 1-28-2026]

The regulations of this section shall apply to signs other than advertising signs. Nonadvertising signs shall be permitted in accordance with the regulations of this section.

- A. Signs Inside Buildings. Signs on the inside of the buildings or other structures, designed not to be seen from the exterior of such buildings or structures shall be permitted in any district with unlimited size and interior location.
- B. Flags. Official government flags, emblems and insignia shall be permitted in any district with unlimited size and location.
- C. Plaques, Cornerstones and Nameplates. Memorial plaques, cornerstones or name plates bearing only the name of the owner, the name or use of the structure or the date of erection of the structure shall be permitted in any district, subject to the following:
 - 1. Such signs shall be limited to one (1) of each type for each structure and shall not exceed four (4) square feet in face area;
 - 2. Such signs shall be limited to one (1) along each street frontage, built in or attached to a wall of the structure.
- D. Historic Tablets. Historic tablets or building directories bearing only the name of the owner, the name or use of the structure and its occupants, the date of erection of the structure or reading matter commemorating a person, event or significance of the location shall be allowed in all districts, subject to the following standards:
 - 1. Residential Districts. In residential zoning districts, such signs:
 - (a) Shall not exceed eight (8) square feet in face area;
 - (b) Shall be limited to one (1) along each street frontage;
 - (c) May be attached to a wall of the building and shall not project more than four (4)

inches therefrom or may be situated as a ground sign and shall not exceed more than twelve (12) feet from the top of the sign to the grade beneath the sign.

2. Other Districts. In districts other than residential zoning districts, such signs:
 - (a) Shall not exceed twelve (12) square feet in face area;
 - (b) Shall be limited to one (1) along each street frontage;
 - (c) May be attached to a building wall and no part of the sign shall project more than four (4) inches at a height below six (6) feet eight (8) inches from the grade beneath the sign. Signs attached to the building at a height above six (6) feet eight (8) inches from the bottom of the sign to the grade beneath the sign shall not project more than three (3) feet from the building.
- E. Bulletin Boards. Bulletin boards of religious and other institutions used to indicate the services or activities offered on the premises shall be permitted in any district provided that such signs:
 1. Shall not exceed thirty (30) square feet in face area; and
 2. Shall be limited to one (1) along each street frontage.
- F. Real Estate and Political Signs. Temporary real estate signs pertaining to the sale or lease of the premises and temporary political campaign signs or posters relating to the election of a person to public office, to a political party or to a matter to be voted upon at an election called by a public body shall be subject to the following regulations.
 1. General.
 - (a) Such signs may be attached to a building wall and no part of the sign shall project more than four (4) inches at a height below eighty (80) inches from the grade beneath the sign. Signs attached to the building at a height above eighty (80) inches from the bottom of the sign to the grade beneath the sign shall not project more than three (3) feet from the building.
 - (b) Such signs shall be removed within thirty (30) days following the sale or election. An elected candidate in a primary election may maintain the sign until thirty (30) days following the general election.
 2. Residential, LNC, UNC, UC-MU, R-MU, GT, RIV-RM and EMI Districts. In the Residential, LNC, UNC, HC, GT, RIV-RM and EMI Zoning Districts such signs:
 - (a) Shall not exceed twelve (12) square feet in face area;
 - (b) Shall be nonilluminated and limited to one (1) along each street frontage.
 3. HC, NDI, RIV-IMU, UC-E, RIV-GI, RIV-MU, RIV-NS, UI and GI Districts. In the HC, GI, UI, RIV-IMU, RIV-GI, RIV-MU, RIV-NS and NDI Zoning Districts, such signs:
 - (a) Shall not exceed thirty-two (32) square feet in face area;

- (b) Shall be limited to two (2) along each street frontage and may be illuminated.
- G. Address Signs. Street address numerals shall be permitted in any district provided the face area shall not exceed two (2) square feet.
- H. Holiday Displays. Temporary displays or signs in the nature of decorations, clearly incidental and commonly associated with any national, local or religious holiday, permitted in any district provided:
1. They shall not be displayed for a period of more than ninety (90) consecutive days nor more than ninety (90) days in any one (1) year;
 2. They may extend over public right-of-ways provided authorization is supplied by the Director of the Department of Mobility and Infrastructure and the Chief of the Bureau of Building Inspection.
- I. Convenience Information Signs. Convenience information signs, such as date, time and weather, and official emblems of on-premises religious, charitable, public and nonprofit organizations may be permitted in any district provided that such signs:
1. Shall not contain advertising matter attached to or integrated with or as part of such sign;
 2. May be attached to a building wall and no part of the sign shall project more than four (4) inches at a height below eighty (80) inches from the grade beneath the sign. Signs attached to the building at a height above eighty (80) inches from the bottom of the sign to the grade beneath the sign shall not project more than three (3) feet from the building.
 3. Shall not exceed eighteen (18) square feet in face area;
 4. The Zoning Administrator shall determine whether such sign is appropriate at the specific location taking into consideration the character of the uses in the vicinity, the possible effect of vehicular traffic, if any, and the relationship of the use to its immediate surroundings and to other portions of the City from which it may be viewed, including the size, height, extent and other characteristics.
- J. Public Information Signs. Public service and information signs of such size and type and in such locations approved by the Director of the Department of Mobility and Infrastructure, intended to satisfy the public need, are permitted in any district, including:
1. Convenience signs identifying location of rest rooms, freight entrances and parking areas;
 2. Government signs for the control of traffic and other regulatory purposes;
 3. Public transit service signs;
 4. Public utility information signs;
 5. Safety signs;
 6. Signs erected by a public agency in the performance of a public duty;

7. Signs indicating scenic or historic points of interest;
8. Street signs;
9. Trespassing signs;
10. Other directional signs as may be deemed necessary for the preservation of the public safety.

K. Public Parking Identification and Rate Signs.

1. Residential Districts. In residential zoning districts, public parking identification and rate signs:
 - (a) Shall not exceed eight (8) square feet in face area;
 - (b) Shall be limited to one (1) sign within the vicinity of each entrance.
2. Other Districts. In districts other than residential zoning districts, any number of public parking identification and rate signs shall be permitted, provided that the total accumulated face area of such signs does not exceed twenty-four (24) square feet.

L. Home Occupation Signs. Signs required by licensing requirements:

1. Shall not exceed four (4) square feet in face area;
2. Shall be limited to one (1) sign for each principal entrance;
3. May be attached to a wall of the building and shall not project more than twelve (12) inches therefrom or may be situated as a pole sign not extending more than ten (10) feet from the top of the sign to the grade beneath the sign and shall be setback at least five (5) feet from any lot line when such space is unoccupied by building;
4. Shall be nonilluminated.

M. Business Signs and Identification Signs. Business signs or identification signs (other than the miscellaneous signs described in Section 919.03.A through Section 919.03.L, and Section 919.03.N) shall be allowed in accordance with the following standards.

1. General.
 - (a) Ground signs shall be situated on the zoning lot, shall not extend beyond any street line or lot line and shall not extend above the height limit of the respective zoning district, unless otherwise designated;
 - (b) The face area of signs shall not exceed a vertical measurement of twenty (20) feet;
 - (c) Such signs may be attached to a building wall and no part of the sign shall project more than four (4) inches at a height below eighty (80) inches from the grade beneath the sign; except projecting signs as defined in Section 919.03.M.8. Signs attached to the building at a height above eighty (80) inches from the bottom of the sign to the grade beneath the sign shall not project more than three (3) feet from the building; and

- (d) May be illuminated.
- 2. (Reserved)
- 3. RP, R-MU, EMI and GPR and OPR Zoning Districts. In the RP, R-MU, EMI, GPR and OPR Zoning Districts:
 - (a) Wall mounted signs shall be limited to one (1) along each street frontage, not exceeding eighty (80) square feet in face area and shall not extend more than forty (40) feet above grade. Such signs may be attached to a building wall and no part of the sign shall project more than four (4) inches at a height below eighty (80) inches from the grade beneath the sign. Signs attached to the building at a height above eighty (80) inches from the bottom of the sign to the grade beneath the sign shall not project more than three (3) feet from the building.
 - (b) Ground signs shall be limited to one (1) along each street frontage when the property frontage measures two hundred (200) feet or less. Otherwise, ground signs shall not be spaced within two hundred (200) feet of each other when located on the same zoning lot. Ground signs shall not extend more than twenty (20) feet from the top of the sign to the grade beneath the sign and shall not exceed a total face area of fifty (50) square feet;
 - (c) Roof signs shall not be permitted;
 - (d) These signs shall not contain animation, rotation (other than barber poles) or illumination that flashes or is intermittent;
 - (e) Marquee or canopy sign is a sign attached to, painted on or inscribed upon a marquee or canopy that otherwise complies with any other governmental regulation; the face of such sign shall not project above or below the marquee or canopy, shall not exceed eight (8) inches in height, shall not project more than six (6) inches horizontally from the surface of such marquee or canopy, shall not contain flashing lights or animation and shall not contain any advertising except for the name of the owner, name of the building or the name of the business.
- 4. HC Districts. In the HC Zoning Districts:
 - (a) Wall mounted signs are permitted provided that the total face area attached to a wall shall not exceed two (2) square feet of sign face area for each lineal foot of building wall width to a maximum of eighty (80) square feet, and shall be mounted no higher than forty (40) feet above grade except where expressly permitted. For buildings with multi-commercial tenants on the first and second floors with direct street access one (1) additional tenant business or identification sign shall be permitted per tenant identifying the name of the tenant or business, the total face area of which shall not exceed two (2) square feet of sign face area for each lineal foot of store frontage to a maximum of eighty (80) square feet per sign, and shall be mounted no higher than the second floor above grade. Tenant signs are to be located within the façade area of the tenant. Maximum letter height on all wall signs below forty (40) feet above grade shall be four (4) feet.

- (b) Ground signs shall be limited to one (1) along each street frontage when the property frontage measures one hundred fifty (150) feet or less, otherwise ground signs shall not be spaced within one hundred fifty (150) feet of each other when located on the same zoning lot. Ground signs shall not extend more than thirty (30) feet from the top of the sign to the grade beneath the sign and shall not exceed a total face area of sixty (60) square feet;
 - (c) Signs attached to gasoline dispensing pumps shall be limited to one (1) sign not exceeding four (4) square feet in face area for each pump;
 - (d) Marquee or canopy sign is a sign attached to, painted on or inscribed upon a marquee or canopy that otherwise complies with any other governmental regulation; the face of such sign shall not project above or below the marquee or canopy, shall not exceed eight (8) inches in height, shall not project more than six (6) inches horizontally from the surface of such marquee or canopy, shall not contain flashing lights or animation and shall not contain any advertising except for the name of the owner, name of the building or the name of the business. Such signs may be attached to a building wall and no part of the sign shall project more than four (4) inches at a height below eighty (80) inches from the grade beneath the sign. Signs attached to the building at a height above eighty (80) inches from the bottom of the sign to the grade beneath the sign shall not project more than three (3) feet from the building.
5. LNC, UNC, UC-MU, UC-E, RIV-MU, RIV-IMU, CP, and AP Districts. In the LNC, UNC, UC-MU, UC-E, RIV-MU, RIV-IMU, CP, and AP Districts:
- (a) Wall mounted signs are permitted provided that the total face area shall not exceed two (2) square feet of sign face area for each lineal foot of building wall width to a maximum of eighty (80) square feet and shall be mounted no higher than twenty (20) feet above grade except where expressly permitted. For buildings with multi-commercial tenants on the first and second floors one (1) additional tenant business or identification sign shall be permitted per tenant identifying the name of the tenant or business, the total face area of which shall not exceed two (2) square feet of sign face area for each lineal foot of tenant frontage to a maximum of eighty (80) square feet per sign on each wall or façade and shall be mounted no higher than the second floor above grade. Tenant signs are to be located within the façade area of the tenant. Maximum letter height on all wall signs below twenty (20) feet above grade shall be four (4) feet.
 - (b) Ground signs shall be limited to one (1) along each street frontage when the property frontage measures one hundred (100) feet or less, otherwise ground signs shall not be spaced within one hundred (100) feet of each other when located on the same zoning lot. Ground signs shall not extend more than forty (40) feet from the top of the sign to the grade beneath the sign and shall not exceed a total face area of one hundred fifty (150) square feet;
 - (c) Marquee or canopy sign is a sign attached to, painted on or inscribed upon a marquee or canopy that otherwise complies with any other governmental regulation; the face of such sign shall not project above or below the marquee or

canopy, shall not exceed eight (8) inches in height, shall not project more than six (6) inches horizontally from the surface of such marquee or canopy, shall not contain flashing lights or animation and shall not contain any advertising except for the name of the owner, name of the building or name of the business.

- (d) Wall mounted signs mounted between twenty (20) above grade and no higher than forty (40) feet above grade are permitted by Administrator's Exception provided that the following conditions are met:
 - 1. The sign does not exceed two (2) square feet of sign face area for each lineal foot of building wall width.
 - 2. The letters of the sign do not exceed three (3) feet in height.
 - 3. The sign is architecturally compatible with the building and surrounding buildings.
 - 4. Zoning Administrator approval is in accordance with PDP review procedures as outlined in the Zoning Ordinance.
 - 5. The sign is limited to the business and identification exclusively and does not repeat itself or include extraneous identifying information.
- (e) Wall mounted signs exceeding eighty (80) square feet may be approved by Administrator's Exception if the following conditions are met:
 - 1. The sign does not exceed two (2) square feet of sign face area for each lineal foot of building wall width.
 - 2. The letters of the sign do not exceed three (3) feet in height.
 - 3. The sign is architecturally compatible with the building and surrounding buildings.
 - 4. Zoning Administrator approval is in accordance with PDP review procedures as outlined in the Zoning Ordinance.
 - 5. The sign is limited to the business and identification exclusively and does not repeat itself or include extraneous identifying information.
- 6. NDI, RIV-GI, GI and UI Districts. In the NDI, RIV-GI, GI and UI Zoning Districts:
 - (a) Wall mounted signs are permitted provided that the total face area shall not exceed two (2) square feet of sign face area for each lineal foot of building wall width, to a maximum of eighty (80) square feet and shall be mounted no higher than forty (40) feet above grade. For buildings with multi-commercial tenants on the first and second floors one (1) additional tenant business or identification sign shall be permitted per tenant identifying the name of the tenant or business, the total face area of which shall not exceed two (2) square feet of sign face area for each lineal foot of tenant frontage to a maximum of eighty (80) square feet per sign, and shall not extend higher than the second floor. Tenant signs are to be located within the

façade area of the tenant. Maximum letter height on all wall signs below forty (40) feet above grade shall be four (4) feet.

- (b) Ground signs shall not extend more than forty-five (45) from the top of the sign to the grade beneath the sign provided that no sign shall exceed two hundred (200) square feet in face area or a vertical measurement of twenty (20) feet;
 - (c) Marquee or canopy sign is a sign attached to, painted on or inscribed upon a marquee or canopy that otherwise complies with any other governmental regulation; the face of such sign shall not project above or below the marquee or canopy, shall not exceed eight (8) inches in height, shall not project more than six (6) inches horizontally from the surface of such marquee or canopy, shall not contain flashing lights or animation and shall not contain any advertising except for the name of the owner, name of the building or name of the business.
7. GT and RIV-NS Zoning Districts. In the GT and RIV-NS Zoning Districts:
- (a) Wall mounted signs, except for public destination facilities, are permitted provided that;
 - (i) The total face area shall not exceed two (2) square feet of sign face area for each lineal foot of building wall width to a maximum of eighty (80) square feet and shall be mounted no higher than forty (40) feet above grade except where expressly permitted.
 - (ii) For buildings with multi-commercial tenants on the first and second floors one (1) additional tenant business or identification sign shall be permitted per tenant identifying the name of the tenant or business, the total face area of which shall not exceed two (2) square feet of sign face area for each lineal foot of tenant frontage to a maximum of eighty (80) square feet per sign on each wall or façade and shall be mounted no higher than the second floor above grade.
 - (iii) Tenant signs are to be located within the façade area of the tenant. Maximum letter height on all wall signs below forty (40) feet above grade shall be four (4) feet.
 - (b) For public destination facilities, the total face area of wall mounted signs below forty (40) feet shall not exceed a total of three (3) percent of exposed building façade area or a maximum of two hundred (200) square feet per façade, whichever is smaller, shall permit electronic identification signs with no motion or animation, and shall be subject to design review and approval by the City Planning Commission.
 - (c) Only the name of the building or business shall be mounted higher than forty (40) feet above grade and may face in all directions but shall not be roof mounted nor project above the roof peak or parapet wall, shall not exceed in face area forty (40) square feet or two (2) percent of exposed façade area whichever is larger, shall be limited to four (4) per building, shall include no motion or animation, shall not exceed a luminance of two thousand five hundred (2,500) nits during daylight

hours between sunrise and sunset, shall not exceed a luminance of two hundred fifty (250) nits at all other times, shall permit electronic illumination with no motion or animation, and shall be subject to design review and approval by the City Planning Commission. All applications shall include certification that the sign will comply with luminance level standards at the time of application and must certify again that the sign is operating in compliance with the standards prior to issuance of an occupancy permit.

- (d) Ground signs shall be limited to one (1) along each street frontage when the property frontage measures one hundred (100) feet or less, otherwise ground signs shall not be spaced within one hundred (100) feet of each other when located on the same zoning lot. Ground signs shall not extend more than forty (40) feet from the top of the sign to the grade beneath the sign and shall not exceed a total face area of one hundred fifty (150) square feet;
- (e) Marquee or canopy sign is a sign attached to, painted on or inscribed upon a marquee or canopy that otherwise complies with any other governmental regulation; the face of such sign shall not project above or below the marquee or canopy, shall not exceed eight (8) inches in height, shall not project more than six (6) inches horizontally from the surface of such marquee or canopy, shall not contain flashing lights or animation and shall meet the definition of business or identification sign; provided that a marquee or canopy sign attached to a Public Assembly (general) facility which shall otherwise be subject to this provision, may be up to eight (8) feet in height and subject to review by the Planning Commission under the Project Development Plan criteria put forth in Section 922.10.

8. Projecting Signs.

- (a) Purpose. The purpose of these regulations is to permit and regulate the installation of projecting signs in commercial areas of the City.

- (b) Definition.

PROJECTING SIGN — means any business or identification sign which sole means of support is by attachment to a legal structure on a zoning lot and which projects more than twelve (12) inches into a public right-of-way. A projecting sign shall contain no more than two (2) sign faces which include lettering, and these signs faces shall be back-to-back.

- (c) Applicability. These regulations shall apply in the following districts:

- (i) NDO/Neighborhood Office.
- (ii) LNC/Local Neighborhood Commercial.
- (iii) NDI/Neighborhood Industrial.
- (iv) UNC/Urban Neighborhood Commercial.
- (v) HC/Highway Commercial.

- (vi) UI/Urban Industrial.
 - (vii) EMI/Educational/Medical Institute.
 - (viii) GPR-C Grandview Public Realm Subdistrict C.
 - (ix) OPR/Oakland Public Realm (Subdistrict B)
 - (x) SP-4/Station Square.
 - (xi) SP-5/South Side Works.
 - (xii) CP/Commercial Planned Unit Development.
 - (xiii) AP/Mixed Use Planned Unit Development.
 - (xiv) GT/Golden Triangle.
 - (xv) RIV/Riverfront.
 - (xvi) UC-MU Urban Center - Mixed Use.
 - (xvii) UC-E Urban Center - Employment.
 - (xviii) R-MU Residential - Mixed Use.
- (d) General Requirements.
- (i) For each street-level business a maximum of one (1) projecting sign shall be permitted for each façade of a structure facing a street;
 - (ii) Projecting signs shall be a maximum of nine (9) square feet per side. The area of irregular or three-dimensional shapes shall be computed by multiplying the height and width at the widest points;
 - (iii) Projecting signs shall extend no more than four (4) feet from the front of a building or structure or two-thirds ($\frac{2}{3}$) of the width of the sidewalk beneath the sign where such sidewalk exists, whichever is less. The bottom most point of a projecting sign shall be no less than ten (10) feet above the grade beneath the sign; and
 - (iv) No projecting sign structure shall be placed onto or obscure or damage any significant architectural feature of a building.

N. Identification Signs Not Regulated Above.

1. Identification signs for child care uses, and office of minister a or physician, shall be permitted in any district where the use is permitted provided that:
 - (a) The sign shall not exceed five (5) square feet in face area;
 - (b) The use shall be limited to one (1) sign for each principal entrance;
 - (c) The sign may be attached to a wall of the building and shall not project more than

twelve (12) inches therefrom or may be situated as a pole sign not exceeding more than ten (10) feet from the top of the sign to the grade below the sign and shall be setback at least five (5) feet from any lot line when the space is unoccupied by building; and

- (d) The sign shall be non-illuminated.
2. Identification signs for multi-unit residential uses, multi-suite residential uses, community centers, funeral homes, housing for the elderly, institutional uses, library, medical office, cultural service, nursing home, or school, shall be permitted in any district where the use is permitted provided that:
 - (a) The sign shall not exceed twelve (12) square feet in face area;
 - (b) The use shall be limited to one (1) sign for each primary entrance; and
 - (c) The sign may be attached to a wall of the building and shall not project more than twelve (12) inches therefrom, or may be situated as a pole sign not extending more than twelve (12) feet from the top of the sign to the grade beneath the sign and shall be setback at least five (5) feet from any lot line when such space is unoccupied by building.
 3. Identification signs for institutional uses, including hospital, college or university, and park uses, shall be permitted in any district where such use is permitted, provided that:
 - (a) The sign shall not exceed thirty-two (32) square feet in face area;
 - (b) The use shall be limited to one (1) sign along each street frontage or as necessary for adequate direction;
 - (c) The sign may be attached to a wall of the building and shall not project more than twelve (12) inches therefrom, or may be situated as a pole sign not extending more than twelve (12) feet from the top of the sign to the grade beneath the sign and shall be setback at least twenty (20) feet from any lot line other than the street line.

O. Electronic Non-Advertising Signs.

1. General. Electronic non-advertising signs shall be allowed subject to all regulations applicable to non-advertising signs and the additional standards set forth below. These provisions shall not apply to electronic signs associated with major public destination facilities or high wall signs as permitted in accordance with Section 919.03.M.7.
2. Conflicts. The provisions of this section shall take precedence over any conflicting provisions in Section 919 relating to advertising signs unless the conflicting provisions result in greater limitations on electronic non-advertising signs.
3. New Electronic Non-Advertising Signs. Electronic signs as defined in Section 919.01.C.3 shall be permitted within the HC, UI, and GI only, and shall be approved by the Zoning Board of Adjustment as Special Exceptions, according to the Special Exception Review Standards of 922.07, and subject to the following criteria:

- (a) Motion. Any motion of any kind is prohibited on an electronic non-advertising sign face. Electronic non-advertising signs shall have only static text, images, and graphics.
 - (b) Dwell Time. The text, image, or display on an electronic non-advertising sign may not change more than once every thirty (30) seconds. Twirl time between subsequent text, images, or display shall not exceed twenty-five hundredths (0.25) seconds.
 - (c) Brightness. During daylight hours between sunrise and sunset, luminance shall be no greater than two thousand five hundred (2,500) nits. At all other times, luminance shall be no greater than two hundred fifty (250) nits.
 - (d) Size. The changeable copy area of an electronic non-advertising sign shall be limited to fifty (50) percent of the total permitted sign area up to a maximum of fifty (50) square feet, but not including high wall signs which are subject to the specific standards of Section 919.03.M.7(ii).
 - (e) Location.
 - i. Electronic non-advertising signs shall not be located within one hundred (100) feet of or be primarily directed towards rivers, parks, City Designated Historic Districts, or properties within a residential or public realm zoning district; and
 - ii. No electronic non-advertising sign shall be erected or maintained in such a manner as to obscure or otherwise physically interfere with an official traffic sign, signal or device, or to obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic.
 - (f) Controls/Testing/Annual Certification.
 - i. All electronic non-advertising signs shall be equipped with an automatic dimmer control or other mechanism that automatically controls the sign's brightness as provided above; and
 - ii. Prior to approval of any permit for to operate an electronic non-advertising sign, the applicant shall certify that the sign has been tested and complies with the motion, dwell time, brightness, and other requirements herein.
- P. Major Public Destination Facility Electronic Signs.
- 1. Applicability. This section shall apply to electronic signs associated with all uses that meet the definition of "major public destination facility."
 - 2. Review Process.
 - (a) Electronic Signs. All major public destination facility electronic signs shall be reviewed by the Zoning Board of Adjustment as Special Exceptions according to the Special Exception review standards and procedures of Section 922.07 and the standards set forth below.

- (b) Large Video Displays. All major public destination facility video displays shall be reviewed by the Planning Commission and City Council as Conditional Uses according to the Conditional Use Standards and Procedures of Section 922.06 and the standards set forth below.
- 3. Conflicts. The provisions of this section shall take precedence over any conflicting provisions in Article VI, Chapter 919 relating to non-advertising signs.
- 4. Electronic Signs Allowed. Subject to the provisions of this section, major public destination facilities may utilize electronic signs, including video displays, to display:
 - (a) The name of the facility, or portion thereof, including any sponsor or memorialized names assigned thereto and their logo or identifying mark. However, products or services of sponsors shall not be displayed;
 - (b) The name of the major enterprise or principal activity and events on the premises.
 - (c) Video displays of activities, events, or games taking place within the facility or contemporaneous away games of teams associated with the facility, and
 - (d) Events or activities at related facilities (both on- and off-premise) under the control or ownership of the primary occupant of the facility.
- 5. Location.
 - (a) Major public destination facility electronic signs shall not be located within one hundred (100) feet of or be primarily directed towards rivers, parks, City Designated Historic Districts, or properties within a residential or public realm zoning district;
 - (b) Major public destination facility signs shall be attached to the facility or an associated structure such as a parking garage or located on-site within thirty (30) feet of such facility;
 - (c) Video displays shall not be visible from roadways, or ramps associated with such roadways, with speed limits exceeding thirty-five (35) miles per hour;
 - (d) No electronic sign or video display shall be erected or maintained in such a manner as to obscure or otherwise physically interfere with an official traffic sign, signal or device, or to obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic; and
 - (e) There shall be no more than one (1) electronic sign and one (1) video display on the site of a major public destination facility.
- 6. Motion. Any motion of any kind is prohibited on an electronic sign face. Electronic signs shall have only static text, images, and graphics. However, motion may be allowed on large video displays depicting activities, events, or games taking place within the facility or contemporaneous away games of teams associated with the facility.
- 7. Dwell Time. The text, image, or display on an electronic advertising sign may not

change more than once every thirty (30) seconds. Twirl time between subsequent text, images, or display shall not exceed twenty-five hundredth (0.25) of a second.

8. Brightness. During daylight hours between sunrise and sunset, luminance shall be no greater than two thousand five hundred (2,500) nits. At all other times, luminance shall be no greater than two hundred fifty (250).
9. Size. The maximum size of an electronic sign or video display shall be one thousand two hundred (1,200) square feet.
10. Controls/Testing/Annual Certification.
 - (a) All electronic signs shall be equipped with an automatic dimmer control or other mechanism that automatically controls the sign's brightness as provided above.
 - (b) Prior to approval of any permit to operate an electronic sign, the applicant shall certify that the sign has been tested and complies with the motion, dwell time, brightness, and other requirements herein.
 - (c) The owner and/or operator of an electronic advertising sign shall submit an annual report to the City certifying that the sign complies with the motion, dwell time, brightness, and other requirements herein.

Q. Special Signage Design Districts.

A Special Signage Design Zoning District ("SSDD") may be created in accordance with Section 922.05 if the proposed district is at least eight (8) acres in size and eighty (80) percent of the property owners (determined by eighty (80) percent of the land area) petition the City Planning Commission to create such special signage design district.

The SSDD regulations, developed via Section 922.05, are intended to provide a framework for alternative forms of development for areas that desire enhanced use of electronic and non-electronic non-advertising signs. Applicable regulations and procedures are intended to create efficient, functional and attractive urban areas that incorporate high levels of amenities and that meet public objectives for protection and preservation of the natural environment while defining the character of the SSDD in a way that is consistent with these objectives. The regulations are intended to permit a substantial amount of flexibility in the use of electronic and non-electronic non-advertising signage because of the large size of the site and because of its relative isolation from any neighborhood context.

The Department of City Planning will develop procedures, standards and regulations for all signage in any proposed SSDD District with the applicant prior to any formal action by the Planning Commission. Notice shall be made of such an application pursuant to Section 922.05.C.

Conflicts. The provisions of this section shall take precedence over any conflicting provisions in Article VI, Section 919.03 relating to non-advertising signs.

1. Comprehensive Signage Design Plan. A complete application for a SSDD shall include a comprehensive signage design plan to address all non-advertising signage forms and typologies throughout the SSDD including, but not limited to, Business Signs and

Identification Signs, Public Information Signs, gateway and district signage. The comprehensive signage design plan shall be subject to Design Review. Art Commission shall review and approve any signage recommendation within a Public Right-of-Way or on City-owned property.

2. Electronic Signs Allowed. Subject to the provisions of this section, SSDD may utilize electronic signs, including video displays, in accordance with an adopted Special Signage Design District Plan.

(a) Location.

- i) Electronic signs shall not be located within one hundred (100) feet of the rivers or be directed primarily towards the rivers.
- ii) Video displays shall not be readily visible from roadways, or ramps associated with such roadways, with speed limits exceeding thirty-five (35) miles per hour.
- iii) No electronic sign shall be erected or maintained in such a manner as to obscure or otherwise physically interfere with an official traffic sign, signal or device, or to obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic.
- iv) No electronic signs shall be located within an LNC, NDO, P, H, or any Residentially zoned districts.

(b) Controls/Testing/Annual Certification.

- i) All electronic signs shall be equipped with an automatic dimmer control or other mechanism that automatically controls the sign's brightness established by the Council for special sign district.
- ii) Prior to approval of any permit to operate an electronic sign, the applicant shall certify that the sign has been tested and complies with the motion, dwell time, brightness, and other requirements herein.
- iii) The owner and/or operator of an electronic advertising sign shall submit an annual report to the City certifying that the sign complies with the motion, dwell time, brightness, and other requirements herein.

- R. Neighborhood or District Gateway Signs. Neighborhood Gateway Signs may be permitted in order to identify the major neighborhood entrance gateways or significant historical or cultural areas within a City neighborhood in accordance with the following standards:

1. Shall be located at or near neighborhood or district boundaries and placed as to clearly convey entry to that neighborhood, district, or area;
2. Shall be limited to one (1) sign for each major entrance gateway to a City neighborhood or publicly recognized historical or cultural area within the City.
3. Shall not contain advertising matter attached to or integrated with or as part of such sign;

4. May be illuminated, but shall not be an Electronic Sign;
5. Shall be subject to the following dimensional standards:
 - (a) Ground Signs shall be designed to fit the scale and context of the location. Sign text should be scaled to be readable at a distance appropriate to the context and visibility of the site and surroundings, using a formula of one inch of letter height per 10 feet of distance as a guideline, but in no case shall exceed six (6) feet in letter height.
 - (b) Wall Signs, where appropriate, shall be limited to text area that is no greater than 1 square foot per 1 linear foot of wall length, to a maximum of 80 square feet.
 - (c) Non-text and non-logo signage elements and graphics related to a neighborhood, district, or area's unique character or cultural heritage, such as artwork integrated with the structure, or as a wall mural, is encouraged, and is not limited in size, subject to Design Review.
6. Shall be subject to Design Review and approval by the City Planning Commission except in locations where Public Art and Civic Design Commission approval is required.

§ 919.04. Neighborhood Business District Sign Regulations. [Ord. 21-2002, § 23, eff. 6-18-2002; Ord. No. 31-2011, § 3, eff. 12-31-2011]

A. General.

1. Purpose. The purpose of these special neighborhood business district sign regulations is to provide a level of control over signage in commercial areas of the City that include uses that are within and adjacent to residential neighborhoods, where such uses are physically oriented toward pedestrian traffic rather than vehicular traffic, and where the existing general provisions regulating signage allow types and sizes of signs which are not appropriate to these districts.
2. Applicability. These regulations shall apply only to those areas specifically listed hereunder, and shall be used in addition to the general provisions for signs found throughout this chapter. Where differences occur between the Neighborhood Business District Sign Regulations of this section (Section 919.04) and those found elsewhere in this chapter, the Neighborhood Business District Sign Regulations of this section shall control.
3. Neighborhood Business Sign Districts Established. The following Neighborhood Business Sign Districts are hereby established:
 - (a) East Carson Street.
4. Special Definitions. The following special definitions shall apply throughout the Neighborhood Business District Sign Regulations of this section (Section 919.04).
 - (a) PROJECTING SIGN — means any business or identification sign which sole means of support is by attachment to a legal structure on a zoning lot and which

projects more than twelve (12) inches into a public right-of-way. A projecting sign shall contain no more than two (2) sign faces which include lettering, and these sign faces shall be back-to-back.

- (b) Such signs may be attached to a building wall and no part of the sign shall project more than four (4) inches at a height below eighty (80) inches from the grade beneath the sign. Signs attached to the building at a height above eighty (80) inches from the bottom of the sign to the grade beneath the sign shall not project more than three (3) feet from the building.

B. Regulations Applicable to All Neighborhood Business Districts. The provisions of this section apply to all Neighborhood Business Sign Districts.

1. Number of Signs.

- (a) For each street level business, a maximum of one (1) wall sign, two (2) window signs, and either one (1) awning sign or one (1) projecting sign or one (1) ground sign shall be permitted for each façade of a structure facing a street.
- (b) For each upper floor business, a maximum of two (2) window signs, one (1) door sign, and either one (1) awning sign or one (1) projecting sign shall be permitted for each façade of a structure facing a street.
- (c) The maximum area of all signs, including ground signs, shall be fifteen (15) percent of the area of the face of the building on which the signs are proposed. For ground signs, the area of the face of the building nearest to and visible from the ground signs shall be considered for this calculation.

2. Sign Size.

- (a) Wall signs shall be a maximum of two (2) square feet in area for every lineal foot of building frontage, up to a maximum of forty (40) square feet. Maximum lettering Size shall be eighteen (18) inches high.
- (b) For each street level business window and door signs shall be a maximum of twenty (20) percent of the glazed area of the window or door in which they are placed up to a maximum of eight (8) square feet. For each upper floor business, window or door signs shall be a maximum of fifty (50) percent of the glazed area of the window or door in which they are placed, up to a maximum of ten (10) square feet.
- (c) Projecting signs shall be a maximum of nine (9) square feet per side. The area of irregular or three-dimensional shapes shall be computed by multiplying the height and width at the widest points.
- (d) Ground signs shall be limited to forty (40) square feet, and the sign and sign structure shall be no higher than twelve (12) feet.

3. Location.

- (a) No sign or sign structure or support shall be placed onto or obscure or damage any

significant architectural feature of a building, including but not limited to a window or door frame, cornice, molding, ornamental feature, or unusual or fragile material.

- (b) No sign shall be painted onto any significant architectural feature, including but not limited to a window or door frame, cornice, molding, ornamental feature, or unusual or fragile material.
- (c) No sign or sign structure or support shall be located on the roof of any building or structure, nor shall any sign or sign structure or support extend beyond the cornice line of any building or structure.
- (d) Projecting signs shall extend no more than four (4) feet from the front of a building or structure or two-thirds ($\frac{2}{3}$) of the width of the sidewalk beneath the sign where such sidewalk exists, whichever is less. The bottom most point of a projecting sign shall be no less than ten (10) feet from above grade beneath the sign.

4. Materials.

- (a) The following types of signs and materials shall not be permitted for signs in a Neighborhood Business Sign District:
 - (1) Internally illuminated box signs;
 - (2) Individually illuminated channel letters;
 - (3) Flashing, moving or intermittently illuminated sign;
 - (4) Internally illuminated awnings.
- (b) Wall signs shall be painted only onto a separate material which is applied to the façade of the building.
- (c) For awning signs, letters shall be applied or painted onto the valance portion of the awning only.

5. Illumination.

- (a) Internally illuminated signs or sign letters shall not be permitted.
- (b) The sign face may be illuminated with small shielded spotlights which are placed as to not glare onto the public right-of-way or onto adjacent properties or neon tubing may be attached to the face of the sign for illumination.

6. Historic Plaques. In addition to the signs permitted above, the City's historic designation plaque and one (1) other historic plaque may be applied to a wall of a building or structure. These historic plaques shall be a maximum of one and one-half ($1\frac{1}{2}$) square feet in area.

C. East Carson Street District Standards. The provisions in this section apply only within the East Carson Street Neighborhood Business Sign District.

1. Intent.

This commercial area is an historic district with a unique collection of nineteenth and early twentieth century structures, built in a variety of architectural styles, but forming a continuous urban fabric along an important City arterial. The vast majority of structures are attached brick structures built to the property line along the street with narrow sidewalks along a two- or three-lane cartway.

The intent of these special provisions is to minimize the possibly adverse effect of signs on these significant architectural resources, to improve the safety of pedestrian and vehicular traffic, and to improve the communicative value of the signage for the primary users of the district.

A further intent of these regulations is to provide for signage which is compatible with the architectural character of the district, so that the historic characteristics of the district are not adversely impacted by inappropriate signage.

2. Number. One (1) ground sign shall be permitted per zoning lot and shall substitute for a projecting sign or an awning sign.
3. Size.
 - (a) Ground signs shall be limited to twenty-five (25) square feet in area, and the sign and sign structure shall be no higher than eight (8) feet.
 - (b) The limitation on the total area of all signs shall not include signs which are determined to be a significant historic element of the building and which are an integral part of the building façade.
4. Location.
 - (a) Signs for street level businesses shall be located below the sills of the second floor windows and above the frame of the storefront windows.
 - (b) Ground signs shall be located within the buildable area of the lot. Ground signs shall be used only where the building or structure on a zoning lot is set back from the front property line by at least twenty (20) feet. Ground signs shall not be supported by poles, uprights, braces or other means of support which are not a part of the sign face.
5. Materials. Sign supports and structures shall be designed to be the minimum necessary to safely install the sign. Sign structures and supports shall be designed to be compatible with the architecture of the building.

§ 919.05. Temporary Event Signs. [Ord. No. 31-2011, § 3, eff. 12-31-2011]

Temporary event signs shall be permitted by an Administrator's Exception, pursuant to the following restrictions:

1. The signs shall be prohibited in all residential zoning districts and in all historic districts designated pursuant to Title 11 of this Code;
2. The signs shall be posted for consecutive days, but not more than thirty (30) consecutive

days;

3. There shall not be more than five (5) signs for a single event approved pursuant to this section;
4. Signs for the same event shall not be approved, pursuant to this section, more than once per calendar year;
5. Any sponsorship logos or trademarks shall not cover more than fifteen (15) percent of the sign face;
6. The signs shall not be larger than three hundred seventy-eight (378) square feet;
7. The signs shall not contain any flashing text or graphics;
8. The signs shall not contain any animation;

§ 919.06. North Shore Entertainment District Sign Regulations. [Ord. No. 1-2026, eff. 1-28-2026]

A. General.

1. Purpose.

The North Shore contains the City of Pittsburgh's largest geographically concentrated area of Public Destination Facilities, including Acrisure Stadium, PNC Park, Stage AE, Rivers Casino, Carnegie Science Center and Warhol Museum. These facilities collectively attract over 20 million visitors per year and generate significant revenue that supports the local and regional economy. Signs on major highways direct traffic to the "North Shore" as a major City destination.

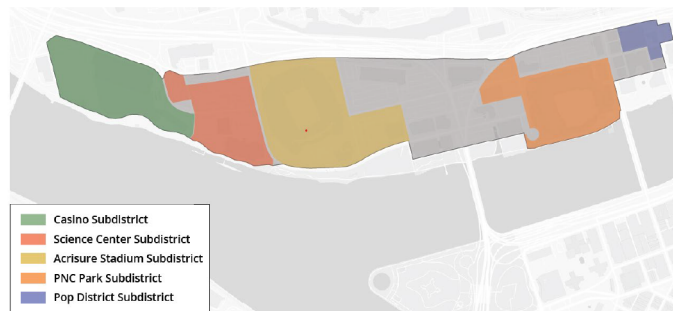
These facilities and the surrounding areas on the North Shore are characterized by unique activities, entertainment programs, sponsorships and large-scale temporary events that promote the City to the world. The purpose of this legislation is to provide for sophisticated modern signage efforts on the North Shore. The North Shore Entertainment District is intended to encourage the orderly development, placement, and usage of two and three-dimensional destination, identification, digital accessory, non-accessory, and video displays on buildings and in open spaces.

2. **Conflicts.** The provisions of this section shall take precedence over any conflicting provisions in Article VI, Chapter 919 relating to signs.

- B. Establishment of North Shore Entertainment District.** The provisions of this section apply only to all land within the North Shore Entertainment District, which is generally bounded by Reedsdale St. and the Allegheny River and generally extends from the Rivers Casino to Sandusky Street as depicted in Figure 919.06.B.

**Figure 919.06.B.**

1. Subdistricts. The North Shore Entertainment District shall be divided into five (5) "Subdistricts," referred to as "Acrisure Stadium District," "PNC Park District," "Casino District," "Science Center District," and "Pop District," inclusive. The Subdistricts shall be located in those areas as depicted in Figure 919.06.B.1.

**Figure 919.06.B.1.**

Acrisure Stadium Subdistrict is bounded:

By a line beginning at the intersection of the centerline of Reedsdale Street and Allegheny Avenue, and continuing along the centerline of Reedsdale Street to the intersection of Reedsdale Street and Art Rooney Avenue, then continuing south along the centerline of Art Rooney Avenue to the intersection of Art Rooney Avenue and West General Robinson Street, then continuing along the centerline of West General Robinson Street to the intersection of West General Robinson Street and Chuck Noll Way, then along the centerline of Chuck Noll Way to the intersection of Chuck Noll Way and North Shore Drive, then along the centerline of North Shore Drive and the centerline of Allegheny Avenue to the place of beginning.

PNC Park Subdistrict is bounded:

By a line beginning at the intersection of Federal Street and West General Robinson Street and continuing along the centerline of Federal Street until the 6th Street Bridge, then along the eastern edge of tax parcel 8-L-8 until its intersection with the Allegheny River, then along the southern boundary of tax parcel 8-L-8, then north to the shared boundary of tax parcel 8-L-8 and Mazeroski Way, then north along the centerline of Mazeroski Way to the intersection of Mazeroski Way, and the southern boundary of tax parcel 8-K-36, then along the southern boundaries of tax parcels 8-K-36 and 8-K-37 to the western boundary of tax parcel 8-K-37, then along the western boundary of tax parcel 8-K-37 across General Robinson Street on an arc to the southwestern corner

of tax parcel 8-K-5, then along the northern boundary of tax parcel 8-K-5 until the intersection of the northern boundary of tax parcel 8-K-5 and Mazeroski Way, then along the centerline of Mazeroski Way to the intersection of Mazeroski and West General Robinson Street, then along the centerline of West General Robinson Street to the place of beginning.

Casino Subdistrict is bounded:

On the east, by the centerline of Sproat Way and, upon the termination of Sproat Way, by the eastern boundary of tax parcel 7-L-32;

On the south, by the southern boundary of tax parcel 7-L-32, the southern boundary of tax parcel 7-G-122 and the southern boundary of tax parcel 7-F-273;

On the west, by the centerline of Belmont Street and the western boundary of tax parcel 7-F-262 until the intersection of the western boundary of tax parcel 7-F-260 and Reedsdale Street; and

On the north, by the centerline of Reedsdale Street until the intersection of Reedsdale Street and Casino Drive, then by the centerline of Casino Drive.

Science Center Subdistrict is bounded:

On the east, by the center line of Allegheny Avenue and North Shore Drive;

On the south, by the southern boundary of tax parcel 7-M-500 and 7-M-150;

On the west, by Sproat Way, then, from the intersection of Sproat Way and Casino Drive – by the centerline of Casino Drive until its intersection with Reedsdale Street; and

On the north, from the intersection of Reedsdale Street and Casino Drive – by the centerline of Reedsdale Street, and for the remainder of the subdistrict – by the northern boundary of tax parcel 7-M-2-1.

Pop District Subdistrict is bounded:

By a line beginning at the intersection of Range Way and East Lacock Street, and continuing along the centerline of East Lacock Street to the eastern boundary of tax parcel 8-H-163, then along the eastern boundary of tax parcel 8-H-163 to the point where such boundary intersects with East General Robinson Street, then along the centerline of East General Robinson Street to the intersection of East General Robinson Street and Sandusky Street, then along the centerline of Sandusky Street to the intersection of Sandusky Street and Silver Street, then along the centerline of Silver Street to the intersection of Silver Street and Vulcan Way, then along the centerline of Vulcan Way to the intersection of Vulcan Way and East General Robinson Street, then along the centerline of East General Robinson Street to the intersection of East General Robinson Street and Range Way, then along the center line of Range Way to the place of beginning.

C. Special Definitions. The following special definitions shall apply throughout the North Shore

Entertainment District regulations of this section.

1. **BROADCAST CONTENT** — means the live broadcast of sporting events and performances and related programs at the facility or at remote venues during the day of an event. Broadcasts may include commercials that typically occur during such broadcasts.
2. **CHANGEABLE CONTENT** — means static messaging showcasing internal facilities and events, the name, logo and/or tagline of a NS Public Destination Facility or Open Space, the primary or secondary tenants of a NS Public Destination Facility or Open Space, or a Sponsor associated with a NS Public Destination Facility, a tenant thereof or Open Space.
3. **DISTRICT CROSS-PROMOTION CONTENT** — means content displayed on a permitted sign that publicizes or directs attention to an event, performance, or activity happening within ninety (90) days located within the boundaries of the North Shore Entertainment District whether on or off of the premises of the facility where the event is promoted. District Cross-Promotion Content shall not advertise or promote products, services, or commercial activities that occur outside the District.
4. **GROUND BASED PUBLIC DESTINATION FACILITY SIGNS** — means any and all permanent free standing Public Destination Facility Signs located within a Subdistrict's Open Space that is not attached to any building.
 - (a) *LARGE SCALE GROUND SIGN* — means a *Ground Based Public Destination Facility Sign* greater than fifty (50) square feet and not exceeding two hundred fifty (250) square feet.
 - (b) *SMALL SCALE GROUND SIGNS* — means *Ground Based Public Destination Facility Sign* fifty (50) square feet or less.
5. **MAJOR TEMPORARY EVENT** — means a one-time event or event that does not occur on an annual basis (ex. the NFL Draft, the Winter Classic & All-Star Game) or an annual event with an attendance or patronage of at least one hundred thousand (100,000) people. Attendance is calculated on a daily basis, not over cumulative dates for multi-day events.
6. **MARQUEE-STYLE GROUND BASED PUBLIC DESTINATION FACILITY SIGN** — means a large-scale, two or three-dimensional sign designed to serve as a prominent visual landmark for a public destination facility. These signs may include integrated architectural features or lighting and are intended to provide identity and distinction for major destinations within the district. Marquee-Style signs are distinct from standard ground signs in their scale, design complexity, and role as focal points within the Open Space.
7. **MINOR TEMPORARY EVENT** — means a specific event, including but not limited to sporting events, concerts, festivals and parades, which takes place not more than once per year.
8. **NS GARAGE** — in the North Shore Entertainment District means a structure or any

portion thereof designed for the parking of one (1) or more automobiles.

9. NS LARGE VIDEO DISPLAY — in the North Shore Entertainment District means an electronic sign that features real-time, full-motion, or pictorial imagery of television quality or better.
 10. NS PUBLIC DESTINATION FACILITY — means a structure providing as its primary use one (1) of the following: a NS Garage; Cultural Services (Limited and General); Public Assembly (General); Recreation and Entertainment Facilities (General, Indoor and Outdoor); and Gaming Enterprises and any other accessory structure attached thereto.
 11. OPEN SPACE — means that portion of a lot or lots which are not occupied by buildings, parking areas, driveways, streets or loading areas.
 12. PUBLIC DESTINATION FACILITY SIGNS — means signage that carries the name, logo and/or tagline of a NS Public Destination Facility or Open Space, the primary or secondary tenants of a NS Public Destination Facility or Open Space, or a Sponsor associated with a NS Public Destination Facility, a tenant thereof or Open Space. Public Destination Facility Signs include Structure Based Public Destination Facility Signs and Ground Based Public Destination Facility Signs.
 13. SPONSOR — means a person, entity, or organization that provides financial and other support for a tenant, event, product, service or activity associated with a NS Public Destination Facility. Sponsorship identification (such as naming rights, gate names, or logos integrated into on-site features) is permitted as part of on-premise or District Cross-Promotion Content, provided it does not include general advertising of products or services.
 14. STRUCTURE BASED PUBLIC DESTINATION FACILITY SIGNS — means any and all permanent Public Destination Facility Signs attached to the NS Public Destination Facility and includes, but is not limited to, the following types of signs: Business, Identification, Electronic, Marquee, Canopy and Projecting Signs.
 15. TEMPORARY EVENT SIGN — means a sign that advertises a specific event and the Sponsor thereof, including but not limited to sporting events, concerts, festivals and parades, which takes place not more than once per year.
 16. TEMPORARY EVENT SIGN PLAN — means a plan that provides for the locations, quantities and sizes of all Temporary Event Signs.
- D. Regulations Applicable Throughout the North Shore Entertainment District. The following regulations apply to all developments located within the North Shore Entertainment District.
1. Major Temporary Event Signs.
 - (a) Signs related to a Special Event permit are permitted within the Special Event permit area without limitation.
 - (b) Signs identifying a Major Temporary Event that are not a part of Special Event permit shall be permitted subject to the following standards:

- i. Any sponsorship logos or trademarks shall not cover more than thirty (30) percent of each sign face.
 - ii. No motion, animation, or Changeable Content is permitted, except as needed for pedestrian-scaled wayfinding signs.
 - (c) The signs may be in place up to two (2) months before the start of the event and until two (2) weeks after the close of the event.
 - (d) The locations of all Temporary Event Signs shall be provided for in a Temporary Event Sign Plan.
 - (e) A Temporary Events Sign Plan shall be submitted for Zoning Administrator review and approval at least twenty-one (21) days prior to the installation of the first sign.
2. Minor Temporary Event Signs.

- (a) No motion, animation, or Changeable Content is permitted, except as needed for pedestrian scaled wayfinding signs.
- (b) Any sponsorship logos or trademarks shall not cover more than thirty (30) percent of each sign face.
- (c) The signs may be in place up to two (2) weeks before the start of the event and until two (2) weeks after the close of the event.
- (d) Signs for the same event shall not be approved, pursuant to this section, more than once per calendar year.
- (e) There shall not be more than twenty-five (25) signs for a single event approved pursuant to this section.
- (f) Each sign shall not be larger than five hundred (500) square feet.
- (g) The signs shall not be located in the Floodway.
- (h) Temporary Certificates of Occupancy will be required for all minor Temporary Event Signs.

3. Other Signs Not Located in a Subdistrict.

Except for NS Garages, all other signs that are not located in a North Shore Entertainment District Subdistrict shall be subject to the regulations set forth in Chapter 919 relating to non-advertising signs.

NS Garages may permit Public Destination Facility Signs subject to the regulations set forth in Section 919.06.B.4.

E. Regulations Applicable Throughout North Shore Entertainment District Subdistricts.

1. Public Destination Facility Signs.

- (a) Structure Based Public Destination Facility Signs.

i. Location.

- a. Structure Based Public Destination Facility Signs may be located on building facades, canopies, marquees, parapets, and roofs of a NS Public Destination Facility or other building within the same Subdistrict as a NS Public Destination Facility.
- b. Structure Based Public Destination Facility Signs may extend beyond the roof peak or parapet wall, however, may not be sky facing only.
- c. Structure Based Public Destination Facility Signs shall not be located within one hundred (100) feet of or be primarily directed towards rivers.
- d. Structure Based Public Destination Facility Signs shall be erected or maintained in such a manner as to not obscure or otherwise physically interfere with an official traffic sign, signal or device, or to obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic.

ii. Content. Structure Based Public Destination Facility Signs may include Changeable Content and District Cross-Promotion Content. Changeable Content shall have only static text and graphics.

iii. Size.

- a. For a NS Public Destination Facility, the aggregate area for all Structure Based Public Destination Facility Signs larger than fifty (50) square feet shall not exceed 5% of the total amount of facade area on a NS Public Destination Facility.
- b. An unlimited number of Structure Based Public Destination Facility Signs up to fifty (50) square feet shall be permitted as of right.
- c. For buildings other than a NS Public Destination Facility, the size requirements set forth in Section 919.03.M.7(a) shall apply.

iv. Visibility.

- a. Structure Based Public Destination Facility Signs may be internally or externally illuminated 24 hours per day. They may have direct face, and/or edge and/or halo illumination caused by neon, incandescent, fluorescent, L.E.D. lamps or any other solid state electronic component.
- b. Structure Based Public Destination Facility Signs may include physical moving elements if they do not pose a public safety hazard and/or directly face the riverfront.
- c. Electronic L.E.D. displays, or signs including electronic or mechanical motion shall be oriented so that they are not generally parallel to and primarily visible from the river, and the adjacent trails and parks.

- d. The text, image, or display on a Structure Based Public Destination Facility Sign may not change more than once every thirty (30) seconds.
 - e. Brightness. During daylight hours between sunrise and sunset, luminance shall be no greater than two thousand five hundred (2,500) nits. At all other times, luminance shall be no greater than two hundred fifty (250) nits.
 - v. Review & Approval Process.
 - a. Structure Based Public Destination Facility Signs less than 250 square feet shall be subject to Design Review.
 - b. Structure Based Public Destination Facility Signs 250 square feet or greater shall be subject to Design Review and approval by the City Planning Commission.
 - c. The applicant must provide square footage numbers for existing signage and facade area at the time of application.
- (b) Ground Based Public Destination Facility Signs.
 - i. Location.
 - a. Except as provided for in this section, Ground Based Public Destination Facility Signs may be located anywhere in Open Space provided that the location does not present an impediment to pedestrian traffic.
 - b. Ground Based Public Destination Facility Signs shall not be located within one hundred (100) feet of the rivers, a Riparian Buffer or be directed primarily towards the rivers.
 - c. No Ground Based Public Destination Facility Sign shall be erected or maintained in such a manner as to obscure or otherwise physically interfere with an official traffic sign, signal or device, or to obstruct or physically interfere with the driver's view of approaching, merging or intersecting traffic.
 - ii. Content. Ground Based Public Destination Facility Signs may include Changeable Content and District Cross-Promotion Content. Changeable Content shall have only static text and graphics.
 - iii. Size.
 - a. Small Scale Ground Signs under fifty (50) square feet shall be permitted in unlimited number and are not subject to spacing requirements.
 - b. Large Scale Ground Signs are permitted in an unlimited number but shall maintain a minimum horizontal spacing of fifty (50) feet between other Large Scale Ground Signs and Marquee-Style Ground Based Public Destination Facility Signs.

- c. Up to three (3) Marquee-Style Ground-Based Signs may be permitted per Subdistrict with total area not to exceed one (1) square foot of sign area for every one (1) linear foot of aggregate street frontage within the Subdistrict. No individual Marquee-Style Ground-Based Signs may exceed two thousand five hundred (2,500) square feet in face area. Marquee-Style Ground-Based Signs shall also maintain a minimum spacing of fifty (50) feet from other Large Scale or Marquee-Style Ground-Based Signs.
 - d. Ground Based Public Destination Facility Signs shall not extend more than fifty (50) feet in height from the top of the sign to grade beneath the sign.
 - e. Two-Dimensional Sign Area Calculation. The sign area shall equal the area of the largest visible face. The area shall be defined by the smallest possible singular rectangle that fully encompasses all elements of the sign face. For double-sided signs, count the one largest visible face. Decorative or supporting structures without sign copy are excluded.
 - f. Three-Dimensional Sign Area Calculation. The sign area shall equal the area of the largest visible face plus the area of one side of the sign's depth. Decorative or supporting structures without sign copy are excluded.
 - iv. Review & Approval Process.
 - a. Small Scale and Large Scale Ground Signs shall be subject to Design Review.
 - b. Marquee-Style Ground-Based Signs shall be subject to Design Review and approval by the City Planning Commission.
- 2. NS Large Video Displays.
 - (a) Location.
 - i. A NS Large Video Display may be located on a NS Public Destination Facility facade, excluding NS Garages, or Open Space.
 - ii. NS Large Video Displays shall be oriented so that they are not generally parallel to and primarily visible from the river and the adjacent trails and parks.
 - iii. Except for the Pop District Subdistrict, there shall be no more than six (6) Large Video Displays per Subdistrict. No more than three (3) Large Video Displays are permitted in the Pop District Subdistrict.
 - (b) Content. NS Large Video Displays may contain Broadcast Content, Changeable Content and District Cross-Promotion Content. Changeable Content shall have only static text and graphics.

- (c) Size. The maximum size of a NS Large Video Display shall be 1,200 square feet.
 - (d) Visibility.
 - i. Chargeable Content may not change more than once every thirty (30) seconds.
 - ii. Brightness. During daylight hours between sunrise and sunset, luminance shall be no greater than two thousand five hundred (2,500) nits. At all other times, luminance shall be no greater than two hundred fifty (250) nits.
 - (e) Review & Approval Process. NS Large Video Displays shall be reviewed by the Planning Commission and City Council as Conditional Uses according to the Conditional Use Standards and Procedures of Section 922.06 and the standards set forth above.
- F. Acrisure Stadium Subdistrict.
RESERVED
- G. PNC Park Subdistrict.
RESERVED
- H. Casino Subdistrict.
RESERVED
- I. Science Center Subdistrict.
RESERVED
- J. Pop District Subdistrict.
RESERVED

CHAPTER 920 Child Care Regulations

§ 920.01. General.

A. Provision of Child Care Facilities.

1. Space for a child day care facility or facilities as specified herein shall be provided at the time of erection or enlargement of any nonresidential structure or any successive expansions of a nonresidential structure, conditional use, unit group development or planned development that exceeds the following minimum sizes:
 - (a) Any office structure that contains a gross floor area of ninety thousand (90,000) square feet or more or successive expansions of an office structure, conditional use, unit group development or planned development in which the cumulative increase in gross floor area is ninety thousand (90,000) square feet or greater.
 - (b) Any structure other than an office, residential or industrial structure containing a gross floor area of one hundred eighty thousand (180,000) square feet or more or successive expansions of such a structure, conditional use, unit group development or planned development in which the cumulative increase in gross floor area is one hundred eighty thousand (180,000) square feet or greater.
 - (c) Any mixed-use structure, where the component uses contained therein are less than the threshold sizes established in Sections 920.01.A.1(a) and 920.01.A.1(b), but where the sum of the otherwise required child day care facilities for each component use is greater than or equal to one thousand two hundred sixty (1,260) gross floor area. The sum of such otherwise required facilities shall be calculated as follows:

$$\text{Facility GFA} = (\text{PO} \times \text{GFA} \times 0.014) + (\text{PN} \times \text{GFA} \times .007)$$

Where:

Facility GFA = Sum of Component use Facility

PO = Percent Office use in Structure

PN = Percent Non-office Nonresidential use in Structure

GFA = Gross floor area of Structure

2. Exemption from the calculation of gross floor area of a subject structure shall be calculated for those components of a structure which constitute the primary use and which can be shown to generate only employment which is accounted for elsewhere in the structure. Examples of such component spaces might include, but would not be limited to: classroom space; automobile or boat showroom, service, and storage space; parking and loading space; furniture showroom and storage space; animal and laboratory supply storage space; special mechanical and HVAC equipment space within research and development and laboratory structures. Such component spaces eligible for exemption under this section shall not include those spaces typically incident to building occupancy, including but not limited to: hallways; lobbies; and conference rooms.

- B. **Floor Area Bonus.** The lesser of four hundred (400) percent of the gross floor area of the required child day care facility or facilities provided pursuant to this chapter or one-half ($\frac{1}{2}$) the gross floor area of that floor of the subject structure located at the midpoint of the structure's height shall be excluded from the calculation of the permitted floor area of the subject structure or the permitted bulk of the subject structure as defined by the area requirements of the Zoning District in which the subject structure is located, and from the calculation of the permitted height of the subject structure as defined by the height requirements of the Zoning District in which the subject structure is located, provided that such exclusion shall not increase the permissible site coverage of the subject structure or decrease any yard requirement of the subject structure as defined by that Zoning District by more than the increase in gross floor area afforded by this section when divided by the total number of floors of the structure and provided that such exclusion shall not increase the otherwise allowable height of the subject structure within the underlying zoning district by more than one (1) floor.
- C. **Net Increase in Space Required.** The provisions of this section may be satisfied only by a net increase in child day care facility space as computed under the requirements of this section and as located in compliance with the requirements of this section. Purchasing, leasing, relocating or otherwise reserving existing space in existing child day care facilities shall not satisfy the provisions of this chapter.
- D. **Operation by Licensed Child Day Care Provider.** A child day care facility constructed or provided pursuant to the provisions of this chapter shall be operated by a licensed child day care provider.
- E. **Preference to Tenants.** Preference in the allocation of child day care services in a child day care facility created pursuant to this chapter shall be given to the tenants, and employees of tenants, of the structure which has caused the creation of the facility.

§ 920.02. Floor Area Requirements for Child Care.

- A. The gross floor area of the required child day care facility in office structures shall total no less than one thousand two hundred sixty (1,260) square feet or one and four tenths (1.40) percent of the gross floor area of the structure exclusive of parking, loading and those exceptions listed under Section 914.11, whichever is greater.
- B. The gross floor area of the required child day care facility in any structure other than an office, residential or industrial structures shall total no less than one thousand two hundred sixty (1,260) square feet or 0.70 percent of the gross floor area of the structure exclusive of parking, loading and those exceptions listed under Section 920.01.A, whichever is greater.
- C. In the case of a mixed-use development, the gross floor area of the required child day care facility shall total no less than the sum of the gross floor areas of the required child day care facilities for each component use of the development as calculated under this section.
- D. Any net increase in the gross floor area of a structure, conditional use, unit group development or planned development through subsequent development action shall be matched by a corresponding increase in the gross floor area of the required child day care facility or facilities. Such increase shall be computed per Section 920.01.A and Section

920.02. The owner or agent for the subject structure shall certify that the requirement for a net increase in child day care facilities specified herein remains satisfied. Any net decrease in the gross floor area of a structure, conditional use, unit group development or planned development through subsequent development action may, at the owner's option, be matched by a corresponding decrease in the gross floor area of the required child day care facility or facilities. Such decrease shall not exceed the amount computed per Section 920.01.A and Section 920.02.

§ 920.03. Location.

- A. The required child day care facility shall be located on the same zoning lot as the subject structure and in accordance with the standards of the Pennsylvania Department of Public Welfare and the Pittsburgh Bureau of Building Inspection, except as specified in Section 920.05.B.
- B. The location or locations of the required facility or facilities may be changed provided that the new facility or facilities are located in accordance with Section 920.03.A and Section 920.05.B and that the owner of or agent for the subject structure certifies that the requirement for a net increase in child day care facilities under Section 920.02.D remains satisfied.
- C. The requirement for the provision of the child day care facility for a single structure may be met through a combination of two (2) or more child day care facilities whose combined gross floor area totals no less than the required gross floor area specified in Section 920.02 and are located in accordance with Section 920.03 and Section 920.05.B, provided that each of such facilities are of a minimum size of one thousand two hundred sixty (1,260) square feet gross floor area.

§ 920.04. Special Exception.

The following uses shall be permitted as Special Exceptions in accordance with the Special Exception Review Procedures of Section 922.07:

- A. Reduction in the Gross Floor Area of the Child Day Care Facility Required. The gross floor area of the child care facility may be reduced provided that:
 - 1. The applicant can provide evidence that no child day care provider can be found to provide child day care services in any of the variety of locations permissible under Section 920.03.A and Section 920.05.B.
 - 2. The Board determines that the proposed reduction shall not be detrimental to the community by increasing the unmet demand for existing child day care facilities, taking into consideration the number, location, availability and length of waiting lists of such existing facilities.
 - 3. The Board imposes such conditions and limitations as to the duration of the reduction which in its opinion are necessary in order to ensure that the reduction results in no future increase in unmet demand for child day care facilities.

§ 920.05. Administrator Exceptions. [Ord. No. 31-2018, § 16, eff. 8-6-2018]

The following shall be Administrator Exceptions in accordance with the provisions of Section 922.08:

- A. Increase in Site Coverage/ Decrease in Yard Requirement. In all districts other than R or RP, increase in the permissible site coverage of a structure or the decrease in any yard requirement of a structure meeting the requirements of Section 920.01 Child Day Care Facilities provided:
 - 1. The increase in permissible site coverage or the decrease in any yard requirement is less than or equal to the increase in GFA when divided by the total number of floors of the structure; and
 - 2. Such increases in site coverage or decreases in yards shall not create a safety hazard by creating sight distance problems for vehicles entering or exiting a site; and
 - 3. Such decrease in yards shall be limited to no greater than ten (10) percent of any specified yard.
- B. Day Care Location Exceptions.
 - 1. Provision of the required child day care facility or facilities for a subject structure in any Zoning District may be satisfied by the provision of a facility or facilities in one (1) or several of the following locations, provided that each of such facilities are of a minimum size of one thousand two hundred sixty (1,260) square feet GFA:
 - (a) On a zoning lot located no more than two thousand five hundred (2,500) feet walking distance from the zoning lot of the subject structure, or in EMI districts no more than two thousand five hundred (2,500) feet from an institutional campus boundary defined in that institution's Master Plan as duly approved by the Planning Commission;
 - (b) On a zoning lot more than one thousand (1,000) feet walking distance from the subject structure upon which or adjacent to is located a major parking garage or a major parking area, provided that a portion of such parking garage or parking area is reserved for the exclusive use of tenants of the subject structure, and that regularly scheduled shuttle service is in operation between the parking garage or parking area and the subject structure.
 - 2. Provision of the required child day care facility or facilities for a subject structure in a GT Golden Triangle District may be satisfied by the provision of a facility or facilities in one (1) or several of the following locations, provided that each of such facilities are of a minimum size of one thousand two hundred sixty (1,260) square feet GFA:
 - (a) A public Intermodal Transportation Center located within any GT District, or in any District adjacent to any GT District;
 - (b) A major or minor parking garage, open to the general public and with a minimum size of five hundred (500) stalls, located within any GT District;

- (c) A major or minor parking area, open to the general public and with a minimum size of five hundred (500) stalls, located within any GT District;
 - (d) A transit stop, engineered and completed to accommodate a projected peak hour travel of at least four thousand (4,000) persons per weekday in all directions, located within any GT District.
- 3. Provision of the required child day care facility or facilities for a subject structure in Oakland districts may be satisfied by the provision of a facility or facilities in one (1) or several of the following locations, provided that each of such facilities are of a minimum size of one thousand two hundred sixty (1,260) square feet GFA:
 - (a) A public Intermodal Transportation Center located within any Oakland district;
 - (b) A major or minor parking garage, open to the general public and with a minimum size of five hundred (500) stalls, located within an Oakland district;
 - (c) A major or minor parking area, open to the general public and with a minimum size of five hundred (500) stalls, located within an Oakland district;
 - (d) A transit stop, engineered and completed to accommodate a projected peak hour travel of at least four thousand (4,000) persons per weekday in all directions, located within an Oakland district.

Article IX Measurements And Definitions

CHAPTER 925 Measurements

§ 925.01. Lot Size. [Ord. 35-2002, § 1F, 12-3-2002]

Lot size or lot area refers to the amount of horizontal land area within lot lines. No building permit or development approval shall be issued for a lot that does not meet the minimum lot size requirements of this Code except in the following cases.

- A. Reduction for Public Purpose. When an existing lot is reduced as a result of conveyance to a federal, state or local government for a public purpose and the remaining area is at least seventy-five (75) percent of the required minimum lot size for the district in which it is located, then that remaining lot shall be deemed to comply with the minimum lot size standards of this Code.
- B. Utility Facilities. Utility facilities using land or an unoccupied building requiring less than one thousand (1,000) square feet of site area are exempt from the minimum lot size standards of all zoning districts.
- C. Single-Unit Dwelling Exemptions.
 - 1. The minimum lot size standards of this Code shall not be interpreted as prohibiting the construction of a single-unit residential dwelling unit on a lot that was legally platted or recorded prior to the adoption of this Code.
 - 2. A single unit dwelling on a recorded zoning lot with a lot area less than otherwise required by the provisions of Chapter 903 or of Chapter 905, may be approved as an Administrator's Exception according to the provisions of Section 922.08.

§ 925.02. Lot Width.

Lot width refers to the horizontal distance between the side lot lines as measured along a straight line parallel to the front lot line or the chord thereof. The minimum lot width shall be measured between the side lot lines along a line that is parallel to the front lot line and located the minimum front setback distance from the front lot line. In the case of cul-de-sac lots, the minimum lot width may be measured between the side lot lines along a line that is parallel to the front lot line and located at the actual front building line.

§ 925.03. Density.

Density refers to the number of dwelling units for each (gross) acre of land. Density shall be calculated by dividing the number of dwelling units by the lot area (in acres).

§ 925.04. Floor Area Ratio (FAR).

Floor area ratio (FAR) refers to the amount of gross floor area of all principal buildings on a lot

divided by the total area of the lot on which such buildings are located.

§ 925.05. Build-To Line.

"Build-to line" requirements are established in some zoning districts as a means of preserving the established pattern of development along streets. The build-to line is an imaginary line that falls within three (3) feet of the line along which most buildings in a block have the majority of their front facade.

§ 925.06. Setbacks. [Ord. 28, 11-17-2000/Amend. U-25; Ord. No. 27-2016, § 1, eff. 10-11-2016; Ord. No. 57-2021, § 3, eff. 12-27-2021; Ord. No. 5-2023, § 2, 5-22-2023; Ord. No. 5-2023, § 3, 5-22-2023; Ord. No. 27-2016, § 2, eff. 10-11-2016; Ord. 16(99)/6-1-1999/Amend. U-6; Ord. 21-2002, § 26, 6-18-2002; Ord. 36-2005, § 1, eff. 12-14-2005; Ord. 42-2005, § 39, eff. 12-30-2005; Ord. No. 25-2011, § 2, eff. 12-22-2011; Ord. No. 26-2011, § 1, eff. 12-22-2011; Ord. No. 31-2018, § 18, eff. 8-6-2018; Ord. No. 57-2021, § 3, eff. 12-27-2021]

Setbacks refer to the required unoccupied open space between the furthestmost projection of a structure and the property line of the lot on which the structure is located, except as modified by the standards of this section. Required setbacks shall be unobstructed from the ground to the sky except as specified in this section.

A. Features Allowed Within Setbacks. The following structures and features may be located within required setbacks:

1. Trees, shrubbery or other features of natural growth provided that they do not obstruct vehicular sight distances;
2. Solar energy and small wind energy systems when located on rooftops;
3. Small non-permanent residential accessory features that do not require a building permit such as play equipment, landscape decorations, and similar features;
4. Railings not more than three and one-half (3½) feet in height constructed on any balcony, stairway, porch or landing platform;
5. Driveways and sidewalks;
6. Signs, provided that they are specifically permitted by the sign regulations of this Code;
7. Bay windows, architectural design embellishments, and cantilevered floor areas of dwellings that do not project more than two (2) feet into the required setback;
8. Eaves that do not project more than two (2) feet into the required setback;
9. Entrance hoods, terraces, canopies, and balconies that do not project more than five (5) feet into a required front or rear setback nor more than two (2) feet into a required side setback;
10. Chimneys, flues and ventilating ducts that do not project more than two (2) feet into a required setback and when placed so as not to obstruct light and ventilation;

11. Utility lines, wires and associated structures, such as power poles;
12. Retaining walls, provided that they do not obstruct vehicular sight lines;
13. Open outside stairways or fire escapes that do not project more than four (4) feet into a required side or rear yard; and
14. Open structures such as porches, decks or landing places which do not extend above the first floor of the building, may be erected:
 - (a) In required front, or rear yards, or street side yard, provided the structure is not more than nine (9) feet in depth and no closer to an abutting interior side yard lot line than the existing primary structure;
 - (b) The space beneath the projecting porch, decks or landing place may serve as part of an interior minor garage, provided no portion of the garage extends above the adjoining ground level or farther into the yard than the open porch, deck or landing place and no garage doors open outward.
15. Access ramps and lifts for people with disabilities with review of the design, construction and location by the Zoning Administrator to insure appropriate context with the existing structure and neighborhood.
16. HVAC units and similar mechanical equipment located on rooftops may be located within setbacks subject to the following standards:
 - (a) Equipment shall be screened by parapets or other devices so it is not visible from Streets or abutting properties at ground level; and
 - (b) Equipment shall be compliant with applicable noise and operational standards.
17. HVAC units and similar mechanical equipment, excluding emergency generators, located at grade, may be located within setbacks subject to the following standards:
 - (a) When located within side yards or rear yards, equipment shall be screened so as not to be visible and to buffer sound to abutting properties using landscaping and/or fencing. When located within five (5) feet of an interior sideyard property line, solid privacy fencing must be used; and
 - (b) When located in front yards, mechanical equipment shall be located no closer to the street than an existing front porch or stoop and shall be screened using landscaping and/or decorative fencing so as not to be visible from Streets and abutting properties. Equipment shall not be permitted in front yards where no existing porch or stoop exists; and
 - (c) Units shall be compliant with applicable noise and operational standards.
- B. Contextual Front Setbacks. Regardless of the minimum front setback requirements imposed by the zoning district standards of this Code, applicants shall be allowed to use the Contextual Front Setback. The Contextual Front Setback shall apply only to primary uses and structures. A Contextual Front Setback for any lot with street frontage may fall at any

point between the (zoning district) required front setback and the front setback that exists on a lot that is adjacent and oriented on the same side of the street as the subject lot or that of a build-to line established by at least fifty (50) percent of the primary structures within the same block as the subject property on the same side of the street as demonstrated by the applicant with plot plans, surveys, maps, and other evidence determined to be acceptable by the Zoning Administrator. This provision shall not be interpreted as requiring a greater front setback than imposed by the underlying zoning district, and it shall not be interpreted as allowing setbacks to be reduced to a level that results in right-of-way widths dropping below established minimums. Contextual Front Setbacks may not be applied to the Riparian Buffer Zone as established in Section 905.04.E.4.a, RIV Riverfront Zoning District.

C. Contextual Side Setbacks.

Regardless of the minimum side setback requirements imposed by the zoning standards of this Code, applicants shall be allowed to use a Contextual Side Setback. The Contextual Side Setback shall apply only to primary uses and structures. A Contextual Side Setback may fall at any point between the required side setback and the side setback that exists on a lot that is adjacent and oriented to the same street as the subject lot, but shall be a minimum of three (3) feet. If the subject lot is a corner lot, the Contextual Side Setback may fall at any point between the required side setback required by the zoning district and the side setback that exists on the lot that is adjacent and oriented to the same street as the subject lot, but shall be a minimum of three (3) feet. If lots on either side of the subject lot are vacant, the setback that is required by the zoning district shall apply. This provision shall not be interpreted as requiring a greater side setback than imposed by the underlying zoning district, and it shall not be interpreted as allowing setbacks to be reduced to a level that results in right-of-way widths dropping below established minimums. Contextual Side Setbacks may not be applied to the Riparian Buffer Zone as established in Section 905.04.E.4.a, RIV Riverfront Zoning District.

Regardless of the setbacks of adjacent structures, for any single-unit house on a recorded zoning lot that is less than sixty (60) feet in width, the side yards may be reduced according to the following:

Lot Width	Required Interior Setback	Required Streetside Setback
59'	5'	29'
58'	5'	28'
57'	5'	27'
56'	5'	26'
55'	5'	25'
54'	5'	24'
53'	5'	23'
52'	5'	22'
51'	5'	21'
50'	5'	20'

Lot Width	Required Interior Setback	Required Streetside Setback
49	5'	20'
48'	5'	19'
47'	5'	19'
46'	5'	18'
45'	5'	18'
44'	4'	18'
43'	4'	17'
42'	4'	17'
41'	4'	16'
40'	4'	16'
39'	4'	15'
38'	4'	15'
37' and below	3'	15'

1. **Reduced Setback on Both Sides.** The applicant may reduce the side setback to three (3) feet on both sides only if adjacent properties have setbacks of three (3) feet or less on the sides abutting the applicant's property.
 2. **Zero Setback on One or Both Sides.** The applicant may reduce the side setback to zero when the side of the abutting property has a zero side setback when both building walls abut each other.
- D. **Front Setbacks on Corner and Irregular Lots.** In the case of corner or irregular lots, the Zoning Administrator shall determine which frontages shall be considered the "front", "side", and "rear" setbacks. Criteria to be considered shall include but not be limited to orientation of the primary structure, orientation of the neighboring structures, and the location of the entrances to the structure.
- E. **Setbacks Reduced for Public Purpose.** When an existing setback is reduced as a result of conveyance to a federal, state or local government for a public purpose and the remaining setback is at least seventy-five (75) percent of the required minimum setback for the district in which it is located, then that remaining setback shall be deemed to be in compliance with the minimum setback standards of this Code.
- F. **Interior Side Setbacks When None Required.** When no interior side setback is required and such a setback is provided it shall be a minimum of three (3) feet in depth. If an interior side setback is not provided the wall of the structure shall be on the interior side lot line.
- G. **Features Allowed within Setbacks by Administrator's Exception.** The Zoning Administrator shall be authorized, in accordance with the Administrator Exception procedures of Section 922.08, to permit features as per Section 925.06.G.1 within setbacks, according to the provisions of Section 925.06.G.2 below.

1. Permitted Features. The following features shall be permitted within setbacks in accordance with the standards of this section:
 - (a) Swimming pool and deck in rear and side yards;
 - (b) Garage, carport or parking stalls for residential uses with four (4) or more parking spaces and all other non-residential uses in rear and side yards;
 - (c) Storage shed or gazebo in rear and side yards;
 - (d) Decks and porches in the front, side or rear yard;
 - (e) Dumpsters;
 - (f) Building additions to primary structures, where the existing primary structure is built within a setback, except for the Riparian Buffer as per Section 905.04.E.4;
 - (g) Enclosures of existing decks and porches in side or rear yards;
 - (h) Rooftop decks on detached garages; and
 - (i) Accessory Structures not listed above, where the primary structure is built within a setback.
2. Standards. The applicant shall establish, by submittal of a plot plan, photograph(s) and other pertinent data such as written approval by abutting property owners that:
 - (a) For features other than porches, and decks, with respect to the front and side yard setback requirements, the proposed construction or erection will not place the accessory use, structures, or additions any closer to the front or neighboring property line than the building line of the applicant's existing, legally established, primary structure;
 - (b) The establishment, maintenance, location and operation of the proposed use will not be detrimental to or endanger the public health, safety, morals, comfort or general welfare;
 - (c) Authorization of the proposed exception will not be injurious to the use and enjoyment of other property in the immediate vicinity for the purposes permitted, nor substantially diminish or impair property values within the neighborhood;
 - (d) The establishment of the proposed exception will not impede the normal and orderly development and improvement of surrounding property for uses permitted in that district; and
 - (e) Any illumination or drainage shall be contained on site and directed away from abutting properties.
3. Administrator Action. Before approving an application, the Administrator shall recommend reasonable adjustments including, but not limited to, items concerning utilities, drainage, noise, landscaping and maintenance thereof, lighting, access, egress, screening of accessways to ensure that authorization of the proposed exception is

consistent with the standards found in Section 925.06.G.2 above.

H. Front Yard Parking.

1. Authorization of Front Yard District. The City Planning Commission may designate a Front Yard District at the request of at least sixty (60) percent of the property owners on the blockface of any specific street according to the procedure established by the Zoning Administrator. Blockface is defined as all properties on one (1) side of a given street existing between two (2) consecutive intersecting streets. Designation of a Front Yard Parking District allows individual property owners to file for a Special Exception from the Board of Adjustment to park one (1) noncommercial automobile in the front yard of a residence, under certain conditions, as prescribed in Section 925.06.H.2. Designation of a Front Yard District shall be considered subject to the following criteria:
 - (a) The cartway of the block shall be no wider than eighteen (18) feet for a one-way street, or no wider than twenty-seven (27) feet for a two-way street; and
 - (b) A majority of the lots along the subject block shall not be accessible to the rear or side yard; or
 - (c) Where the Planning Commission determines physical conditions warrant creation of a Front Yard Parking District, such as, but not limited to:
 - (1) Excessive topography which prevents parking on lot other than the front yard;
 - (2) Restriction on parking due to fire lane or no parking designation or narrow width of cartway;
 - (3) Location of underground utility lines which prevent access to rear or side yard.
2. Conditions of Special Exception. Installation of one (1) parking stall for a noncommercial automobile when accessory to a residential use shall be limited to RSD, Single-Unit Detached Residential, RSA, Single-Unit Attached Residential, and RT, Two-Unit Residential Use Subdistricts when located in an overlay Front Yard Parking District as designated by the Planning Commission, as specified under Section 925.06.H.1, provided:
 - (a) The maximum dimensions of the stall shall not exceed twenty (20) feet in depth and ten (10) feet in width or fifty (50) percent of the property's frontage, whichever is less;
 - (b) The stall shall be designed so that a vehicle parked on it shall not project onto any public right-of-way and will be accessed via a depressed-type cub cut, built according to city standards;
 - (c) The stall shall be located so as to provide a minimum five-foot wide landscaped side yard;
 - (d) The stall shall be paved with concrete, asphalt, or pavers, not including grass, slag, gravel, or mulch;

- (e) Each lot within the Front Yard Parking District shall be subject to the following criteria:
 - (1) The lot shall not be accessible to the rear or side yard; or
 - (2) The Zoning Board of Adjustment determines that physical conditions warrant inclusion such as but not limited to (1) excessive topography which prevents parking on lot other than the front yard, or (2) location of underground utility lines which prevent access to rear and side yard.
 - (f) The remainder of the front yard shall be landscaped to adequately screen the parking space from view by adjoining properties to the fullest extent possible. Landscaping shall include evergreen shrubs, trees, decorative walls, and other decorative elements to achieve the proper screening.
- I. Contextual Rear Setbacks. Regardless of the minimum rear setback requirements imposed by the zoning district standards of this Code, applicants shall be allowed to use a Contextual Rear Setback. The Contextual Rear Setback shall apply only to primary uses and structures. A Contextual Rear Setback may fall at any point between the required rear setback and the rear setback that exists on a lot that is adjacent to the subject lot and oriented to the same street as the subject lot. If the subject lot is a corner lot, the Contextual Setback may fall at any point between the rear setback required by the zoning district regulations and the rear setback that is adjacent to the subject lot and oriented to the same street as the subject lot. If lots on either side of the subject lot are vacant, the setback that is required by the zoning district shall apply. This provision shall not be interpreted as requiring a greater rear setback than imposed the zoning district, and it shall not be interpreted as allowing setbacks to be reduced to a level that results in right-of-way widths dropping below established minimums. Contextual Rear Setbacks may not be applied to the Riparian Buffer Zone as established in Section 905.04.E.4.a, Riverfront Zoning District.

§ 925.07. Height. [Ord. No. 6-2007, § 1, 4-12-2007; Ord. No. 27-2016, § 3, eff. 10-11-2016; Ord. No. 6-2007, § 1, 4-12-2007; Ord. No. 31-2018, § 18, eff. 8-6-2018]

- A. Measured in Feet. When measured in feet, building height refers to the vertical distance between the average finished grade along the wall facing the front street yard at the base of the building and: 1) the highest point of the coping of a flat roof; 2) the deck line of a mansard roof; or 3) the average height level between the eaves and ridge line of a gable, hip or gambrel roof. In the case of fences or walls, other than retaining walls, height shall be measured on the side with the least vertical exposure above finished grade to the top of the fence or wall.
- B. Measured in Stories. In measuring the height of a building in stories the following measurement rules shall apply:
 - 1. A basement, half-story, or penthouse, when designed for dwellings or primary occupancy shall be counted as a full story;
 - 2. A basement shall be counted a full story when sixty (60) percent or more of the exterior surface of any street wall thereof, extends above the ground directly abutting such exterior street wall. In determining the percentage of exposed exterior surface of

basement street walls, one hundred (100) percent shall be calculated by multiplying the width of such exterior walls by an assumed basement floor elevation of nine (9) feet measured downward from the surface of the first floor above the basement;

3. A balcony or mezzanine shall be counted a full story when its floor area is in excess of one-third ($\frac{1}{3}$) of the total area of the nearest full floor directly below it.
- C. Exemptions from Height Standards. The following structures and features, except when designed as dwellings or primary occupancy, shall be exempt from the height requirements of this Code:
1. Chimneys, smokestacks or flues that cover no more than five (5) percent of the horizontal surface area of the roof;
 2. Cooling towers and ventilators that cover no more than five (5) percent of the horizontal surface area of the roof;
 3. Elevator bulkheads and stairway enclosures;
 4. Fire towers;
 5. Utility poles and support structures;
 6. Belfries, spires and steeples;
 7. Monuments and ornamental towers; and
 8. Radio and television antennas, including satellite dishes less than thirty-two (32) inches in diameter.
 9. HVAC units, solar energy systems, similar mechanical equipment, and any necessary screening thereof.
- D. Contextual Height. Regardless of the maximum height limit imposed by the zoning district standards of this Code, applicants shall be allowed to use a contextual height limit. The allowed contextual height may fall at any point between the (zoning district) maximum height limit and the average height of the buildings that exist on adjoining lots that are oriented on the same side of the street as the subject lot. If the subject lot is a corner lot, the contextual height may fall at any point between the (zoning district) maximum height limit and the building height that exists on the adjoining lot that is oriented on the same side of the street as the subject lot. If lots on either side of the subject lot are vacant, the height that "exists" on such vacant lots shall be interpreted as the maximum height limit that applies to the vacant lot. Items listed in Section 925.07.C - Exemptions from Height Standards shall not be used to determine Contextual Height. This provision shall not be interpreted as requiring a greater minimum heights or lower maximum heights than imposed by the underlying zoning district, and it shall not be interpreted as allowing buildings heights that would conflict with Residential Compatibility Standard height limits of Chapter 916. Where bonus provisions of this code permit height that also qualifies as contextual height, the contextual height provisions of this section may only be used above the maximum allowable bonus height when the necessary requirements to achieve the bonus height have been met.

CHAPTER 926 Definitions

§ 926.01. Definitions. [Ord. 28, 11-17-2000, Amend. U-25; Ord. 23-2001, § 3, eff. 11-30-2001; Ord. 21-2002, § 27, eff. 6-18-2002; Ord. 22-2002, § 1K, eff. 6-25-2002; Ord. No. 2-2005, §§ 1A, 1B, eff. 1-25-2005; Ord. 39-2005, § 1D, eff. 12-30-2005; Ord. 40-2005, § 1A, eff. 12-30-2005; Ord. 42-2005, §§ 40, 41, eff. 12-30-2005; Ord. No. 19-2010, § 2A, eff. 6-17-2010; Ord. No. 25-2015, § 5, eff. 7-9-2015; Ord. No. 33-2016, § 3, eff. 12-13-2016; Ord. No. 13-2017, § 4, eff. 3-6-2017; Ord. No. 6-2018, § 1, eff. 3-16-2018; Ord. No. 34-2021, § 1, eff. 10-11-2021; Ord. No. 17-2022, § 9, eff. 6-30-2022; Ord. No. 1-2023, § 17, eff. 3-1-2023; Ord. No. 10-2025, eff. 5-7-2025]

Words and terms used in this Code shall be given the meanings set forth in this section. All words not defined in this section shall be given their common, ordinary meanings, as the context may reasonably suggest.

1. **ACCESSORY STRUCTURE AND ACCESSORY USE** — means a use or structure that is subordinate to and serves a primary use or structure; is subordinate in area, extent and purpose to the primary use or structure served; contributes to the comfort, convenience or necessity of occupants of the primary use or structure served; and is located on the same zoning lot and in the same zoning district as the primary use.
2. **ADMINISTRATOR, ZONING** — means a staff member of the Department of City Planning so designated by the City Planning Commission, who is herein charged with the administration of this Zoning Ordinance.
3. **ADULT ENTERTAINMENT (GENERAL)** — means an Adult bookstore, Adult Mini-Theater, Massage establishment, Model studio, or Sexual encounter or Meditation center.
4. **ADULT BOOKSTORE** — means a commercial establishment having a substantial or significant portion of its stock in trade, books, magazines, photographs, or other material which are distinguished and characterized by their emphasis on matter depicting, describing or relating to the specified sexual activities or specified anatomical areas defined herein or an establishment with a segment or section devoted to the sale or display of such material.
5. **ADULT MINI THEATER** — means an enclosed building defined herein as an adult theater but with a capacity less than fifty persons.
- 5.1. **ALTERNATIVE ANTENNA SUPPORT STRUCTURE(S)** — means manmade trees, clock towers, bell steeples, light poles, flag poles, signs, and similar alternative-design mounting structures that camouflage or conceal the presence of Antennas or Towers.
- 5.2. **ANTENNA (OR ANTENNAE OR ANTENNAS)** — means any apparatus designed for telephonic, data, radio, or television communications through the sending and/or receiving of electromagnetic waves, including but not limited to, Communications Antenna and Distributed Antenna Systems (DAS).
6. **MODEL STUDIO** — means any place where, for any form of consideration or gratuity, figure models who display specified anatomical areas are provided to be observed, sketched, drawn, painted, sculptured, photographed or similarly depicted by persons paying such

consideration or gratuity, except by any school accredited by the Department of Education, Commonwealth of Pennsylvania.

7. **MASSAGE ESTABLISHMENT** — means any building, room, place or establishment where, for any form of consideration or gratuity, manipulated massage or manipulated exercises are practiced upon the human body by anyone not a duly licensed physician, osteopath, chiropractor, registered nurse and practical nurse operating under a physician's directions, registered speech pathologists and physical or occupational therapists who treat only patients recommended by a licensed physician and operate only under such physician's direction, whether with or without the use of mechanical, therapeutic or bathing devices, and shall include Turkish bathhouses. The term shall not include a regularly licensed hospital, medical clinic or nursing home, duly licensed beauty parlors or barber shops.
8. **SEXUAL ENCOUNTER OR MEDITATION CENTER** — means any business, agency or person who, for any form of consideration or gratuity, provides a place where two (2) or more persons, not all members of the same household, may congregate, assemble or associate for the purpose of engaging in specified sexual activities or exposing specified anatomical areas.
9. **ADULT ENTERTAINMENT (LIMITED)** — means an Adult Cabaret or Adult Theater.
10. **ADULT CABARET** — means a cabaret which features topless dancers, go-go dancers, exotic dancers, strippers, or similar entertainers which characterize an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas as defined herein.
11. **ADULT THEATER** — means an enclosed building with a capacity of fifty (50) or more persons used for presenting material distinguished or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas as defined herein, for observation by patrons therein.
12. **ADVERTISING SIGN** — means a sign that directs attention to a business, commodity, service or entertainment, conducted, sold or offered elsewhere than upon the premises where the sign is displayed.
13. **ALTERATION, STRUCTURAL** — means any change which would tend to prolong the life of the supporting members of a building or structure, such as bearing walls, columns, beams or girders.
14. **AMUSEMENT ARCADE** — see Use Table, Section 911.02. In addition, the definition of Amusement Arcade also includes any establishment licensed by the Pennsylvania Liquor Control Board where eight (8) or more mechanical or electronic devices, machines, tables or apparatus of any kind are located for playing games of skill or amusement. Amusement Arcade also means any Pennsylvania Liquor Control Board licensed establishment that constitutes a non-conforming use in any residential or P district where six (6) or more mechanical or electronic devices, machines, tables or apparatus of any kind are located for playing games of skill or amusement.
15. **ANIMAL CARE (GENERAL)** — see Use Table, Section 911.02.
16. **ANIMAL CARE (LIMITED)** — see Use Table, Section 911.02.

17. ART OR MUSIC STUDIO — see Use Table, Section 911.02.
18. ASSEMBLY, PUBLIC — see Use Table, Section 911.02.
19. ASSEMBLY, PUBLIC (GENERAL) — see Use Table, Section 911.02.
20. ASSEMBLY, PUBLIC (LIMITED) — see Use Table, Section 911.02.
21. AUTOMOBILE — means any a self-propelled, free-moving vehicle designed for passenger transportation, including but not limited to cars, motorcycles, mopeds, pickup trucks, or vans, excluding recreational vehicles, boats or trailers.
22. AUTOMOBILE, COMPACT SIZE — means an automobile which occupies an area of less than nine (9) square meters (ninety-seven (97) square feet).
23. AUTOMOBILE, STANDARD SIZE — means an automobile which occupies an area greater than or equal to nine (9) square meters (ninety-seven (97) square feet).
24. AUTOMOBILE, NONCOMMERCIAL — means an automobile designed and used primarily for transport of passengers, but not including a bus, taxicab, limousine or similar vehicle used for commercial transportation vehicles.
25. BANK OR FINANCIAL INSTITUTION — see Use Table, Section 911.02.
26. BANK OR FINANCIAL INSTITUTION (GENERAL) — see Use Table, Section 911.02.
27. BANK OR FINANCIAL INSTITUTION (LIMITED) — see Use Table, Section 911.02.
- 27.1. BASE STATION — means the structure or equipment at a fixed location that enables wireless communications licensed or authorized by the FCC, between user equipment and a communications network. The term does not encompass a Tower as defined in this chapter or any equipment associated with a Tower.
 - (i) The term includes, but is not limited to, equipment associated with wireless communications services such as private, broadcast, and public safety services, as well as unlicensed wireless services and fixed wireless services such as microwave backhaul.
 - (ii) The term includes, but is not limited to, radio transceivers, Antennas, coaxial or fiber-optic cable, regular and backup power supplies, and comparable equipment, regardless of technological configuration (including Distributed Antenna Systems and Small-Cell Networks).
 - (iii) The term includes any structure other than a Tower that, at the time an eligible facilities modification application is filed with the City under the Zoning laws of the City, Chapter 412, and/or Chapter 427, supports or houses equipment described in paragraphs (i)—(ii) immediately-above, and that has been reviewed and approved under the applicable zoning or siting process, or under another State, County or local regulatory review process, even if the structure was not built for the sole or primary purpose of providing such support.
 - (iv) The term does not include any structure that, at the time a completed eligible facilities modification application is filed with the City under this section, does not support or

house equipment described in paragraphs (i)—(ii) immediately above.

28. BASE ZONING DISTRICT — means the underlying zoning district.
29. BASEMENT — means a portion of a building partly below ground and having more than one-half ($\frac{1}{2}$) of its height above the level of the adjoining ground.
30. BASIC INDUSTRY — see Use Table, Section 911.02.
31. BED AND BREAKFAST — see Use Table, Section 911.02.
32. BED AND BREAKFAST (GENERAL) — see Use Table, Section 911.02.
33. BED AND BREAKFAST (LIMITED) — see Use Table, Section 911.02.
- 33.1. BIRD SAFE GLAZING — shall mean glazing treatments or visual markers that minimize the impact of bird collisions that has been treated to a maximum threat factor of 30 in accordance with the American Bird Conservancy Bird Collision Threat Factor Rating, or with a relevant ASTM standard. These may include fritting, netting, frosted glass, exterior screens or physical grids placed on the exterior of glazing that are visible to birds.
34. BOARD — means the Zoning Board of Adjustment.
- 34.1. BUFFERS, GREEN — Green Buffers shall be a minimum of fifteen (15) feet and may not include parking. There are two types of Green Buffers.
 1. A Green Buffer designed for pedestrian access and use. This type of Green Buffer shall provide at least one pedestrian connection through the site. It shall be at the same level as abutting public sidewalks, shall provide a clear path or area for movement to avoid foot or wheel traffic damaging vegetation and soil, and shall be accessible to persons with disabilities throughout the entire area. This portion of the site shall be open to the public during daylight hours and shall include signage indicating such. This type of Green Buffer may count toward the Urban Open Space requirement.
 2. Green Buffer designed for ecological benefit. This type of Green Buffer shall be designed to provide native habitat function and may include green infrastructure for stormwater management. Plantings must be native species that are appropriate for the urban environment, especially tree and plant species that have the largest impact to reduce air pollutants. Each application for this type of Green Buffer shall include a statement from a registered landscape architect or other qualified professional regarding plant species selected for durability, survivability, and potential mitigation on air pollution. An operations and maintenance plan shall be provided for all stormwater management features. This type of buffer is not required to be open to the public and may include an open fence of high-quality material meeting the standards of Section 918.03.B.1.(b), not more than 6 feet tall, that allows easy and free access of non-human animals.
35. BUILDING — means a structure having a roof supported by columns or walls, for the housing or enclosure of persons, animals or chattels.
36. BUILD-TO LINE — see Section 925.05

37. BUILDING, PRINCIPAL — means the building on a lot in which the primary use of the lot is conducted.
38. CAR WASH — see Use Table, Section 911.02.
39. CARPORT — means a roofed structure providing space for the parking of motor vehicles and enclosed on not more than three (3) sides.
40. CELLAR — means a portion of a building having one-half ($\frac{1}{2}$) or more of its height below the average level of the adjoining ground.
41. CEMETERY — see Use Table, Section 911.02.
42. CHILD CARE — see Use Table, Section 911.02.
43. CHILD CARE (GENERAL) — see Use Table, Section 911.02.
44. CHILD CARE (LIMITED) — see Use Table, Section 911.02.
45. CITY COUNCIL — means the City Council of the City of Pittsburgh.
- 45.1. CO-LOCATING and COLLOCATION — mean to locate wireless communications equipment from more than one (1) provider on a single site and/or the mounting or installation of one or more Wireless Communications Facilities as defined herein, including but not limited to, Transmission Equipment and/or Antenna, on an existing Tower, utility pole, light pole, and/or any Eligible Support Structure for the purpose of transmitting and/or receiving radio frequency signals for communications purposes.
46. COMMUNICATION TOWER — see Use Table, Section 911.02.
47. COMMUNICATION TOWER, CLASS A — see Use Table, Section 911.02.
48. COMMUNICATION TOWER, CLASS B — see Use Table, Section 911.02.
49. COMMUNICATION TOWER, CLASS C — see Use Table, Section 911.02.
- 49.1. COMMUNICATIONS ANTENNA — means any device used to collect or radiate electromagnetic waves, including directional antennae, microwave dishes and satellite dishes, and omni-directional antennae, including but not limited to, Distributed Antenna Systems (DAS).
- 49.2. COMMUNICATIONS FACILITY (or COMMUNICATIONS FACILITIES) — shall mean any accessory building, structure, equipment cabinet, Base Station, Transmission Equipment or any other equipment installed in connection with Towers and/or Antennas for the direct or indirect purpose of providing low power radio communications service and shall be:
 - (i) Constructed so as to conform with all aspects of the Pittsburgh Code, including but not limited to, requirements regarding height, setback, lighting, landscaping, screening, construction materials, etc., and
 - (ii) Fully automated and unattended on a daily basis and shall be visited only for periodic maintenance, and

- (iii) Accessed by means of a public street or easement to a public street. The easement shall be a minimum of twenty (20) feet in width and shall be improved to a width of at least twelve (12) feet with a dust-free, all-weather surface for the entire length; the access shall be landscaped to the satisfaction of the Zoning Administrator.
- 50. COMMERCIAL VEHICLE — means any motor vehicle licensed by the state as a commercial vehicle.
- 51. COMMUNITY CENTER — see Use Table, Section 911.02.
- 52. COMMUNITY CENTER (GENERAL) — see Use Table, Section 911.02.
- 53. COMMUNITY CENTER (LIMITED) — see Use Table, Section 911.02.
- 53.1. CONCEAL or CONCEALMENT — means Eligible Support Structures, Towers, Antennas, Stations, Communications Facilities and transmission Facilities designed to look like some feature other than a Wireless Tower or Base Station, including but not limited to Alternative Antenna Support Structures as defined herein at Chapter 926 (5.1).
- 53.2. CONSERVATION — means controlled, limited development; protection of basic conditions, qualities or attributes based on natural features, physiographic constraints, or legal covenants.
- 54. CONSTRUCTION CONTRACTOR — see Use Table, Section 911.02.
- 55. CONSTRUCTION CONTRACTOR (GENERAL) — see Use Table, Section 911.02.
- 56. CONSTRUCTION CONTRACTOR (LIMITED) — see Use Table, Section 911.02.
- 56.1. CONSTRUCTION MANAGEMENT PLAN — means a plan that identifies the scope and details of a construction operation, including but not limited to transportation routing, street closures and obstructions, debris/dumpster maintenance, work crew parking, site maintenance, etc. A Construction Management Plan shall include measures that will be taken during construction operations to mitigate environmental impacts such as construction noise, traffic, parking, air and light, to the maximum extent feasible. Mitigating measures include but are not limited to sound barriers, temporary sidewalks and sidewalk protection, dust and debris management, and construction safety plans. A Construction Management Plan shall be approved by the Zoning Administrator, Director of Public Works and the Director of Permits, Licenses and Inspections.
- 57. CONTEXTUAL SETBACK — means an imaginary line that may be established at any point between the (zoning district) required front setback and the front setback that exists on a lot that is adjacent and oriented to the same street as the subject lot. See also Section 925.06.
- 58. CONTEXTUAL HEIGHT — means an imaginary line that may be established at any point between the maximum building height of the zoning district and the building height that exists on a lot that is adjacent to and oriented to the same street as the subject lot. See also Section 925.07.D.
- 59. CORRECTIONAL FACILITY — see Use Table, Section 911.02.

- 60. CULTURAL SERVICE — see Use Table, Section 911.02.
- 61. CULTURAL SERVICE (GENERAL) — see Use Table, Section 911.02.
- 62. CULTURAL SERVICE (LIMITED) — see Use Table, Section 911.02.
- 63. DECISION-MAKER or DECISION-MAKING BODY — means the entity (City Council, Planning Commission, Zoning Board of Adjustment, Zoning Administrator, Planning Director or department head) that is authorized to finally approve or deny an application or permit required under this development code. See also Chapter 923.
- 64. DENSITY — See Section 925.03.
- 65. DEPARTMENT — means the Department of City Planning of the City of Pittsburgh.
- 65.1. DESIGN REVIEW — means the review of a project for potential impact on the public realm related to the design of buildings, landscaping, and overall site, in accordance with the zoning district requirements and/or development approval process outlined in the Zoning Code. Design review includes consideration of the project's siting, massing, proportions, scale, facade treatment and materials in relationship to the surrounding architectural and neighborhood context.
- 66. DESIGN STANDARDS — means a set of guidelines defining parameters to be followed in a site and/or building design and development.
- 67. DEVELOPMENT — means the performance of any building, excavation, or mining operation, the making of any substantial change in the use or appearance of any structures or land, or the creation or termination of rights of access or riparian rights. The following activities or uses shall be taken for the purpose of this Code to involve development as defined in this Code unless expressly excluded by ordinance:
 - a. A change in type of use of a structure or land;
 - b. A reconstruction, alteration of the size, or substantial change in the external appearance of a structure or land;
 - c. A substantial increase in the intensity of use of land, such as an increase in the number of businesses, manufacturing establishments, offices or dwelling units;
 - d. Commencement of mining or excavation on a parcel of land;
 - e. Demolition of a structure or removal of substantial living trees;
 - f. Deposition of refuse, solid or liquid waste or fill on a parcel of land;
 - g. In connection with the use of land, substantial disturbance of existing vegetation, tree cover, site contours, or watercourses including, but not limited to, disturbance for roads, parking areas and structures;
 - h. Alteration of shore, bank or floodplain of a river, stream, or artificial body of water;
 - i. Re-establishment of a use which has been abandoned;

- j. Departure from the use for which development permission has been granted, or failure to comply with the conditions of an ordinance or order granting the development permission under which the development was commenced or is continued.

Development means any activity for which a permit or other approval is required to be obtained from the Zoning Administrator.

- 68. DEVELOPMENT ENVELOPE — means the projected maximum bulk of building on a development site based on the capacity of the site and on urban design considerations of the surrounding context.
- 69.A. DEVELOPMENT STANDARDS — means a set of guidelines or defining parameters to be followed in site and/or building development.
- 69.B. DISABLED — means "handicapped" as defined according to the Fair Housing Act Amendments of 1988, 42 U.S.C.S. SubSection 3602(h), and any amendments thereto.
- 69.C. DISTRIBUTED ANTENNA SYSTEMS (DAS) — means a network of spatially separated Antenna sites connected to a common source that provides wireless service within a geographic area or structure.
- 70. DISTRICT — means zoning district.
- 71. DORMITORY — see Use Table, Section 911.02.
- 72. DWELLING UNIT — means a building or portion thereof designed and used for residential occupancy by a single family and that includes exclusive sleeping, cooking, eating and sanitation facilities. Buildings with more than one (1) set of cooking facilities are considered to contain multiple dwelling units unless the additional cooking facilities are clearly accessory, such as an outdoor grill.
- 73. EDUCATIONAL CLASSROOM — see Use Table, Section 911.02.
- 73.1. ELIGIBLE SUPPORT STRUCTURE(S) — means any existing Tower or Base Station as defined in this Chapter and Chapter 427, provided that it is in existence at the time the eligible facilities modification application is filed with the City under the Zoning Code, Chapter 901 et seq.
- 74. ENLARGE or ENLARGEMENT — means to increase, or an increase in:
 - (a) The size, height, gross floor area or capacity of an existing structure;
 - (b) The area of land for an existing use;
 - (c) The intensity of use of land or structure such as the addition of dwelling unit, suites, bedrooms or sleeping rooms, parking stalls, or floor area used or intended to be used for service to the people as customers, clients, patrons, patients or tenants.
- 74.1. EV READY — shall mean parking spaces that are built with necessary electrical wires, conduit, and dedicated electric panel space at the time of construction. This would allow charging stations to be added cost effectively at a future time or as part of the original construction of the parking. Specifically, it shall mean a parking space that is provided with

dedicated branch circuit that meets the following requirements:

- a. Wiring capable of supporting a 40-amp, 208/240-volt circuit,
- b. Terminates at a junction box or receptacle located within 3 feet (914 mm) of the parking space, and
- c. The electrical panel directory shall designate the branch circuit as "For electric vehicle charging" and the junction box or receptacle shall be labelled "For electric vehicle charging".

74.2. EV CAPABLE — shall mean parking spaces that are built with conduit serving the space to allow for future wiring and installation of charging stations. This does not require that the electric panel has dedicated space for these future charging connections, although this may be cost effective. Specifically, it shall mean a parking space that is provided with conduit that meets the following requirements:

- a. The conduit shall be continuous between a junction box or receptacle located within 3 feet (914 mm) of the parking space and an electrical panel serving the area of the parking space with sufficient dedicated physical space for a dual-pole, 40-amp breaker.
- b. The conduit shall be sized and rated to accommodate a 40-amp, 208/240-volt branch circuit and have a minimum nominal trade size of 1 inch.
- c. The electrical junction box and the electrical panel directory entry for the dedicated space in the electrical panel shall have labels stating "For future electric vehicle charging."

75. EXCAVATION/GRADING/FILL, MAJOR — see Use Table, Section 911.02.

75.1. FACADE — means the exterior elevation of a structure or building as viewed from a single vantagepoint and determined by the Zoning Administrator.

75.2. FACILITY (or FACILITIES) — means Monopole, Non-Tower Wireless Communications Facility (Non-Tower WCF), Small Cell Facility, Small Cell Network, Tower-Based Wireless Communications Facility (Tower-Based WCF), and/or Wireless Communications Facility (WCF), and/or any accessory building, structure, equipment cabinet or equipment installed in connection with Communication Towers and/or Antennas for the primary purpose of providing low power radio communication service.

76. FAMILY — means:

- (a) An individual, or two (2) or more persons related by blood or marriage or adoption, living together in a dwelling unit; or
- (b) A group of not more than three (3) persons who need not be related by blood or marriage or adoption, living together as a single housekeeping unit in a dwelling unit, and shared common facilities as considered reasonably appropriate for a family related by blood, marriage or adoption; in either case exclusive of usual servants; or
- (c) A group of not more than eight (8) unrelated disabled people living together as a

single housekeeping unit in a dwelling unit and sharing common facilities as considered reasonably appropriate for a family related by blood, marriage or adoption. If appropriate, one (1) staff person may reside on the premises and will not be included in the total number of occupants. Any additional staff shall be included in the total number of occupants. A Family may not be a Multi-Suite Residential facility as defined in Section 911.02 or an Assisted Living facility as defined in Section 911.02.

77. FIREARM BUSINESS ESTABLISHMENT — See Use Table, Section 911.02.

78. FLOOR AREA, GROSS — means the sum total horizontal area of all floors of a building, measured from the exterior face of exterior walls or from the center line of walls separating two (2) abutting buildings, including;

- (a) Basements;
- (b) Elevator shafts and stairwells at each floor;
- (c) Floor space used for mechanical equipment;
- (d) Penthouses;
- (e) Half stories, and
- (f) Interior balconies and mezzanines.

But not including:

- (a) Cellars;
- (b) Accessory tanks or cooling towers;
- (c) Uncovered steps;
- (d) Terraces, breezeways, open porches and exterior balconies; and
- (e) Parking structures and garages, except where parking is the primary use.

79. FLOOR AREA RATIO (FAR) — see Section 925.04.

79.1. FORESTRY ACTIVITIES — means the management, cultivation, maintenance, and harvesting of timber from a site of one quarter ($\frac{1}{4}$) acre (ten thousand eight hundred ninety (10,890) square feet; approximately one hundred four and thirty-five hundredths (104.35) feet by one hundred four and thirty-five hundredths (104.35) feet) or more, or a linear extent in any direction exceeding two hundred (200) feet. Does not include the production or processing of lumber or similar activities whether grown on site or off site.

80. FRATERNITY/SORORITY — see Use Table, Section 911.02.

81. FREIGHT TERMINAL — see Use Table, Section 911.02.

82. FUNERAL HOME — see Use Table, Section 911.02.

83. GARAGE — means a structure or any portion thereof designed for the parking of one (1) or more automobiles, not including vehicle repair, exhibition or showrooms, or storage of cars for sale.

83.1. GOATS, MINIATURE — means those goats commonly known as Pygmy, Dwarf, or

Miniature goats.

84. GOLF COURSE — see Use Table, Section 911.02.
85. GRADE, AVERAGE FINISHED — means the average between the highest and lowest elevation of the ground abutting the street walls of a structure, existing, or as shown on the construction plans. See also Section 925.07.
86. GROUND LEVEL — means any horizontal area of a property which is at or below the average of the highest and lowest elevations of the adjoining sidewalk area, or not more than twenty (20) feet above the average elevation; convenient for public access, and connected to the sidewalk by adequate stairs or ramps where necessary to assure such convenient public access.
87. GROUP RESIDENTIAL — means the use of a site for occupancy by groups of people not defined as a family, on a weekly or longer basis. Typical uses include fraternity or sorority houses, dormitories, residence halls, boarding/lodging houses, convents and monasteries.
88. GROCERY STORE — see Use Table, Section 911.02.
89. GROUP RESIDENTIAL (GENERAL) — means a group residential use with a capacity of twelve (12) or more persons.
90. GROUP RESIDENTIAL (LIMITED) — means a group residential use with a capacity up to eleven (11) persons.
- 90.1. HAUL ROAD — means a road designed for use by trucks to transport harvested timber from the log landing to its destination.
91. HAZARDOUS OPERATIONS — see Use Table, Section 911.02.
92. HEIGHT, BUILDING — means the vertical distance between Average Finished Grade along the wall facing the front street yard and:
- (a) The highest point of the coping of a flat roof;
 - (b) The deck line of a mansard roof; or
 - (c) The average height level between the eaves and ridge line of a gable, hip or gambrel roof.
- See also Section 925.07
93. HEIGHT, STRUCTURE (OTHER THAN BUILDING) — means the vertical distance measured from Average Finished Grade to the highest point of the structure.
94. HELICOPTER GENERAL PRIVATE USE LANDING AREA — means a heliport, helipad or helistop that is restricted in use to the owner or operator of the facility or to persons authorized by the owner or operator per licensing requirements of the Commonwealth.
95. HELICOPTER LANDING AREA — see Use Table, Section 911.02.
96. HELICOPTER MEDICAL PRIVATE USE LANDING AREA — means a private use

heliport, helipad or helistop which provides helicopter landing area for the transport of persons in need of emergency medical care; the transport of patients needing specialized treatment; or the emergency transport of organs, blood, medicine or medical equipment.

97. HELICOPTER PUBLIC USE LANDING AREA — means a heliport, helipad or helistop that has been designated by the Pennsylvania Department of Transportation Bureau of Aviation and the owner of such facility for use by the general public whether operated by a public agency or private individual, firm or corporation.
98. HELIPAD — see Use Table, Section 911.02.
99. HELIPORT — see Use Table, Section 911.02.
100. HELISTOP — see Use Table, Section 911.02.
101. Reserved.
102. HISTORIC DISTRICT — means a district or zone designated by a local authority or state or federal government within which buildings, structures, appurtenances, and places are of basic and vital importance because of their association with history; or because of their unique architectural style and scale, including color, proportion, form, and architectural detail; or because of their being a part of or related to a square, park, or area the design or general arrangement of which should be preserved and/or developed according to a fixed plan based on cultural, historical, or architectural motives or purposes.
103. HISTORIC BUILDING — means any building that is historically or architecturally significant.
104. HISTORIC STRUCTURE — means a building or structure that has been designated by a local authority.
105. HOME OCCUPATION — see Section 912.02.
106. HOSPITAL — see Use Table, Section 911.02.
107. HOTEL/MOTEL — see Use Table, Section 911.02.
108. HOTEL/MOTEL (GENERAL) — see Use Table, Section 911.02.
109. HOTEL/MOTEL (LIMITED) — see Use Table, Section 911.02.
110. IMPERVIOUS SURFACE — means any surface, including surfaces of structures, that prevents absorption of stormwater into the ground. Impervious surfaces shall include, but not be limited to: roofs; additional indoor living spaces, patios, garages, storage sheds and similar structures; and any streets or sidewalks. Decks, parking areas, and driveway areas are counted as impervious areas if they prevent infiltration. Gravel is considered impervious unless compaction or infiltration tests are provided in accordance with requirements of the City of Pittsburgh Stormwater Design Manual.
111. INCINERATOR, SOLID WASTE — see Use Table, Section 911.02.
112. INSTITUTION — means a group of buildings or structures that are under common or related

ownership, that are located in a contiguous area, notwithstanding rights-of-ways; that contain two (2) or more different uses as integral parts of the functions of the organization, such that different structures contain different primary uses; and that contain a combined minimum of one hundred thousand (100,000) total square feet of gross floor area.

- 113. INTENSITY OF USE — means the number of dwelling units per acre for residential development and the floor area ratio (FAR) for nonresidential development, such as commercial, office, and industrial.
- 114. LABORATORY/RESEARCH SERVICES — see Use Table, Section 911.02.
- 115. LABORATORY/RESEARCH SERVICES (GENERAL) — see Use Table, Section 911.02.
- 116. LABORATORY/RESEARCH SERVICES (LIMITED) — see Use Table, Section 911.02.
- 117. LAUNDRY SERVICE — see Use Table, Section 911.02.
- 118. LIBRARY — see Use Table, Section 911.02.
- 119. LIBRARY (GENERAL) — see Use Table, Section 911.02.
- 120. LIBRARY (LIMITED) — see Use Table, Section 911.02.
- 121. LODGING ROOM — means a room rented as sleeping or living quarters, without cooking facilities and with or without an individual bathroom.
- 121.1. LOG LANDING — means the area at the end of a skid road where harvested timber is stored or prepared for transport from the site.
- 122. LOT AREA — means the total area of a lot lying within the lot lines, not including any portion of a street or way.
- 123. LOT, CORNER — means a lot abutting two (2) or more streets at their intersection.
- 124. LOT DEPTH — means the horizontal distance between front and rear lot lines measured at the mid-point between the two (2) side lot lines.
- 125. LOT, INTERIOR — means a lot other than a corner lot.
- 126. LOT, KEY — means a corner lot abutting two (2) or more non-corner (interior or through) lots.
- 127. LOT, RECORDED — means a lot designated on a plat of subdivision duly recorded pursuant to statute, in the Records' Office for the recording of deeds, plans, etc., of Allegheny County. A recorded lot may or may not coincide with a zoning lot or an accredited zoning lot.
- 128. LOT LINES — means the lines that bound a zoning lot.
- 129. LOT — means land occupied or intended to be occupied by no more than one (1) main structure, or unit group of buildings, and accessory buildings, together with such setbacks and lot area as are required by this Code, and having at least one (1) frontage upon a street.

130. LOT SIZE — See Section 925.01.

131. LOT WIDTH — See Section 925.02.

132. LOT, THROUGH — means a lot, other than a corner lot, having frontage on two (2) parallel or approximately parallel streets.

133. LOT WIDTH — means the horizontal distance between the side lot lines as measured along a straight line parallel to the front lot line or the chord thereof at a point located the minimum front setback distance from the front lot line. See Section 925.02.

134. LOT, ZONING — means a parcel of land that is designated by its owner at the time of applying for a building permit as one (1) lot, all of which is to be used, developed or built upon as a unit under single ownership. Such lot may consist of:

(a) a single "Recorded Lot;" or

(b) a portion of a "Recorded Lot;" or

(c) a combination of complete "Recorded Lots," complete "Recorded Lots" and portions of "Recorded Lots" or portions of "Recorded Lots."

135. Reserved.

136. MANUFACTURING AND ASSEMBLY — see Use Table, Section 911.02.

137. MANUFACTURING AND ASSEMBLY (GENERAL) — see Use Table, Section 911.02.

138. MANUFACTURING AND ASSEMBLY (LIMITED) — see Use Table, Section 911.02.

139. MARINA — means a facility for the storage (wet and dry), launching and mooring of boats together with accessory retail and service uses including restaurants and liveaboards.

140. MAJOR TRAFFIC THOROUGHFARE — means a main traffic artery designated on the zoning district map as a major traffic thoroughfare.

141. MAJOR TRANSIT FACILITY — means a platform or waiting area adjacent to a public mass transit system which utilizes an exclusive right-of-way.

142. MASSAGE — means any process consisting of kneading, rubbing or otherwise manipulating the skin of the body of a human being either with the hand or by means of electrical instruments or apparatus or other special apparatus, but shall not include massages by duly licensed physicians, osteopaths, chiropractors, registered nurses and practical nurses operating under a physician's directions, registered speech pathologists and physical or occupational therapists who treat only patients recommended by a licensed physician and who operate only under such physician's direction; nor shall this definition include any massage of the face or neck practiced by beauticians, cosmetologists and barbers duly licensed.

142.1. MASTER DEVELOPMENT PLAN — means a document in support of a proposal for development, submitted to the Planning Commission, in order to demonstrate that a superior development is intended. The Master Development Plan shall contain all that information

required by the Zoning Administrator to support the application.

143. **MAXIMUM EXTENT FEASIBLE** — means the point at which all possible measures have been undertaken by the applicant, and which point further measures would involve physical or economic hardships that would render a development project infeasible or would be unreasonable in the judgment of the Planning Director.
144. **MEDICAL OFFICE/CLINIC** — see Use Table, Section 911.02.
145. **MEDICAL OFFICE/CLINIC (GENERAL)** — see Use Table, Section 911.02.
146. **MEDICAL OFFICE/CLINIC (LIMITED)** — see Use Table, Section 911.02.
147. **MIXED USE DEVELOPMENT** — means the development of a tract of land, building, or structure with a variety of complementary and integrated uses, such as, but not limited to, residential, office, manufacturing, retail, public, or entertainment, in a compact urban form.
148. **Reserved.**
- 148.1. **MONOPOLE** — means a Wireless Communications Facility or site which consists of a single pole structure, designed and erected on the ground or on top of a structure, to support communications Antennae and connecting appurtenances, which consists of a single freestanding pole designed to support communication Antennae arrays. The structure is anchored to a single concrete and steel foundation (caisson) embedded into the soil.
149. **MULTI-UNIT RESIDENTIAL** — see Use Table, Section 911.02.
150. **NONCONFORMING STRUCTURE** — means a building, structure or sign, or portion thereof, lawfully existing at the time these regulations became effective, or as amended, which does not comply with the setback, height, lot size or other site development standards applicable in the zoning district in which the building or structure is located.
151. **NONCONFORMING SIGN** — means a sign, lawfully existing at the time these regulations became effective, or as amended, which does not completely conform to the sign regulations applicable in the zoning district in which it is located.
152. **NONCONFORMING USE** — means the use of any land, building or structure, other than a sign, which does not comply with the use regulations of the zoning district in which such use is located, but which complied with the use regulations in effect at the time the use was established.
153. **NONCONFORMITY** — means a nonconforming use or noncomplying structure or other situation that does not comply with currently applicable regulations, but which complied with zoning regulations in effect at the time it was established.
- 153.1. **NON-TOWER WIRELESS COMMUNICATIONS FACILITY (NON-TOWER WCF)** — means all non-tower wireless communications facilities, including but not limited to, Antennae and related equipment. Non-Tower WCF shall not include support structures for Antennae and related equipment.
154. **NURSERY** — means land or greenhouses used to raise flowers, shrubs, and plants for sale.

- 155. NURSERY, RETAIL — see Use Table, Section 911.02.
- 156. NURSERY, RETAIL (LIMITED) — see Use Table, Section 911.02.
- 157. NURSERY, RETAIL (GENERAL) — see Use Table, Section 911.02.
- 158. OFFICE — see Use Table, Section 911.02.
- 159. OFFICE (GENERAL) — see Use Table, Section 911.02.
- 160. OFFICE (LIMITED) — see Use Table, Section 911.02.
- 161. OPEN SPACE — means that portion of a lot which is not occupied by buildings, parking areas, driveways, streets or loading areas.
- 162. OVERLAY ZONING DISTRICT — means a zoning district that encompasses one (1) or more underlying zoning districts and that imposes additional requirements or provisions above that required by the underlying zoning district.
- 163. OWNER — means the property owner of record, according to the Records' Office of Allegheny County.
- 164. PARKING AREA — means an open space other than a street or way, used for the parking of only automobiles.
- 165. PARKING AREA, SHARED — means the joint use of a parking area for more than one (1) use.
- 166. PARKING, COMMERCIAL — see Use Table, Section 911.02.
- 167. PARKING, COMMERCIAL (GENERAL) — see Use Table, Section 911.02.
- 168. PARKING, COMMERCIAL (LIMITED) — see Use Table, Section 911.02.
- 169. PARKING, OFF-SITE — means parking provided for a specific use but located on a site other than the one (1) which the specific use is located.
- 170. PARKS AND RECREATION — see Use Table, Section 911.02.
- 171. PARKS AND RECREATION (GENERAL) — see Use Table, Section 911.02.
- 172. PARKS AND RECREATION (LIMITED) — see Use Table, Section 911.02.
- 173. PARTY WALL — means a wall which divides two (2) adjoining properties usually, but not necessarily, having half its thickness on each property and in which each of the owners of the adjoining properties has rights of enjoyment.
- 174. PHYSICAL IMPROVEMENT — means any permanent structure that becomes part of, placed upon, or is affixed to real estate.
- 175. PLAN, GRADING — means a site plan or drawing that portrays an intended physical change in the land surface of a lot or tract of land.
- 176. PLAN, IMPROVEMENT SUBDIVISION SITE — means a drawing that represents the

official site plan of an improvement subdivision, as further defined and referred to in the Planning Commission's Improvement Subdivision Regulations, pursuant to the Act of May 13, 1927 (P.L. 1011), as amended. (53 P.L. Section 22761 et seq.)

177. **PLAN, PLOT** — means a drawing used in connection with an application for Certificate of Occupancy for the purposes of identifying the intended use or occupancy of a particular lot, and to facilitate administrative review for zoning compliance. The drawing shall show the location of the property boundary, structures, streets and other important features.
178. **PLAN, SITE** — means drawings which indicate details of existing and/or intended developments of a particular lot or tract of land in relationship to its surroundings, including details of land use, topography, landscaping and structures.
179. **PLAN, SUBDIVISION** — means a drawing for recording the division of land for improvement or sale, prepared in accord with the Planning Commission's Subdivision Regulations, pursuant to the Act of May 13, 1927 (P.L. 1011), as amended. (53 P.S. Section 22761 et seq.)
180. **PLANNING COMMISSION** — means the City Planning Commission (CPC) of the City of Pittsburgh.
181. **PLANNING DIRECTOR** — means the Director of the Department of City Planning of the City of Pittsburgh.
182. **PLOT PLAN** — see Plan, Plot.
183. **POST OFFICE** — means a facility owned and maintained by the Postal Service of the United States of America for the purpose of distributing mail to the public.
- 183.1. **PRESERVATION** — means maintenance in an existing or natural state in order to prevent environmental degradation of a functional or visual nature.
184. **PRIMARY USE** — means the principal or predominant use of any lot or parcel.
- 184.1. **PRIMARY STREET** — means the street having the most immediate relationship to existing commercial or residential uses and which affords the principal means of access to abutting property.
185. **PRIMARY STRUCTURE** — means a structure in which is conducted the primary use of the lot on which it is located.
- 185.1. **PUBLIC DESTINATION FACILITIES** — means a structure providing as its primary use one (1) of the following: community center, hospital, cultural services (limited and general), public assembly (general) recreation and entertainment facilities (general, indoor and outdoor) and gaming enterprises.
186. **PUBLIC REALM** — means that outdoor area which is experienced by the public in general, including public rights-of-way or public spaces and the private and public portions of buildings which enclose them. The Public Realm includes, but is not limited to, areas such as public streets and the yards and facades of the buildings which front the street, the rivers and adjacent riverfront property, and hillsides which are visible from public spaces and places.

- 186.1. PUBLIC WAY(S) — means the surface, the air above the surface, and the area below the surface within any public right-of-way and any street, highway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, park, parkway, lane, square, viaduct, waterway or other public right-of-way including public utility easements or rights-of-way in which the City has jurisdiction; and any other public ground or water within belonging to the City.
- 186.2. RADIO FREQUENCY (RF) PROPAGATION MAP — means a multicolored map depicting a visual representation of the proposed coverage area and signal strength within the proposed coverage area, regularly used by radio frequency engineers when designing a communications network.
187. RECREATION AND ENTERTAINMENT, INDOOR — see Use Table, Section 911.02.
188. RECREATION AND ENTERTAINMENT, INDOOR (GENERAL) — see Use Table, Section 911.02.
189. RECREATION AND ENTERTAINMENT, INDOOR (LIMITED) — see Use Table, Section 911.02.
190. RECREATION AND ENTERTAINMENT, OUTDOOR — see Use Table, Section 911.02.
191. RECREATION AND ENTERTAINMENT, OUTDOOR (GENERAL) — see Use Table, Section 911.02.
192. RECREATION AND ENTERTAINMENT, OUTDOOR (LIMITED) — see Use Table, Section 911.02.
193. RECYCLABLE MATERIAL — means material including but not limited to metal, glass, plastic and paper which is intended for reuse, remanufacture or reconstitution for the purpose of using the altered form. Recyclable material shall not include biodegradable wastes, hazardous materials, industrial scrap materials or used clothing, furniture, appliances, vehicles or parts thereof.
194. RECYCLING COLLECTION STATION — see Use Table, Section 911.02.
195. RECYCLING PROCESSING STATION — see Use Table, Section 911.02.
196. RELIGIOUS ASSEMBLY — see Use Table, Section 911.02.
197. RELIGIOUS ASSEMBLY (GENERAL) — see Use Table, Section 911.02.
198. RELIGIOUS ASSEMBLY (LIMITED) — see Use Table, Section 911.02.
199. RESEARCH SERVICES — see Use Table, Section 911.02.
200. RESIDENTIAL — means a structure or use type that is arranged, designed, used or intended to be used for one (1) or more dwelling units for residential occupancy.
- 200.1. RESIDUAL STAND — means trees remaining following the cutting operation.
201. RESTAURANT, FAST-FOOD — see Use Table, Section 911.02.
202. RESTAURANT, FAST-FOOD (GENERAL) — see Use Table, Section 911.02.

203. RESTAURANT, FAST-FOOD (LIMITED) — see Use Table, Section 911.02.

204. RESTAURANT — see Use Table, Section 911.02

205. RESTAURANT (GENERAL) — see Use Table, Section 911.02

206. RESTAURANT (LIMITED) — see Use Table, Section 911.02

207. RESTRICTED ACCESS HIGHWAY — means a major traffic thoroughfare or part thereof which when open to public use is:

- (a) Constructed or maintained pursuant to the Federal Aid Highway Act of 1956, or any amendment or supplement thereto, as an interstate highway;
- (b) A limited access highway under the Pennsylvania Limited Access Highway Act of May 29, 1945 (P. L. 1108), as amended (36 P.S. Section 2391-1 et seq.); or
- (c) Designated from time to time as restricted access highway by Council on the basis of being either a:
 - (1) Primary or urban route on the State highway system; or
 - (2) Primary route on the Allegheny County highway system approved by the County Planning Commission; or
 - (3) Primary route on the City highway system approved by the City Planning Commission, and, in addition to meeting one (1) of the above three (3) criteria, having either:
 - (i) A minimum width of four (4) lanes, or
 - (ii) Fifty-one percent or more of the total affected frontage in one (1) or more of the following categories:
 - 1. Public park;
 - 2. Publicly owned or controlled land;
 - 3. Redevelopment or renewal area wherein advertising signs are prohibited by the redevelopment or renewal proposal approved by City Council;
 - 4. Land which is so located that the construction of the highway or the regulation thereof prevents private or public vehicular access thereto;
 - 5. Land within three hundred fifty (350) feet of the center line of any highway or interchange ramps thereof covered by subsections (i) or (ii) hereof.

208. RETAIL SALES AND SERVICE — see Use Table, Section 911.02.

209. RETAIL SALES AND SERVICE (GENERAL) — see Use Table, Section 911.02.

210. RETAIL SALES AND SERVICE (LIMITED) — see Use Table, Section 911.02.

211. RETAIL SALES AND SERVICES, RESIDENTIAL CONVENIENCE — see Use Table, Section 911.02.
- 211.1. RETAIL SALES AND SERVICE, OUTDOOR (NON-ACCESSORY USE) — See Use Table, Section 911.02.
212. REVIEWER OR REVIEW BODY — means the entity (City Council, Planning Commission, Zoning Board of Adjustment, Zoning Administrator, Planning Director, or department head) that is authorized to approve or deny or to recommend approval or denial of an application or permit required under this development code.
213. RIGHT(S)-OF-WAY — means a strip of land acquired by reservation, dedication, forced dedication, prescription, or condemnation and intended to be occupied by a road, crosswalk, railroad, electric transmission lines, oil or gas pipeline, water line, sanitary storm sewer, and other similar uses; and/or the surface and space above and below any real property in which the City has an interest in law or equity, including, but not limited to any public street, boulevard, road, highway, freeway, lane, alley, court, sidewalk, parkway, swale, river, tunnel, viaduct, bridge, park, or any other place, area, or real property, other than real property owned in fee by the City.
214. SAFETY SERVICES — see Use Table, Section 911.02.
215. SALVAGE YARD — see Use Table, Section 911.02.
216. SCHOOL, ELEMENTARY OR SECONDARY — see Use Table, Section 911.02.
217. SCHOOL, ELEMENTARY OR SECONDARY (GENERAL) — see Use Table, Section 911.02.
218. SCHOOL, ELEMENTARY OR SECONDARY (LIMITED) — see Use Table, Section 911.02.
- 218.1. SECONDARY STREET — means the street that is subordinate to an intersecting or adjacent primary street and which affords only a secondary means of access to abutting property.
219. SERVICE STATION — see Use Table, Section 911.02.
220. SETBACK, FRONT — means a setback that is to extend across the full width of a lot, the required depth of which is measured as the minimum horizontal distance between the street right-of-way line and a line parallel thereto on the lot. See also Section 925.06.
221. SETBACK, INTERIOR SIDE — means a setback that is to extend from the street right-of-way line to the rear lot line along the side of a lot that is adjacent to another lot, the required depth of which is measured as the minimum horizontal distance between the side lot line and a line parallel thereto on the lot. See also Section 925.06.
222. SETBACK — means the distance that is required by this Code to be maintained in an unobstructed state between a structure and the property line of the lot on which the structure is located. Note: The term "setback" refers to a required minimum area, while the term "yard" refers to the actual open area. See also Section 925.06.

223. SETBACK, REAR — means a setback that is to extend across the full width of a lot, the required depth of which is measured as the minimum horizontal distance between the rear lot line and a line parallel thereto on the lot. See also Section 925.06.
224. SETBACK, STREET SIDE — means a setback that is to extend from the street right-of-way line to the rear lot line along the side of a lot that is adjacent to a street or street right-of-way line, the required depth of which is measured as the minimum horizontal distance between the side lot line and a line parallel thereto on the lot. See also Section 925.06.
225. SINGLE-UNIT ATTACHED RESIDENTIAL — see Use Table, Section 911.02.
226. SINGLE-UNIT DETACHED RESIDENTIAL — see Use Table, Section 911.02.
- 226.1. SKID — means drag logs by lifting one (1) end off the ground to reduce resistance.
- 226.2. SKID ROAD — means a road designed for frequent use by skidding equipment. Skid must incorporate water-control structures to address runoff.
- 226.3. SKID TRAIL — means a trail requiring less construction than a skid road because it is used less frequently by skidding equipment.
227. SLEEPING ROOM — means a fully enclosed portion of a building, designed or intended to be used for sleeping purposes. For purposes of measurement in this Zoning Ordinance, where a sleeping room contains more than two (2) beds, every unit of two (2) beds, or fraction thereof, shall be counted as a separate sleeping room.
- 227.1. SMALL CELL FACILITY (or SMALL CELL FACILITIES) — means a personal wireless services facility that meets both of the following qualifications:
- (i) Each Antenna is located inside an antenna enclosure of no more than three cubic feet in volume or, in the case of an Antenna that has exposed elements, the Antenna and all of its exposed elements could fit within an imaginary enclosure of no more than three cubic feet; and
 - (ii) Primary equipment enclosures are no larger than seventeen cubic feet in volume. The following associated equipment may be located outside the primary equipment enclosure and if so located, are not included in the calculation of equipment volume: electric meter, concealment, telecommunications demarcation box, ground-based enclosures, battery back-up power systems, grounding equipment, power transfer switch, and cut-off switch.
- 227.2. SMALL CELL NETWORK — means a collection of interrelated Small Cell Facilities designed to deliver personal wireless services.
- 227.3. STEALTH TECHNOLOGY — means camouflaging and Concealment methods applied to Wireless Communications Towers, Antennae and other Facilities which render them more visually appealing or blend the proposed Facility into the existing structure or visual backdrop in such a manner as to render it minimally visible to the casual observer. Such methods include, but are not limited to, architecturally screened roof-mounted antennas, building-mounted antennas painted to match the existing structure and Facilities constructed to resemble trees, shrubs, and light poles.

228. SOURCE — means any place, building, facility, equipment, installation, operation, activity, or other thing or any combination thereof:

- (a) At, from, or by reason of which there may be emitted into the outdoor atmosphere any air containment;
- (b) Which belong to the same industrial group;
- (c) Which is located on one (1) or more contiguous or adjacent properties; and
- (d) Which is owned, operated, or allowed to be operated by the same person or by persons under common control or which is jointly owned, operated, or allowed to be operated by two (2) or more person,

but not including motor vehicles or those emissions resulting from an external combustion engine for transportation purposes or from a nonroad engine or nonroad vehicle as defined in Section 216 of the Clean Air Act.

229. SPECIFIED ANATOMICAL AREAS — mean:

- (a) human male genitals in a discernibly turgid state, even if completely and opaquely covered; or
- (b) areas of the human body that are less than completely opaquely covered and limited to:
 - (1) human genitals or pubic region;
 - (2) buttock; and
 - (3) female breast below a point immediately above the top of the areola.

230. SPECIFIED SEXUAL ACTIVITIES — mean:

- (a) acts of human masturbation, sexual intercourse or sodomy;
- (b) fondling or other erotic touching of human genitals, pubic region, buttock or female breasts; or
- (c) human genitals in a state of sexual stimulation or arousal.

231. STANDARD INDUSTRIAL CLASSIFICATION (SIC) — means the classification by type of activities in which engaged; for purposes of facilitating the collection, tabulation, presentation, and analysis of data relating to establishments; and for promoting uniformity and comparability in the presentation of statistical data collected by various agencies of the United States Government, State agencies, trade associations, and private research organizations.

231.1. STATION — means Base Station as defined in this Chapter herein.

232. STORY — means that portion of a building included between the surface of any floor and the surface of the next floor above it, or if there is no floor above it then the space between such floor and the ceiling next above it; not including cellar or basement.

233. **STORY, HALF** — means a story under a gable or hip or gambrel roof the wall plates of which, on at least two (2) opposite exterior walls, are not more than two (2) feet above the floor of such story.
234. **STREET** — means a strip of land at least twenty-five (25) feet wide that provides access to public property, or in a plan of land subdivision approved by the Planning Commission, the boundary lines of which include roadway or sidewalk area.
235. **STRUCTURE** — means anything constructed or erected, the use of which requires, directly or indirectly, a permanent location on the land.
236. **SUITE** — means one (1) or a group of connected living or sleeping rooms.
- 236.1. **TENANT** — means a business or organization occupying building space with a registered mailing address for that space.
- 236.2. **TERTIARY STREET** — means the street whose functions are normally associated with service, delivery, and waste collection and which is not intended for general traffic circulation.
237. **THREE-UNIT RESIDENTIAL** — see Use Table, Section 911.02.
- 237.1. **TOWER** — means Communications Tower(s), including but not limited to, any structure that is designed and constructed primarily for the purpose of supporting one (1) or more antennas, including self-supporting lattice towers, guy towers, or monopole towers. The term includes radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers, DAS hub facilities and the like.
- 237.2. **TOWER, ABANDONED** — means any tower not in service. A tower not in service may be characterized as not having any antennas (panel type and whip type), or any other device that looks like an antenna, on the tower.
- 237.3. **TOWER, GUYED** — means any tower using wire guys connecting above grade portions of a tower diagonally with the ground to provide support for tower and/or antennae.
- 237.4. **TOWER HEIGHT** — means measured from the base on which the tower is mounted to the top of the tower or other structure, even if the highest point is an antenna or lightning rod, whichever is greater.
- 237.5. **TOWER, LATTICE (SELF-SUPPORT)** — means structure which generally has three (3) or four (4) legs consisting of vertical, horizontal, and diagonal cross strips or bars that is designed to support communication antenna arrays. The structure legs are anchored to concrete and steel foundations (caissons) embedded into the soil.
- 237.6. **TOWER, MOBILE** — means any tower capable of being transported in, or by, a motor vehicle. A mobile tower parked for more than twenty-four (24) hours will be classified as a temporary tower.
- 237.7. **TOWER, MONOPOLE** — means a Wireless Communications Facility or site which consists of a single pole structure, designed and erected on the ground or on top of a structure, to support communications Antennae and connecting appurtenances, which consists of a

single freestanding pole designed to support communication Antennae arrays. The structure is anchored to a single concrete and steel foundation (caisson) embedded into the soil.

237.8. TOWER, TEMPORARY — means towers standing for sixty (60) consecutive days or less. Need for Tower must be established. Need must be based on public safety and/or a public emergency.

237.9. TOWER-BASED WIRELESS COMMUNICATIONS FACILITY (TOWER-BASED WCF) — means a Tower and its supporting Antennae, including, but not limited to, self-supporting lattice towers, guy towers and monopoles. DAS hub facilities are considered to be Tower-Based WCFs

237.10. TRANSMISSION EQUIPMENT — means equipment that facilitates transmission for any wireless communication service licensed or authorized by the FCC, including, but not limited to, radio transceivers, Antennas, coaxial or fiber-optic cable, and regular and backup power supply. The term includes equipment associated with wireless communications services including, but not limited to, private, broadcast, and public safety services, as well as unlicensed wireless services and fixed wireless services such as microwave backhaul.

238. TRANSIT FACILITY — see Use Table, Section 911.02.

238.1. TRANSPARENT — means a window or clear surface unobstructed by signage, interior graphic elements, reflective coating, translucent or textured finish, racking or any type of fixed furniture that can be seen through from both the interior and exterior of a structure.

239. TWO-UNIT RESIDENTIAL — see Use Table, Section 911.02.

240. UNDERLYING ZONING DISTRICT — means the base zoning district.

241. UNIT GROUP DEVELOPMENT — means two (2) or more related primary buildings or uses on one (1) zoning lot.

241.1. USABLE AND URBAN OPEN SPACE — means that portion of a lot, which is not occupied by buildings, parking areas, driveways, streets or loading areas.

242. USE — means the purpose for which land or a building is arranged, designed or intended, or for which either land or a building is or may be occupied or maintained.

243. UTILITY (GENERAL) — see Use Table, Section 911.02.

244. UTILITY (LIMITED) — see Use Table, Section 911.02.

245. VARIANCE — means a modification of the literal provisions of this Zoning Code which the Zoning Board of Adjustment is permitted to grant when strict enforcement of such provisions would cause unnecessary hardship owing to circumstances unique to the individual property on which the variance is sought.

246. VEHICLE/EQUIPMENT REPAIR (GENERAL) — see Use Table, Section 911.02.

247. VEHICLE/EQUIPMENT REPAIR (LIMITED) — see Use Table, Section 911.02.

248. VEHICLE/EQUIPMENT SALES — see Use Table, Section 911.02.

249. VEHICLE/ EQUIPMENT SALES (GENERAL) — see Use Table, Section 911.02.
250. VEHICLE/ EQUIPMENT SALES (LIMITED) — see Use Table, Section 911.02.
251. Reserved.
252. Reserved.
253. VOCATIONAL SCHOOL — see Use Table, Section 911.02.
254. VOCATIONAL SCHOOL (GENERAL) — see Use Table, Section 911.02.
255. VOCATIONAL SCHOOL (LIMITED) — see Use Table, Section 911.02.
256. WAREHOUSE — see Use Table, Section 911.02.
257. WAREHOUSE (GENERAL) — see Use Table, Section 911.02.
258. WAREHOUSE (LIMITED) — see Use Table, Section 911.02.
259. WAREHOUSE, RESIDENTIAL STORAGE — see Use Table, Section 911.02.
260. WAY — means a strip of land less than twenty-five (25) feet wide that provides access to public property or in a plan of land subdivision approved by the Planning Commission, the boundary lines of which include roadway and/or sidewalk area.
261. WELDING OR METAL SHOP — see Use Table, Section 911.02.
- 261.05. WHOLE-BUILDING LIFE-CYCLE ASSESSMENT — shall mean an assessment of the embodied carbon impact of a whole building. This includes the impact of all materials used in the project, or a subset of the project, like structure and/or envelope, throughout the life cycle of the building. Life-Cycle Assessment shall comply with ISO 14044.
- 261.1. WIRELESS — means transmissions through the airwaves including, but not limited to, infrared line of sight, cellular, PCS, microwave, satellite, or radio signals.
- 261.2. WIRELESS COMMUNICATIONS FACILITY (WCF) — means the Antennae, nodes, control boxes, Towers, poles, conduits, ducts, pedestals, electronics and other equipment used for the purpose of transmitting, receiving, distributing, providing, or accommodating wireless communications services.
262. YARD — means the actual unobstructed open space that exists or that is proposed between a structure and the lot lines of the lot on which the structure is located. See "Setback."
- 262.1. ZERO CARBON — shall mean not using fossil fuel, greenhouse-gas-emitting energy to operate and are instead 100% powered by on-site and/or off-site renewable energy.
263. ZONING BOARD — means the Zoning Board of Adjustment.